

JOHN LACKLAND

BY

KATE NORGATE

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LACKLAND ***

Transcriber's Note

Sidenotes showing the year have been moved to the start of paragraphs, and kept only when they change. For some long paragraphs a range of dates is shown.

Other sidenotes either give the actual date of an event, or show a change of year.

Footnotes have been renumbered and moved to the end of chapters.

All references to footnote numbers (i.e. page and note number) have been changed to the footnote numbers used here.

Some formatting and punctuation in citations, sidenotes and the index have been standardized.

Variant spelling, inconsistent hyphenation and inconsistent spelling of people's names are retained, however a few palpable printing errors have been corrected.

The errata list is in the note at [the end](#) of the book.

Throughout this book the abbreviation *ib.* is used to refer to the same work as the previous reference, and *l.c.* is used when the reference is to the same place in the referenced work (or *ll.cc.* where the reference is to more than one place). Each has been linked to the citation to which it refers.



JOHN LACKLAND

BY

KATE NORGATE

WITH MAPS

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"THE closer study of John's history clears away the charges of sloth and incapacity with which men tried to explain the greatness of his fall. The awful lesson of his life rests on the fact that the king who lost Normandy, became the vassal of the Pope, and perished in a struggle of despair against English freedom was no weak and indolent voluptuary but the ablest and most ruthless of the Angevins."

JOHN RICHARD GREEN.

CHAPTER I

JOHN LACKLAND

1167–1189

. . . . Johan sanz Terre,
Por qui il^[1] ot tant noise e guere.

Estoire de la Guerre Sainte, vv. 101, 102.

THE fifth son, the eighth and last child, of Henry II. of England and Eleanor of Aquitaine was born at Oxford, in the “King’s manor”—that is, the palace of Beaumont—on Christmas Eve 1167.^[2] Of their six other surviving children, the three younger were daughters; the last of these, Joanna, was then two years old. The eldest living son, Henry, was nearly thirteen; Richard was ten, and Geoffrey nine. The boy Henry had, when an infant, been acknowledged by the barons of England as heir to the crown,^[3] and in 1160 had done homage to Louis of France for the duchy of Normandy.^[4] In 1162 preparations had been made for his crowning in England, and he had again received the homage of the barons,^[5] to which that of the Welsh princes and the Scot king was added in 1163.^[6] Eleanor’s duchy of Aquitaine had been destined for her second surviving son, Richard, as early as 1159,^[7] when he was not yet two years old. In the summer of 1166 the king had secured Brittany for Geoffrey by betrothing him to its heiress.^[8] The whole Angevin dominions, with one exception, were thus, in design at least, partitioned among John’s brothers before John himself was born. The exception was, indeed, an important one; in the contemporary accounts of Henry’s plans during this period for the distribution of his territories, there is no mention of Anjou and its dependency Touraine. The reason, however, is obvious. Anjou was the

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cradle of his race, the very heart and centre of his dominion, the one portion of it which he had inherited from his forefathers in unbroken male descent, by a right which had been always undisputed and indisputable. The destiny of Anjou was therefore as yet unspecified, not because Henry was reserving it for a possible younger son, but because its devolution to his eldest son, as head of the Angevin house after him, was in his mind a matter of course. It was in fact Henry himself who gave to his new-born child the name which has clung to him ever since—"Johans Sanz Terre," John Lackland.^[9]

Two years later the scheme of partition was fully developed, and now Anjou was explicitly included in it.

1169

At Epiphany 1169 Louis of France granted to the younger Henry the investiture of Anjou and Maine, on the understanding that the boy was to hold these fiefs, as well as Normandy, in his own person, directly of the French crown. Richard was invested, on the same terms, with the county of Poitou and the duchy of Aquitaine. Brittany was granted to young Henry, to be holden by his brother Geoffrey of him as mesne lord, under the king of France as overlord.^[10] The one fragment of the continental dominions of the Angevin house which the king of England formally reserved to himself was Touraine; his homage for it was due to a prince of inferior rank, the count of Blois, and his paternal pride chose rather to perform that homage himself than to suffer it to be performed by any of his sons.^[11]

All these arrangements were as yet merely prospective. Henry had no intention of abdicating, nor of depriving

1170

Eleanor of her rights as duchess of Aquitaine and countess of Poitou, nor even of dispossessing the reigning duke of Brittany. His purpose was simply to insure that, were he himself unexpectedly to become disabled or die, there should be no fair pretext for fighting over his inheritance or defrauding any of his sons of their shares, but that they should be bound to each other, and their overlord Louis bound to each and all of them, by such legal ties as none of the parties could lightly venture to set at defiance. In June 1170 the scheme was completed by the coronation of the younger Henry at Westminster. Two months later the elder king fell sick at La Motte-de-Ger, near Domfront. Believing his end to be at hand, he confirmed the partition of January 1169, and solemnly bequeathed the one son who had no share in it—John—to the guardianship of his eldest brother, "the young king," "that he might advance him and maintain him."^[12] One

contemporary historian adds: “And he (the king) gave to his youngest son John the county of Mortain.”^[13] The meaning of this probably is that Henry expressed a wish, or made a suggestion, that his successor should provide for John by investing him with Mortain.^[14] From the days of the Conqueror downwards, this Norman county had always been held by some junior member of the Norman ducal house. Henry I. had granted it to his favourite nephew, Stephen; it had passed to Stephen’s son William, and afterwards to his daughter Mary; in 1168, Mary’s husband, Count Matthew of Boulogne, had ceded it to Henry II., on condition that a heavy sum charged upon its revenues should be paid annually to his two daughters.^[15] Its actual value, therefore, was now very small; and Henry on his recovery seems to have abandoned, for the time at least, his project of bestowing it on John. A year later his diplomacy had wrought out a scheme for providing John with a far more splendid, as well as more valuable, endowment than Mortain, by betrothing him to the presumptive heiress of Maurienne.

A proposal for this marriage was made by Count Humbert of Maurienne and accepted by Henry in 1171.

1171–1172

^[16] Humbert was then a widower for the third time, and had only two daughters. The marriage contract, which was signed at the close of 1172,^[17] provided that if he should yet have a son, that son should inherit scarcely anything but the little county of Maurienne itself, which was only a small and comparatively unimportant part of Humbert’s dominions, stretching as they did along both sides of the Alps and including all the passes between Gaul, Germany and Italy. Except Maurienne, and a very trifling portion of land reserved as a dowry for his younger daughter, all Humbert’s territories—Rossillon-en-Bugey, the county of Belley, the valley of Novalesia, Chambéry and its dependencies, Aix, Aspremont, Rochetta, Mont-Major, and La Chambre on the western side of the Alps; and on their eastern side, Turin, Cavour, Colegno, with the homage and service of the count of Canavesia, and that which the viscount of Aosta owed for Châtillon, and also Humbert’s claims on the county of Grenoble—were devised absolutely and unconditionally to John and his bride, and were, if Henry so willed, to be secured to them immediately by the homage of all Humbert’s subjects in those regions to the little bridegroom; while if Humbert should die without a son, Maurienne itself was to be added to John’s inheritance. The price stipulated for all this was five thousand marks, of which one thousand were

paid over at once by Henry to Humbert.^[18] It was not till the infant bride had been actually delivered over to her intended father-in-law, who was to bring her up in company with her betrothed till both were old enough to be married, that Humbert asked what was to be John's share in the heritage of the Angevin house. Henry, seemingly on the spur of the moment, proposed to give the boy three castles with the lands appertaining to them—Chinon, Loudun, and Mirebeau.^[19] Chinon was in Touraine; but Loudun and Mirebeau were in Anjou. The project was defeated by young Henry's refusal to allow any part of his county to be settled upon his little brother, and it thus gave the immediate occasion, though it was certainly not the real cause, for his revolt.^[20]

When that revolt was subdued, the political relations between King Henry and his elder sons were settled upon a new footing. The terms of this new settlement, while confirming the arrangements made at Montmirail for the devolution of Henry's territories after his death, left no room for any doubt of his intention to keep them all, for the present at least, in his own hands. He covenanted to give to his eldest son, so long as he remained dutiful, two castles in Normandy and a yearly revenue of fifteen thousand pounds Angevin; to Richard, two castles in Poitou, and half the revenues of that county; to Geoffrey, half the dowry of Constance till they should be married, and the whole of it after that event. Richard and Geoffrey had to do homage to their father "for what he granted and gave them," but young Henry was excused from doing the like in consideration of his regal dignity. For John there was now made a carefully detailed provision; he was to receive an income of a thousand pounds from the royal demesnes in England, any escheats which the king might choose to give him, the castle and county of Nottingham, the castle and lordship of Marlborough; two castles and a revenue of one thousand pounds Angevin in Normandy, and from the Angevin lands the same amount in money, with one castle in Anjou, one in Touraine, and one in Maine; and this settlement young Henry was made to promise that he would keep "firmly and inviolate."^[21]

The scheme looks almost as if planned purposely to give John a foothold in every part of his eldest brother's future dominions—a strip, so to say, in every one of young Henry's fields. There was indeed no thought as yet of putting the boy into possession, of

1173–1174
1174 Oct.

1175–1176

investing him with the county of Nottingham, or making him do homage either to his brother or to his father. The clause about escheats, however, soon furnished an opportunity for adding to John's portion. In 1175 the great estates of Earl Reginald of Cornwall reverted to the Crown at his death, and Henry set them aside for John.^[22] Henry's plans for his little "Lackland" were in fact completely changed. The project of setting him up as "marquis in Italy" was abandoned; Alice of Maurienne was dead,^[23] her father had married again, and neither he nor Henry seems ever to have thought of insisting upon the fulfilment of the clause in her marriage-contract which provided that in case of her premature death her sister should take her place as John's bride. The settlement of October 1174 seems to indicate that Henry now saw his best hope of providing for John in his insular dominions, rather than anywhere on the continent. In 1176 there was added to John's prospect of the earldoms of Nottingham and Cornwall that of a third English earldom and a yet wider lordship in the west. Earl William of Gloucester, the son and successor of Earl Robert and Mabel of Glamorgan, had been implicated in the recent rebellion. His three surviving children were all daughters, two of them already married. He bought his peace with the king by making John heir to all his lands, Henry in return promising that John should marry William's youngest daughter, or, if the needful dispensation could not be obtained,^[24] he would bestow her on another husband "with the utmost honour"; while a yearly sum of one hundred pounds was to be paid by the Crown to each of her sisters, as compensation for the loss of their shares of the family heritage. If William should yet have another son, that son and John were to divide the lands of the earldom of Gloucester between them.^[25]

Where John himself had been from his birth until near the completion of his fifth year, there is nothing to show.

1176–1178

He seems to have been with his father at the time of the marriage-treaty with Maurienne, and throughout the subsequent revolt; "John alone, who was a little boy, remained with his father," says Gervase of Canterbury, when speaking of the defection of Henry's elder sons in 1173.^[26] He was apparently in England when the arrangement with Earl William of Gloucester was made, September 28, 1176; and he was certainly with the king at Nottingham at Christmas in that year,^[27] and also at Oxford in May 1177, when Henry bestowed on him the titular sovereignty of the English

dominions in Ireland, and made the Norman-Welsh barons to whom he had granted fiefs in that country do homage for those fiefs to John as well as to himself.^[28] A slight indication of the boy's increasing importance may be found in two entries on this year's Pipe Roll; the expenditure accounted for by the fermor of Peterborough abbey includes a corrody for "the king's son John," and fifty-two pounds spent in buying two palfreys "for the use of the same John."^[29] In August the king returned to Normandy; John followed him, travelling under the care of his half-brother Geoffrey, the bishop-elect of Lincoln;^[30] at Mid-Lent, March 19, 1178, he was present with his father and eldest brother at the consecration of the abbey church of Bec;^[31] and at Christmas 1178 Henry and John were together at Winchester.^[32] During the next four years no mention occurs of John, save that at some time between Michaelmas 1178 and Michaelmas 1179 twenty shillings were spent on horses for him "in England and Normandy" by one William Franceis, who seems to have been a groom appointed by the king to attend him.^[33]

John's earliest known appearance as witness to a
1182–1184
charter of his father's seems to date from the early part of the year 1182; his style is simply "John, the king's son."^[34] This charter was given at Arundel. When Henry went over sea, in March, he left John in England under the guardianship of the justiciar, Ranulf Glanville.^[35] Fifteen months later, the king's arrangements for the disposal of the Angevin succession were all upset by the death of his eldest son, June 11, 1183. Almost heart-broken as the father was, one consolation immediately suggested itself; now at last he might secure to his favourite child some provision at once loftier and more independent than any number of Norman counties or English earldoms, and more substantial than his titular sovereignty in Ireland. In September Henry "sent to England for his youngest son, John, and his master Ranulf de Glanville"; when they had joined him in Normandy he sent for Richard, and bade him cede the duchy of Aquitaine to John and receive the boy's homage for it.^[36] This command shows clearly what Henry's present intentions were. Richard was to take the place proper to the eldest son, as heir to the whole Angevin dominions; when he should enter upon his inheritance, his brothers were to hold the two great underfiefs, Brittany and Aquitaine, under him, just as he and Geoffrey had been destined to hold them under the younger Henry; and this arrangement for the future was to be made binding by the immediate

homage of his brothers to him, although for the present all three sons were to remain in subjection to their father. The scheme was reasonable and just; but in Richard's eyes it had a fatal defect. For the last eight years he had been actual ruler of Aquitaine, as Geoffrey had been actual ruler of Brittany. From 1175 Henry had given his second and third sons a free hand and left them to govern their respective duchies for themselves. Geoffrey's hold upon Brittany had been secured in 1181 by his marriage with Constance; Richard had secured his own hold upon Aquitaine by eight years of hard fighting with its rebellious barons, and was now, in truth, duke by the right of the sword. But young Henry, the crowned king, had throughout these years been in England little more than a cipher, held in check by the authority of his father when present, and by that of the justiciars in his father's absence; while in Normandy and the Angevin lands he had had no practical authority at all. Richard had no mind to give up substance for shadow. To be *de facto* duke of Aquitaine was far better than to be merely titular duke of Normandy and count of Anjou; for the title of king, he knew, Henry would never again grant to any one during his own lifetime. Richard's answer therefore was that, so long as he lived, he and he alone would rule Aquitaine.^[37] In June 1184 the king went back to England,^[38] leaving John in Normandy. John was now in his seventeenth year, and Henry is said to have given him permission to "lead an army into Richard's territories and win them for himself by force."^[39] Whether he also furnished him with an "army" for that purpose, or how John was expected to find one for himself, is not stated; possibly the permission was nothing more than a hastily uttered word which the speaker never meant to be taken seriously. In any case, however, Henry's departure over sea left John to his own devices, and to the influence of his next brother, Geoffrey of Brittany.

Two or three years later, Gerald of Wales sketched the portraits of Geoffrey and John both at once, in a manner highly suggestive of the close relations which the two brothers formed at this time, and of the points of likeness which drew them together. From that picture we can see what was the character of the influence under which John now fell, and what response it was likely to find in the character of John himself. Geoffrey was now a man of twenty-six years, a knight of approved valour, reputed scarcely inferior in this respect to either of his elder brothers, while he surpassed them both in eloquence of speech and

subtlety of brain. “He was not easy to deceive, and would indeed have been one of the wisest of men, had he not been so ready to deceive others. He was a compound of two different natures, Ulysses and Achilles in one. In his inmost soul there was more of bitterness than of sweetness; but outwardly he was always ready with an abundance of words smoother than oil; with his bland and persuasive eloquence he could unbind the closest ties of confederation; with his tongue he had power to mar the peace of two kingdoms. He was a hypocrite, never to be trusted, and with a marvellous talent for feigning or counterfeiting all things.”^[40]

There was nine years’ difference in age between Geoffrey and John; but already a clear-sighted onlooker could see that the two brothers were cast in the same mould, morally as well as physically. Both were short in stature—shorter than their father, and far below the height of young Henry or of Richard; they were well built, but on a small scale. The likeness between them went deeper than that of outward form. As Gerald expresses it, “while one was corn in the blade, the other was corn in the ear”; but the blade developed fast. Before John was twenty, Gerald, though evidently striving hard to make the best of him, was driven to confess that, “caught in the toils and snared by the temptations of unstable and dissolute youth, he was as wax to receive impressions of evil, but hardened against those who would have warned him of its danger; compliant to the fancy of the moment; making no resistance to the impulses of nature; more given to luxurious ease than to warlike exercises, to enjoyment than to endurance, to vanity than to virtue.”^[41] As soon as the king was out of Normandy, Geoffrey and John joined hands; they collected “a great host,” with which they marched, burning and plundering, into Poitou. Richard retaliated by harrying Brittany, till Henry, on learning what was going on, summoned all three brothers to England. They obeyed the summons,^[42] and in December a “final concord” between them was drawn up and sealed at Westminster.^[43] Whatever were its terms, they evidently did not include any cession of territory by either of the elder brothers to the youngest. Geoffrey was at once sent back to Normandy “to take care of it with its other guardians”;^[44] and immediately after Christmas Richard obtained leave to return to Poitou.^[45] The king’s project of transferring Aquitaine to John had been merely a passing fancy. Of the scheme for

establishing him in Ireland Henry had never lost sight; and this scheme he now determined to carry into effect.

Before he could do so, however, a yet loftier destiny was proposed to him for his favourite son. At the end of January 1185 Heraclius, the patriarch of Jerusalem, came to England to implore Henry's aid for the perishing realm of Palestine. King Baldwin IV. was dying; after him there was but one male heir left of the blood of King Fulk of Anjou and Queen Melisenda, and that one was a little child. From the story as told by Gerald it seems plain that Heraclius aimed at something more than merely persuading Henry to take the command of a crusade; his project was nothing less than a transfer of the succession from the younger to the elder Angevin line—from the infant son of Fulk's grand-daughter to a son of Fulk's grandson, Henry. When the king of England, after taking counsel with his "faithful men," declared that he could not in person undertake the deliverance of the Holy Land from its enemies, Heraclius still persisted in his other request; he implored Henry to send at least one of his sons—if even it were only John—"that from this scion of the Angevin house the seed royal might be raised up and spring into new life." The king, however, would not listen. John, it is said, was inclined to embrace the patriarch's suggestion, and threw himself at his father's feet to beg his consent, but in vain.^[46] At Mid-Lent Henry knighted him at Windsor, and publicly gave out that he was to proceed at once to Ireland, where he was destined to be king.^[47]

The dominions of the English Crown in Ireland were defined by the treaty made between the Irish Ard-Righ, Roderic of Connaught, and Henry II. in October 1175 as consisting of the ancient Irish kingdoms of Meath and Leinster, the cities of Dublin and Waterford, and a tract of land extending from Waterford as far as, and including, Dungarvan.^[48] Meath had been granted by Henry in 1171 to Hugh de Lacy to hold in chief of the Crown by the service of fifty knights; ^[49] Leinster had been granted a few weeks before to Richard de Clare, earl of Striguil.^[50] The cities of Dublin and Wexford and the territory appertaining to each of them, which had been held by the Ostmen, were not included in these grants, but were reserved by Henry to himself, and placed under the charge of custodians appointed by him. His authority over the whole area occupied by his subjects in Ireland was represented by a

governor whose headquarters were at Dublin, and who at the time of the treaty was Earl Richard, the lord of Leinster.^[51]

I.



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On the side of the invaders and their king, the treaty was made only to be broken. Henry on his visit to Ireland in 1171–72 had established constables of his own in two other towns, Limerick and Cork.^[52] Cork, though not named in the treaty, and therefore

1171–77

implicitly included in that portion of the island over which he renounced all claims to ownership, seems nevertheless to have been continuously occupied by his officers; it was certainly in their hands in November 1177. ^[53] Limerick had been recovered by the Irish, probably when all Henry's garrisons were recalled from Ireland to swell his forces in Normandy in 1173. It was, however, stormed and captured early in October 1175—only a few days before the treaty with Roderic was signed—by Earl Richard's brother-in-law and constable, Raymond the Fat, and his cousin Meiler Fitz-Henry. ^[54] They evacuated it, indeed, six months later, when Raymond was recalled by Henry to England on the death of Earl Richard in May 1176; ^[55] but Raymond's infraction of the treaty was not the reason for his recall; ^[56] and the withdrawal of his troops from Limerick was due not to any order from the king, but to his own sense of the difficulty of holding a place so remote from the other Norman-Welsh settlements in Ireland. Henry, when he heard of the affair, merely remarked: "Great was the daring shown in seizing the place, but the only wisdom was in leaving it." ^[57] In 1171–72 he had made, it is said, a grant of Ulster to John de Courcy "if he could conquer it by force." ^[58] At the opening of 1177 De Courcy set forth to try whether he could make this grant effectual, and by February 2 he had taken the city of Down. ^[59] Shortly afterwards, Miles Cogan, who was constable of Dublin under the new governor-general, William Fitz-Audeline, made a raid into Connaught as far as Tuam. ^[60] A few weeks later, Henry himself openly flung his treaty with Roderic to the winds. According to one account, he bade Earl Hugh of Chester "go into Ireland and subdue it for him and his son John, to whom he had granted it; for he had obtained leave from Pope Alexander to crown and make king in Ireland whichever of his sons he might choose; and he bade the said earl conquer the kings and princes of Ireland who would not submit to him." The commission was probably given not to Hugh of Chester, but to Hugh de Lacy, who was certainly appointed governor in Ireland shortly afterwards. ^[61] However this may have been, in May 1177 Henry, in a great council at Oxford, arrogated to himself the right of disposing at his pleasure not only of the territories in Ireland which were already conquered, but also of the whole of Munster. Leinster was at this time in his own hands; for Earl Richard's heir was a girl, and therefore a ward of the king. He confirmed Hugh de Lacy's tenure of Meath, and gave him the custody of Dublin, which carried with it the

office of governor-general; he appointed William Fitz-Audeline—whom Hugh was thus to supersede as governor—custodian of Wexford, and Robert le Poer custodian of Waterford; and he defined the territory dependent upon the latter city as extending not merely as far as Dungarvan (the limit specified in the treaty of 1175), but as far as “the river which is beyond Lismore,” that is, the Blackwater. Moreover, he granted to Robert Fitz-Stephen and Miles de Cogan in fee, for the service of sixty knights, “the kingdom of Cork,” South Munster, or Desmond;^[62] and to Herbert and William Fitz-Herbert and their nephew Jocelyn de la Pommeraye, on the same terms, “the kingdom of Limerick,” North Munster, or Thomond. From each of these grants the capital city, with the Ostmen’s cantred attached to it, was excluded, being expressly reserved by Henry for “himself and his heirs.” The recipients of all these grants did liege homage and swore fealty to John as well as to Henry.^[63]

II.



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The grant of Thomond to the two Fitz-Herberts and their nephew was shortly afterwards annulled at their own request, on the ground that this realm “was not yet won or subdued to the king’s authority”; evidently they did not feel equal to the task of winning it. Henry then offered its investiture to Philip de Braose, who accepted it; and this time the city of Limerick, with its cantred, was either included in the enfeoffment, or, more probably, Philip was appointed to

hold it, when won, as custodian for the king.^[64] The “kingdom of Cork” was also as yet unconquered; but here the grantees had the advantage of being supported by an English constable, Richard of London, in Cork itself. They seem to have compelled or persuaded the king of Desmond, Dermot MacCarthy, to some agreement, in virtue of which they are said to have obtained peaceable possession of “the seven cantreds nearest to the city,” and divided these between themselves, Fitz-Stephen taking the three eastern, Cogan the four western; and they seem also to have been appointed by Henry joint custodians of the city of Cork, in succession to Richard of London.^[65] As for the other twenty-four cantreds which made up the rest of their promised territory, they agreed to divide the tribute equally between them, “when it should come.”^[66]

Philip de Braose had helped Cogan and Fitz-Stephen to effect their settlement in Desmond; they now went to help him to gain possession of Limerick. As the three adventurers and their little band of Welsh followers reached the bank of the Shannon, the citizens noticed their approach and fired the town before their eyes. De Braose lost heart, and “chose rather to return safe to his home than to try the risks of fortune in a land so hostile and so remote”;^[67] and it does not appear that he ever obtained any footing in the country. Cogan and Fitz-Stephen held their seven cantreds in Desmond and the city of Cork for five years; then, in 1182, Cogan was slain by an Irish chieftain,^[68] and the natives rose at once throughout the district. They besieged Fitz-Stephen in Cork; his nephew, Raymond the Fat, went to his rescue by sea, and managed to throw himself and some troops into the city; while King Henry, as soon as the news reached him, despatched Miles Cogan’s brother Richard, with some soldiers, from England to take Miles’s place.^[69] In 1183, or very soon after, Fitz-Stephen died;^[70] Henry then appointed Raymond sole constable of Cork, and Raymond contrived to restore at least some degree of “English”—more properly to be called Norman-Welsh—ascendancy throughout the cantreds occupied in 1177, of which the western ones were apparently now held by Richard de Cogan as heir to Miles, while Raymond was recognized by Henry as tenant-in-chief of the eastern ones in succession to Fitz-Stephen, who had no heirs.^[71] The temporary loss of ground in the south in 1182 was more than counterbalanced by the successes of John de Courcy in the same year at the opposite extremity of

1182–83

the island, where he seems to have effected a permanent settlement in Dalriada, though probably only along the coast.^[72]

III.



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The internal condition of the so-called “English” dominion in Ireland, meanwhile, was not altogether satisfactory to the king. It was of course necessary that he should have a viceroy there to represent him and to hold the feudataries in check; but for

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that very reason the viceroy was always, simply as viceroy, an object of jealousy to the other barons; and the viceroy who had been appointed in 1177, Hugh de Lacy, presently incurred the distrust of the king himself. Hugh's rivals accused him of currying favour with the Irish in the hope of making himself an independent sovereign; and on his marriage with a daughter of the king of Connaught, a marriage contracted "according to the manner of that country" and without King Henry's leave, Henry in May 1181 removed him from his office and summoned him to England, sending the constable of Chester and Richard de Pec to Ireland as joint governors in his stead. Hugh's disgrace, however, lasted only six months; he returned to Dublin as governor at the end of the year.^[73] Meanwhile Henry was providing himself with a new instrument for working out his purposes in Ireland. The saintly and patriotic archbishop of Dublin, S. Laurence O'Toole, had died in November 1180;^[74] Henry kept the see vacant ten months, and then, in September 1181, gave it to an English clerk and confidant of his own, John Cumin. The new archbishop was consecrated by the Pope on March 21, 1182;^[75] but more than two years elapsed before he set foot in his diocese. At last, in August 1184, he was sent over by Henry to prepare the way for the coming of John.^[76] It was doubtless for the same purpose that Hugh de Lacy was again superseded as governor; at the beginning of September he was replaced by Philip of Worcester, whose first work was to recover for the Crown certain lands which Hugh had alienated, and whose next undertaking was a plundering raid upon the clergy and churches of Armagh, achieved with great success in March 1185.^[77]

On April 24 John sailed from Milford^[78] with a fleet of sixty ships,^[79] which carried some three hundred knights, a large body of archers, and a train of other followers. Next day they all landed at Waterford.^[80] There the neighbouring Irish chieftains came to salute the son of the English king. The knights of John's suite, young and reckless like himself, jeered at the dress and manners of these Irishmen, and even pulled some of them by their beards, which they wore long and flowing according to their national custom. The insulted chieftains reported to their brethren in more remote districts the indignity with which they had been treated; and in consequence, the kings and princes of Munster and Connaught not only refused to attend John's court, but agreed among themselves to oppose him by force.^[81] Archbishop Cumin, who had been

sent over on purpose that he might set an example of clerical submission and lend John the support of his countenance as spiritual head of the province over which John was to be the secular ruler, of course welcomed the lad as his sovereign and gave him his homage and fealty, and so did the lay barons who owed their possessions in Ireland to King Henry; but among the survivors and representatives of the original Norman-Welsh conquerors the king's son—like the king himself fourteen years before—evidently received but a half-hearted welcome,^[82] and John did nothing to gain their confidence or their respect. He ordered castles to be built at Lismore and at two places on the Suir, Ardfinnan and Tibraghny,^[83] beyond this he seems to have taken no measures to oppose the threatened coalition of the Irish princes and people; and while they were openly joining hands against him, he was spending in riotous living the money which had been destined for the pay of the soldiers who had come with him from England. When these soldiers demanded their wages, he met them with a refusal.^[84] Some of them, whom he had left to garrison the new castles at Ardfinnan and Tibraghny, provided for themselves by making plundering raids into Munster, till they were defeated with great slaughter by the king of Thomond, Donell O'Brien;^[85] most of the others refused to serve John any longer, and went over to the Irish.^[86] Such was the characteristic beginning of John's public life. Equally characteristic was the facility with which he escaped from the consequences of his criminal folly. In September, finding himself on the verge of ruin, he hurried back to his father's court and laid the blame of his ill-success upon Hugh de Lacy, whom he accused of plotting with the Irish against him.^[87] The task of repairing the mischief wrought by his five months' stay in Ireland was entrusted by Henry to John de Courcy as governor-general.^[88]

Within a few months, however, the king again took up his cherished scheme with renewed eagerness and hope.

1186–1187

“Lord of Ireland” was the title which John had assumed during his visit to that country,^[89] as it was the title by which Henry had claimed authority over the Irish princes; but ever since 1177 Henry had been planning to secure for his son a more definite basis of power, by having him crowned and anointed as king. For this the Pope's permission was necessary; Alexander III. was said to have granted it,^[90] but his grant seems never to have been embodied in a bull, and Lucius III., who succeeded him in 1181,

absolutely refused to sanction Henry's project. When Lucius died, in November 1185, Henry at once despatched an embassy to his successor, Urban III., "and from him he obtained many things which Pope Lucius had strongly resisted; of which things this was one, that whichever of his sons he might choose should be crowned and anointed king of Ireland."^[91] This grant Urban is said to have confirmed by a bull, and by sending to Henry a crown of peacock's feathers set in gold.^[92] Bull and crown were probably brought by two legates who are expressly described as commissioned by Urban as legates for Ireland, "to crown John king of that country." But these envoys did not reach England till Christmas Eve 1186;^[93] and meanwhile, in August, news had come that "a certain Irishman had cut off the head of Hugh de Lacy," whereupon Henry bade John proceed at once to Ireland and seize Hugh's vast estates there.^[94] John, however, was still in England when the legates arrived; possibly his father detained him on learning that they were actually on their way. But they had no sooner landed than they offended Archbishop Baldwin of Canterbury by wearing their mitres and having their crosses carried before them in his cathedral church; and they repeated the insult in the king's court, to the great indignation of Baldwin and his suffragans.^[95] Under these circumstances it would obviously have been impossible to let them crown John in Baldwin's province; and if Henry entertained any idea of sending them and John to Ireland together, that the rite might be performed there, he speedily abandoned it. Baldwin, in fact, to rid himself of the legates, advised the king to employ them in France, as mediators in the disputes which were arising between Henry and Philip Augustus out of the death of Geoffrey of Brittany, the minority of Geoffrey's daughter, and the critical condition of his widow. Henry accepted the suggestion, sent John to Normandy instead of to Ireland,^[96] and himself followed with the legates on February 17 (1187).^[97]

No pacification between the kings was arrived at, and at Whitsuntide both openly prepared for war. This was the first real war in which John took part; for his attacks upon Aquitaine in 1184 had been mere raids, probably directed by Geoffrey, and it was not under his personal leadership that his mercenaries had fought their losing fight with the Irish in Munster. Now he was appointed to command one of the four bodies into which King Henry divided his host; the other three being entrusted to Richard, Earl William de Mandeville, and Geoffrey the

chancellor.^[98] The position of these different bodies of troops at the opening of the campaign is obscure. One English authority states that when Philip began the war by laying siege to Châteauroux, Richard and John were both within its walls.^[99] A contemporary French historian, however, who was probably better informed, says that when Philip besieged Châteauroux Henry and Richard proceeded together to its relief;^[100] and it appears that John accompanied his father and brother, for we are told that “John who is called Lackland, being sent by his father, chanced to be present” when one of Richard’s mercenaries broke off an arm of a statue in the church of Our Lady, whereupon the figure bled as if it were alive; and John picked up the severed arm and carried it off as a holy relic.^[101] One contemporary asserts that Richard’s subsequent desertion of his father was owing to Philip’s communicating to him a letter in which Henry proposed that Philip’s sister Adela, Richard’s betrothed, should marry John instead of Richard, and that John should succeed to the whole of his dominions except England and Normandy.^[102] Whether this letter was genuine or forged, there is nothing to show; if such a proposition was really made by Henry, it was probably only as a temporary expedient for putting off Philip’s importunity on the awkward question of Adela’s marriage. In the autumn Henry and Richard were again reconciled,^[103] and a little later both were for a moment reconciled to Philip by a common vow of crusade.

On January 30, 1188, Henry returned to England, and it seems that John went with him; for when Philip attacked Berry again in the summer, Henry “sent into Normandy his son John, who crossed from Shoreham to Dieppe.”^[104] The king rejoined his son in July, and they probably remained together during the greater part of the next eleven months, though there is no mention of John’s presence at any of the numerous conferences between Henry and Philip. At one of these conferences—that at La Ferté Bernard, on Trinity Sunday, June 4, 1189^[105]—Philip and Richard demanded that John should be made to accompany his father and brother on the crusade; Richard even declared that he would not go himself unless John went too.^[106] Henry, on the other hand, now openly proposed to Philip that Adela should marry John instead of Richard; but Philip, now that Richard was at his side, would not listen to this suggestion.^[107]

1188–1189

Our last glimpse of John during his father's lifetime is at Le Mans on June 12, when Philip and Richard captured the city, and Henry was compelled to flee. A contemporary tells us that before setting out on his flight "the king caused his son John, whom he loved and in whom he greatly trusted, to be disarmed."^[108] This precaution may have been due to anxiety—groundless, as the issue proved—lest John should thrust himself into danger in his father's behalf; that it was not suggested by any doubts of John's loyalty is plain, not only from the words of the writer who records it, but also from Henry's action on the next morning, when, before setting out on his solitary ride from La Frênaye back into Anjou, he despatched his remaining followers to Normandy, after making the seneschal of the duchy and Earl William de Mandeville swear that in case of his own death the Norman castles should be given up to John.^[109] John, however, had then already left him—under what circumstances, or at what precise moment, we know not; but it seems clear that at some time between the French attack upon Le Mans on the Monday morning and Henry's arrival at La Frênaye on the same night, John had either been sent away by his father for safety, or had found some pretext for quitting his company, and that, in either case, he used the opportunity to go his own way with such characteristic ingenuity that for three whole weeks his father never guessed whither that way really tended.^[110]

Henry and Richard had been set at strife by an illusion of their own imaginations. Richard had been spurred to rebellion by the idea that his father aimed at disinheriting him in favour of John, and might succeed in that aim, unless prevented by force. Henry's schemes for John were probably in reality much less definite and less outrageous than Richard imagined; but there can be little doubt that the otherwise unaccountable inconsistencies and self-contradictions, the seemingly wanton changes of front, by which the king in his latter years had so bewildered and exasperated his elder son, were the outcome of an insatiable desire to place John, somehow or other, in a more lofty and independent position than a younger son was fairly entitled to expect. The strange thing is that Henry never perceived how hopeless were his efforts, nor Richard how groundless were his fears; neither of them, apparently, realizing that the substitution of John for Richard as heir of the Angevin house was an idea which could not possibly be carried into effect. The utter

selfishness of John, however, rendered him, mere lad of one-and-twenty as he was, proof against illusions where his own interest was concerned; and it was he who pricked the bubble. On July 4 Henry, sick unto death, made his submission to Philip and Richard, and received a list of the traitors who had transferred their homage to the latter. That night, at Chinon, he bade his vice-chancellor read him the names. The vice-chancellor hesitated; the king insisted; at last the truth which was to give him his death-blow came out: “Sire, the first that is written down here is Lord John, your son.”^[111]

FOOTNOTES: [\[Skip footnotes\]](#)

[1] *I.e.* Henry II.

[2] The place comes from the prose addition to Robert of Gloucester, ed. Hearne, vol. ii. p. 484; on the date see Stubbs, pref. to W. Coventry, vol. ii. p. xvii.

[3] R. Torigni, a. 1155; Gerv. of Canterbury, vol. i. p. 162.

[4] R. Torigni, a. 1160.

[5] R. Diceto, vol. i. p. 306.

[6] *Ib.* p. 311.

[7] R. Torigni, a. 1159.

[8] R. Torigni, a. 1166.

[9] “Quartum natu minimum Johannem Sine Terra agnominans,” W. Newburgh, l. ii. c. 18. Cf. W. Armor. *Philippis*, l. vi. vv. 591, 592, who says, addressing John—

“Antea quam fato fieres ludente monarcha,
Patris ab ore tui Sine-Terra nomen habebas.”

The name seems to have been commonly used as if it were a part of John’s proper designation: “Johannes ... quem vocant Sine Terra, quamvis multas et latas habet possessiones et multos comitatus,” says R. Torigni, a. 1185. So the writer of the *Estoire de la Guerre Sainte*: “Johan sanz Terre ot nom li mendres,” v. 179; “Johan sanz Terre, Por qui il ot tant noise e guere,” vv. 101, 102.

[10] Cf. R. Torigni, a. 1169; Gerv. Cant. vol. i. p. 208, and Robertson’s *Materials for Hist. of Becket*, vol. vi. pp. 506, 507. According to the writer of this last account, young Henry’s homage to Louis was only for Anjou and Maine, and he adds: “In hac autem honorum distributione Franci regno suo arbitrantur plurimum esse prospectum; eo quidem magis quod cum acerbiori dolore meminerant Henricum filium regis Angliæ regi Francorum pro omnibus hominum fecisse, quando inter ipsum et filiam regis Francorum

sponsalia contracta sunt.” But R. Torigni’s account of young Henry’s homage to Louis in 1160, when compared with his account of the settlement in 1169, seems distinctly to imply that the former was for Normandy alone.

[11] Robertson, *Materials*, vol. vi. p. 507.

[12] “Tradidit ei [*i.e.* Henrico] Johannem fratrem suum minimum ad promovendum et manutenendum,” *Gesta Hen.* vol. i. p. 7. The charge cannot have been given personally, for though John may have been with his father, the young king was in England.

[13] R. Howden, vol. ii. p. 6.

[14] See Bishop Stubbs’s notes to R. Howden, vol. ii. p. 6, and vol. iii. p. xxiv., note 1.

[15] R. Torigni, a. 1168; Stapleton, *Mag. Rot. Scacc. Norm.* vol. i. introd. pp. lxiii., cxxiii.

[16] R. Torigni, a. 1171.

[17] *Gesta Hen.* vol. i. p. 35.

[18] *Gesta Hen.* vol. i. pp. 35–39.

[19] *Ib.* p. 41.

[20] Cf. *ib.* p. 41, and Gerv. Cant. vol. i. p. 242.

[21] Cf. *Gesta Hen.* vol. i. pp. 77–79; R. Howden, vol. ii. pp. 67–69, and *Foedera*, vol. i. pt. i. p. 30.

[22] R. Torigni, a. 1175.

[23] *Art de Vérifier les Dates*, vol. xvii. p. 165.

[24] John and Isabel of Gloucester were cousins in the fourth degree according to the canon law; *i.e.* they were what is now commonly called second cousins, being both great-grandchildren of Henry I.

[25] *Gesta Hen.* vol. i. pp. 124, 125; R. Diceto, vol. i. p. 415, giving the date, September 28, 1176.

[26] Gerv. Cant. vol. i. p. 243.

[27] *Gesta Hen.* vol. i. p. 131.

[28] *Ib.* pp. 161–5.

[29] Eyton, *Itin. of Henry II.* p. 210, from Pipe Roll 1177.

[30] *Ib.* p. 222, from Pipe Roll 1178.

[31] R. Torigni, a. 1178.

- [32] *Gesta Hen.* vol. i. p. 221.
- [33] Eyton, *Itin. Hen. II.* p. 226, from Pipe Roll 1179.
- [34] *Foedera*, vol. i. pt. i. p. 40. For date see Eyton, p. 246.
- [35] *Gesta Hen.* vol. i. pp. 304, 305.
- [36] *Ib.* pp. 304, 305, 307, 308.
- [37] *Gesta Hen.* vol. i. p. 308.
- [38] R. Diceto, vol. ii. p. 21.
- [39] *Gesta Hen.* vol. i. p. 311.
- [40] Gir. Cambr. vol. v. p. 200.
- [41] Gir. Cambr. vol. v. pp. 199, 200.
- [42] *Gesta Hen.* vol. i. p. 319.
- [43] R. Howden, vol. ii. p. 288.
- [44] *Gesta Hen.* vol. i. pp. 320, 321.
- [45] *Ib.* p. 334.
- [46] Gir. Cambr. vol. v. pp. 362, 363.
- [47] *Gesta Hen.* vol. i. p. 336; R. Diceto, vol. ii. p. 34.
- [48] Treaty in *Gesta Hen.* vol. i. pp. 102, 103.

[49] Charter in Lyttelton, *Henry II.* (ed. 1767), vol. iv. p. 295; *Song of Dermot* (ed. Orpen), vv. 2725–32; cf. *Rot. Chart.* p. 178. The statement in *Gesta Hen.* vol. i. p. 163 (copied by R. Howden, vol. ii. p. 134) that the service was that of a hundred knights is clearly a mistake.

- [50] *Song of Dermot*, vv. 2617–22.
- [51] Gir. Cambr. vol. v. p. 298.
- [52] Gir. Cambr. vol. v. p. 277.
- [53] *Ib.* p. 348.
- [54] *Ib.* pp. 321–3. Cf. *Song of Dermot*, vv. 3370 to end.
- [55] Gir. Cambr. vol. v. pp. 332, 333.
- [56] *Ib.* pp. 327, 328.

[57] *Ib.* pp. 333, 334.

[58] *Song of Dermot*, vv. 2733–5.

[59] Gir. Cambr. vol. v. p. 339; *Gesta Hen.* vol. i. pp. 137, 138. Cf. Four Masters and *Ann. Loch Cé*, a. 1177.

[60] Gir. Cambr. vol. v. p. 346. Cf. Four Masters and *Ann. Loch Cé*, a. 1177.

[61] Cf. *Gesta Hen.* vol. i. p. 161 with Gir. Cambr. vol. v. p. 347.

[62] Defined as extending “towards the Cape of S. Brendan [Knock Brandon] on the sea-coast, and towards Limerick and other parts, and as far as the water near Lismore.” Ware’s *Antiquities of Ireland*, ed. Harris, p. 194.

[63] *Gesta Hen.* vol. i. pp. 162–5.

[64] Cf. *Gesta Hen.* vol. i. pp. 172, 173; Gir. Cambr. vol. v. p. 347, with Mr. Dimock’s note 6; and *Rot. Chart.* p. 84 b.

[65] Gir. Cambr. vol. v. p. 348. The removal of William Fitz-Audeline from the office of viceroy seems to have involved the displacement of the subordinate officers appointed by him, of whom Richard of London was one.

[66] Gir. Cambr. vol. v. p. 348. Cf. Ware, *Antiq.* pp. 194, 195.

[67] Gir. Cambr. vol. v. p. 349.

[68] Gir. Cambr. vol. v. p. 350. Cf. note (e) to Four Masters, a. 1182, and *Ann. Loch Cé*, a. 1182.

[69] Gir. Cambr. vol. v. pp. 350, 351.

[70] *Dic. Nat. Biog.* s.v. “Fitz-Stephen, Robert.”

[71] Gir. Cambr. vol. v. p. 350.

[72] Ware, *Antiq.* pp. 196, 197.

[73] Cf. Gir. Cambr. vol. v. pp. 353–6, and *Gesta Hen.* vol. i. p. 270.

[74] Gir. Cambr. vol. v. pp. 357, 358. Cf. *Gesta Hen.* [l.c.](#), where the date is wrong.

[75] Cf. *Gesta Hen.* vol. i. pp. 280, 287, and Gir. Cambr. vol. v. p. 358.

[76] Gir. Cambr. vol. v. p. 359.

[77] *Ib.* pp. 359, 360; Four Masters, a. 1185.

[78] Gir. Cambr. vol. v. p. 380.

[79] Four Masters, a. 1185.

[80] Gir. Cambr. vol. v. p. 381.

[81] Gir. Cambr. vol. v. p. 389.

[82] *Gesta Hen.* vol. i. p. 339.

[83] Gir. Cambr. vol. v. p. 386; Four Masters, a. 1185.

[84] *Gesta Hen.* vol. i. p. 339.

[85] Four Masters, a. 1185.

[86] *Gesta Hen.* [L.c.](#)

[87] Four Masters, [L.c.](#); *Ann. Loch Cé*, a. 1185.

[88] Gir. Cambr. vol. v. p. 392.

[89] In several of John's Irish charters granted during his father's lifetime he styles himself simply "Johannes filius Regis"; when he does use a title, it is "Dominus Hiberniae," or, apparently, in one case (*Hist. MSS. Comm.* 3rd Report, p. 231), "Dux Hiberniae."

[90] *Gesta Hen.* vol. i. p. 161.

[91] *Ib.* p. 339.

[92] R. Howden, vol. ii. pp. 306, 307. No such bull is now known, but there seems no reason to doubt the story.

[93] Gerv. Cant. vol. i. p. 346; *Gesta Hen.* vol. ii. pp. 3, 4; R. Diceto, vol. ii. p. 47.

[94] Cf. *Gesta Hen.* vol. i. pp. 350, 361; Four Masters, a. 1186; Gir. Cambr. vol. v. p. 387, and R. Diceto, vol. ii. p. 34, who gives the day of Hugh's death—July 25—but under a wrong year.

[95] Gerv. Cant. vol. i. p. 346; *Gesta Hen.* vol. ii. p. 4.

[96] *Gesta Hen.* vol. ii. p. 4.

[97] *Ib.* Cf. R. Diceto, vol. ii. p. 47.

[98] *Gesta Hen.* vol. ii. p. 6.

[99] *Ib.*

[100] Rigord, c. 52 (ed. Delaborde, p. 180).

[101] *Ib.* Cf. Gerv. Cant. vol. i. p. 369.

[102] Gir. Cambr. vol. viii. pp. 232, 233.

[103] *Gesta Hen.* vol. ii. p. 9.

[104] *Ib.* p. 40.

[105] R. Howden, vol. ii. p. 362.

[106] *Gesta Hen.* vol. ii. p. 66.

[107] R. Howden, vol. ii. p. 363.

[108] *Hist. de G. le Mar.* vv. 8542–4.

[109] *Gir. Cambr.* vol. iv. p. 369.

[110] Gerald indeed (*L.C.*) says: “In crastino vero ... versus Andegaviam rege properante, fidei tamen sacramentique vinculis senescallo Normanniae Guillelmo Radulphi filio et comite Guillelmo de Mandeville ante constrictis, de munitionibus Normanniae cunctis, siquid de ipso sinistrum fore contigerit, filio suo juniore Johanni reddendis, quanquam tamen et ipse ab eodem, pro dolor! paulo *post* discesserit.” But it looks very much as if “post” here were a mistake for “ante,” for the whole story indicates that John was not at La Frênaye on the night of June 12. Cf. W. Newb. l. iii. c. 25: “Tunc” (after the flight from Le Mans) “Johannes filiorum ejus minimus, quem tenerrime diligebat, recessit ab eo”; and *Gesta Hen.* vol. ii. p. 72: “Johannes filius ejus, qui mortis suae occasio, immo causa praecipua fuerat, eo quod illum tempore guerra, cum capta esset civitas Cenomannis, reliquerat.” These two writers, indeed, taken by themselves, would seem to imply that John’s desertion was open; but Henry’s charge to the two Norman barons, and his subsequent horror at the final discovery of John’s treason, indicate that it was managed with a refinement of duplicity which is really more in accord with John’s character.

[111] *Hist. de G. le Mar.* vv. 9077–8.

CHAPTER II

JOHN COUNT OF MORTAIN

1189–1199

Then ther com most wykke tydyng
To Quer de Lyoun Richard our kyng,
How off Yngelonde hys brother Ihon,
That was accursyd off flesch and bon,
· · · wolde with maystry off hand
Be crownyd kyng in Yngeland.

Richard Coer de Lion, ll. 6267–70, 6273–4.

ON July 6 Henry died; on the 8th he was buried at Fontevraud. Richard attended the burial; John did not, but immediately afterwards, either at Fontevraud or on the way northward, he sought the presence of his brother. Richard received him graciously, and on reaching Normandy “granted him all the lands which his father had given him, to wit, four thousand pounds’ worth of lands in England, and the county of Mortain with its appurtenances.”^[112] These words, and similar expressions used by two other writers of the time,^[113] would seem to imply that John had been count of Mortain before Henry’s death, and that Richard merely confirmed to him a possession and a dignity which he already enjoyed. John, however, is never styled “count” during Henry’s lifetime;^[114] and the real meaning of the historians seems to be that Henry had in his latter days reverted to his early project of making John count of Mortain, but had never carried it into effect, probably because he could not do so without Richard’s assent. Richard’s grant was thus an entirely new one, though made in fulfilment of his father’s desire. It set John in the foremost rank among the barons of Normandy, though the income which it brought

1189

him was not very large. The grant of lands in England, said to have been made to him at the same time, can only have been a promise; Richard was not yet crowned, and therefore not yet legally capable of granting anything in England at all. On his arrival there in August, one of his first acts was to secure the Gloucester heritage for John by causing him to be married to Isabel. The wedding took place at Marlborough on August 29.^[115] Five days later the king was crowned; John figured at the coronation as “Earl of Mortain and Gloucester,” and walked before his brother in the procession, carrying one of the three swords of state, between Earl David of Huntingdon and Earl Robert of Leicester, who bore the other two swords.^[116]

At the end of the month, or early in October, Richard despatched John at the head of an armed force, to secure for the new king the homage of the Welsh princes. They all, save one, came to meet John at Worcester, and “made a treaty of peace” with him as his brother’s representative. The exception was Rees of South Wales, who was in active hostility to the English Crown,^[117] being at that very time engaged in besieging Caermarthen castle. John led “the host of all England” to Caermarthen, the siege was raised,^[118] and Rees accompanied John back to England for a meeting with Richard at Oxford; Richard, however, declined the interview.^[119] His refusal may have been due to some suspicion of a private agreement between Rees and John which is asserted in the Welsh annals;^[120] but his suspicions, if he had any, did not prevent him from continuing, almost to the eve of his own departure from England, to develop an elaborate scheme of provision for John. The very first step in this scheme had already led to trouble, though the trouble was easily overcome. John and Isabel had been married without a dispensation and in defiance of Archbishop Baldwin of Canterbury, who had forbidden, as contrary to canon law, a union between cousins under such circumstances. After the marriage had taken place he declared it invalid, and laid an interdict upon the lands of the guilty couple. John, however, appealed to Rome, and got the better of the primate; in November the interdict was raised by a papal legate.^[121]

IV.



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The Pipe Roll drawn up a month after John's marriage shows him as holding, besides his wife's honour of Gloucester, the honours of Peverel, Lancaster and Tickhill, two manors in Suffolk, three in Worcestershire, and some lands in Northamptonshire, together with the profits of the Forest of Sherwood in Nottinghamshire and of that of Andover in Wiltshire. All these grants were construed as liberally as possible in John's favour; he was allowed the profits of the two forests for a whole year past, and the

revenues of the other lands for a quarter of a year, while the third penny of Gloucestershire was reckoned as due to him for half a year—that is, from a date five months before his investiture with the earldom.^[122] The grants of Peverel's honour and Lancaster included the castles^[123]; in the cases of Tickhill and Gloucester the castles were reserved by the king, and so too, apparently, was a castle on one of John's Suffolk manors, Orford.^[124] Four other honours appear to have been given to John at this time—Marlborough and Luggershall, including their castles; Eye and Wallingford, seemingly without their castles.^[125] The aggregate value of all these lands would be about £1170; but a much greater gift soon followed. Before the end of the year six whole counties—Nottinghamshire, Derbyshire, Dorset, Somerset, Devon and Cornwall—were added to the portion of the count of Mortain. The words in which this grant is recorded by the chroniclers convey a very inadequate idea of its real importance; taken by themselves, they might be understood to mean merely that Richard gave his brother the title and the third penny of the revenue from each of the counties named.^[126] That what he actually did give was something very different we learn from the Pipe Rolls, or rather from the significant omission which is conspicuous in them for the next five years. From Michaelmas 1189 to Michaelmas 1194 these six counties made no appearance at all in the royal accounts. They sent no returns of any kind to the royal treasury; they were visited by no justices appointed by the king. In a word, just as Chester and Durham were palatinates in the hands of earl and bishop respectively, so John's two counties in mid-England and four in the south-west formed a great palatinate in his hands. He received and retained their farms and the profits of justice and administration within their borders, and ruled them absolutely at his own will, the Crown claiming from him no account for them whatever.

The total revenue which the Crown had derived from these six counties in the year immediately preceding their transfer to John was a little over £4000.^[127] But their money value was a consideration of trifling importance compared with the territorial and political power which accompanied it. Such an accumulation of palatine jurisdictions in the hands of one man was practically equivalent to the setting up of an under-kingdom, with a king uncrowned indeed, but absolutely independent of every secular authority except the supreme king himself; and that exception, as every one knew,

was only for the moment; Richard was on the eve of his departure for the Holy Land, and as soon as he was out of reach John would have, within his little realm, practically no superior at all. Moreover, his “lordship of Ireland” had changed its character at his father’s death. Until then it had been, save during his five months’ visit to that country in 1185, merely titular. Most of the few known charters and grants issued in his name during his father’s lifetime are dateless, and it seems possible that, with one exception, all of them may have been issued during that visit.^[128] On Henry’s death, however, John’s lordship of the English March in Ireland became something more than a name. In virtue of it he already possessed a staff of household officers whose titles and functions reproduced those of the royal household itself. Henry had had his seneschal, his butler, his constable for Ireland as well as for England; and this Irish household establishment had apparently been transferred to John, at any rate since 1185. No doubt the men of whom it consisted were appointed by Henry, or at least with his sanction, and were in fact his ministers rather than the ministers of his son; but to the new king they owed no obedience save the general obedience due from all English or Norman subjects; from the hour of Henry’s death their service belonged to the “Lord of Ireland” alone, and John thus found himself at the head of a little court of his own, a ready-made ministry through which he might govern both his Irish dominion and the ample possessions which Richard bestowed upon him in England, as freely as the rest of the English realm was governed by Richard himself through the ministers of the Crown.^[129]

Of the way in which John was likely to use his new independence he had already given a significant indication. Shortly after Richard’s accession the wardship of the heiress of Leinster, Isabel de Clare, was terminated by her marriage with William the Marshal.^[130] Her great Irish fief, as well as her English and Welsh lands, thus passed into the hands of a man who was already one of the most trusted friends and counsellors of Richard, as he had been of Henry, and whose brother had once been seneschal to John himself.^[131] No sooner had William entered upon the heritage of his wife than John disseised him of a portion of Leinster and parcelled it out among friends of his own. The Marshal appealed to Richard; Richard insisted upon John’s making restitution, and John, after some demur, was compelled to yield, but not entirely; he managed to secure the ratification of a grant

which he had made to his butler, Theobald Walter, out of the Marshal's lands, although, by way of compromise, it was settled that Theobald should hold the estate in question as an under-tenant of William, not as a tenant-in-chief of John.^[132] On the other hand, John did not at once displace the governor whom his father had set over the Irish march four years before, John de Courcy. He had no thought of undertaking the personal government of his dominions in Ireland. To do so he must have turned his back upon the opportunities which Richard's misplaced generosity was opening to him in England—opportunities of which it was not difficult to foresee the effect upon such a mind as his. As William of Newburgh says, "The enjoyment of a tetrarchy made him covet a monarchy."^[133]

That Richard presently awoke to some consciousness of the danger which he had created for himself and his realm maybe inferred from the fact that in February 1190 he summoned John to Normandy, and there made him swear not to set foot in England for the next three years. The queen-mother, however, afterwards persuaded her elder son to release the younger one from this oath;^[134] or, according to another account, to leave the decision of the matter to the justiciar and chancellor, William of Longchamp, bishop of Ely. John was to visit the chancellor in England, and either remain there or go into exile, as William might choose.^[135] It is clear, however, that William had no real choice. He was legate in England, and therefore absolution from him was necessary to protect John against the ecclesiastical consequences of a violated oath; but as the violation was sanctioned by the king to whom the oath had been sworn, no ground was left to William for refusing the absolution.

In the course of the year 1190, therefore, or very early in 1191, John returned to England.^[136] In February 1191 the sole remaining check upon both John and William of Longchamp was removed: Queen Eleanor went to join her elder son at Messina.^[137] As soon as she was gone, the results of the concession which he had made to her wishes in John's behalf began to show themselves. On Mid-Lent Sunday, March 24, the count of Mortain and the chancellor had an interview at Winchester "concerning the keepers of certain castles, and the money granted to the count by his brother out of the exchequer."^[138] What passed between them we are not told; but it is clear that they disagreed. Three

months elapsed without any overt act of aggression on either side. Then, all at once, about midsummer, it became apparent that a party which for more than a year had been seeking an opportunity to undermine the chancellor's power had found a rallying-point and a leader in the king's brother. The sheriff of Lincolnshire and constable of Lincoln Castle, Gerard de Camville, being summoned to answer before the justiciars for having made his great fortress into a hold of robbers and bandits, defied their authority on the plea that he had become John's liegeman, and was therefore answerable to no one except John.^[139] The chancellor deprived Gerard of his sheriffdom and gave it to another man, and laid siege to Lincoln Castle.^[140] While he was thus occupied, the castles of Nottingham and Tickhill were given up by their custodians to John.^[141] Thereupon John sent to the chancellor a message of insolent defiance. If William did not at once withdraw from Lincoln and leave Gerard in unmolested possession, the count of Mortain threatened to "come and visit him with a rod of iron, and with such a host as he would not be able to withstand."^[142] With a cutting allusion at once to the chancellor's humble origin and to the readiness with which the commandants of Nottingham and Tickhill had betrayed the fortresses committed to their charge, he added that "no good came of depriving lawful freeborn Englishmen of the offices of trust to which they were entitled, and giving them to unknown strangers; the folly of such a proceeding had just been proved in the case of the royal castles which William had entrusted to men who left them exposed to every passer-by; any chance comer would have found their gates open to him as easily as they had opened to John himself. Such a state of affairs in his brother's realm he was resolved to tolerate no longer." The chancellor's retort was a peremptory summons to John to give up the two castles, and "answer before the king's court for the breach of his oath."^[143] William probably hoped to get John expelled from England, on the plea that Richard had never really consented to his return and that his absolution was therefore invalid, as having been extorted on a false pretence. The summons appears to have been carried by Archbishop Walter of Rouen, who had come from Messina charged with a special commission from Richard to deal with the crisis in England.^[144] John, on receiving the chancellor's message, burst into one of the paroxysms of fury characteristic of his race. "He was more than angry," says a contemporary; "his whole body was so contorted with rage as to be scarcely recognizable;

a scowl of wrath furrowed his brow; his eyes flashed fire, his colour changed to a livid white, and I know what would have become of the chancellor if in that hour of fury he had come within reach of John's hands!" In the end, however, the archbishop persuaded both John and William to hold another conference at Winchester on July 28. ^[145]

John secured the services of four thousand armed Welshmen, whom he apparently brought up secretly, in small parties, from the border, and hid in various places round about the city. No disturbance, however, took place; some of the bishops, under the direction of Walter of Rouen, drew up a scheme of agreement which, for the moment, both John and William found it advisable to accept. The castles of Nottingham and Tickhill were surrendered by John to the king in the person of his special representative the archbishop of Rouen, who was to give them in charge, one to William of Venneval—a liegeman of the king, but a friend and follower of John—the other to William the Marshal; these two custodians were to hold them for the king till his return, and then "act according to his will concerning them"; but if he should die, or if meanwhile the chancellor should break the peace with John, they were to restore them to John. New custodians were appointed, on the like terms, to six royal castles which stood within John's territories, ^[146] and also to two castles which Richard had expressly granted to him,—Bolsover and the Peak. Any new castles built since the king's departure were to be razed, and no more were to be built till his return, save, if necessary, on the royal demesnes, or elsewhere in pursuance of special orders, written or verbal, from himself. No man was to be disseised either by the king's ministers or by the count of Mortain, save in execution of a legal sentence delivered after trial before the king's court; and each party was pledged to amend, on complaint from the other, its own infringements of this rule, which was at once applied to the case of Gerard de Camville. Gerard, having been disseised without trial, was reinstated in his sheriffdom; but his reinstatement was ordered to be immediately followed by a trial before the Curia Regis on the charges brought against him, and the decision of the Curia was to be final; if it went against him, John was not to support him in resistance to it; and John was further bound not to harbour any known outlaws or enemies of the king, nor any person accused of treason, except on condition of such person pledging himself to stand his trial in the king's

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court. The archbishop of Rouen received a promise from John and from the chancellor, each supported by seven sureties, that they would keep this agreement. After it was drawn up, a postscript appears to have been added: "If any thing should be taken or intercepted by either party during the truce, it shall be lawfully restored and amends made for it. And these things are done, saving always the authority and commands of our lord the king; yet so that if the king before his return should not will this agreement to be kept, the aforesaid castles of Nottingham and Tickhill shall be given up to Lord John, whatever the king may order concerning them." The last clause is obscure; but its meaning seems to be that if the arrangement just made should prove to be, in the judgment of the king's ministers, untenable, it was to be treated as void, and matters were to be restored to the position in which they had been before it was made. [\[147\]](#)

The contingency which seems to have been contemplated in this postscript very soon occurred. Some mercenaries whom the chancellor had summoned from over sea landed in England, and he at once repudiated the agreement, declaring there should be no peace till either he or John was driven out of the realm. [\[148\]](#) Hereupon it seems that Venneval and the Marshal, in accordance with the clause above quoted, restored the castles of Tickhill and Nottingham to John. On the other hand, an outrage on John's part, which is recorded only as having occurred some time in this year (1191), certainly took place before October, and most likely before the middle of September. Roger de Lacy, the constable of Chester, who was responsible to Longchamp for the safe keeping of these two castles, made a vigorous effort to bring to justice the subordinate castellans to whom he had entrusted them, and who had betrayed them to John. Of these there had been two in each castle. Two managed to keep out of Lacy's reach; the other two he caught and hanged, although one of them offered to swear with compurgators that he had never consented to the treason of his colleague, and even brought a letter from John requesting that the compurgation might be allowed—the chancellor, to whom the question had been referred, having remitted it to the decision of Lacy. While this man's body was hanging in chains, his squire drove the birds away from it; whereupon Roger de Lacy hanged the squire. Then John took upon himself to avenge them both, not only by disseising Roger of all the lands which he held of him, but also by ravaging the lands which Roger possessed elsewhere. [\[149\]](#)

Some time in August or September another assembly was called to endeavour after a pacification between John and the chancellor. Three bishops and twenty-two laymen were appointed arbitrators—the laymen chosen by the bishops, eleven from the party which had hitherto adhered to William, eleven from the followers of John. The terms which these twenty-five laid down amounted to a decision wholly in John's favour. They did, indeed, again require him to restore the two royal castles of Nottingham and Tickhill; but they made the restoration an empty form. They decreed that the chancellor should put these castles under the control of two men whom they named, William of Venneval and another friend of John's, Reginald de Vasseville. These two were to hold the castles for the king and give William hostages for their fidelity; but if Richard should die before reaching home, they were at once to surrender the castles to John, and William was to restore their hostages. The arbitrators further confirmed Gerard de Camville in the constablership of Lincoln castle; they ordered the chancellor to remove the constables of royal castles situated within the lands of the count of Mortain, and appoint others in their stead, "if the count showed reason for changing them"; and they added that "if the king should die, the chancellor was not to disinherit the count, but to do his utmost to promote him to the kingdom."^[150] This last clause was pointed at a negotiation which William had been carrying on with the Scot king, for the purpose of obtaining his recognition of Arthur of Brittany as heir-presumptive to the English Crown. The negotiation was secret; but John had discovered it,^[151] and the discovery was a useful weapon in his hands. William's dealings with Scotland were most probably sanctioned by Richard; their object was certainly in accord with Richard's own plans for the succession at this time; but Richard's choice of Arthur as his heir was probably unknown as yet to the majority of his subjects, and if it was known to them, it could not commend itself to their ideas either of policy or of constitutional practice. In their eyes the king's next-of-kin and natural successor was not his boy-nephew, but his brother. It was therefore easy for John to win their sympathies by representing the scheme as part of a plot contrived against himself by the chancellor.

The new agreement lasted no longer than its predecessor. Scarcely was it drawn up when there occurred an excellent opportunity for John to secure for himself a new and valuable ally in the person of his half-brother

Geoffrey, the eldest son of Henry II. and the predecessor of Longchamp in the office of chancellor of England. Geoffrey, like John, had in the spring of 1190 been sworn to keep out of England for three years; but, like John too, he had obtained from Richard a release from his oath.^[152] His election to the see of York had been confirmed by the Pope on May 11, 1191,^[153] and it was known that he intended to return to England immediately after his consecration.^[154] Richard had given him a written release from his vow of absence,^[155] but had neglected to apprise the chancellor of the fact; William therefore no sooner heard of Geoffrey's purpose to return than he issued, on July 30, a writ ordering that the archbishop should be arrested on landing.^[156] Geoffrey had written to John, begging for his help; John in reply promised to stand by him.^[157] On August 18 Geoffrey was consecrated at Tours,^[158] and John then urged him to come over at once.^[159] On September 14 Geoffrey reached Dover; he escaped from an attempt to arrest him as he landed, but four days later he was forcibly dragged from sanctuary in S. Martin's priory and flung into prison in the castle.^[160]

John immediately wrote to the chancellor, demanding whether these things had been done by his authority. According to one account, William answered that they had.^[161] A letter from William himself to the chapter of Canterbury, however, declares that he had merely ordered his officers to administer to Geoffrey the oath of fealty to the king (which it was usual for a bishop to take before entering upon his see), and if he refused it, to send him back to the Continent.^[162] However this might be, it is clear that, outwardly at least, the chancellor had put himself in the wrong. He was already the most unpopular man in England; now, all parties in Church and State joined hands against him at once; and it was inevitable that they should rally under the command of John. John sent another letter or message to William, bidding him release the archbishop, and swearing that if this were not done immediately, he, the count of Mortain, would go in person "with a mighty hand and a stretched-out arm" to set his brother at liberty.^[163] On September 21 or 26 Geoffrey was released.^[164] Meanwhile John, with his confidant Hugh of Nonant, the bishop of Coventry, hurried down from Lancaster to Marlborough and invited all whom he thought likely to take his side to join him there. Three of the co-justiciars—William the Marshal among them—answered his call; three bishops, one of whom

was the venerated Hugh of Lincoln, did likewise; and so did Archbishop Walter of Rouen. From Marlborough the party moved on to Reading; thence John despatched a personal invitation, or summons, to Geoffrey,^[165] and at the same time issued, in conjunction with the three justiciars, letters calling the rest of the bishops and barons to a council to be holden on October 5 at the bridge over the Lodden between Reading and Windsor, and a summons to the chancellor to appear there and answer for his conduct.^[166] William retorted by issuing counter writs, summoning all those who had joined the count of Mortain to withdraw from him, “forasmuch as he was endeavouring to usurp the kingdom to himself.”^[167]

John and all his party came to the Lodden bridge on the day which they had appointed; the chancellor, who was at Windsor, sent the bishop of London and three earls to excuse his absence on the plea of illness. The outcome of the day’s discussion was that the assembly, by the voice of Walter of Rouen, pledged itself to depose William from the office of chief justiciar. Their warrant was a letter from the king which Walter had brought from Messina, and in which the subordinate justiciars were bidden to obey Walter’s guidance in all things. The party then returned to Reading; there, next day (Sunday, October 6), the bishops among them excommunicated Longchamp and his adherents; at night a message was sent to him, bidding him appear at the bridge next morning without fail; and this he promised to do.^[168] John and his friends were resolved to make sure of their game this time. On the Monday morning they took care to be first at the bridge; but instead of waiting for the chancellor, the heads of the party rode forward along the Windsor road as if to meet him, and sent their men-at-arms and servants towards London by way of Staines. Tidings of these movements reached William just after he had set out from Windsor. He at once turned back and rode towards London with all speed, and reached the junction of the two roads at the same time as the men-at-arms of John’s party. A skirmish took place in which John’s justiciar, Roger de Planes, was mortally wounded.^[169] While the chancellor made his way into the Tower, John and the barons were following him to London. Next morning (Tuesday, October 8) they assembled at S. Paul’s, renewed their resolution to depose the chancellor, and, in the king’s name, granted to the Londoners their coveted “commune”;^[170] whereupon the citizens joined unreservedly with them in voting the deposition of Longchamp and the appointment of Walter of

Rouen as chief justiciar in his stead.^[171] According to one account, the assembly went still further, and proposed to make John “chief governor of the whole kingdom,” with control of all the royal castles except three which were to be left to the chancellor.^[172] As a token that all this was done “for the safety of the realm,” every man present, John first of all, renewed his oath of fealty to the king; and this ceremony was followed by a second oath of fidelity taken by all the rest to John himself, “saving their fealty” [to the king], together with a promise that they would acknowledge him as king if Richard should die without issue.^[173]

The barons, the bishops, the justiciars, all London, all England, save a handful of Longchamp’s own relatives, personal friends and followers, was on John’s side; Longchamp himself, besieged in the Tower by overwhelming forces, could not possibly hold it for more than a day or two, and there was no hope of relief. There was, however, still one chance of escape from all his difficulties,—John might be bribed. The project seemed a desperate one, for William had already tried it without success, two days before;^[174] yet he tried it again on the Wednesday, and this time he all but succeeded. “By promising him much and giving him not a little, the chancellor so nearly turned the count of Mortain from his purpose that he was ready to withdraw from the city, leaving the business unfinished, had not the bishops of Coventry and York recalled him by their entreaties and arguments.”^[175] Next day the chancellor submitted. On the Friday he gave up the keys of the Tower and of Windsor; within another fortnight he was reduced to surrender all the other royal castles except the three which had been nominally reserved to him, Dover, Cambridge, and Hereford.^[176] Hereupon John ordered him to be released, and allowed him to sail on October 29 for France.^[177]

Oct. 11

The truth of Longchamp’s assertion that John was “endeavouring to usurp the kingdom for himself” was soon made evident. Just before Christmas Philip Augustus of France came home from Acre. After a vain attempt to entrap the seneschal of Normandy into surrendering some of the border fortresses of the duchy to him, he opened negotiations for Richard’s damage in a more likely quarter; he invited John to come over and speak with him immediately, proposing to put him in possession of “all the lands of England and Normandy on this

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(i.e. the French) side of the sea,” on one condition, that he should marry the bride whom Richard had refused, Philip’s sister Adela.^[178] To this condition John’s existing marriage was a bar, but not an insuperable one; it would be easy for him to divorce Isabel on the plea of consanguinity if he were so minded. He responded eagerly to Philip’s invitation, and was on the point of sailing from Southampton for France, when his plans were upset by his mother’s landing at Portsmouth on February 11.^[179] The French king’s treachery had come to Eleanor’s knowledge, and she had hastened back to England to do what lay in her power for the protection of her elder son’s interests. The justiciars, who seem to have already had their suspicions of John’s loyalty, rallied round her at once. She was in fact the only person whose right to represent the absent king was treated by all parties as indisputable, although she had never held any formal commission as regent. She and the justiciars conjointly forbade John to leave the country, threatening that if he did so they would seize all his lands for the Crown.^[180] For a while John hesitated, or affected to hesitate; he had indeed at least two other secret negotiations on hand beside that with France, and he was probably waiting to see which of the three most required his personal superintendence, or was likely to prove most profitable. Another proposition besides Philip’s had come to him from over sea: Longchamp had offered to give him five hundred pounds if he would get him reinstated as chief justiciar of England.^[181] John cared very little who bore the title of justiciar, if he could secure the power for himself; his main object in England was to gain possession of the royal castles; with these in his hands, he could set any justiciar at defiance. The arrangement made in the previous July had been terminated by the chancellor’s fall, and the castles of Nottingham and Tickhill had therefore, in accordance with the last clause of the July agreement, been restored in October to John. The very rash project of placing all the royal castles under John’s control, said to have been mooted in London at the same time, had evidently not been carried into effect;^[182] but John himself had never lost sight of it, and, as a chronicler says, “he did what he could” towards its realization. He began with two of the most important fortresses near the capital, Windsor and Wallingford. He dealt secretly with their commanding officers, so that they were delivered into his hands and filled with liegemen of his own.^[183] This would be easy to manage in the case of Wallingford, which stood within an “honour”

belonging to John himself. The custody of Windsor castle seems to have been, after the chancellor's fall, entrusted for a time to the bishop of Durham, Hugh of Puiset,^[184] a near kinsman of the royal house. In spite of the fact that Hugh was under sentence of excommunication from his metropolitan, Geoffrey of York, John had chosen to spend the Christmas of 1191 with him at Howden; thereby of course rendering himself, in Geoffrey's estimation at least, *ipso facto* excommunicate likewise, till he made satisfaction for his offence.^[185] Hugh of Durham had once hoped himself to supersede Longchamp as chief justiciar, and it is perhaps not too much to suspect that John may have so wrought upon the old bishop's jealousy of Walter of Rouen as to induce him to connive at a proceeding on the part of his representatives at Windsor which would more than compensate his wily young cousin for the temporary ecclesiastical disgrace brought upon him by that otherwise unaccountable Christmas visit.

The actual transfer of these two castles to John probably did not take place till after a council held at Windsor by the queen-mother and the justiciars, towards the end of February or beginning of March. This council was followed by another at Oxford. After Mid-Lent (March 12) a third council was called, to meet this time in London, and for the express purpose of "speaking with Count John about his seizure of the castles."^[186] John, however, had taken care that another matter should come up for discussion first. He had answered Longchamp's proposal by bidding him come over and try his luck. Thus the first piece of business with which the council had to deal was a demand from the chancellor, who had just landed at Dover, for a trial in the Curia Regis of the charges on which he had been deposed. Eleanor inclined to grant the demand. One contemporary says that Longchamp had bribed her. In any case she probably knew, or suspected, that Longchamp now had John at his back; she certainly knew in what regard he was held by Richard; and she urged, with considerable reason, that his deprivation must be displeasing to the king, if it were not justified by process of law. The justiciars and the barons, however, represented the chancellor's misdoings in such glaring colours that she was reduced to silence.^[187] But she was evidently not willing to join the justiciars in driving William out of the country; and in the face of her reluctance the justiciars dared not act without John. He was at Wallingford, "laughing at their conventicles." Messenger after messenger was sent to him with

respectful entreaties that he would come to the council and lend it his aid in dealing with the chancellor. He took the matter very composedly, letting them all go on begging and praying till they had humbled themselves enough to satisfy him and he had got his final answer ready for every contingency; then he went to London. The council, originally summoned to remonstrate with him for his misconduct, now practically surrendered itself wholly to his guidance. Of the castles not a word was said; the one subject of discussion was the chancellor. All were agreed in desiring his expulsion, if only the count would declare himself of the same mind. The count told them his mind with unexpected plainness. "This chancellor will neither fear the threats nor beg the favour of any one of you, nor of all of you put together, if he can but get me for his friend. Within the next seven days he is going to give me seven hundred pounds, if I meddle not between him and you. You see that I want money; I have said enough for wise men to understand"—and therewith he left them.^[188] The justiciars saw that unless they could outbid the chancellor, their own fate was sealed. As a last resource, "it was agreed that they should give him or lend him some money, but not of their own; all fell upon the treasury of the absent king." John's greed was satisfied by a gift, or a loan, out of the exchequer; when this was safe in his hands, he gave the justiciars his written sanction to their intended proceedings against the chancellor;^[189] they ordered William to quit the country, and he had no choice but to obey. They had, however, purchased his expulsion at a ruinous cost to themselves; its real price was of course not the few hundreds of which they had robbed the exchequer for John's benefit, but their own independence. John had outwitted them completely, and they had practically confessed themselves to be at his mercy. Before the council broke up, every member of it, including the queen-mother, took another oath of fealty "against all men" to the king "and to his heir"—in other words, to John himself.^[190]

John's obvious policy now was to keep still and let things remain as they were till there should come some definite tidings of Richard. For nine months all parties were quiescent. Then, on December 28, the Emperor wrote to Philip of France the news of Richard's capture. If the messenger who brought the letter was "welcome above gold and topaze"^[191] to Philip, no less welcome to John was the messenger whom Philip immediately despatched to carry the news to

England. John hurried over to Normandy, where the seneschal and barons of the duchy met him with a request that he would join them in a council at Alençon to deliberate “touching the king’s affairs, and his release.” John’s answer was at least frank: “If ye will acknowledge me as your lord and swear me fealty, I will come with you and will be your defender against the king of France; but if not, I will not come.”^[192] The Normans refused thus to betray their captive sovereign; whereupon John proceeded to the court of France. There an agreement was drawn up, to which the count swore in person and the French king by proxy, and which curiously illustrates their mutual distrust and their common dread of Richard. It provided that in the event of John’s succession, he should cede the Vexin to France, and should hold the rest of the Norman and Angevin dominions as his forefathers had held them, with the exception of the city of Tours and certain small underfiefs, concerning which special provisions were made, evidently with a view to securing the co-operation of their holders against Richard. On the other hand, John promised to accept no offer of peace from Richard without Philip’s consent, and Philip promised to make no peace with Richard unless the latter would accept certain conditions laid down in behalf of John. These conditions were that John should not be disseised of any lands which he held at the time of the treaty; that if summoned to trial by Richard, he should always be allowed to appear by proxy; and that he should not be held liable to personal service in Richard’s host. After sealing this document in Paris, in January 1193,^[193] John hurried back to England and set to work secretly to stir up the Welsh and the Scots, hoping with their support to effect a junction with a body of Flemings who were to come over in a fleet prepared by Philip at Wissant.

The Scot king rejected John’s overtures; but a troop of Welsh were, as usual, ready to join in any rising against the king of England.^[194] With these Welshmen, and “many foreigners” whom he had brought with him from France, John secured himself at Wallingford and Windsor. Then he proceeded to London, told the justiciars that Richard was dead, and bade them deliver up the kingdom and make its people swear fealty to himself. They refused; he withdrew in a rage, and both parties prepared for war.^[195] The justiciars organized their forces so quickly and so well that when the French fleet arrived, just before Easter, it found the coast so strongly guarded that no landing was possible. John meanwhile had openly fortified

his castles, and his Welshmen were ravaging the country between Kingston and Windsor when the justiciars laid siege to the latter fortress.^[196] This siege, and that of Tickhill, which was undertaken by Archbishop Geoffrey of York and Bishop Hugh of Durham, were in progress when on April 20 Hubert Walter, the bishop of Salisbury, landed in England.^[197] Hubert had come direct from the captive king, and it was now useless for John to pretend any longer that Richard was dead. On the other hand, Hubert knew the prospect of Richard's release to be still so remote and so uncertain that he deemed it highly imprudent to push matters to extremity with John. He therefore, although both Windsor and Tickhill were on the verge of surrender, persuaded the justiciars to make a truce whose terms were on the whole favourable to the count of Mortain. The castles of Tickhill and Nottingham were left in John's hands; those of Windsor, Wallingford and the Peak were surrendered by him, to be given over to the custody of Queen Eleanor and other persons named, on the express understanding that unless Richard should reach home in the meanwhile, they were to be restored to John at the expiration of the truce, which was fixed for Michaelmas, or, according to another account, All Saints' Day.^[198]

The immediate object of the justiciars and the queen-mother in making this truce was to gain John's co-operation in their measures for raising the king's ransom. Considering how large a portion of the kingdom was held by John in what may almost be called absolute property, it is obvious that a refusal on his part to bear his share of the burden would make a serious difference in the result of their efforts. It appears that John undertook to raise from his own territories a certain sum for his brother's ransom, that he confirmed this undertaking by an oath, and that he put it on record in writing.^[199] He had, however, taken no steps towards its execution when at the beginning of July a warning reached him from Philip Augustus—"Take care of yourself, for the devil is loosed!"—which meant that the terms of Richard's release had been finally agreed upon between Richard and the Emperor on June 29. John immediately hurried over to France, to shelter himself under Philip's wing against the coming storm, as was thought in England;^[200] more probably to keep a watch upon Philip and take care that he should not break his promises as to the conditions of peace with Richard. The two allies could have no confidence in each other, and they seem to have been both almost ridiculously afraid of the captive Lion-heart. He,

however, was at the moment equally afraid of them, and not without good reason. Three months before he had complained bitterly to the first messengers from England who reached him in his prison of the treachery and ingratitude of John. “Yet,” he added, “my brother is not a man to win lands for himself by force, if there be any one who will oppose him with another force, however slight.”^[201] The words were true; and no less true was the implication underlying the words. Of John as an open enemy Richard could afford to be contemptuous; of John’s capacity for underhand mischief, especially in conjunction with Philip, he was in such fear that no sooner was his treaty with the Emperor signed than he despatched his chancellor and three other envoys to France with orders to make with the French king “a peace of some sort.”^[202] The envoys executed their commission literally, by accepting in Richard’s name the terms which were dictated to them by Philip with John at his side. These included the cession by Richard to Philip of the places taken by the French king during his late campaign in Normandy; the ratification of the arrangements made by Philip and John for certain of their partisans; and the payment to Philip of twenty thousand marks, for which four castles were given to him in pledge. “Touching Count John,” the treaty ran, “thus shall it be: If the men of the king of England can prove in the court of the king of France that the same John has sworn, and given a written promise, to furnish money for the English king’s ransom, he, John, shall be held bound to pay it; and he shall hold all his lands, on both sides of the sea, as freely as he held them before his brother the king of England set out on his journey over sea; only he shall be free from the oath which he then swore of not setting foot in England; and of this the English king shall give him security by himself, and by the barons and prelates of his realm, and by the king of France. If, however, Count John shall choose to deny that those letters are his, or that he swore to do that thing, the English king’s men shall prove sufficiently, by fitting witnesses, in the French king’s court, that he did swear to procure money for the English king’s ransom. And if it shall be proved, as hath been said, that he did swear to do this, or if he shall fail to meet the charge, the king of France shall not concern himself with Count John, if he should choose to accept peace for his lands aforesaid.”^[203]

This treaty was drawn up at Nantes on July 9.^[204] John at once returned to Normandy and there took an oath of

liege homage to his brother; whereupon Richard ordered all the castles of John's honours to be restored to him, on both sides of the sea. "But the keepers thereof would not give up any castle to him" on the strength of this order.^[205] John in a rage went back to France, and Philip immediately gave him the custody of two Norman castles, Driencourt and Arques, which by the recent treaty had been intrusted to the archbishop of Reims in pledge for the twenty thousand marks promised to Philip by Richard.^[206] At Christmas the two allies made a last desperate effort to prevent the "devil" from being "loosed." They offered the Emperor three alternatives: either Philip would give him fifty thousand marks, and John would give him thirty thousand, if he would keep Richard prisoner until the following Michaelmas (1194); or the two between them would pay him a thousand pounds a month so long as he kept Richard in captivity; or Philip would give him a hundred thousand marks and John fifty thousand, if he would either detain Richard for another twelvemonth, or deliver him up into their hands. "Behold how they loved him!" says a contemporary writer.^[207] A hundred and fifty thousand marks was the ransom which had been agreed upon between Henry VI. and Richard, and the one question which troubled Henry was whether he had a better chance of actually getting that sum from Richard or from his enemies. He unblushingly stated this fact to Richard himself, and on February 2, 1194, showed him the letters of Philip and John. Richard appealed to the German princes who had witnessed his treaty with Henry, and by promises of liberal revenues to be granted to them from England induced them to take his part and insist upon Henry's fulfilling his agreement. On February 4 the English king was set at liberty, and a joint letter from the Emperor and the nobles of his realm was despatched to Philip and John, bidding them restore to Richard all that they had taken from him during his captivity, and threatening that if they failed to do so, the writers would do their utmost to compel them.^[208]

Before this letter could have reached its destination, John sent to England a confidential clerk, Adam of S. Edmund's, with secret letters, ordering that all the castles which he held there should be made ready for defence against the king. This man, having reached London without hindrance, foolishly presented himself on February 9 at the house of the new archbishop of Canterbury, Hubert Walter. The archbishop invited him to dinner, an unexpected honour by which Adam's

head was so completely turned that he boasted openly at table of his master's hopes of political advancement. Hubert listened without remark, and thinking that to arrest the babbler on the spot would be a breach of hospitality, suffered him to depart after dinner; but the mayor of London—warned no doubt by the archbishop himself or by one of the other guests—seized Adam on his way back to his lodging, took possession of his papers, and sent them to Hubert, who on the following day laid them before a council of bishops and barons. The council unanimously decreed that John should be disseised of all his lands in England, and that his castles should be reduced by force; the bishops excommunicated him and all his adherents. Then the old bishop of Durham set off to renew the siege of Tickhill; the earls of Chester, Huntingdon and Ferrars laid siege to the castle of Nottingham; Archbishop Hubert himself undertook that of Marlborough, which he won in a few days; and Lancaster was given up to him by his brother Theobald. On March 13 Richard arrived in England. His arrival was speedily followed by the surrender of Tickhill. On the 25th he appeared before Nottingham; on the 28th he was once again master of its castle, and of all England.^[209]

At Nottingham Richard held a council, on the second day of which (March 31) he “prayed that justice should be done him”^[210] on John and on John's chief abettor, Bishop Hugh of Chester. The council cited both delinquents to appear for trial within forty days, and decreed that if they failed to do so, or to “stand to right,” Hugh should be liable to a double sentence—from the bishops as a bishop, and from the laity as a sheriff,^[211]—and John should be accounted to have “forfeited all claims to the kingdom,”^[212] or, as a later annalist explains, should be “deprived and disinherited not only of all the lands which he held in the realm, but also of all honours which he hoped or expected to have from the Crown of England.”^[213] Neither in person nor by proxy did John answer the citation. At the end of the forty days three earls set out for the court of France “to convict him of treason there”; but of their proceedings, too, he took no notice. The forty days had expired on May 10; on the 12th Richard sailed for Normandy.^[214] Landing at Barfleur, he went to Caen and thence turned southward to relieve Verneuil, which Philip was besieging. On the way he halted at Lisieux, where he took up his quarters with the archdeacon, John of Alençon, who had been his vice-chancellor.^[215] He soon noticed that his

host was uneasy and agitated, and at once guessed the cause. “Why do you look so troubled? You have seen my brother John; deny it not! Let him fear nought, but come to me straightway. He is my brother, and should have no fears of me; if he has played the fool, I will never reproach him with his folly. Those who contrived this mischief shall reap their due reward; but of that no more at present.” Joyfully John of Alençon carried the tidings to his namesake of Mortain: “Come forward boldly! You are in luck’s way. The king is simple and pitiful, and kinder to you than you would have been to him. Your masters have advised you ill; it is meet they should be punished according to their deserts. Come! the king awaits you.” In spite of these assurances, it was “with much fear” that Count John approached his brother and threw himself at his feet. Richard raised him with a brotherly kiss, saying: “Think no more of it, John! You are but a child, and were left to ill guardians. Evil were their thoughts who counselled you amiss. Rise, go and eat. John,” he added, turning to their host, “what can he have for dinner?” At that moment a salmon was brought in, as a present for the king. As the chronicler remarks, “it did not come amiss”; Richard immediately ordered it to be cooked for his brother.^[216]

For any other man of six-and-twenty, to be thus forgiven—even though it were by a brother who was ten years older, and a king—expressly on the ground that he was a child, not responsible for his actions, would surely have been a humiliation almost more bitter than any punishment. Nor did John escape altogether unpunished. Richard’s forgiveness was strictly personal; the decree of the council of Nottingham was carried into effect with regard to all John’s English and Norman lands,^[217] and for the next eighteen months he was, save for his lordship of Ireland, once more in fact as well as in name “John Lackland.” He was thus wholly dependent on Richard’s goodwill, and it was obviously politic for him to throw himself into Richard’s service with the utmost energy and zeal. Philip withdrew from Verneuil at the tidings of Richard’s approach, May 28.^[218] After securing the place the English king divided his forces; with part of them he himself went to besiege Beaumont-le-Roger; the other part he entrusted to John for the recovery of Evreux,^[219] which had been taken by Philip in February.^[220] Of the manner in which John accomplished this mission there are at least two versions. One writer states that John “laid siege to Evreux, and it was taken next day.”^[221] Another says that its garrison were surprised

and slain by a body of Normans,^[222] while a third explains the surprise as having been effected by means which are perhaps only too characteristic of John. The city of Evreux, says William the Breton, had been made over to John by Philip. John contrived that his reconciliation with his brother should remain unknown to the French troops who had been left there. He now returned to the city and invited these Frenchmen to a banquet, at which he suddenly brought in a troop of “armed Englishmen” who massacred the unsuspecting guests. His success, however, was only partial and shortlived; for he was still unable to gain possession of the castle;^[223] and he had no sooner quitted the place than Philip returned, drove out the Norman troops, and destroyed the town.^[224] Shortly afterwards Richard set off on a campaign in the south, leaving John in Normandy. About the middle of June Philip again threatened Rouen, taking and razing Fontaines, a castle only four miles from the city. On this John, the earl of Leicester, and “many other barons” held a meeting at Rouen to consider what should be done; “but because they had no one to whom they could adhere as to the king himself,” and their forces were no match for Philip’s, they decided upon a policy of inaction.^[225] This decision was probably dictated by their experience of Philip’s ways. He, in fact, made no further attempt upon the Norman capital, but soon afterwards proceeded southward against Richard, only to meet with an ignominious defeat at Fréteval. On hearing of this, John and the earl of Arundel laid siege to Vaudreuil; Philip, however, marched up from Bourges and relieved it.^[226] John’s next military undertaking, the siege of Brezolles, met with no better success.^[227] Still he had done the best he could for his brother’s interest, and thereby also for his own. Accordingly, next year Richard “laid aside all his anger and ill-will towards his brother John,” and restored to him a portion of his forfeited possessions. It was indeed only a small portion, consisting of the county of Mortain and the honours of Gloucester and Eye “in their entirety, but without their castles.” To this was added, as some compensation for the other lands which he had lost, a yearly pension of £8000 Angevin.^[228]

This arrangement seems to have taken effect from Michaelmas 1195.^[229] It gave John once more an honourable and independent maintenance, but left him without territorial power. His only chance of regaining this in Richard’s lifetime was to earn it by loyalty to Richard. For the next three years, therefore, he kept quiet;

1196–1198

nothing is heard of him save an occasional notice of his presence in Normandy, either in his brother's company or acting for his brother's interest. When Philip seized Nonancourt in 1196, John retaliated by seizing Gamaches.^[230] On May 19 in the same year he and Mercadier, the leader of Richard's foreign mercenaries, made a plundering expedition into the French king's territories as far as Beauvais, where they captured the bishop, who had long been one of Richard's most determined enemies; they then went on to the bishop's castle of Milli, took it by assault, razed it, and returned to Normandy in triumph to present their captive to Richard.^[231] On October 16, 1197, when the king and the archbishop of Rouen made their agreement for the building of a castle at Andely—the famous Château-Gaillard—it was ratified in a separate charter by John; an unusual proceeding, which has been thought to imply that he was now again acknowledged as his brother's destined heir.^[232] In 1198 Philip made another attack upon Normandy and burned Evreux and seven other towns. John fired a ninth, Neubourg; Philip, seeing the flames and supposing them to have been kindled by his own men, sent a body of troops to bid them go no farther, on which John fell upon the troops and captured eighteen knights and a crowd of men-at-arms.^[233]

The alliance of Richard and John had now lasted too long for Philip's satisfaction, and early in 1199 he set himself to break it. He began by making a truce with Richard. Then, when the Lion-heart, thinking himself safe for the moment in Normandy, was on his way to Poitou, "that sower of discord, the king of France, sent him word that his brother John, the count of Mortain, had given himself to him (Philip); and he offered to show him John's own letter proving the fact. O marvel! The king of England believed the king of France, and took to hating his brother John, insomuch that he caused him to be disseised of his lands on both sides of the sea. And when John asked the reason of this wrath and hatred, he was told what the king of France had sent word to his brother about him. Thereupon the count of Mortain sent two knights to represent him at the French king's court, and they offered to prove him innocent of this charge, or to defend him as the court should direct. But there was found no one in that court, neither the king nor any other man, who would receive the offered proof or defence. And thenceforth the king of England was on more familiar terms with his brother John, and less ready to believe what

was told him by the king of France.”^[234] This story does not necessarily show either that Philip’s accusation of John was false, or that it was true. Philip may have invented it with the hope of driving John to throw himself again into his arms; but it is perhaps more likely that the two were in collusion, and that the scene in the French Curia Regis was a piece of acting on both sides. However this might be, by about the middle of March John had again left his brother “because he kept him so short of money, and on account of some disputes which had arisen between them.”^[235] Suddenly, at the end of the month, the question of the Angevin succession was brought to a crisis by a cross-bowman who, at the siege of Châlus, on March 26, gave Richard his death-wound. That question had haunted Richard throughout his reign; his wishes respecting its solution had wavered more than once; now that it had to be faced, however, he faced it in what was, after all, the wisest as well as the most generous way. In the presence of as many of his subjects as could be gathered hastily round him, he devised all his realms to John, gave orders that on his own death John should be put in possession of all the royal castles and three-fourths of the royal treasure, and made the assembly swear fealty to John as his successor.^[236]

Richard died on April 6.^[237] On the 3rd there had been delivered at Rouen a letter from him appointing William the Marshal commandant of the castle and keeper of the treasure which it contained. On the 10th—the eve of Palm Sunday—the news of the king’s death came, late at night, just as the Marshal was going to bed. He dressed again in haste and went to the palace of the archbishop, who marvelled what could have brought him at such an hour, and when told, was, like William himself, overwhelmed with grief and consternation. What troubled them both was the thought of the future. William went straight to the point. “My lord, we must hasten to choose some one whom we may make king.” “I think and believe,” answered Archbishop Walter, “that according to right, we ought to make Arthur king.” “To my thinking,” said the Marshal, “that would be bad. Arthur is counselled by traitors; he is haughty and proud; and if we set him over us he will seek evil against us, for he loves not the people of this land. He shall not come here yet, by my advice. Look rather at Count John; my conscience and my knowledge point him out to me as the nearest heir to the land which was his father’s and his brother’s.” “Marshal, is this really your desire?” “Yea, my lord; for it is reason. Unquestionably, a son has a nearer

claim to his father's land than a grandson; it is right that he should have it." "So be it, then," said the archbishop; "but mark my words, Marshal; of nothing that ever you did in your life have you so much cause to repent as you will have of what you are now doing." "I thank you," answered William; "nevertheless, I deem that thus it should be."^[238]

In the conversation thus reported by the Marshal's confidential squire there are several noticeable points. The divergent views enunciated by the two speakers as to the respective legal claims of Arthur and of John illustrate the still uncertain condition of the rules of hereditary succession. It is, however, plain that the legal aspect of the case was but a minor matter in the eyes of both primate and Marshal. For them the important question was not which of Richard's two possible heirs had the best legal right to his heritage, but which of the two was likely to make the least unsatisfactory sovereign. The outlook was in any case a gloomy one; the only choice was a choice of evils. Of the two evils, it was natural that Walter should regard John as the worst, if he thought of personal character alone. Every one knew by this time what John was; the most impartial of contemporary historians had already summed up his character in two words—"Nature's enemy," a monster.^[239] What Arthur might become was as yet uncertain; the duke of Brittany was but twelve years old. Yet even at that age, the "haughtiness and pride" ascribed to him by the Marshal are by no means unlikely to have shown themselves in a child whose father, Geoffrey, had been the evil genius of John's early life, and whose mother had for years set her second husband Earl Ralf of Chester, her brother-in-law King Richard, and her supreme overlord King Philip, all alike at defiance. Not so much in Arthur's character, however, as in his circumstances, lay the main ground of the Marshal's objection to him as a sovereign. From his cradle Arthur had been trained in hostility to the political system at the head of which the Norman primate now proposed to place him. His very name had been given him by his mother and her people in defiance of his grandfather King Henry, as a badge of Breton independence and insubordination to the rule of the Angevin and Norman house. From the hour of Henry's death in 1189, if not even from that of her son's birth in 1187, Constance of Brittany had governed her duchy and trained its infant heir as seemed good to herself and her people, till in 1196 she was at last entrapped and imprisoned in Normandy; and then the result of her capture was that her boy fell into the

keeping of another guardian not a whit less “traitorous,” from the Norman or Angevin point of view, than the patriotic Bretons who had surrounded him hitherto—the king of the French, at whose court he was kept for some time, sharing the education of Philip’s own son. To confer the sovereignty of the Angevin dominions upon the boy Arthur would thus have been practically to lay it at the feet of Philip Augustus. The only chance of preserving the integrity of the Angevin empire was to put a man at its head, and a man to whom the maintenance of that integrity would be a matter of personal interest as well as of family pride. It was the consciousness of this that had made Richard abandon his momentary scheme of designating Arthur as his heir, and revert finally to John; and it was the same consciousness which made William the Marshal, with his eyes fully open to John’s character, hold fast, in the teeth of the primate’s warning, to his conviction that “thus it should be.”

John, after his last parting from his brother, had made a characteristic political venture; he had sought to make friends with his boy-rival. It was in Brittany, at Arthur’s court, that he received the news of Richard’s death. He set off at once for Chinon; money was his first need, and the Angevin treasury was there. When he reached the place, on the Wednesday before Easter,^[240] April 14—three days after Richard’s burial at Fontevraud—the castle and the treasure which it contained were at once given up to him by the commandant, Robert of Turnham, the seneschal of Anjou.^[241] The officers of the late king’s household had hurried to meet his chosen heir, and now came to John demanding of him a solemn oath that he would carry into effect Richard’s last wishes, and maintain the customs of the Angevin lands. He took the oath, and they then acknowledged him as their lord in Richard’s stead.^[242]

The most venerated of English bishops then living, Hugh of Lincoln, had officiated at Richard’s funeral and was still at Fontevraud. John sent an urgent request for his presence at Chinon, welcomed him there with a great show of attachment, and proposed that they should travel to England together. This Hugh declined, but he consented to accompany John for a few days on his journey northward. They set out at once for Saumur, and stopped at Fontevraud to visit the tombs of Henry and Richard. When John knocked at the choir-door for admittance, however, he was told that the abbess was away, and no visitor might enter without her leave. He then

asked Hugh to communicate to the sisters, in his name, a promise of benefactions to their house, and a request for their prayers. “You know,” said Hugh, “that I detest all falsehood; I will utter no promises in your name unless I am assured that they will be fulfilled.” John swore that he would more than fulfil them; and the bishop did what he had been asked to do. As they left the church, John drew forth an amulet which hung round his neck and showed it to his companion, saying it had been given to one of his forefathers with a promise from Heaven that whosoever of his race had it in his possession should never lose the fulness of his ancestral dominion. Hugh bade him trust “not in that stone but in the Chief Corner Stone”; and turning round as they came out of the porch, over which was sculptured a representation of the Last Judgement, he led him towards the group on the left of the Judge, and besought him to take heed of the perils attending the responsibility of a ruler during his brief time upon earth. John dragged his monitor across to the other group, saying, “You should rather show me these, whose good example I purpose to follow!” During the three days of his journey in Hugh’s company, indeed, his affectation of piety and humility was so exaggerated that it seems to have rather quickened than allayed Hugh’s distrust of his good intentions.^[243] On Easter Day the mask was suddenly dropped. Bishop and count spent the festival (April 18) at Beaufort,^[244] probably as the guests of Richard’s widow, Berengaria. John was said to have never communicated since he had been of an age to please himself in such matters; and now all Hugh’s persuasions failed to bring him to the Holy Table. He did, however, attend the high mass on Easter Day, and at the offertory came up to Hugh—who was officiating—with some money in his hand; but instead of presenting the coins he stood looking at them and playing with them till Hugh asked him, “Why do you stand staring thus?” “I am staring at these gold pieces, and thinking that a few days ago, if I had had them, I should have put them not into your hands, but rather into my own purse; however, take them now.” The indignant bishop, “blushing vehemently in John’s stead,” drew back and bade him “throw into the bason what he held, and begone.” John obeyed. Hugh then followed up his rebuke with a sermon on the characters of a good and of a bad prince, and the future reward of each. John, liking neither the matter of the sermon nor its length, thrice attempted to cut it short by a message that he wanted his dinner; Hugh only preached the longer and the more pointedly, and took his leave of John on the following day.^[245]

On that day John discovered that he was in a situation of imminent peril. While he had been travelling from the Breton border to Chinon and thence back to Beaufort, Philip had mastered the whole county of Evreux and overrun Maine as far as Le Mans; and a Breton force, with Constance and Arthur at its head, had marched straight upon Angers^[246] and won it without striking a blow. City and castle were surrendered at once by Thomas of Furnes, a nephew of the seneschal Robert of Turnham;^[247] and on Easter Day a great assembly of barons of Anjou, Touraine and Maine, as well as of Brittany, gave in their adhesion to Arthur as their liege lord and Richard's lawful heir.^[248] The forces thus gathered in the Angevin capital, from which Beaufort was only fifteen miles distant, must have been more than sufficient to overwhelm John, whose suite was evidently a very small one. His only chance was to make for Normandy with all possible speed. Hurrying away from Beaufort on Easter Monday, he reached Le Mans the same night; its citizens received him coldly, its garrison refused to support him, and it was only by slipping away before daybreak on Tuesday that he escaped being caught between two fires. On that very morning the Bretons and their new allies entered Le Mans in triumph,^[249] and they were soon met there by the French king, to whom Arthur did homage for the counties of Anjou, Touraine and Maine.^[250]

April 20

Meanwhile, however, John had made his way to Rouen, and there he was safe. Richard on his death-bed had declared that the people of Rouen were the most loyal of all his subjects; they proved their loyalty to his memory by rallying round the successor whom he had chosen for himself, and all Normandy followed their example. "By the election of the nobles and the acclamation of the citizens,"^[251] John was proclaimed duke of the Normans, and invested with the symbols of his dukedom in the metropolitan church on Low Sunday, April 25.^[252] The ducal crown—a circlet of gold, with gold roses round the top—was placed on his head by Archbishop Walter, and the new-made duke swore before the clergy and people, on the holy Gospels and the relics of saints, that he would maintain inviolate the rights of the Church, do justice, establish good laws, and put down evil customs.^[253] The archbishop then girded him with the sword of justice, and presented him with the lance which held among the insignia of a Norman duke the place that belongs to the sceptre among those of a king. A group of John's familiar friends stood close behind him, audibly mocking

at the solemn rites. He chose the moment when the lance was put into his hands to turn round and join in their mockery; and, as he turned, the lance slipped from his careless grasp and fell to the ground.^[254]

In after years it was only natural that this incident should be recalled as an omen.^[255] The indecent levity which had caused the mishap was in itself ominous enough. Still, however, the Marshal and the Norman and English primates—for Hubert of Canterbury, too, was at Rouen, and fully in accord with the policy of William and Walter—clave to their forlorn hope and persevered in their thankless task. In obedience to John's orders, Hubert and William now returned to England to assist the justiciar, Geoffrey Fitz-Peter, in securing the realm for him.^[256] John himself turned southward again to try whether it were possible, now that he had the strength of Normandy at his back, to win the Angevin lands before he went over sea. No sooner had the French and the Bretons withdrawn from Anjou than it was overrun with fire and sword by Richard's mercenaries, acting under the orders of their captain Mercadier and of Queen Eleanor, who had enlisted them in John's interests as soon as they had had time to march up from Châlus to the Angevin border. John despatched a body of troops to join them, while he proceeded in person to Le Mans. There he wreaked his vengeance to the full. City and castle fell into his hands; he razed the castle, pulled down the city walls, destroyed the houses capable of defence, and flung the chief citizens into captivity.^[257] But the danger in his rear was still too great to allow of his advance farther south. To throw the whole forces of Normandy upon the Angevin lands would have been to leave Normandy itself open to attack from two sides at once, and expose himself to have his own retreat cut off by a new junction between Philip and the Bretons. He could only venture to open negotiations with the barons of Anjou and of Aquitaine, endeavour to win them over by fair words and promises,^[258] and then leave his interests in the south to the care of his mother. Accompanied only by a few personal friends,^[259] he went back through Normandy to the sea; on May 25 he landed at Shoreham;^[260] on the 26th he reached London, and on the 27th—Ascension Day—he was crowned at Westminster.^[261]

FOOTNOTES: [\[Skip footnotes\]](#)

[112] *Gesta Ric.* vol. ii. pp. 72, 73.

[113] “Paternae in Hibernia acquisitionis plenitudinem et comitatum in Normannia Moritanensem, de quibus scilicet paternam donationem ratam habuit” [Ricardus], W. Newb. l. iv. c. 3. “Comitatum de Moritonio, quem dono patris pridem perceperat” [Johannes], Ric. Devizes (Howlett, *Chronn. of Stephen*, etc., vol. iii.), p. 385. Cf. above, [p. 6](#).

[114] The biographer of William the Marshal, indeed, does on two occasions before Henry’s death speak of “le conte Johan,” “li quens Johan” (vv. 8543, 9078). But although in one sense contemporary, he did not write till after 1219; his use of the title therefore proves nothing.

[115] *Gesta Ric.* p. 78.

[116] *Ib.* pp. 80, 81.

[117] *Ib.* pp. 87, 88.

[118] *Ann. Cambr.* p. 57.

[119] *Gesta Ric.* p. 97.

[120] *Ann. Cambr.* p. 57.

[121] R. Diceto, vol. ii. pp. 72, 73.

[122] Gloucester (honour), Pipe Roll 1 Ric. I. p. 7; Lancaster, p. 18; Orford (Suffolk), p. 40; Staverton ([ib.](#)), p. 54; Hanley, Edersfield and Bisley (Worcestershire), p. 250; Hecham (Northamptonshire), p. 97; “other lands” in Northamptonshire, p. 104; Sherwood, p. 172; Andover, [ib.](#); Gloucestershire, third penny, p. 163.

[123] *Gesta Ric.* p. 78. The Peverel castles were those of Bolsover and the Peak.

[124] Tickhill castle appears as garrisoned by the Crown in Pipe Roll 2 Ric. I. (1190) m. 7; so does Orford in 1191–92, P.R. 5 Ric. I. (1193) m. 2 (among accounts “de veteri firma” of Suffolk); Gloucester castle was repaired by the sheriff of the county in 1191, P.R. 3 Ric. I. m. 12; Bristol, the other great castle of the Gloucester earldom, was held by the Crown in 1192, P.R. 4 Ric. I. m. 20.

[125] For Marlborough, Wallingford and Luggershall, see *Gesta Ric.* p. 78; Eye is added by R. Howden, vol. iii. p. 6. There is no mention of any of these in the Pipe Rolls of 1188–93, except that the men of the soke of Eye pay tallage to the Crown in 1190 (P.R. 2 Ric. I. m. 9 d), and that in 1192 the sheriff of Suffolk charges for livery of a garrison in Eye castle for a year (i.e. Michaelmas 1191 to Michaelmas 1192; P.R. 5 Ric. I. m. 2, among accounts “de veteri firma” of Suffolk).

[126] “Eodem mense [Decembri] Ricardus Rex Angliae dedit Johanni fratri suo in augmentum comitatum Cornubiae, et comitatum Devoniae, et comitatum de Dorset, et comitatum de Sumerseta,” *Gesta Ric.* p. 99. According to this writer, Richard had granted to John “villam de Notingham cum honore illo ... et Derebisiram” at the same time as Gloucester, Lancaster, etc. ([ib.](#) p. 78). But the sheriffs of all six shires account for them to

the Crown up to Michaelmas in Pipe Roll 1 Ric. I.; so they must all have been granted after that date. “Villam de Notingham cum honore illo” stands for the town and the shire; there was no “honour” of that name. W. Newburgh, though his list of John’s counties is very incomplete (l. iv. c. 3), rightly mentions “Notingehamescram” as one of them; it disappears from the Pipe Rolls like the other five after Michaelmas 1189. Sherwood Forest disappears likewise, being included in the shire. On the other hand, later events show that Nottingham *castle* was retained by the Crown. At this period Nottinghamshire and Derbyshire, Dorset and Somerset, Cornwall and Devonshire, were always administered and accounted for in pairs.

[127] Stubbs, pref. to R. Howden, vol. iii. p. xxv. note 4.

[128] Gilbert, *Hist. Doc. of Ireland*, p. 49; *Rot. Canc. Hib. Cal.* vol. i. pt. i. pp. 1, 3; Carte, *Life of Ormonde* (ed. 1851), vol. i. introd. pp. xlv., xlvi.; *Hist. MSS. Commission*, 3rd Report, p. 231; Harris’s Ware, *Antiq. Hibern.* p. 197. The exception referred to is a grant of land in Ireland, without date of day or year, but issued by “Johannes filius Regis Angliae, Dominus Hiberniae,” “apud Ceneman’,” *i.e.* Le Mans, and witnessed by John the Marshal, “dapifer Johannis,” *Rot. Canc. Hib. Cal.* vol. i. pt. i. p. 3.

[129] We hear of John’s chancellor, Stephen Ridel, in 1191, *Gesta Ric.* p. 224; of his seneschal, William de Kahanger, and his butler, Theobald Walter, in 1192, *Foedera*, vol. i. pt. i. p. 55. We have seen already that at some date between 1185 and 1189 he had as “dapifer” no less a personage than John the Marshal; and in 1191 Roger de Planes appears as “in tota terra comitis Johannis justiciarius,” R. Diceto, vol. ii. p. 99.

[130] *Gesta Ric.* p. 73.

[131] See above, [footnote 128](#).

[132] *Hist. de G. le Mar.* vv. 9581–618. See charters in Carte’s *Life of Ormonde* (1851), vol. i. introd. p. xlvi.

[133] W. Newb. l. iv. c. 3.

[134] *Gesta Ric.* p. 106.

[135] R. Devizes, p. 392.

[136] Stubbs, pref. to R. Howden, vol. iii. p. 41.

[137] *Gesta Ric.* p. 157.

[138] R. Devizes, p. 402.

[139] R. Howden, vol. iii. pp. 242, 243. Cf. W. Newb. l. iv. c. 16, and R. Devizes, p. 406.

[140] *Gesta Ric.* p. 207; R. Howden, vol. iii. p. 134. Cf. W. Newb. [l.c.](#) Gerard was constable of Lincoln in right of his wife, Nicola de Haye.

[141] R. Devizes, p. 407; *Gesta Ric.* p. 207. Cf. W. Newb. l. iv. c. 16.

[142] *Gesta Ric.* [l.c.](#)

[143] R. Devizes, pp. 407, 408.

[144] Walter left Messina April 2 (cf. R. Howden, vol. iii. p. 100; *Itin. Ric. Reg.* p. 176, and R. Devizes, p. 404), and landed either about midsummer (Gerv. Cant. vol. i. p. 497), or, more probably, April 27 (see Bishop Stubbs's note to R. Diceto, vol. ii. p. 90).

[145] R. Devizes, p. 408.

[146] Wallingford, Eye, Bristol, Exeter, Launceston and "Hereford"; R. Howden, vol. iii. p. 136. Hereford is quite out of place among "castra de honoribus a domino rege sibi" [*i.e.* Johanni] "datis." The name may be a mistake for Oxford; see above, [p. 26](#).

[147] R. Howden, vol. iii. pp. 135–7. One other clause in the agreement may be noticed. After the provisions about the castles already mentioned, it is added: "Sed et tria castella ad coronam domini regis pertinentia, scilicet castellum de Windeshoveres comiti de Arundel; castellum de Wintonia Gilleberto de Lasci; castellum de Northampton Simoni de Pateshille, tradita sunt custodienda; qui fidelitatem domini Regis de ipsis ad opus ipsius fideliter custodiendis juraverunt," [ib.](#) p. 136. The earl of Arundel figures, at the end of the document, as one of the chancellor's sureties, and the Lacys were in close alliance with the Longchamps; taken by itself, therefore, this clause would seem to indicate a change of custodians made at the chancellor's desire, and dictated by a discovery or suspicion that the actual commandants of these three castles were in treasonable alliance with John. But the Pipe Rolls show that the appointment of Simon de Pateshill implied no change at all, for he had custody of Northampton castle without interruption from Michaelmas 1189 to Michaelmas 1191 (P.R. 2 Ric. I. m. 4; 3 Ric. I. m. 1); while the other appointments were speedily annulled, owing to the breakdown of the whole agreement.

[148] W. Newb. l. iv. c. 16.

[149] *Gesta Ric.* pp. 232, 234.

[150] R. Devizes, pp. 409, 410. The date which he has appended to the agreement is impossible, not only for this particular document, but for any personal meeting of John and the chancellor this year at Winchester, where he places it. See Round, *Commune of London*, p. 214, and *Cal. Doc. France*, vol. i. p. 17. As to the agreement itself, cf. W. Newb. l. iv. c. 16.

[151] W. Newb. l. iv. c. 14.

[152] Gir. Cambr. vol. iv. p. 382.

[153] *Monast. Angl.* vol. vi. pt. iii. p. 1188.

[154] Gir. Cambr. vol. iv. p. 389.

[155] *Ib.* p. 382.

[156] Gir. Cambr. vol. iv. p. 389.

[157] R. Devizes, p. 410.

[158] R. Diceto, vol. ii. p. 96.

- [159] *Gesta Ric.* p. 210.
- [160] R. Diceto, vol. ii. p. 97; *Gir. Cambr.* vol. iv. pp. 388–93; R. Devizes, pp. 411, 412.
- [161] *Gesta Ric.* p. 211.
- [162] *Epp. Cantuar.* pp. 344, 345; *Gerv. Cant.* vol. i. p. 506. Cf. R. Devizes, p. 413.
- [163] *Gesta Ric.* p. 211.
- [164] September 21, R. Devizes, p. 412; September 26, R. Diceto, vol. ii. p. 97.
- [165] *Gir. Cambr.* vol. iv. pp. 394–7.
- [166] *Ib.* p. 397; R. Devizes, p. 413. Cf. *Gesta Ric.* p. 212. One of the summons is given in R. Diceto, vol. ii. p. 98.
- [167] *Gir. Cambr.* [l.c.](#)
- [168] *Ib.* vol. iv. pp. 398–402. For date see R. Diceto, vol. ii. p. 98.
- [169] Cf. *Gir. Cambr.* vol. iv. pp. 402–5; R. Devizes, pp. 413, 414; R. Diceto, vol. ii. p. 99; *Gesta Ric.* p. 212, and W. Newb. l. iv. c. 17.
- [170] *Gir. Cambr.* vol. iv. p. 405; *Gesta Ric.* pp. 213, 214; R. Diceto, [l.c.](#); R. Devizes, pp. 416, 417.
- [171] *Gesta Ric.* pp. 213, 214.
- [172] R. Devizes, p. 415.
- [173] *Gesta Ric.* p. 214. Cf. R. Diceto, vol. ii. p. 97.
- [174] *Gir. Cambr.* vol. iv. p. 402.
- [175] *Ib.* p. 406.
- [176] *Ib.* pp. 106, 107; R. Devizes, pp. 417, 418; R. Diceto, vol. ii. p. 100. The reservation was merely nominal; R. Diceto says the constables appointed by William to these castles were allowed to remain, but made to give hostages for their loyalty; while Gerald says the constables were to be appointed by the new ministry. Probably the ministry decided to retain or reappoint the actual constables, on the condition mentioned by Ralph.
- [177] *Gesta Ric.* p. 220; R. Diceto, vol. ii. pp. 100, 101.
- [178] *Gesta Ric.* p. 236.
- [179] R. Devizes, pp. 430, 432; *Gesta Ric.* p. 236.
- [180] *Gesta Ric.* p. 237.
- [181] R. Howden, vol. iii. p. 188; in *Gesta Ric.* p. 239, the sum is given as five hundred thousand marks, “which,” as Bishop Stubbs says (note to R. Howden, [l.c.](#)), “is of course

impossible.”

[182] Richard of Devizes, indeed, says (p. 418) that on the chancellor’s departure over sea “Comes omnia munita terrae quibus voluit et plus credidit sibi reddita liberavit”: but his own story about Windsor and Wallingford shows this to be incorrect.

[183] R. Devizes, p. 433.

[184] “Episcopo Dunelmensi £34: 15s. in Pickering pro escambio custodiae castelli de Windsor quamdiu regi placuerit,” Pipe Roll 4 Ric. I. (1192) m. 7.

[185] *Gesta Ric.* pp. 235, 236.

[186] R. Devizes, p. 433.

[187] *Gesta Ric.* p. 239.

[188] R. Devizes, pp. 433, 434.

[189] “Dare placet vel commodare pecuniam, sed non de proprio, tandemque totum cadit in absentis aerarium. Creduntur comiti de fisco per fiscarios quingentae librae sterlingorum, et recipiuntur ad placitum literae in cancellarium,” R. Devizes, p. 343. “Johannes ... acceptis a Rothomagensi archiepiscopo et a caeteris justitiariis Angliae duobus millibus marcis argenti de thesauro regis fratris sui, consilio eorum adquevit,” *Gesta Ric.* p. 239. Possibly the smaller sum was handed over to John at once, and the remainder only promised.

[190] *Gesta Ric.* pp. 239, 237.

[191] W. Newb. l. iv. c. 32.

[192] R. Howden, vol. iii. p. 204.

[193] *Foedera*, vol. i. pt. i. p. 57. The document (of which no original is known) may be slightly corrupt, but it is obviously more trustworthy than the version of John’s and Philip’s agreement given by Roger of Howden, vol. iii. p. 204.

[194] *Gerv. Cant.* vol. i. pp. 514, 515.

[195] R. Howden, vol. iii. pp. 204, 205.

[196] *Gerv. Cant.* vol. i. p. 515; R. Howden, vol. iii. p. 205.

[197] *Gerv. Cant.* vol. i. p. 516.

[198] *Ib.*; R. Howden, vol. iii. p. 207.

[199] R. Howden, vol. iii. p. 217.

[200] *Ib.* pp. 216, 217.

[201] “Johannes frater meus non est homo qui sibi vi terram subjiciat, si fuerit qui vim ejus vi saltem tenui repellat,” R. Howden, vol. iii. p. 198. I think there can be no doubt as

to the significance of the first “vi.”

[202] “Ad pacem cum illo faciendam qualemcumque,” *ib.* p. 217.

[203] “De comite autem Johanne sic erit: quod si homines regis Angliae poterunt sufficienter monstrare in curia domini regis Franciae quod idem Johannes juraverit ad perquirendam pecuniam ad liberationem regis Angliae, et de hoc dederit litteras suas, ipse Johannes tenebitur ad solvendum, et totam terram quam ipse tenebat quando rex Angliae frater ejus iter arripuit ultra mare, tenebit, citra mare et ultra, ita libere sicut prius tenebat; excepto eo quod liber erit a sacramento quod fecerat de non intranda terra Angliae; et de hoc dictus rex Angliae faciet dominum Johannem securum per se, et per barones et archiepiscopos et episcopos terrae suae, et insuper per regem Franciae. Si autem comes Johannes vellet negare quod litterae illae non essent suae, aut quod illud non jurasset, homines regis Angliae sufficienter in curia regis Franciae monstrabunt, per idoneos testes, quod juraverit ad querendam pecuniam ad liberationem regis Angliae. Si autem monstratum fuerit, sicut dictum est, quod comes juraverit ad quaerendam pecuniam ad liberationem regis, vel si defecerit de recipienda monstrazione, rex Franciae non intromittat se de comite Johanne, si pacem de terra sua praedicta recipere voluerit,” R. Howden, vol. iii. pp. 217, 218.

[204] *ib.* p. 220.

[205] “Sed custodes illorum noluerunt tradere illi aliquod castellum per breve,” R. Howden, vol. iii. pp. 227, 228. Did they suspect John of having forged the king’s writ? Or should the words be “*nisi per breve*,” and do they mean that the individual castellans refused to act upon what seems to have been a merely general order, and require a special writ for each castle?

[206] *ib.* p. 228.

[207] *ib.* p. 229. Cf. W. Newb. l. iv. c. 40.

[208] R. Howden, vol. iii. pp. 232, 234.

[209] *ib.* 236–40.

[210] “Petiit sibi fieri iudicium de comite Johanne,” etc., *ib.* p. 241.

[211] Hugh was sheriff of Warwickshire and Leicestershire.

[212] “Demeruisse regnum,” R. Howden, vol. iii. p. 242.

[213] *Ann. Margan.* a. 1199.

[214] R. Howden, vol. iii. p. 251.

[215] For John of Alençon see Round, *Calendar of Doc. in France*, vol. i. pp. 14, 15, 90, 91, 210, 454, 528.

[216] *Hist. de G. le Mar.* vv. 10365–419. R. Diceto, vol. ii. p. 114, places the meeting of the brothers at Brueis; and Roger of Howden, vol. iii. p. 252, says their reconciliation took place “*mediante Alienor regina matre eorum*.” This may mean either that she had

interceded with Richard before he left England, or that it was she who had counselled John to throw himself on the king's clemency.

[217] R. Howden, vol. iii. p. 252. Some of John's English lands had been seized before the council of Nottingham; no doubt, by virtue of the decree passed at the council in London on February 10. In the Pipe Roll of Michaelmas 1194 the king's officers accounted to the king's treasury for the farms of Nottinghamshire, Derbyshire, Dorset and Somerset, the third penny of Gloucestershire, and the farm of Eye, for half a year (P.R. 6 Ric. I. m. 6, 13, 16, 4 d); but the sheriff of Devon and Cornwall rendered his account for three-quarters of a year (*ib.* m. 12); while the forfeiture of John's private estates in Dorset and Somerset seems to have been dated from Ash-Wednesday, February 23 (*ib.* m. 13 d); a part at least of the honour of Gloucester, viz. Bristol, had been seized at Mid-Lent, four days after Richard's landing in England, and the whole not later than Easter (*ib.* m. 16 d); and for the honours of Peverel and Tickhill a whole year's farm was reckoned as due to the treasury at Michaelmas (*ib.* m. 6). The king's escheators rendered a separate account of a number of escheats in the honour of Lancaster and in the counties which John had held (*ib.* m. 2, 2 d); and the sheriff of Dorset and Somerset gathered in for the king a quantity of "arrears of debts which were owed to Count John for pleas and amercements of the men and townships" of those two counties (*ib.* m. 13). The commission issued to the itinerant justices in the same month of September contained an express order that they should inquire into and report upon all John's property, real and personal, and all the moneys owed to him, to the intent that the whole might be secured for the king, R. Howden, vol. iii. pp. 263, 264.

[218] R. Howden, vol. iii. p. 252.

[219] *Hist. de. G. le Mar.* vv. 10491–517.

[220] W. Newb. l. iv. c. 40; Rigord, c. 94.

[221] *Hist. de. G. le Mar.* vv. 10516–20.

[222] Rigord, c. 96.

[223] W. Armor. *Gesta Phil. Aug.* c. 72; *Philipp.* l. iv. vv. 445–62. The last detail seems to imply that the victims of the surprise—whatever its character—were, after all, not the whole garrison, but probably only the officers.

[224] Rigord, c. 96.

[225] R. Howden, vol. iii. p. 253.

[226] Rigord, c. 100; W. Armor. *Gesta P. A.* c. 74; *Philipp.* l. iv. vv. 530–69.

[227] W. Armor. *Philipp.* l. v. vv. 30–32.

[228] R. Howden, vol. iii. p. 286.

[229] I can find no mention either of the honour of Eye or of that of Gloucester in Pipe Roll 7 Ric. I. (1196).

[230] R. Howden, vol. iv. p. 5.

[231] R. Howden, vol. iv. p. 16. Cf. W. Newb. l. v. c. 31.

[232] Deville, *Hist. du Château-Gaillard*, pp. 21, 22, 119–23.

[233] R. Howden, vol. iv. p. 60.

[234] R. Howden, vol. iv. p. 81.

[235] R. Coggeshall, p. 99.

[236] R. Howden, vol. iv. p. 83. The fourth part of the royal treasure was to be given to Richard's servants and to the poor.

[237] *Ib.* p. 84.

[238] *Hist. de G. le Mar.* vv. 11877–908. These lines may be an almost literal report of the interview as described by the Marshal himself to John of Earley (*d'Erlée*), on whose relation to the *Histoire* in its present form see M. Meyer's introduction, vol. iii. pp. ii.–xiv. John was the Marshal's favourite squire, and was immediately despatched by him on an important mission to England; see vv. 11909–16. It has been suggested (*Dic. Nat. Biog.* "Marshal, William") that "li arcevesques"—as John calls him, without either Christian name or title of see—may have been not Walter of Rouen, but Hubert of Canterbury. Hubert was in Normandy at the time; but the advocacy of Arthur's claims, intelligible enough in the mouth of a Norman prelate, is so contrary to the English political traditions of those days that I cannot, without further evidence, ascribe it to such a thoroughly English statesman as Archbishop Hubert Walter.

[239] "Hostis naturae Johannes," W. Newb. l. iv. c. 40.

[240] *Magna Vita S. Hugonis*, p. 287.

[241] R. Howden, vol. iv. p. 86; R. Coggeshall, p. 99.

[242] *Mag. Vita S. Hug.* [l.c.](#)

[243] *Mag. Vita S. Hug.* pp. 287–91.

[244] R. Howden, vol. iv. p. 87.

[245] *Mag. Vita S. Hug.* pp. 291–5.

[246] Rigord, c. 127.

[247] R. Coggeshall, p. 99; R. Howden, vol. iv. pp. 85, 86.

[248] R. Howden, pp. 86, 87; date from *Chron. S. Albini Andeg.* a. 1199.

[249] *Mag. Vita S. Hugon.* p. 296.

[250] Rigord, c. 127; W. Armor. *Gesta P. A.* c. 101.

[251] R. Coggeshall, p. 99.

[252] *Ib.*; R. Howden, vol. iv. p. 87; R. Diceto, vol. ii. p. 166; *Mag. Vita S. Hugon.* p. 293; Gerv. Cant. vol. ii. p. 92.

[253] R. Howden, vol. iv. pp. 87–88.

[254] *Mag. Vita S. Hugon.* p. 293.

[255] *Ib.* pp. 293, 294.

[256] R. Howden, vol. iv. p. 86. The writer of the *Hist. de G. le Mar.* asserts, vv. 11909–16, that John of Earley had been sent to England by the Marshal three weeks earlier, to “take seisin” of the land, castles, towns and royal demesnes for the count of Mortain. Probably he was really sent to bid the Marshal’s own men in England secure for John the castles, etc., which they held; and also to act as a medium of communication between the Marshal and the justiciar.

[257] R. Howden, vol. iv. pp. 87, 88, where, however, the order of events is wrong. Cf. R. Coggeshall, p. 99.

[258] *Hist. de G. le Mar.* vv. 11925–40.

[259] “Cum privatis suis,” R. Coggeshall, p. 99.

[260] R. Howden, vol. iv. p. 89; Gerv. Cant., vol. ii. p. 92, says Seaford.

[261] *R. Howden* and R. Coggeshall, *ll.cc.*; R. Diceto, vol. ii. p. 166.

CHAPTER III

JOHN “SOFTSWORD”

1199–1206

Contempserunt etenim in eo malivoli quique juvenilem aetatem et corporis parvitatem, et quia prudentia magis quam pugna pacem optinebat ubique, “Johannem Mollegradum” eum malivoli detractores et invidi derisores vocabant. Sed processu temporis ...

Gerv. Cant. vol. ii. pp. 92, 93 (a. 1200).

In Richard’s island realm there was never a moment’s question as to who should succeed him on its throne. In English eyes one successor alone was possible, no matter how undesirable he might be. The circumstances of the case, however—the unexpectedness of the vacancy, the heir’s absence from England, his past relations with the government and the people there, and the existence of a rival claimant—presented an opportunity for endeavouring to make a bargain with him such as it was not often possible to make with a new sovereign. Accordingly the English barons as a body, on hearing of Richard’s death, assumed an attitude of independence. All of them set to work to fortify and revictual their castles; some of them even began to attack and plunder their neighbours, as if they deemed that there was to be again “no king in the land”; and all the efforts of the justiciar, Geoffrey Fitz-Peter, failed to restore order, till he was joined at the end of April by Archbishop Hubert and William the Marshal. The archbishop excommunicated the evildoers, [262] and he and the Marshal conjointly tendered to all the men of the kingdom, “citizens and burghers, earls, barons, and free tenants,” an oath of liege homage and fealty to John. The lesser freemen apparently took it without hesitation, but many of the barons held back. These reluctant ones—chief among whom were the earls of Clare, Huntingdon, Chester, Ferrars

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and Warwick, Roger de Lacy and William de Mowbray—were summoned by the primate, the Marshal and the justiciar to a meeting at Northampton. There they took the oath, but only in return for a promise given by the three ministers that if they did so, John “should render to each of them his rights.”^[263] None of these “rights” are specified; but the expression used by the historian who records the claim distinctly implies that it was in each case the claim of an individual to some particular thing to which he considered himself personally entitled, something, it would seem, which he had been unable to obtain from the late king, and which he was therefore anxious to secure beforehand from the new one. In several cases the grievance seems to have been that of an heir who had not yet received investiture of a dignity to which he had become entitled by inheritance some time before.^[264] With this grievance the Marshal and the justiciar could not fail to sympathize; for although they had for some years past enjoyed the estates attached to the earldoms of Striguil (or Pembroke) and Essex respectively, neither of them had yet been invested as earl. Justly, therefore, was the promise which they had made in John’s name redeemed first of all to them when he girded them with the earl’s sword and belt on his coronation day.^[265]

The chroniclers of the time speak of that day’s ceremony in a matter-of-course way which implies that there was nothing remarkable about it. “John,” says one, “was peaceably received by the great men of all England, and was immediately crowned by Archbishop Hubert of Canterbury at Westminster on Ascension Day, amid a great array of the citizens.”^[266] Sixteen prelates besides Hubert, ten earls and “many barons” were present.^[267] The coronation oath was administered to John in almost the same words as it had been to Richard, and with the same adjuration not to take it without a full purpose of keeping it, to which John made the proper reply.^[268] Of the other details of the ceremony there is no description; only one incident at its outset and one omission at its close are noted by contemporary writers.^[269] The first was merely a formal protest made by Bishop Philip of Durham that the coronation ought not to take place in the absence of his metropolitan, the archbishop of York.^[270] The second was an intentional and significant omission on the part of the newly crowned king himself. It was customary for every Christian sovereign, after the crown had

been placed on his head, to seal the vows which he had just made by receiving the Holy Communion. John, however, did not communicate.^[271]

Next day the new king received in person the homage of the barons.^[272] On this side of the sea, only Wales and Scotland remained to be secured. Of Wales we hear nothing at the moment. Scotland had taken the initiative immediately after Richard's death; King William the Lion had at once despatched a message to John, offering him his liege homage and fealty, on condition that Northumberland and Cumberland should be given back to the Scottish Crown. The English primate, Marshal and justiciar, knowing the difficulties with which John was beset on the other side of the Channel, probably feared that he might be tempted to purchase William's support at William's own price; they intercepted the messenger, and sent word to the Scot king, by his brother Earl David of Huntingdon, that he must "wait patiently" till John should reach England. John himself—to whom they apparently reported what they had done—sent word to William that he would "satisfy him concerning all his demands" on his arrival, if the Scot king would keep the peace till then.^[273] Immediately after his coronation John despatched two envoys to summon William to his court and conduct him safely thither. After they had started, there came to the English king three envoys from Scotland with a repetition of William's former message; but this time a threat was added; if William's terms were not accepted "he would regain all that he was entitled to, if he could." John answered quietly: "When your lord, my very dear cousin, shall come to me, I will do to him whatsoever is right concerning these things and other requests of his"; and he bade the bishop of Durham go to meet the Scot king, "hoping the latter would come according to his summons."^[274] He had himself left London on the morrow of his crowning to go on pilgrimage to S. Albans;^[275] he afterwards visited Canterbury and S. Edmunds,^[276] and thence went to Northampton, to keep Whitsuntide (June 6) and wait for William.^[277] He waited in vain; William only sent back the English envoys, reiterated his demand for the two counties and his threat of winning them by force, and added a further demand for an answer within forty days. John meanwhile had lost patience with him, had given the two counties in charge to a new sheriff, and started for the south on his way back to Normandy. The Scot king's messengers followed him to the sea;^[278] whether they overtook him is not clear; at any rate nothing came of

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their mission, and on Sunday, June 20, John sailed from Shoreham for Dieppe,^[279] “taking with him a very great host from England.”^[280]

Within three days John and Philip met in conference at Gaillon. They came to no agreement, and John “made up his mind to resist the French king like a man, and to fight manfully for the peace of his country.” It is clear that his preparations were well in train before the meeting took place. Philip indeed made the first hostile movement by laying siege to the castle of Gaillon; not only, however, was he driven away by the troops who had come over with John,^[281] but horse and foot came flocking to the muster at Rouen, though it was fixed for June 24, only four days after John’s landing. On that day he made a truce with Philip to last till August 16,^[282] thus gaining nearly two months in which to mature his plans and increase his forces. He spent the greater part of this time in a progress through eastern Normandy, and, as the sequel showed, in negotiations with the counts of Flanders and Boulogne. On August 10 he was again at Rouen.^[283] On the 13th Baldwin of Flanders came to him there “and became his man.”^[284] On the 16th, when the truce expired, representatives of the two kings met in conference between Gouleton and Boutavant; on the 18th Philip and John met in person. Philip was asked “why he so hated the king of England, who had never done him any harm?” He answered that John had occupied Normandy and other lands without his leave, whereas he ought first to have applied to his overlord for confirmation of his rights as heir, and done homage to him. Now, Philip demanded of John the surrender of the whole Vexin to the Crown of France, and that of Poitou, Anjou, Touraine, and Maine to himself as overlord, that he might transfer them to Arthur.^[285]

The Vexin had been a bone of contention between France and Normandy for nearly forty years, and its cession had been distinctly promised by Richard to Philip in 1195. As for the Angevin heritage, John in taking possession of it without waiting for investiture had only followed the example of his predecessor. Richard had made pecuniary amends to Philip for this irregular proceeding, which in feudal law was punishable—theoretically—by forfeiture. In his demand that John should resign the three Angevin counties, therefore, and in his previous grant of their investiture to Arthur, Philip did not exceed his legal rights. With regard to Poitou the case was more complicated. On the one hand, it is certain that at some time

between Richard's death and the middle of May 1200 Eleanor and John made an agreement in legal form, whereby John granted his mother to have and to hold all the days of her life, or during her pleasure, the whole of Poitou with all its appurtenances, she having first ceded and surrendered it to him "as her right heir," received his homage for it, and made over to him the rights of government throughout the county and the fealty and services of its vassals.^[286] On the other hand, at the end of June 1199 Eleanor had met Philip at Tours, and he had allowed her to do him homage for Poitou,^[287] thus formally recognizing her as its lawful countess. Whatever be the precise date of the first-mentioned transaction, therefore, it seems that Eleanor, and Eleanor alone, was the person legally answerable for Poitou to the king of France at this moment.

The English historian of the conference adds that Philip further made of John "other demands which the king of England would in no wise grant, nor was it right that he should grant them." What these were he does not state; but it seems that some of the French nobles were of his opinion as to their character, for when the meeting broke up, "such of the counts and barons of the realm of France as had been in alliance with King Richard" came to John offered him their homage, and made offensive and defensive alliance with him against their own sovereign.^[288] In the case of the count of Boulogne this alliance was embodied in a written treaty, drawn up on the same day (August 18) at "the castle on the Rock of Andely."^[289]

In September Philip recommenced hostilities with the seizure of Conches.^[290] John, who had continued hovering about eastern Normandy until then, at once struck southward; from September 12 to 17 he was at Bourg-le-Roi in Maine.^[291] This movement of John's apparently drew Philip southward after him; the next place which the French king attacked was the Cenomannian fortress of Ballon, held for John by one of his father's most devoted adherents, Geoffrey of Brullon. The castle was taken, and Philip proceeded to raze it. William des Roches, the constable of Brittany, protested against this as contrary to the agreement between Arthur and the king. Philip retorted that he should deal with his own conquests as he pleased, without regard to Arthur.^[292] On that very night—it must have been September 17—William des Roches went to Bourg-le-Roi,^[293] begged for a private interview with John, and undertook to make Arthur, Constance,

and all Anjou, Maine and Poitou submit to him “so that all should be good friends together,” in return for an oath on John’s part that he would “do with them according to his (William’s) counsel.”^[294] A written record of John’s promise to abide by the terms which William and other “lawful knights” of Normandy and Brittany—whom William was to choose—should arrange for peace between himself and his “very dear nephew Arthur,” “for the honour and advantage of us both,” was drawn up before witnesses on September 18 at Anvers-le-Hamon.^[295]

It may have been to facilitate negotiations with the Bretons and Angevins that John had proceeded so far as Anvers, which lies in the south of Maine, close to the border of Anjou. We next find him overtaking Philip at the siege of Lavardin. Philip hereupon withdrew to Le Mans; but he had cut the ground from under his own feet; the garrison of Le Mans was under the orders of William des Roches, who had been appointed commandant there by Philip himself. John, too, was following close behind; and when he appeared before the city, Philip again beat a hasty retreat, while William des Roches brought Arthur and Constance in person to make their peace with John, and then opened the gates of Le Mans to the new allies. John, in anticipation of his triumph, had already summoned Almeric, the viscount of Thouars, who was acting as seneschal of Anjou and commandant of Chinon for Arthur, to come and submit to him at Le Mans. On the very day of John’s entry into the city, September 22, Almeric obeyed. Next day John proceeded to Chinon, where he installed Roger de Lacy as castellan in Almeric’s stead. With less than his usual caution, he let Arthur, Constance and their friends, including Almeric, stay behind at Le Mans. Some one had already suggested to Arthur a suspicion that his uncle intended to make him a prisoner; as soon, therefore, as John was out of the way at Chinon, the majority of the Bretons, with their young duke, his mother, and the viscount of Thouars, returned on September 24 to their old headquarters at Angers.^[296] It was probably tidings of this which made John hasten back from Chinon to Le Mans, where he was again September 27 to 30; after that nothing is known of his movements till October 6, when he was at Saumur.^[297] His appearance there is suggestive, for Saumur was the key of the Angevin border towards Poitou on the south and Touraine on the east. With Le Mans, Chinon and Saumur all in his hands, he had only to secure a firm foothold in Aquitaine, and then he might attack Anjou from three sides at

once. But to attack it without such a foothold, and with only the small force which he had brought with him from Normandy,^[298] would have been worse than useless. On October 8, therefore, John was once more at Le Mans, and thence he fell back upon Normandy.^[299]

There was indeed another reason for his return. Cardinal Peter of Capua, who had at the beginning of the year negotiated a truce between Philip and Richard, was still at the French court. The truce had been made for three years; Richard's death had of course put an abrupt end to it; but Peter was urgent that it should be renewed for its original term between Philip and John. Such a proposal implied that John was recognized at Rome as Richard's lawful heir; it was therefore obviously politic for John to cherish such a valuable alliance by falling in with the cardinal's endeavours after a pacification. Through Peter's mediation a truce was made at the end of October. Its term was fixed for the ensuing S. Hilary's Day;^[300] but there was evidently a tacit understanding that it was to be the forerunner of a more lasting agreement.

This truce set John free for a visit to Aquitaine. On November 8 he was at Niort, and in the beginning of December at Poitiers; by the middle of December he had returned to Normandy.^[301] Meanwhile a question which had been pending for several years, as to the legality of Philip's repudiation of his queen Ingebiorg and his subsequent union with Agnes of Merania, had been, in a council at Dijon on December 6, decided by Cardinal Peter against the king, and Peter had laid the royal domain of France under an interdict which was to take effect from January 15, 1200,^[302] the second day after the expiration of the truce. With this prospect before his eyes, Philip dared not insult John as he had insulted him at their last meeting. It was with a very different proposal that he met him at the old trysting-place between Gaillon and Les Andelys. A project which had been mooted just twelve months before, for a family alliance to cement peace between the houses of France and Anjou, was now revived; it was proposed that Philip's son Louis should marry John's niece Blanche of Castille, and that John should furnish the bride with a dowry in Norman lands and English money.^[303] The two kings "rushed into each other's arms," and renewed their truce till midsummer.^[304]

While Eleanor went to Spain to fetch her granddaughter,^[305] John seized his opportunity for a visit to England.^[306] His first business there was to concert measures with the justiciar for raising the required sum of money. They decided that the taxes for the year should consist of a scutage of two marks on the knight's fee and a payment of three shillings for "every working plough."^[307] John then went to York, where he had summoned the Scot king to meet him at the end of March. William, however, failed to appear.^[308] During John's stay at York a claim of exemption from the plough tax was laid before him by the heads of some of the great Cistercian houses in Yorkshire in behalf of their whole order; this led to a violent quarrel between them and the king, which was still unsettled when he returned to Normandy at the end of April.^[309] Thither Blanche was brought to meet him, and on Ascension Day (May 18)^[310] he and Philip, at a personal meeting on the border, made a definite treaty of peace. By that treaty Philip in so many words acknowledged John as "his brother Richard's right heir," and granted him, as such, the investiture of the whole Angevin dominions, with the exception of certain territories which John ceded to the crown of France. These were the Vexin, Auvergne, the greater part of the county of Evreux, and the lordships of Issoudun, Graçay, and Bourges. To the cession of the Vexin and of the chief border castles of the county of Evreux, as well as to the resignation of the Angevin claim upon Auvergne, Richard had been pledged by his treaty with Philip in 1195; Issoudun and Graçay had been restored to the English king by the same treaty, having been ceded by Richard to France in 1189.^[311] Twenty thousand marks and the formal cession of all these territories—most, if not all, of which were already in Philip's hands—was not too heavy a price to pay for the personal triumph and the political gain involved in Philip's recognition of John as the lawful heir to Normandy, Maine, Anjou, Touraine and Aquitaine, and also to the overlordship of Brittany; for not only was this last right distinctly conceded to him by Philip, but Arthur was then and there made to do homage to his uncle for his duchy^[312] as soon as John himself had done homage to Philip for the whole continental heritage of the house of Anjou.^[313] The marriage of Louis and Blanche took place four days later.^[314]

John now set out upon a sort of triumphal progress southward, to take seisin of all his dominions. On June 18 he reached Angers, where he stayed four days and took a hundred and fifty hostages as security for the loyalty of the citizens.^[315] At the end of June he was at Tours, and early in July at Poitiers, whence he proceeded into Gascony; on the 14th he was welcomed at Bordeaux by the archbishop and the barons of the land.^[316] He immediately secured the help of the Gascon primate in a scheme which he had been cherishing for some months past for getting rid of the wife to whom he had been married for eleven years, Isabel of Gloucester. The papal legate who in 1189 had revoked the sentence passed by Archbishop Baldwin upon John and Isabel had done so on the ground that, since John had appealed to Rome, his marriage must be recognized as lawful, pending the result of the appeal. A decision of the Pope on that appeal would of course have either annulled the marriage or made it indissoluble; but it seems that no such decision had ever been given, because the appeal had never been prosecuted. The marriage was therefore still voidable. At the close of 1199 John called upon the Norman bishops to declare it void, and they obeyed him.^[317] He now, it seems, laid the case before the archbishop of Bordeaux and the bishop of Poitiers and Saintes; and their decision was in accord with that of their Norman brethren.^[318] On the bare question—which was doubtless all that John put before them—whether a marriage between cousins in the fourth degree was lawful without a dispensation, indeed, no other decision was possible according to the letter of the canon law. The Pope, however, when the matter came to his knowledge, seems to have felt that in this particular case adhesion to the letter of the law involved a violation of its spirit, and to have been extremely angry with John's episcopal tools as well as with John himself.^[319] He had, however, no ground for interfering in the matter except on an appeal from Isabel; and Isabel did not appeal.^[320] There is every reason to think—and certainly no reason to wonder—that the removal of the matrimonial yoke was as welcome to her as to John, and that their divorce was in fact, like that of Louis VII. and Eleanor, a separation by mutual consent.

John had already chosen another heiress to take Isabel's place. One of the most important, and also most troublesome, feudataries of the duchy of Aquitaine was Ademar, count of Angoulême. It was in a quarrel with him and his half-brother, the viscount of Limoges, that Richard Cœur-de-Lion

had met his death, which Richard's son had avenged by slaying the viscount.^[321] The feud between the houses of Angoulême and Limoges thus threatened to be a considerable hindrance to Richard's successor in his efforts to secure a hold upon his southern duchy. How formidable Ademar and his nephew, the new viscount of Limoges, had already made themselves is shown by the insertion in the treaty between John and Philip of a special provision that John should "receive their homage and grant them their rights."^[322] It is said to have been Philip who counselled John to secure the fidelity of Ademar of Angoulême in another way, by taking to wife Ademar's only child.^[323] Philip's motives for giving the advice, and John's motives for following it, are alike obscure. Nineteen years before, Richard, as duke of Aquitaine, had vainly striven to wrest Angoulême from Ademar in behalf of Matilda, the only child of Ademar's late brother, Count Vulgrin III. Matilda was now the wife of Hugh "the Brown" of Lusignan, who in 1179 or 1180 had, in spite of King Henry, made himself master of the county of La Marche, and whose personal importance in southern Gaul was increased by the rank and fame which his brothers Geoffrey, Guy and Almeric had won in the kingdoms of Jerusalem and Cyprus. The dispute between Matilda and her uncle had been settled by the betrothal of her son—another Hugh the Brown—to Ademar's daughter and heiress, Isabel.^[324] A marriage between John and this little Isabel of Angoulême, therefore, would be certain to provoke the bitter resentment of the whole Lusignan family. On the other hand, it would provoke their resentment against Isabel's father as well as against her husband, and thus destroy the chance of a coalition of Angoulême and La Marche against their common overlord. It is not impossible that for John, who gambled in politics as habitually as he did at the game of "tables," the very wantonness of the scheme and the hazards attendant upon it may have only added to its attractions. But his subsequent conduct towards the Lusignans suggests the idea that he may have had a deeper motive, a deliberate purpose of goading them into some outrageous course of action which might enable him to recover La Marche and ruin them completely, or even drive them altogether out of the land.

On his way to Poitou John issued from Chinon, on June 25, a summons to Ademar of Angoulême and Guy of Limoges to come and perform their homage on July 5 at Lusignan,^[325] the ancestral home of Hugh the Brown. There Hugh and Matilda were bringing up their intended daughter-in-law in

company with her boy bridegroom, and there John was no doubt, at the moment, sure of a welcome, for Hugh and his brother Ralf had become his liegemen at Caen on January 28.^[326] Thus, in all likelihood, it was under Hugh's very roof, and as sharers in his hospitality, that the king of England and the count of Angoulême laid their plot for robbing Hugh's son of his plighted bride and his promised heritage. John indeed, as soon as his divorce was ratified by the southern bishops, despatched, or gave out that he had despatched, an embassy to Portugal with instructions to ask for the hand of a daughter of the Portuguese king;^[327] but their mission was a mere blind to divert suspicion till Ademar should have succeeded in getting his child back into his own hands. The poor little betrothed—she was only about twelve years old^[328]—was literally stolen by her father,^[329] and carried off by him to his capital city. There her royal suitor met them, and on August 24 the marriage ceremony was performed by the archbishop of Bordeaux.^[330] The newly married couple immediately afterwards set out for the north; at the beginning of October they went to England, and on the 8th they were crowned together at Westminster.^[331]

Six weeks later the king of Scots made his submission. Summoned to meet his overlord at Lincoln on November 21, William the Lion this time did not venture to disobey the summons; both kings reached Lincoln on the appointed day. Next morning John, in defiance of an old tradition which forbade a king to appear in regal state within the walls of Lincoln, went to the minster and offered a golden chalice at the altar of S. John the Baptist. Thence he proceeded to his colloquy with William “on the top of the steep hill” outside the city. There, amid a group of prelates and barons, and “in the sight of all the people,” William performed his homage, and swore on Archbishop Hubert's cross that he would be faithful to John against all men, “saving his own right.” Then, and not till then, did he venture again to demand, “as his right and heritage,” the disputed counties. A long discussion ended in an adjournment of the question till the next Whitsuntide; which of course meant that it was to be put off indefinitely. On the morrow (November 23) the king of Scots set out on his homeward journey, while the king of England helped with his own hands to carry to its last resting-place in Lincoln minster the body of the only man among his father's old friends for whom he seems to have felt a real liking, though he turned a deaf ear to his counsels—S. Hugh, who had

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died in London a week before.^[332] Soon after Christmas John was at Lincoln again, quarrelling with the canons about the election of Hugh's successor.^[333] He and his young queen afterwards made a progress through the north, almost up to the Scottish border,^[334] and back through Cumberland to York, which they reached at Mid-Lent (March 1, 1201). At Easter (March 25) they "wore their crowns" at Canterbury.^[335]

Meanwhile, open hostilities had begun between John and the Lusignans; and so far as can be made out from the scanty evidence available, it seems to have been John who began them. A French historian of the time asserts that the castle of Driencourt in Normandy, which belonged to Ralf of Lusignan as count of Eu in right of his wife, was seized by John's orders while Ralf was in John's service in England.^[336] It is certain that John, on March 6, 1201, issued letters patent to Hugh of Bailleul and Thomas of St. Valery authorizing them to attack Ralf's territories at the close of Easter and "do him all the harm they could," and promising that they should never be compelled to make good any damage which they might inflict upon him; while on the same day one William "de Kaev" was despatched on a mission to the inhabitants of Driencourt and of the whole county of Eu to make arrangements for mutual security between them and the king, without reference to their count.^[337] Two days later John summoned all his faithful barons, knights, clerks, burghers, and other tenants of the county of La Marche "to come to his service, and do to him what they had been wont to do to his predecessors."^[338] In other words, he claimed the direct ownership of the county, to which his father had indeed been entitled by purchase from the late Count Adelbert and by the homage of its tenants, but of which Henry had never been able and Richard had never even tried to take possession, and which Hugh of Lusignan had now held for more than twenty years. If their oath of liege homage to John had hitherto restrained Hugh and Ralf from giving vent to their anger at John's marriage, it restrained them no longer now. They at once laid a complaint against John, for unjust aggression and spoliation, before the king of France as lord paramount of Aquitaine.^[339] Ralf formally renounced his allegiance to John,^[340] and Hugh, with all the forces that he could muster, invaded Poitou, where, as usual, he found plenty of allies ready to join him.^[341] The most important of the Poitevin barons, indeed, Almeric of Thouars, was won over to John's

side by the diplomacy of Eleanor; but the danger appeared so great that both Eleanor and Almeric besought John to come over and deal with it in person as soon as he possibly could; and at the end of April the count of Angoulême and John's other friends in the south proposed sending Almeric to confer with John in England.^[342]

John meanwhile was summoning the earls and barons of England to meet him at Portsmouth at Whitsuntide (May 13), ready with horses and arms to accompany him over sea. The earls held a meeting at Leicester, and thence unanimously sent him word that they would not go with him "unless he gave them back their rights. For the king, following ill counsel, was demanding their castles of them; and beginning with William of Aubigny, he demanded of him the castle of Belvoir. William satisfied him by giving him his son as a hostage, and thus kept his castle."^[343] Notwithstanding their protest, the barons brought their forces to Portsmouth on the appointed day, equipped for a campaign, and each man provided with the money needful to cover his expenses during the usual term of service in a feudal host. This, and nothing more, was precisely what John wanted them to do: "He took from some of them the money which they would have spent in his service, and let them return home."^[344] The ready money which he thus obtained was a more useful and safer weapon for his purpose than the host itself would have been, and no pretext was left for the discussion of inconvenient questions. The king immediately despatched William the Marshal and Roger de Lacy, each at the head of a hundred mercenaries, "to check the assaults of his enemies on the borders of Normandy." At the same time he appointed his chamberlain, Hubert de Burgh, warden of the Welsh marches, with another hundred soldiers under his command, and sent the bishop of Chester to William the Lion with a request that the term fixed for answering his demands might be extended to Michaelmas.^[345] Having taken these precautions to secure England from attack, John again crossed the sea; on June 2 he was at Bonneville.^[346]

At the announcement of John's intention to return, Philip had either compelled or persuaded the Lusignans to suspend hostilities in Poitou.^[347] A period of negotiation followed; Philip remonstrating with John about his conduct towards the Lusignans, and urging him to make them restitution; John, in his turn, remonstrating with Philip for his constant aggressions and

his interference with the internal affairs of John's duchies. Several personal interviews seem to have taken place between the kings;^[348] before the end of June the treaty of Ascension-tide 1200 was confirmed; and on the last day of that month John, by Philip's invitation, went to Paris, and was there lodged and entertained for several days in the royal palace, which Philip vacated for his convenience.^[349]

This temporary pacification was effected by a promise on John's part that the quarrel between him and the Lusignans should be tried and settled fairly in his court as duke of Aquitaine.^[350] Towards the end of July he went to Chinon; there he spent the greater part of the next six weeks,^[351] and it was probably there that he summoned the Lusignans to the promised trial. But meanwhile the Lusignans had discovered that the trial which he designed was something wholly different from that which Philip had demanded on their behalf. John, before he left England, had determined to appeal "the barons of Poitou"—that is, no doubt, the Lusignans and their friends—on a general charge of treason against his late brother and himself, and challenge them to ordeal of battle with a number of champions specially chosen for the purpose. This project was perfectly legal; the ordeal of battle, though it was beginning to be discountenanced by public opinion under the influence of the Church, was still recognized as a lawful method of deciding upon a charge of treason. But a simultaneous challenge to so large a number of men, and men, too, of such high rank and personal distinction as the Lusignans and their allies, was a startling innovation upon feudal tradition and practice, and unwarranted by historical precedent. Moreover, there was in the scheme another feature which would make it doubly offensive to the barons concerned. The champions against whom they were called upon to prove their loyalty are described as "picked men, practised in the art of duelling, whom the king had hired and brought with him from his dominions on both sides of the sea."^[352] That is, they were professional champions—men who made a business of hiring themselves out to fight the battles of any one who either could not or would not fight in his own person, but who could afford to pay for an efficient substitute. Such hired champions, of course, in every case represented the person who hired them; in the present case they would have represented the king; yet nobles like the Lusignans, two of whose brothers had been, no less than John himself, crowned and anointed sovereigns, could not but feel it an intolerable insult

to be challenged, even in a king's name, by creatures such as these. The accused barons all alike refused to come to John's court, "saying that they would answer to no one save to their peers."^[353] It seems that on a fresh remonstrance from Philip, John again consented, or pretended to consent, to a trial such as they demanded; but he was very unwilling to fix a day; and when he did fix one, he refused to give the defendants a safe conduct, without which, of course, they would not stir from their homes.^[354]

Again Philip intervened, and again John promised redress. This time apparently Philip deemed it advisable to require security for the fulfilment of the promise. The security which he asked for, however, was more than John could reasonably be expected to give; it seems to have been nothing less than three of the most important castles in Normandy—those of Falaise, Arques, and "Andely," that is, Château-Gaillard. In December John summoned Archbishop Hubert over from England, and sent him to "make his excuses" to the French king;^[355] and Hubert so far succeeded that after Christmas John was able to venture into Aquitaine. Early in February 1202 he met the king of Navarre at Angoulême, and made with him a treaty of close offensive and defensive alliance.^[356]

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It was arranged that John and Philip should hold a conference—seemingly on March 25—at Boutavant. John, it appears, kept, or at least was ready to keep, the appointment; but Philip either was or pretended to be afraid of venturing into Norman territory, and would not advance beyond Gouleton. Thither John came across the river to meet him.^[357] No agreement was arrived at. Finally, Philip cited John to appear in Paris fifteen days after Easter,^[358] at the court of his overlord the king of France, to stand to its judgement, to answer to his lord for his misdoings, and undergo the sentence of his peers. The citation was addressed to John as count of Anjou and Poitou and duke of Aquitaine;^[359] the Norman duchy was not mentioned in it. This omission was clearly intentional; when John answered the citation by reminding Philip that he was duke of Normandy, and as such, in virtue of ancient agreement between the kings and the dukes, not bound to go to any meeting with the king of France save on the borders of their respective territories, Philip retorted that he had summoned not the duke of Normandy but the duke of Aquitaine, and that his rights

over the latter were not to be annulled by the accidental union of the two dignities in one person.^[360] John then promised that he would appear before the court in Paris on the appointed day, and give up to Philip two small castles, Thillier and Boutavant, as security for his submitting to its decision. April 28 passed, and both these promises remained unfulfilled.^[361] One English writer asserts that thereupon “the assembled court of the king of France adjudged the king of England to be deprived of all his land which he and his forefathers had hitherto held of the king of France”;^[362] but there is reason to think that this statement is erroneous, and derived from a false report put forth by Philip Augustus for political purposes two or three years later.^[363] It is certain that after the date of this alleged sentence, negotiations still went on; “great and excellent mediators” endeavoured to arrange a pacification;^[364] and Philip himself, according to his own account, had another interview with John, at which he used all his powers of persuasion to bring him to submission, but in vain. Then the French king, by the advice of his barons, formally “defied” his rebellious vassal;^[365] in a sudden burst of wrath he ordered the archbishop of Canterbury—evidently one of the mediators just referred to—out of his territories, and dashing after him with such forces as he had at hand, began hostilities by a raid upon Boutavant, which he captured and burned.^[366] Even after this, if we may trust his own report, he sent four knights to John to make a final attempt at reconciliation; but John would not see them.^[367]

The war which followed was characteristic of both kings alike. Philip’s attack took the form not of a regular invasion, but of a series of raids upon eastern Normandy, whereby in the course of the next three months^[368] he made himself master of Thillier, Lions, Longchamp, La Ferté-en-Braye, Orgueil, Gournay, Mortemer, Aumale and the town and county of Eu.^[369] John was throughout the same period flitting ceaselessly about within a short distance of all these places;^[370] but Philip never came up with him, and he never but once came up with Philip. On July 7 the French king laid siege to Radepont, some ten miles to the south-east of Rouen. John, who was at Bonport, let him alone for a week, and then suddenly appeared before the place, whereupon Philip immediately withdrew.^[371] John, however, made no attempt at pursuit. According to his wont, he let matters

take their course till he saw a favourable opportunity for retaliation. At the end of the month the opportunity came.

At the conclusion of the treaty of Gouleton in May 1200 Arthur, after doing homage to his uncle for Brittany, had been by him restored to the guardianship of the French king. ^[372] The death of the boy's mother in September 1201 ^[373] left him more than ever exposed to Philip's influence; and it was no doubt as a measure of precaution, in view of the approaching strife between the kings, that John on March 27, 1202—two days after his meeting with Philip at Gouleton—summoned his “beloved nephew Arthur” to come and “do right” to him at Argentan at the octave of Easter. ^[374] The summons probably met with no more obedience than did Philip's summons to John; and before the end of April Philip had bound Arthur securely to his side by promising him the hand of his infant daughter Mary. ^[375] This promise was ratified by a formal betrothal at Gournay, after the capture of that place by the French; at the same time Philip made Arthur a knight, and gave him the investiture of all the Angevin dominions except Normandy. ^[376] Towards the end of July Philip despatched Arthur, with a force of two hundred French knights, to join the Lusignans in an attack on Poitou. The barons of Brittany and of Berry had been summoned to meet him at Tours; but the only allies who did meet him there were three of the Lusignans and Savaric de Mauléon, with some three hundred knights. Overruling the caution of the boy duke, who wished to wait for reinforcements from his own duchy, the impetuous southerners urged an immediate attack upon Mirebeau, their object being to capture Queen Eleanor, who was known to be there, ^[377] and whom they rightly regarded as the mainstay of John's power in Aquitaine. Eleanor, however, became aware of their project in time to despatch a letter to her son, begging him to come to her rescue. He was already moving southward when her courier met him on July 30 as he was approaching Le Mans. By marching day and night he and his troops covered the whole distance between Le Mans and Mirebeau—eighty miles at the least—in forty-eight hours, and appeared on August 1 before the besieged castle. ^[378] The enemies had already taken the outer ward and thrown down all the gates save one, deeming their own valour a sufficient safeguard against John's expected attack. ^[379] So great was their self-confidence that they even marched out to meet him. Like most of those who at one time or another

fought against John, they underrated the latent capacities of their adversary. They were driven back into the castle, hotly pursued by his troops, who under the guidance of William des Roches forced their way in after the fugitives, and were in a short time masters of the place. The whole of the French and Poitevin forces were either slain or captured; and among the prisoners were the three Lusignans, and Arthur.^[380]

Philip was at that moment busy with the siege of Arques; on the receipt of these tidings he left it and turned southward,^[381] but he failed, or perhaps did not attempt, to intercept John, who, bringing his prisoners with him, made his way leisurely back to Falaise.^[382] There he imprisoned Arthur in the castle,^[383] and despatched his victorious troops against Arthur's duchy; they captured Dol and Fougères, and harried the country as far as Rennes.^[384] Philip, after ravaging Touraine, fired the city of Tours and took the citadel; immediately afterwards he withdrew to his own territories, as by that time John was again at Chinon. As soon as Philip was gone, John in his turn entered Tours and wrested the citadel from the French garrison left there by his rival; but his success was won at the cost of another conflagration which, an English chronicler declares, was never forgiven him by the citizens and the barons of Touraine.^[385]

For the moment, however, he was in luck. In Aquitaine he seemed in a fair way to carry all before him without striking a blow. Angoulême had passed into his hands by the death of his father-in-law on June 17.^[386] Guy of Limoges had risen in revolt again, but at the end of August or early in September he was captured.^[387] The Lusignans, from their prison at Caen, made overtures for peace, and by dint of protestations and promises succeeded ere long in regaining their liberty, of course on the usual conditions of surrendering their castles and giving hostages for their loyalty.^[388] It was almost equally a matter of course that as soon as they were free they began intriguing against John.^[389] But the chronic intrigues of the south were in reality, as John himself seems to have discovered, a far less serious danger than the disaffection in his northern dominions. This last evil was undoubtedly, so far as Normandy was concerned, owing in great measure to John's own fault. He had entrusted the defence of the Norman duchy to his mercenaries under the command of a Provençal captain whose real name is unknown, who seems to have adopted for himself the

nickname of “Lou Pescaire,” “The Fisherman”—which the Normans apparently corrupted into “Louvrekaire”—and who habitually treated his employer’s peaceable subjects in a fashion in which other commanders would have shrunk from treating avowed enemies.^[390] Side by side with the discontent thus caused among the people there was a rapid growth of treason among the Norman barons;—treason fraught with far greater peril than the treason of the nobles of Aquitaine, because it was more persistent and more definite in its aim; because it was at once less visible and tangible and more deeply rooted; because it spread in silence and wrought in darkness; and because, while no southern rebel ever really fought for anything but his own hand, the northern traitors were in close concert with Philip Augustus. John knew not whom to trust; he could, in fact, trust no one; and herein lay the explanation of his restless movements, his unaccountable wanderings, his habit of journeying through bye-ways, his constant changes of plan.^[391] Moreover, besides the Aquitanian rebels, the Norman traitors, and the French enemy, there were the Breton partizans of Arthur to be reckoned with. These had now found a leader in William des Roches, who, when he saw that he could not prevail upon John to set Arthur at liberty, openly withdrew from the king’s service, and organized a league of the Breton nobles against him.

These Bretons, reinforced by some barons from Anjou and Maine, succeeded on October 29 in gaining possession of Angers.^[392] It may have been to watch for an opportunity of dislodging them that John, who was then at Le Mans, went to spend a fortnight at Saumur and another at Chinon. Early in December, however, he fell back upon Normandy,^[393] and while the intruders were harrying his ancestral counties with fire and sword,^[394] he kept Christmas with his queen at Caen, “faring sumptuously every day, and prolonging his morning slumbers till dinner-time.”^[395] It seems that shortly afterwards the queen returned to Chinon, and that in the middle of January 1203 the enemies at Angers were discovered to be planning an attempt to capture her there. John hurried to Le Mans, only stopping at Alençon to dine with Count Robert and endeavour to secure his suspected loyalty by confirming him in all his possessions. No sooner had they parted, however, than Robert rode off to the French court, did homage to Philip, and admitted a French garrison into Alençon. While John, thus placed between two fires, was hesitating whether

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to go on or to go back, Peter des Préaux succeeded in getting the queen out of Chinon and bringing her to her husband at Le Mans; thence they managed to make their way back in safety to Falaise. [\[396\]](#)

This incident may have suggested to John that it was time to take some decisive step towards getting rid of Arthur's claims. According to one English chronicler, some of the king's counsellors had already been urging this matter upon him for some time past. They pointed out that so long as Arthur lived, and was neither physically nor legally incapacitated for ruling, the Bretons would never be quiet, and no lasting peace with France would be possible; and they therefore suggested to the king a horrible scheme for rendering Arthur incapable of being any longer a source of danger. The increasing boldness of the Bretons at last provoked John into consenting to this project, and he despatched three of his servants to Falaise to put out the eyes of the captive. Two of these men chose to leave the king's service rather than obey him; the third went to Falaise as he was bidden, but found it impossible to fulfil his errand; Arthur's struggles were backed by the very soldiers who guarded him, and the fear of a mutiny drove their commander, Hubert de Burgh, to prevent the execution of an order which he felt that the king would soon have cause to regret. He gave out, however, that the order had been fulfilled, and that Arthur had died in consequence. The effect of this announcement proved at once the wisdom of Hubert and the folly of those to whose counsel John had yielded. The fury of the Bretons became boundless; they vowed never to leave a moment's peace to the tyrant who had committed such a ghastly crime upon their duke, his own nephew; and Hubert soon found it necessary, for John's own sake, to confess his fraud and demonstrate to friends and foes alike that Arthur was still alive and uninjured. [\[397\]](#) John himself now attempted to deal with Arthur in another way. Being at Falaise at the end of January 1203, [\[398\]](#) he caused his nephew to be brought before him, and "addressed him with fair words, promising him great honours if he would forsake the king of France and cleave faithfully to his uncle and rightful lord." Arthur, however, rejected these overtures with scorn, vowing that there should be no peace unless the whole Angevin dominions, including England, were surrendered to him as Richard's lawful heir. John retorted by transferring his prisoner from Falaise to Rouen and confining him, more strictly than ever, in the citadel. [\[399\]](#)

Thenceforth Arthur disappears from history. What was his end no one knows. The chronicle of the abbey of Margan in South Wales, a chronicle of which the only known manuscript ends with the year 1232, and of which the portion dealing with the early years of John's reign was not compiled in its present form till after 1221 at earliest, asserts that on Maunday Thursday (April 3) 1203, John, "after dinner, being drunk and possessed by the devil," slew his nephew with his own hand and tied a great stone to the body, which he flung into the Seine; that a fisherman's net brought it up again, and that, being recognized, it was buried secretly, "for fear of the tyrant," in the church of Notre-Dame-des-Prés, near Rouen.^[400] William the Breton, in his poem on Philip Augustus, completed about 1216, relates in detail, but without date, how John took Arthur out alone with him by night in a boat on the Seine, plunged a sword into his body, rowed along for three miles with the corpse, and then threw it overboard.^[401] Neither of these writers gives any authority for his story. The earliest authority of precisely ascertained date to which we can trace the assertion that Arthur was murdered is a document put forth by a personage whose word, on any subject whatever, is as worthless as the word of John himself—King Philip Augustus of France. In 1216—about the time when his Breton historiographer's poem was completed—Philip affected to regard it as a notorious fact that John had, either in person or by another's hand, murdered his nephew. But Philip at the same time went on to assert that John had been summoned to trial before the supreme court of France, and by it condemned to forfeiture of all his dominions, on that same charge of murder; and this latter assertion is almost certainly false.^[402] Seven months after the date assigned by the Margan annalist to Arthur's death—in October 1203—Philip owned himself ignorant whether the duke of Brittany were alive or not.^[403] Clearly, therefore, it was not as the avenger of Arthur's murder that Philip took the field at the end of April. On the other hand, Philip had never made the slightest attempt to obtain Arthur's release; early in 1203, if not before, he was almost openly laying his plans in anticipation of Arthur's permanent effacement from politics.^[404] The interests of the French king were in fact no less concerned in Arthur's imprisonment, and more concerned in his death, than were the interests of John himself. John's one remaining chance of holding Philip and the Bretons in check was to keep them in uncertainty whether Arthur were alive

or dead, in order to prevent the Bretons from adopting any decided policy, and hamper the French king in his dealings with them and with the Angevin and Poitevin rebels by compelling him to base his alliance with them on conditions avowedly liable to be annulled at any moment by Arthur's reappearance on the political scene. If, therefore, Arthur—as is most probable—was now really dead, whether he had indeed perished a victim of one of those fits of ungovernable fury in which (and in which alone) the Angevin counts sometimes added blunder to crime, or whether he had died a natural death from sickness in prison, or by a fall in attempting to escape, [\[405\]](#) it would be equally politic on John's part to let rumour do its worst rather than suffer any gleam of light to penetrate the mystery which shrouded the captive's fate.

John's chance, however, was a desperate one. A fortnight after Easter the French king attacked and took Saumur. [\[406\]](#) Moving April 20 southward, he was joined by some Poitevins and Bretons, with whose help he captured sundry castles in Aquitaine. Thence he went back to the Norman border, to be welcomed at Alençon by its count, and to lay siege to Conches. [\[407\]](#) John, who was then at Falaise, sent William the Marshal to Conches, to beg that Philip would “have pity on him and make peace.” Philip refused; John hurried back to Rouen, to find both city and castle in flames [\[408\]](#)—whether kindled by accident or by treachery there is nothing to show. Conches was taken; Vaudreuil was betrayed; the few other castles in the county of Evreux which had not already passed, either by cession, conquest, or treason, into Philip's hands shared the like fate, [\[409\]](#) while John flitted restlessly up and down between Rouen and various places in the neighbourhood, [\[410\]](#) but made no direct effort to check the progress of the invader. Messenger after messenger came to him with the same story: “The king of France is in your land as an enemy; he is taking your castles; he is binding your seneschals to their horses' tails and dragging them shamefully to prison; he is dealing with your goods at his own pleasure.” John heard them all with an unmoved countenance, and dismissed them all with one unvarying reply: “Let him alone! Some day I shall win back all that he is winning from me now.” [\[411\]](#)

It was by diplomacy that John hoped to parry the attack which he knew he could not repel by force. Early in the year he had complained to the Pope

of the long course of insult and aggression pursued towards him by Philip, and begged Innocent to interfere in his behalf.^[412] Thereupon Philip, in his turn, sent messengers and letters to the Pope, giving his own version of his relations with John, and endeavouring to justify his own conduct.^[413] On May 26 Innocent announced to both kings that he was about to despatch the abbots of Casamario, Trois-Fontaines and Dun as commissioners to arbitrate upon the matters in dispute between them.^[414] These envoys seem to have been delayed on their journey; and when they reached France they, for some time, found it impossible to ascertain whether Philip would or would not accept their arbitration. When at last he met them in council at Mantes on August 26, he told them bluntly that he “was not bound to take his orders from the Apostolic See as to his rights over a fief and a vassal of his own, and that the matter in dispute between the two kings was no business of the Pope’s.”^[415] John meanwhile had, on August 11, suddenly quitted his passive attitude and laid siege to Alençon; but he retired on Philip’s approach four days later. An attempt which he made to regain Brezolles was equally ineffectual.^[416] Philip, on the other hand, was now resolved to bring the war to a crisis. It was probably straight from the council at Mantes that he marched to the siege of Château-Gaillard.^[417]

Château-Gaillard was a fortress of far other importance than any of the castles which both parties had been so lightly winning, losing and winning again, during the last ten years. It was the key of the Seine above Rouen, the bulwark raised by Richard Cœur de Lion to protect his favourite city against attack from France. Not till the fortifications which commanded the river at Les Andelys were either destroyed or in his own hands could Philip hope to win the Norman capital. And those fortifications were of no common order. Their builder was the greatest, as he was the last, of the “great builders” of Anjou; and his “fair castle on the Rock of Andelys” was at once the supreme outcome of their architectural genius, and the earliest and most perfect example in Europe of the new developement which the Crusaders’ study of the mighty works of Byzantine or even earlier conquerors, quickened and illuminated as it was by the exigencies of their own struggle with the Infidels, had given to the science of military architecture in the East. During the past year John had added to his brother’s castle a chapel with an undercroft, placed at the south-eastern corner of the second ward.^[418] The fortress which nature and art had

combined to make impregnable was well stocked with supplies of every kind; moreover, it was one of the few places in Normandy which Philip had no hope of winning, and John no fear of losing, through treason on the part of its commandant. Roger de Lacy, to whom John had given it in charge, was an English baron who had no stake in Normandy, and whose personal interest was therefore bound up with that of the English king; he was also a man of high character and dauntless courage.^[419] Nothing short of a siege of the most determined kind would avail against the “Saucy Castle”; and on that siege Philip now concentrated all his forces and all his skill. As the right bank of the Seine at that point was entirely commanded by the castle and its neighbour fortification, the walled town—also built by Richard—known as the New or Lesser Andely, while the river itself was doubly barred by a stockade across its bed, close under the foot of the Rock, and by a strong tower on an island in mid-stream just below the town, he was obliged to encamp in the meadows on the opposite shore. The stockade, however, was soon broken down by the daring of a few young Frenchmen; and the waterway being thus cleared for the transport of materials, he was enabled to construct below the island a pontoon, by means of which he could throw a portion of his troops across the river to form the siege of the New Andely, place the island garrison between two fires, and at once keep open his own communications and cut off those of the besieged with both sides of the river alike.^[420]

These things seem to have been done towards the end of August. On the 27th and 28th of that month John was at Montfort, a castle some five and twenty miles from Rouen, held by one of his few faithful barons, Hugh of Gournay. On the 30th, if not the 29th, he and all his available forces were back at Rouen, ready to attempt on that very night the relief of Les Andelys.^[421] The king’s plan was a masterpiece of ingenuity; and the fact that the elaborate preparations needed for its execution were made so rapidly and so secretly as to escape detection by an enemy so close at hand goes far to show how mistaken are the charges of sloth and incapacity which, even in his own day, men brought against “John Softsword.”^[422] He had arranged that a force of three hundred knights, three thousand mounted men-at-arms, and four thousand foot, under the command of William the Marshal, with a band of mercenaries under Lou Pescaire, should march by night from Rouen along the left bank of the Seine and fall, under cover of darkness,

upon the portion of the French army which still lay on that side of the river. Meanwhile, seventy transport vessels which had been built by Richard to serve either for sea or river traffic, and as many more boats as could be collected, were to be laden with provisions for the distressed garrison of the island fort, and convoyed up the stream by a flotilla of small warships manned by “pirates” under a chief named Alan and carrying, besides their own daring and reckless crews, a force of three thousand Flemings. Two hundred strokes of the oar, John reckoned, would bring these ships to the French pontoon; they must break it if they could; if not, they could at least co-operate with the Marshal and Lou Pescaire in cutting off the northern division of the French host from its comrades and supplies on the left bank, and throw into the island fort provisions which would enable it to hold out till John himself should come to its rescue.

One error brought the scheme to ruin—an error neither of strategy nor of conduct, but of scientific knowledge. John had miscalculated the time at which, on that night, the Seine would be navigable up-stream; and his counsellors evidently shared his mistake till it was brought home to them by experience. The land forces achieved their march without hindrance, and at the appointed hour, shortly before daybreak, fell upon the French camp with such a sudden and furious onslaught that the whole of its occupants fled across the pontoon, which broke under their weight. But the fleet, which had been intended to arrive at the same time, was unable to make way against the tide, and before it could reach its destination the French had rallied on the northern bank, repaired the pontoon, recrossed it in full force, and routed John’s troops. The ships, when they at last came up, thus found themselves unsupported in their turn, and though they made a gallant fight they were beaten back with heavy loss. In the flush of victory one young Frenchman contrived to set fire to the island fort; it surrendered, and the whole population of the New Andely fled in a panic to Château-Gaillard, leaving their town to be occupied by Philip.^[423] The Saucy Castle itself still remained to be won. Knowing, however, that for this nothing was likely to avail but a blockade, which was now practically formed on two sides by his occupation of the island fort and the Lesser Andely, Philip on the very next day^[424] set off to make another attempt on Radepont, whence he had been driven away by John a year before. This time John made no effort to dislodge him. It was not worth while; the one thing that mattered now was

Château-Gaillard. Thither Philip, after receiving the surrender of Radepon, returned towards the end of September to complete the blockade.^[425]

No second attempt to relieve it was possible. It may have been for the purpose of endeavouring to collect fresh troops from the western districts, which were as yet untouched by the war, that John about this time visited his old county of Mortain, and even went as far as Dol,^[426] which his soldiers had taken in the previous year. But his military resources in Normandy were exhausted. The Marshal bluntly advised him to give up the struggle. "Sire," said William, "you have not enough friends; if you provoke your enemies to fight, you will diminish your own force; and when a man provokes his enemies, it is but just if they make him rue it." "Whoso is afraid, let him flee!" answered John. "I myself will not flee for a year; and if indeed it came to fleeing, I should not think of saving myself otherwise than you would, wheresoever you might be." "I know that well, sire," replied William; "but you, who are wise and mighty and of high lineage, and whose work it is to govern us all, have not been careful to avoid irritating people. If you had, it would have been better for us all. Methinks I speak not without reason."^[427] The king, "as if a sword had struck him to the heart," spoke not a word, but rushed to his chamber; next morning he was nowhere to be found; he had gone away in a boat, almost alone, and it was only at Bonneville that his followers rejoined him. This was apparently at the beginning of October.^[428] For two months more he lingered in the duchy, where his position was growing more hopeless day by day. At the end of October, or early in November, he took the decisive step of dismantling Pont-de-l'Arche, Moulineaux, and Montfort,^[429] three castles which, next to Château-Gaillard, would be of the greatest value to the French for an advance upon Rouen. To Rouen itself he returned once more on November 9, and stayed there four days.^[430] On the 12th he set out for Bonneville, accompanied by the queen, and telling his friends that he intended to go to England to seek counsel and aid from his barons and people there, and would soon return. In reality his departure from the capital was caused by a rumour which had reached him of a conspiracy among the Norman barons to deliver him up to Philip Augustus. At Bonneville, therefore, he lodged not in the town but in the castle, and only for a few hours; the Marshal and one or two others alone were warned of his intention to set forth again before daybreak, and the little party had got a

start of seven leagues on the road to Caen before their absence was discovered by the rest of the suite, of whom “some went after them, and the more part went back.”^[431] Still John was reluctant to leave Normandy; he went south to Domfront and west to Vire before he again returned to the coast at Barfleur on November 28; and even then he spent five days at Gonneville and one at Cherbourg before he finally took ship at Barfleur on December 5, to land at Portsmouth next day.^[432]

It was probably before he left Rouen that he addressed a letter to the commandant of Château-Gaillard in these terms: “We thank you for your good and faithful service, and desire that, as much as in you lies, you will persevere in the fidelity and homage which you owe to us; that you may receive a worthy meed of praise from God and from ourself, and from all who know your faithfulness. If however—which God forbid!—you should find yourself in such straits that you can hold out no longer, then do whatsoever our trusty and well-beloved Peter of Préaux, William of Mortimer, and Hugh of Howels our clerk, shall bid you in our name.”^[433] An English chronicler says that John “being unwilling”—or “unable”—“to succour the besieged, through fear of the treason of his men, went to England, leaving all the Normans in a great perturbation of fear.”^[434] It is hard to see what they feared, unless it were John’s possible vengeance, at some future time, for their universal readiness to welcome his rival. Not one town manned its walls, not one baron mustered his tenants and garrisoned his castles, to withstand the invader. Some, as soon as John was out of the country, openly made a truce with Philip for a year, on the understanding that if not succoured by John within that time, they would receive the French king as their lord;^[435] the rest stood passively looking on at the one real struggle of the war, the struggle for Château-Gaillard.

At length, on March 6, 1204, the Saucy Castle fell.^[436] Its fall opened the way for a French advance upon Rouen; but before taking this further step Philip deemed it politic to let the Pope’s envoy, the abbot of Casamario, complete his mission by going to speak with John. The abbot was received at a great council in London at the end of March;^[437] the result was his return to France early in April, in company with the archbishop of Canterbury, the bishops of Norwich and Ely, and the earls of Pembroke and Leicester, all charged with a commission

“to sound the French king, and treat with him about terms of peace.” On the French king’s side the negotiation was a mere form; to whatever conditions the envoys proposed, he always found some objection; and his own demands were such as John’s representatives dared not attempt to lay before their sovereign—Arthur’s restoration, or, if he were dead, the surrender of his sister Eleanor, and the cession to Philip, as her suzerain and guardian, of the whole continental dominions of the Angevin house.^[438] Finally, Philip dropped the mask altogether, and made a direct offer, not to John, but to John’s Norman subjects, including the two lay ambassadors. All those, he said, who within a year and a day would come to him and do him homage for their lands should receive confirmation of their tenure from him. Hereupon the two English earls, after consulting together, gave him five hundred marks each, on the express understanding that he was to leave them unmolested in the enjoyment of their Norman lands for a twelvemonth and a day, and that at the expiration of that time they would come and do homage for those lands to him, if John had not meanwhile regained possession of the duchy.^[439] Neither William the Marshal nor his colleague had any thought of betraying or deserting John; as the Marshal’s biographer says, they “did not wish to be false”; and when they reached England they seem to have frankly told John what they had done, and to have received no blame for it.^[440]

The return of the English embassy was followed by a letter from the commandant of Rouen—John’s “trusty and well-beloved” Peter of Préaux—informing the English king that “all the castles and towns from Bayeux to Anet” had promised Philip that they would surrender to him as soon as he was master of Rouen, an event which, Peter plainly hinted, was not likely to be long delayed.^[441] This information about the western towns was probably incorrect, for it was on western Normandy that Philip made his next attack. John meanwhile had in January imposed a scutage of two marks and a half per shield throughout England, and, in addition, a tax of a seventh of moveables, which, though it fell upon all classes alike, the clergy included, he is said to have demanded expressly on the ground of the barons’ desertion of him in Normandy.^[442] The hire of a mercenary force was of course the object to which the proceeds of both these taxes were destined; but they took time to collect, and John soon fell back upon a readier, though less trustworthy, resource, and summoned the feudal host of

England to meet him at Portsmouth, seemingly in the first week of May. It gathered, however, so slowly that he was obliged to give up the expedition.^[443] Philip was about this time besieging Falaise;^[444] he won it, and went on in triumph to receive the surrender of Domfront, Séez, Lisieux, Caen, Bayeux, Coutances, Barfleur, and Cherbourg.^[445] He was then joined by John's late ally, the count of Boulogne, as well as by Guy of Thouars, the widower of Constance of Brittany; and these two, their forces swelled by a troop of mercenaries who had transferred their services from John to Philip after the surrender of Falaise, completed the conquest of south-western Normandy,^[446] while the French king at last set his face towards Rouen. He was not called upon to besiege it, nor even to threaten it with a siege. On June 1 Peter de Préaux made in his own name, and in the names of the commandants of Arques and Verneuil, a truce with Philip, promising that these two fortresses and Rouen should surrender if not succoured within thirty days.^[447] The three castellans sent notice of this arrangement to John, who, powerless and penniless as he was, scornfully bade them "look for no help from him, but do whatsoever seemed to them best."^[448] It seemed to them best not even to wait for the expiration of the truce; Rouen surrendered on June 24,^[449] and in a few days Arques and Verneuil followed its example.^[450]

Thus did Normandy forsake—as Anjou and Maine had already forsaken—the heir of its ancient rulers for the king of the French. Philip's next undertaking, the conquest of Aquitaine, was likely to be considerably facilitated by the fact that there was no longer a third person who could claim to stand between him and his rival as lawful lady of the land; for Eleanor had died on April 1.^[451] In the middle of August Philip marched upon Poitou. Robert of Turnham, John's seneschal there, did what he could for its defence; but he was powerless against the indifference of the people and the active hostility of the Lusignans and William des Roches;^[452] and in a few weeks the whole county, except La Rochelle, Niort, and Thouars, had submitted to the French king.^[453] There, however, Philip's progress ended. He could not touch the county of Angoulême, for it belonged not to John, but to John's wife; while his very successes turned Gascony against him, for the Gascons were quick to perceive how much greater would be their chances of practical independence under a king who would henceforth

be parted from them by the whole width of the Bay of Biscay, than under one whose territories now stretched without a break from the Channel to their own border. Nor had John failed to recognize that in this quarter lay his best hope—at the moment indeed his only hope—of checking Philip’s advance. He at once devoted twenty-eight thousand marks of the treasure which he was gathering in England to the hire of thirty thousand soldiers, who were to be enrolled for his service in Gascony by one Moreve, a brother of the archbishop of Bordeaux, in readiness to join the forces of the king himself whenever he should land on their coast.^[454] From Poitiers, therefore, Philip returned to his own dominions, and no further military movement on either side was made throughout the winter.

In the middle of January 1205 John called the bishops and barons of England to a council in London.^[455] His nominal reason for so doing was that he feared Philip might attempt an invasion of England, and desired to concert measures for its defence; but it is clear that what he really dreaded and sought to guard against was not invasion, but treason. The precautions which he induced the council to support him in taking against the imaginary danger were, if insufficient to save him from the real one, at least as good a safeguard as could be contrived against it at the moment. The oath of fealty to the king was taken anew by all present, and afterwards re-administered throughout the country. “It was also decreed that, for the general defence of the realm and for the preservation of peace, a *commune* should be made throughout the kingdom, and that all men, from the greatest to the least, who were over twelve years of age, should swear to keep it firmly.” The ordinance to which they swore established constables in every shire; and in every hundred, city, and group of lesser townships, subordinate constables who were to lead the men of their respective “communes” to the muster whenever they were summoned by the chief constables, whose orders these local levies were to obey “for the defence of the realm and the preservation of peace against foreigners or against any other disturbers of the same”; and whosoever should neglect the summons was to be held guilty of high treason.^[456] At the beginning of February John issued letters patent to the bailiffs of the east and south coast, giving orders that no ship or boat should be allowed to issue from or pass by the harbours under their jurisdiction, unless by special licence from him.^[457] Besides the obvious purpose of hindering treasonable communications

with his enemies on the continent, this order had probably another object; the vessels thus detained were most likely appropriated to the king's service and made to form part of a fleet which he was gathering from various quarters^[458] throughout the next two months. The want of confidence between king and barons was openly revealed in a council at Oxford, March 27 to 29; the barons made oath to John "that they would render him due obedience," but John was first "compelled to swear that he would by their counsel maintain the rights of the kingdom inviolate, to the utmost of his power."^[459] On Palm Sunday, April 3, John issued letters patent from Winchester, ordering that in all the shires of England every nine knights should "find" a tenth, and that the knights thus provided should come to meet him in London three weeks after Easter (that is, on May 1), "ready to go in his service where he should bid them, and to be in his service in defence of the realm as much as might be needful."^[460] The muster seems, however, to have been postponed, possibly to await the result of an attempt which the king had been making in the field of diplomacy, under somewhat peculiar circumstances.

Of all John's ministers, the one whom he most disliked and mistrusted was the one whose constitutional position made him absolutely irremovable from the royal counsels—the archbishop of Canterbury, Hubert Walter. That John's suspicions of Hubert's loyalty were unjust there can be no doubt; but there are not wanting indications that Hubert, whose temper was extremely masterful, and who for the six years preceding John's accession to the throne had governed England for Richard practically at his own sole discretion, was inclined to press his views of policy upon Richard's younger brother in a fashion more dictatorial than deferential, and to magnify his own office as chief adviser of the Crown, and his personal capabilities as a statesman and a diplomatist, with more emphasis than tact. Hubert had on several occasions tried to act as mediator between John and Philip, and his mediation had failed. In Lent 1205 John, while pushing on his military preparations in England, resolved to set on foot a new diplomatic negotiation with France which seems to have had a twofold object—first, to keep Philip occupied so as to hinder him, at least for a short time, from proceeding against the few fortresses north of the Dordogne which still held out for their Angevin lord;^[461] and secondly, to make game of the archbishop of Canterbury. This latter object was to be attained by

keeping the project a secret from Hubert, and carrying on the negotiations not only without his assistance or advice, but even without his knowledge. The envoys whom John selected for this mission were his vice-chancellor, Hugh of Wells, and Earl William the Marshal. Apparently it was given out that their journey to France was on business of their own; an assertion which in the Marshal's case was true, though not the whole truth. When John had communicated to them his private instructions, William spoke: "Now, sire, listen to me. I am not sure of obtaining peace; and you see that my term of truce for my Norman land is nearly expired. Unless I do homage for it to the French king, I shall lose it; for I see no hope of recovering it otherwise. What am I to do?" "Save it for my service by doing the homage," answered John. "I know you are too loyal to withdraw your heart's homage from me, come what may, and that the more you possess to serve me with, the better will be your service."^[462] He seems to have given—though scarcely with equal willingness—a like permission to some of his other vassals who were in the same plight as the Marshal,^[463] and who may perhaps have been allowed to accompany the latter partly for the sake of still further obscuring the main object of his mission.

The Marshal and the vice-chancellor found the French king at Compiègne, and communicated to him their errand from John. Philip seemed disposed to entertain John's proposals—we are not told what they were—and promised to give them an answer a week later at Anet.^[464] Meanwhile he reminded the Marshal that the time of their "covenant" was nearly up, adding, "You may find it the worse for you if you do not at once do me homage." The Marshal assented and performed the homage then and there, apparently regarding it as a mere form necessary for the redemption of his plighted word, but destined to be rendered void by the peace which he trusted to conclude between the two sovereigns in a few days. By this time, however, Archbishop Hubert had discovered the fact of the secret negotiations, and was extremely wroth that the king should have "plotted such a plot" without consulting him. He therefore sent a certain Ralf of Ardenne to tell the count of Boulogne that the two English envoys had no power to conclude a treaty. Boulogne at once communicated this information to Philip, and when the meeting at Anet took place, the taunt was flung in the Marshal's face, and the negotiations were broken off. Ralf of Ardenne had already hurried back to England and told John that the

Marshal had done homage and fealty to the French king and made alliance with the latter against his own sovereign. When the unlucky envoys came home, they met with a sorry greeting. John at once charged the Marshal with having, “against him and for his damage,” sworn allegiance to his enemy of France. The Marshal denied the charge, and asserted that he had done only what John had given him leave to do. On this John, in his rage, practically denied his own words, and declared that “his barons and his men” should judge between him and the Marshal—a judgement which William retorted that he was quite ready to face. ^[465]

The fleet and the host were finally summoned to assemble at Portsmouth at Whitsuntide. ^[466] The land forces had probably received some increase by means of an order issued by the king on April 15 that, “for the good of his mother’s soul,” all prisoners, except those charged with treason, should be set at liberty. ^[467] No doubt every prisoner capable of bearing arms was, as he issued from confinement, made to take the oath of allegiance and enrolled for military service under the constable of his district. On the Tuesday in Whitsun week (May 31) John arrived at Porchester; there he stayed ten days, on the last five of which he made daily excursions to Portsmouth, ^[468] probably to watch the gathering of the fleet in its harbour.

It is doubtful how far the troops were aware of the king’s real purpose in calling them together. The whole country was in a state of excitement, hourly expecting an invasion. It was reported that the duke of Louvain, in return for the French king’s good offices in recovering for him from the count of Boulogne the share of the revenues of the latter county to which he was entitled in right of his wife, had done homage to Philip, and that the duke and the count had sworn in Philip’s presence to be ready, each at the other’s call, to proceed to England with all their forces and reclaim from John at the sword’s point the English lands of which their wives—the grand-daughters of King Stephen and Maud of Boulogne—had been disinherited by Henry II.; whereupon Philip had sworn that he himself would follow them with his host within a month after their landing in England. ^[469] John, in calling his people to arms, seems to have purposely expressed the object of the armament in general terms—“for the defence of the realm”—“for the king’s service” ^[470]; terms which did not necessarily imply that he wanted his men to do anything more than stand on the

defensive, ready to meet the expected invasion. He probably suspected that had he at the outset demanded more than this, he would have met with a flat refusal in certain quarters; and the issue proved the suspicion to be correct. The rank and file of the host, indeed, were ready and willing not only for defence but for defiance, eager to carry the war into the enemy's country before the enemy could set foot in their own. To them John, at this stage of his career, was still the "king of the English," who had lost his continental possessions through the wiles of his foreign enemies and the disloyalty of his "French" subjects, and whom they, his faithful Englishmen, would gladly help to win those possessions back again. The heads of the baronage, however, and some at least of the innermost circle of the royal councillors, were of another mind. Those of the greater barons who had deserted or betrayed him in Normandy probably saw, or thought they saw, the possibility of serving two masters, one for their continental lands and the other for their English lands, and of profiting by this division of service to make themselves practically independent of both masters alike. This, indeed, was not a motive which could sway such a noble soul as William the Marshal; nor could it influence Hubert Walter, to whom the continuance or the severance of the connexion between England and the rest of the Angevin dominions made, either as an individual or as archbishop, no difference at all. Yet when the critical moment came, these two men, who a few weeks before had been in political as well as personal opposition to each other, forgot their rivalry and united all their influence to defeat the king's project of an expedition over sea.

On one of those days of waiting at Porchester, while the host was gradually assembling, John, seated on the shore, with his court around him, called the Marshal to his presence and renewed his demand for "judgement" on the question of William's alleged treason. William quietly repeated his former answer, that he had only acted upon the king's own orders. "I deny it," again said John. "You will gain nothing in the end; but I will bide my time; and meanwhile I will have you come with me to Poitou and fight for the recovery of my heritage against the king of France, to whom you have done homage." The Marshal remonstrated; he could not fight against a man to whom he had done homage. On this John declared his treason to be manifest, and appealed to the judgement of the barons present. William faced them boldly, pointed to his own forehead, and said: "Sirs, look at me, for, by my faith! I am this day an example for you all. You hear what the

king says; and what he proposes to do to me, that, and more also, will he do to every one of you, if he can get the upper hand.” The enraged king at these words called for instant judgement upon the speaker; but the barons “looked at each other and drew back.” “By God’s teeth!” swore John, “I see plainly that not one of my barons is with me in this; I must take counsel with my bachelors about this matter which is beginning to look so ugly”; and he withdrew to another place. The barons seemingly followed him, as did the “bachelors,” and the Marshal was left alone, save for two personal followers of his own. The bachelors as a body, when John appealed to them, gave it as their opinion that there could be no *essoign* for failing to serve the king on such an occasion as the present; but one of them, named Baldwin, added that there was in the whole assembly no man worthy to judge such a good knight as the Marshal, nor bold enough to undertake the proof (by ordeal of battle) of the charge brought against him by the king; and Baldwin’s remark “was pleasing to many.” Finding that neither baron nor knight would challenge the Marshal for him, John ended the scene by going to dinner; and after some further ineffectual endeavours to obtain a champion he let the matter drop, and began once more to treat the Marshal with civility, if not cordiality.^[471]

By June 9 the tale of men and ships was complete. It was a splendid array; never before, folk said, had there come together a greater host of brave fighting men, “all ready and willing to go with the king over sea,” nor had there ever been assembled in any English harbour so large a number of ships equipped for the crossing.^[472] To each of the leaders of the host was assigned, by the king’s orders, a vessel or a number of vessels sufficient for the transport of his following. Each vessel had received her lading of arms and provisions, and only the troops remained to be embarked, when the archbishop of Canterbury and the Earl Marshal went to the king and “used every possible argument to dissuade him from crossing. They represented what great mischief might arise from his going over sea;—how perilous it would be for him to thrust himself among so many battalions of enemies, when he had no safe place of refuge in the transmarine lands;—how the French king, being now master of nearly all his territories, could bring against him a force far outnumbering the English host;—how great was the danger of putting himself into the hands of the false and fickle Poitevins, whose wont was to be always plotting some treachery against their lords;—

how the count of Boulogne and his confederates would speedily invade England if they heard that its chief men and its brave army were away;—and how it was much to be feared that, while endeavouring to regain his lost dominions, he might lose those which remained to him, especially as he had no heir whom he could leave behind him to take up the reins of government in case any misfortune should befall his own person in the lands beyond the sea. And when he could not be moved by these and other like arguments, they (the archbishop and the Marshal) fell down before him and clasped his knees to restrain him from leaving them, declaring that of a surety, if he would not yield to their prayers, they would detain him by force, lest by his departure the whole kingdom should be brought to confusion.” Such opposition as this, from two such men, implied a great deal more than is expressed in their words as reported by Ralph of Coggeshall. John saw at once that his six months of elaborate preparation had been wasted, and that his hopes were ruined. “Weeping and crying” with shame and grief, he passionately demanded what, then, did the archbishop advise as best to be done for the realm and for the king’s honour, as well as for the supporters who were looking for him to join them beyond the sea? After some consultation, his counsellors agreed that a force of picked knights should be sent, under the command of some English noble, to the help of John’s continental friends. All the rest of the host were bidden to return to their homes.

Bitter was the disappointment and vehement the indignation of the troops, especially the sailors, and loud and deep were the curses which they hurled at the ministers whose “detestable counsel” had thwarted the aspirations and shattered the hopes of king and people alike.^[473] The ministers hurried the unwilling king away to Winchester (June 11); but next day he made his way back to Portsmouth, went on board a ship with a few comrades, and crossed into the Isle of Wight, probably hoping that when he was found to have actually set forth, the sailors and the troops would compel the barons to follow, or intending to throw himself alone, if need were, upon the honour of his Aquitanian adherents. At the end of two days, however, his companions persuaded him to abandon this desperate venture, and on June 15 he landed at Studland near Wareham.^[474] His first act on landing was to claim “an infinite sum of money” from the earls, barons, prelates and knights, on the ground that they “had refused to follow him

over sea for the recovery of his lost heritage.”^[475] In so far as this exaction fell upon the shire-levies and the country knights, it was unjust, for the majority of these were clearly in sympathy with the king, and as eager for the expedition as he was himself. But it was impossible for him, in the actual circumstances, to distinguish between the willing and the unwilling; and there can be little doubt that so far as the barons were concerned, his assertion was practically correct. The gathering of the mightiest armament that had ever been seen in England had ended, not in a vigorous effort to regain the lost dominions of England’s sovereign, but in the despatch of a handful of knights under the earl of Salisbury to reinforce the garrison of La Rochelle.^[476] That it had so ended was directly owing to the action of the primate and the Marshal. But it would obviously have been impossible for two men, however influential, to prevail against the king, if his policy had been supported by the whole body of the baronage on the spot and in arms. The most probable explanation of the matter is that Hubert and William knew the majority of the barons to be, at best, half-hearted in the cause. Whether, in a military and political point of view, the moment was really favourable or unfavourable for the undertaking which John contemplated and from which they shrank, is a question on which speculation is useless. All we can say is that if an opportunity was thrown away, the responsibility for its rejection does not lie upon John.

John’s own feeling about the scene at Portsmouth came out, brutally indeed, but very naturally, in the exclamation with which he received the tidings of Archbishop Hubert’s death on July 13: “Now for the first time I am King of England!”^[477] He took up afresh the plan which Hubert had foiled. Ten months, indeed, had to pass before he could bring his forces together again; but when at last “a great host” gathered at Portsmouth once more, ready to sail on Whitsun Eve , 1206,^[478] not a voice was raised to oppose its embarkation. The year had passed without disturbance in England; nothing had been seen, nothing further had even been heard, of the dreaded Flemish and French invasion. But on the other side of the sea the delay had told. The fall of Loches, shortly after Easter 1205,^[479] had been followed on June 23—scarcely a fortnight after the break-up of the English muster—by that of Chinon,^[480] and this again by the submission of the viscount of Thouars to the French conqueror.^[481] Thus the last foothold

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of the Angevins in Touraine and on the northern frontier of Poitou were lost. There remained to John only two fortresses on the northern border of Poitou—Niort^[482] and La Rochelle, the “fair city of the waters,” whose natural position made it almost impregnable even in those days, whither John had twice sent reinforcements,^[483] and whose harbour offered a safe and commodious landing-place for him and his troops.

On June 7 John arrived at La Rochelle,^[484] and met with an eager welcome; the vassals of the duchy of Aquitaine flocked to the standard of Eleanor’s heir. Six days after his landing he could venture as far into Poitou as the abbey of St. Maixent, half-way between Niort and Poitiers. The Poitevin counts had for centuries been benefactors to the abbey, and their descendant was no doubt sure of a welcome within its walls. He made, however, no further advance northward; it was needful, before doing so, to be quite sure of his footing in the south. From St. Maixent he went back to Niort, and thence southward through Saintonge^[485] into Gascony. Here there was known to be a hostile party whose leaders had congregated in the castle of Montauban, a mighty fortress which Charles the Great was said to have besieged for seven years in vain.^[486] In the middle of July, John formed the siege of Montauban, and then himself withdrew to Bourg-sur-Mer, a little seaport at the mouth of the Garonne, while his engines hurled their missiles against the fortress, till on the fifteenth day a sufficient breach was made, when “the English soldiery, who are specially admirable in this work, rushed to scale the walls, and to give and receive intolerable blows. At last the Englishmen prevailed, the besieged gave way, and the castle was taken.” John had probably come back to direct in person the assault thus successfully made by his brave “Englishmen,” for he was at Montauban on the day of its capture, August 1.^[487] With it there fell into his hands, besides horses and arms and countless other spoil, a number of prisoners of such importance that we are told he sent a list of their names to his justiciars in England.^[488] They evidently included all the Gascon barons whose hostility he had had reason to fear; and with them in his power, he could turn his back upon the south without further anxiety.

By August 21 John was back at Niort; after spending a week there, he proceeded to Montmorillon, on the borders of Poitou and Berry.^[489] At this

critical moment Almeric of Thouars reverted to his old allegiance.^[490] John at once struck right across Poitou to Clisson,^[491] on the borders of Anjou and Brittany; Almeric joined him either there or on the way thither, and they marched together into Anjou. A chronicler writing in the abbey of S. Aubin at Angers, which had always been under the special patronage and protection of John's ancestors, tells how "when the king came to the river Loire, he found no boats for crossing. Therefore, on the Wednesday before the Nativity of the Blessed Mary, coming to the Port Alaschert, and making the sign of the cross over the water with his hand, he, relying on Divine aid, forded the river with all his host; which is a marvellous thing to tell, and such as was never heard of in our time." With fire and sword the host fought its way into Angers, and for a whole week the heir of Fulk the Red held his court in the home of his forefathers.^[492] He then marched up to Le Lude, on the border of Maine. On September 20 he was at Angers again, but left it next day.^[493] On the two following days he was at Coudray, a few miles south of Saumur; there, probably, he and Almeric divided their forces, Almeric moving westward through his own land to attack Brittany,^[494] while John seems to have gone southward again.^[495] On October 3 he was at Thouars, where he stayed a week,^[496] perhaps to await Almeric's return.

Sept. 6

Meanwhile, however, Philip Augustus had assembled the host of France, and led it as far as the Poitevin border.^[497] With Philip's personal appearance on the scene of action, John knew that his own successes were at an end. Neither Almeric of Thouars, nor the many barons in the English host who had taken the oath of allegiance to Philip, would fight against that monarch in person. While John went on to secure his retreat over sea by another visit to Niort and La Rochelle,^[498] therefore, negotiations were set on foot; and when he came back to Thouars once more, on October 26, it was to proclaim a truce which had been made between himself and Philip, to last from October 13 for two years. By its terms each sovereign was to retain during that period the homage and services of all those who had attached themselves to him during the recent war; and any disputes which might arise about the allegiance of such persons were to be decided by the judgement of four barons named, two to represent each of the kings.^[499] Trade, and intercourse of every kind, between the dominions of John and

Philip was to be free, save that no man, unless he were either a priest or a “known merchant,” might go to the court of either without special licence, if he were a subject of the other. Thirteen sureties swore to the truce on behalf of John, and thirteen on behalf of Philip, who further undertook that it should be kept by four other barons whose oaths John had wished to have on his side, but had apparently been unable to obtain.^[500] Philip’s sureties were headed by “the count of Brittany,” a title which can only represent Constance’s widower, Guy of Thouars, and thus shows that Arthur’s death was now, at any rate, regarded as certain. The first of John’s sureties was Guy’s brother, Almeric, the viscount of Thouars, whose action had for several years past generally turned the scale between the rival sovereigns in Poitou, and who by the terms of the truce was pledged to his present allegiance for the next two years at least. The other sureties on both sides were nearly all of them barons of Aquitaine;^[501] those of the Angevin counties seem for the most part to have stood aloof. It is clear, however, that John had secured a firm hold on the southern provinces, and to a considerable extent regained a hold upon Poitou. On the whole, therefore, his expedition had been successful. The best proof of its success lies in Philip’s readiness to accept such a truce, without making any attempt to regain the ground which he had lost in Poitou, though he was actually in the land with an army at his back. As for John, he was going home to his island realm to prepare for a fight of another kind, and with an adversary of a character very different from that of Philip Augustus.

FOOTNOTES: [\[Skip footnotes\]](#)

^[262] Cf. R. Coggeshall, p. 98, and R. Howden, vol. iv. p. 88.

^[263] “Quod praedictus dux redderet unicuique illorum jus suum,” R. Howden, vol. iv. p. 88.

^[264] Stubbs, pref. to W. Coventry, vol. ii. pp. xxvi., xxvii.

^[265] R. Howden, vol. iv. p. 90.

^[266] R. Coggeshall, pp. 99, 100.

^[267] R. Howden, vol. iv. pp. 89, 90.

^[268] R. Wendover (ed. Coxe), vol. iii. pp. 139, 140. Cf. *Gesta Ric.* pp. 81, 82.

[269] That the famous speech put into the mouth of Archbishop Hubert by Matthew Paris (*Chron. Maj.* vol. ii. pp. 454, 455) is *not* noted by contemporary writers does not indeed prove that it was never delivered, but does indicate that, if delivered, it had for contemporary ears no such significance as has been given to it by some modern writers, or as Matthew himself appears to have attached to it. Some such address may have been made to the assembly by the archbishop before the coronation; but if so, it was evidently regarded at the time as a part of the formalities usual on the occasion, not remarkable enough to be worth recording. In Matthew's own MS. the passage is a marginal addition; and in the form in which he gives it, I can only regard it as the first of the many unauthenticated interpolations into the plain text of Roger of Wendover with which Matthew has confused for later students the history of the reign of John.

[270] R. Howden, vol. iv. p. 90; R. Wendover, vol. iii. p. 139.

[271] *Mag. Vita S. Hugon.* p. 293.

[272] R. Wendover, vol. iii. p. 140.

[273] R. Howden, vol. iv. pp. 88, 89.

[274] *Ib.* p. 91.

[275] R. Wendover, vol. iii. p. 140.

[276] R. Diceto, vol. ii. p. 166.

[277] R. Howden, vol. iv. p. 91, says "Nottingham," but R. Diceto, vol. ii. p. 166, says "Northampton," and Hardy's *Itinerary of K. John*, a. 1, shows the king at Northampton on Whit Monday, June 7.

[278] R. Howden, *l.c.*

[279] R. Howden, vol. iv. p. 91. R. Diceto, vol. ii. p. 166, gives the date as June 19, but the *Itin.* a. 1 shows John at Shoreham on the 20th, which is R. Howden's date for the crossing.

[280] R. Coggeshall, p. 100.

[281] Gerv. Cant. vol. ii. p. 92. The place called by Gervase "Ballum" and "Wallum" can only be Gaillon, which Roger of Howden calls "Gwallum" in vol. iv. p. 106.

[282] R. Howden, vol. iv. pp. 92, 93.

[283] *Itin.* a. 1.

[284] R. Howden, vol. iv. p. 93. See the treaty with Flanders—dateless, but probably executed on this occasion—in *Rot. Chart.* p. 31.

[285] R. Howden, vol. iv. p. 95.

[286] *Rot. Chart.* pp. 30, 31 (a. r.1). "Et," adds John, "non tantum de praedictis terris nostris volumus quod sit domina, sed etiam de nobis et omnibus terris et rebus nostris."

[287] Rigord, c. 129.

[288] R. Howden, vol. iv. p. 95.

[289] *Rot. Chart.* p. 30.

[290] R. Howden, vol. iv. p. 96.

[291] *Itin.* a. 1.

[292] R. Howden, [l.c.](#)

[293] The writer of the *Hist. de G. le Mar.* v. 12472, calls it “Borc la Reïne,” but seemingly for no other reason than that he had ended his previous line with the word “*fine*” and wanted a rime to it.

[294] *Hist. de G. le Mar.* vv. 12471–86.

[295] *Rot. Chart.* [l.c.](#)

[296] R. Howden, vol. iv. pp. 96, 97. Cf. R. Diceto, vol. ii. p. 167, *Rot. Chart.* p. 31, and for dates *Itin.* a. 1, which show that Roger’s “mense Octobris” cannot be right. That Constance had come with her son is nowhere stated, but appears from the sequel.

[297] *Itin.* a. 1.

[298] *Hist. de G. le Mar.* vv. 12473–4.

[299] *Itin.* a. 1.

[300] R. Howden, vol. iv. p. 97. Rigord, c. 129, says S. John’s Day.

[301] *Itin.* a. 1.

[302] Rigord, c. 131.

[303] R. Howden, vol. iv. pp. 106, 107; R. Coggeshall, pp. 100, 101.

[304] *Gerv. Cant.* vol. ii. p. 92.

[305] R. Howden, vol. iv. p. 107.

[306] He landed at Portsmouth on February 24, *Ann. Winton.* a. 1200.

[307] R. Coggeshall, p. 101. Cf. R. Howden, vol. iv. p. 107.

[308] R. Howden, [l.c.](#) John was at York March 25 to 28, *Itin.* a. 1.

[309] R. Coggeshall, pp. 102, 103. John was at Porchester on April 28, and at Valognes on May 2, *Itin.* a. 1.

[310] Rigord, c. 132. Cf. R. Howden, vol. iv. p. 115, whose chronology is less sound.

[311] Cf. the treaty of 1200 in R. Howden, vol. iv. pp. 148–51, and *Foedera*, vol. i. pt. i. pp. 79, 80, with that of 1195 in *Foedera*, *ib.* p. 66.

[312] R. Howden, vol. iv. p. 150.

[313] R. Coggeshall, p. 101.

[314] Rigord, c. 132. Cf. R. Howden, vol. iv. p. 115.

[315] R. Howden, vol. iv. p. 125. Dates from *Itin.* a. 2.

[316] *Itin.* a. 2. For the reception at Bordeaux see *Hist. de G. le Mar.* vv. 11956–8.

[317] R. Diceto, vol. ii. p. 167.

[318] R. Howden, vol. iv. p. 119.

[319] R. Diceto, vol. ii. p. 167. R. Coggeshall, p. 103, has another version, but it seems to be incorrect. On the whole question of this divorce see Prof. Maitland's remarks in *Eng. Hist. Rev.* Oct. 1895, vol. x. pp. 758, 759.

[320] Innoc. III. *Epp.* l. v. No. 50.

[321] R. Howden, vol. iv. p. 97.

[322] R. Howden, vol. iv. p. 150. This was in fulfilment of an agreement made between Philip on the one part, and the count of Angoulême and the viscount of Limoges on the other, just after Richard's death. Round, *Cal. Doc. France*, vol. i. p. 471.

[323] R. Howden, vol. iv. p. 119; R. Coggeshall, p. 103.

[324] R. Howden, vol. iv. p. 119; R. Coggeshall, pp. 128, 129; R. Wendover, vol. iii. p. 168. All these writers confuse Isabel's betrothed with his father.

[325] *Rot. Chart.* p. 97.

[326] *ib.* pp. 58, 59.

[327] R. Diceto, vol. ii. p. 170.

[328] R. Coggeshall, p. 103.

[329] *Hist. de G. le Mar.* vv. 11984–6. Cf. R. Howden, vol. iv. p. 119.

[330] R. Howden, vol. iv. p. 120. For date see *Memorials of S. Edmund's*, vol. ii. p. 8.

[331] R. Howden, vol. iv. p. 139; R. Diceto, vol. ii. p. 170; R. Coggeshall, p. 103 (with a wrong date).

[332] R. Howden, vol. iv. pp. 140–3.

[333] *ib.* p. 156.

[334] *Itin.* a. 2.

[335] R. Howden, vol. iv. p. 160.

[336] Will. Armor. *Gesta P. A.* c. 110. Cf. R. Howden, vol. iv. pp. 160, 161.

[337] *Rot. Chart.* p. 102.

[338] *Ib.*

[339] Innoc. III. *Epp.* l. vi. No. 167. R. Coggeshall, p. 135, dates this appeal a year too late. The Pope, on the authority of Philip himself, speaks of it as having been made “more than a year before” Philip issued his citation to John, a citation of which the date is by other evidence fixed at the end of March or early in April 1202.

[340] *Rot. Pat.* vol. i. p. 2, dateless, but as the document is on the roll of John’s second year, its date must be before May 3, 1201. From its position on the roll, it would seem to belong to October 1200.

[341] R. Howden, vol. iv. p. 160; R. Coggeshall, pp. 128, 129.

[342] *Rot. Chart.* p. 102.

[343] R. Howden, vol. iv. pp. 160, 161.

[344] *Ib.* p. 163.

[345] *Ib.* pp. 163, 164.

[346] *Itin.* a. 3.

[347] R. Howden, vol. iv. p. 161.

[348] Innoc. III. *Epp.* l. vi. Nos. 163, 167.

[349] Cf. R. Howden, vol. iv. p. 164; Rigord, c. 135; Gerv. Cant. vol. ii. p. 93; and for dates, *Itin.* a. 3. Rigord’s “*pridie Kalendas Junii*” is doubtless a mistake for “*Julii*.”

[350] Innoc. III. *Epp.* l. vi. No. 167.

[351] *Itin.* a. 3.

[352] R. Howden, vol. iv. p. 176.

[353] *Ib.*

[354] W. Brito, *Philipp.* l. vi. vv. 106–43.

[355] Gerv. Cant. vol. ii. p. 93. Hubert crossed on December 14, R. Diceto, vol. ii. p. 173.

[356] *Rot. Pat.* vol. i. pp. 5, 6.

[357] Cf. Gerv. Cant. vol. ii. p. 93; R. Diceto, vol. ii. p. 174; Rigord, c. 137; and R. Wendover, vol. iii. p. 167. John was at Orival on March 23; then there is a blank for three days, and on March 27 he appears at Les Andelys, *Itin.* a. 3.

[358] *I.e.* on April 28. The date is from Rigord, c. 138.

[359] R. Coggeshall, pp. 135, 136. Cf. Rigord, c. 138; W. Armor. *Gesta P. A.* c. 110; Gerv. Cant. vol. ii. p. 93; and Innoc. III. *Epp.* l. vi. No. 167.

[360] R. Coggeshall, p. 136.

[361] Rigord, c. 138; W. Armor. *Gesta P. A.* c. 110. Cf. Gerv. Cant. vol. ii. p. 93, and Innoc. III. *Epp.* l. vi. No. 167.

[362] R. Coggeshall, p. 136.

[363] See “The Alleged Condemnation of King John by the Court of France in 1202,” in *Transactions of the Royal Historical Society*, new series, vol. xiv. (1900), pp. 53–68.

[364] Gerv. Cant. vol. ii. p. 93.

[365] Innoc. III. *Epp.* [*l.c.*](#)

[366] Cf. Gerv. Cant. vol. ii. p. 94; Rigord, c. 138; W. Armor. *Gesta P. A.* c. 112; and R. Wendover, vol. iii. p. 167.

[367] Innoc. III. *Epp.* [*l.c.*](#)

[368] The war had begun before May 11, *Rot. Pat.* vol. i. p. 10.

[369] Cf. Rigord, c. 138; W. Armor. *Philipp.* l. vi. vv. 204–20, and R. Wendover, vol. iii. p. 167.

[370] See *Itin.* a. 3, 4.

[371] R. Wendover, vol. iii. p. 167; for dates cf. *Itin.* a. 4. Gerv. Cant. vol. ii. p. 94, places this siege too late.

[372] R. Howden, vol. iv. p. 115.

[373] *Chron. Britann.* a. 1201, in Morice, *Hist. de Bretagne, preuves*, vol. i. cols. 6, 106.

[374] *Rot. Pat.* vol. i. p. 7.

[375] Delisle, *Catalogue des Actes de Phil.-Aug.*, No. 726.

[376] Rigord, c. 138; W. Armor. *Gesta P. A.* c. 113. Arthur’s charter giving full details of his homage to Philip is in Round, *Cal. Doc. France*, vol. i. p. 475. Date, Gournay, July 1202.

[377] Cf. Rigord, c. 138; W. Armor. *Gesta P. A.* c. 113, and *Philipp.* l. vi. vv. 262–389; R. Coggeshall, p. 137; Gerv. Cant. vol. ii. p. 94, and R. Wendover, vol. iii. p. 168.

[378] Dates from John's own letter, in R. Coggeshall, pp. 137, 138. Cf. R. Wendover, vol. iii. p. 169.

[379] R. Coggeshall, p. 137.

[380] R. Coggeshall, p. 138; R. Wendover, vol. iii. p. 169; Rigord, c. 138; W. Armor. *Gesta P. A.* c. 113. This last has another version in his later and less trustworthy work, the *Philippis*, l. vi. vv. 390–450. See also *Hist. des Ducs de Normandie* (ed. Michel, *Soc. de l'Hist. de France*), pp. 93–95.

[381] Rigord, c. 138; R. Wendover, vol. iii. p. 169.

[382] He reached Falaise on August 10, *Itin.* a. 4.

[383] R. Wendover, vol. iii. p. 170; W. Armor. *Philipp.* l. vi. vv. 455, 456.

[384] W. Armor. *Gesta P. A.* c. 120. In *Philipp.* l. vi. vv. 343–6, he dates this expedition earlier. In both works he speaks as if John had headed it in person, but the *Itin.* a. 3, 4, shows that this was not the case.

[385] W. Armor. *Gesta P. A.* c. 114; R. Coggeshall, p. 138. John was at Chinon August 20–21, at Tours August 22–23, at Chinon again August 24–29, and at Tours again August 30–September 1, *Itin.* a. 4.

[386] *Rer. Gall. Scriptt.* vol. xviii. p. 799.

[387] Rigord, c. 138. Cf. *Rot. Pat.* vol. i. p. 18.

[388] R. Coggeshall, p. 138; *Hist. de G. le Mar.* vv. 12531–35. Ralf of Eu was set free before November 7, 1202, Hugh and Geoffrey before January 17, 1203; *Rot. Pat.* vol. i. pp. 20, 23.

[389] *Hist. de G. le Mar.* vv. 12536–50.

[390] *Ib.* vv. 12595–606. On the name see M. Delaborde's note, *Œuvres de Rigord et de Guillaume le Breton*, vol. ii. p. 282.

[391] *Hist. de G. le Mar.* vv. 12569–84; Gerv. Cant. vol. ii. p. 95.

[392] R. Coggeshall, p. 139. Date from *Chron. S. Albini*, a. 1202.

[393] *Itin.* a. 4.

[394] R. Coggeshall, *l.c.*

[395] R. Wendover, vol. iii. p. 171.

[396] *Hist. de G. le Mar.* vv. 12585–662. The writer appears to date this affair in autumn 1202; and the *Itinerary*, a. 4, shows that John did in fact go from Alençon to Le Mans on October 29, 1202. But the rest of the story is irreconcilable with John's subsequent movements. The only documentary evidence which I have found as to the date of Count Robert's treason is unluckily not decisive; it is a charter of John, given "apud Beccum, xx

die Aprilis anno regni nostri quarto, quo comes Robertus Sagiensis fecit nobis prodicionem apud Alenconem” (Round, *Cal. Doc. France*, vol. i. p. 131). John in the fourth year of his reign made three visits to Alençon besides the one already mentioned; viz. one on December 7, 1202, and two in January 1203. The first of these two January visits is probably the one recorded by the Marshal’s biographer. John was at Alençon January 15–19, at Le Mans January 21–23, and at Alençon again January 25 (*Itin.* a. 4). The Marshal’s biographer indeed asserts that the king on his return from Le Mans

“Ne s’en vint pas par Alençon;
N’i passast unques sanz tençon
Anceis qu’il venist en sa terre;
Aileors ala passage quere;
Par Mamerz et par Belesmeis
S’en vint en sa terre li reis” (vv. 12657–62).

It seems, however, possible to reconcile this with the dates as given in the *Itinerary* by supposing that, as he had an escort of “granz gens e rotiers,” he may have ventured close up to Alençon, perhaps with an idea of surprising it, but turned away again immediately. The *Itinerary* shows him at Séez on January 25–28, at Argentan on 28–30, and at Falaise 30–31.

[397] R. Coggeshall, pp. 139–41.

[398] *Itin.* a. 4.

[399] R. Wendover, vol. iii. p. 170. Cf. R. Coggeshall, p. 143.

[400] *Ann. Margan.* a. 1204; the annalist, however, clearly meant to date the event 1203. On the value of his authority see Bémont, *Revue historique*, vol. xxxii. (1886), p. 59.

[401] W. Armor. *Philipp.* l. vi. vv. 552–66.

[402] See *Revue historique*, vol. xxxii. pp. 33–72 and 291–311. M. Bémont’s conclusion on this point, though disputed by M. P. Guilhaume in *Bibliothèque de l’École des Chartes*, vol. lx. (1899), pp. 45–85, still holds the field. Cf. *Revue hist.* vol. lxxi. (1899), pp. 33–41, and *Bibl. de l’École des Chartes*, vol. lx. pp. 363–72.

[403] Delisle, *Catal. des Actes de Phil.-Aug.* No. 783. According to R. Coggeshall, pp. 144, 145, Philip virtually declared himself still ignorant on the point six months later still.

[404] Thus in March he received the liege homage of Maurice of Craon “for the time of Arthur’s imprisonment”; should Arthur be released and adhere to his engagements with Philip, Maurice was to be Arthur’s liegeman as he had been of old; should Arthur break faith with Philip, then Maurice was to adhere to the latter; should Arthur die, then Maurice was to remain a liegeman of Philip. In like manner the castles of Brissac and Chemillé were in the following October granted by Philip to Guy of Thouars, “saving the rights of Arthur if he be still alive,” Delisle, *Catal. des Actes de Phil.-Aug.* Nos. 752, 783.

[405] These were the alternative versions proposed by John’s friends, according to M. Paris, *Hist. Angl.* vol. ii. p. 95.

[406] *Chron. S. Albini Andeg.* a. 1203.

[407] Rigord, c. 140; wrongly dated.

[408] *Hist. de G. le Mar.* vv. 12675–720.

[409] Cf. Rigord, c. 140; R. Coggeshall, p. 143; and R. Wendover, vol. iii. p. 172.

[410] *Itin.* a. 5.

[411] R. Wendover, vol. iii. pp. 171, 172.

[412] Innoc. III. *Epp.* l. vi. No. 163; dated Anagni, Oct. 29, 1203.

[413] *Ib.* No. 167 (same date).

[414] *Ib.* Nos. 68, 69.

[415] *Ib.* No. 163.

[416] W. Armor. *Gesta P. A.* cc. 117, 118. The dates of the siege of Alençon come from *Itin.* a. 5.

[417] The siege of Château-Gaillard was begun before the end of August. See below, [p. 96](#).

[418] Will. Armor. *Gesta P. A.* c. 129; *Philipp.* l. vii. vv. 739–47.

[419] R. Wendover, vol. iii. p. 180.

[420] Rigord, c. 141; W. Armor. *Gesta P. A.* c. 122; *Philipp.* l. vii. vv. 29–140.

[421] *Itin.* a. 5.

[422] “Johannem Mollegradium,” Gerv. Cant. vol. ii. p. 93. This nickname is no doubt a translation of one which must have been applied to John in French, though unluckily its vernacular form is lost. A friend has suggested that “if the phrase had any English equivalent, it would probably be something embracing a more direct metaphor than ‘Soft-sword’—something like ‘Tin-sword,’ or, better still, if the thirteenth century knew of putty, ‘John Putty-sword.’”

[423] W. Armor. *Philipp.* l. vii. vv. 140–393. Cf. *Gesta P. A.* c. 123.

[424] Rigord, c. 141, says Philip laid siege to Radepont on August 31. John’s attempt to relieve Les Andelys, being made from Rouen, cannot have been earlier than August 29, more probably 30, *Itin.* a. 5.

[425] Rigord, c. 141; W. Armor. *Gesta P. A.* c. 121; *Philipp.* l. vii. vv. 400–2.

[426] *Itin.* a. 5. He was at Dol September 19–22.

[427] *Hist. de G. le Mar.* vv. 12721–42.

[428] *Ib.* vv. 12743–67. John was at Rouen from October 4 to 7, when he went to Bonneville; *Itin.* a. 5. The poet goes on with an account of the king’s wanderings till “s’en

vint a Rouen arere,” but his itinerary does not agree with the authentic one at any period of this year.

[429] W. Armor. *Philipp.* l. vii. vv. 827–9.

[430] *Itin.* a. 5.

[431] *Hist. de G. le Mar.* vv. 12783–818.

[432] Cf. *Itin.* a. 5 and R. Wendover, vol. iii. p. 173.

[433] Duchesne, *Hist. Norm. Scriptt.* p. 1059.

[434] “Rege vero Johanne nullum praesidium ferre obsessis volente, eo quod suorum prodicionem semper timeret, infra hyemem, mense Decembri, in Angliam transfretavit, omnes Normannos in magna timoris perturbatione relinquens,” R. Coggeshall, p. 144. It seems probable that “volente” may be a clerical error for “valente.”

[435] R. Wendover, vol. iii. pp. 173, 174.

[436] Rigord, c. 141.

[437] Gerv. Cant. (vol. ii. p. 95) says the council was held “in London”; R. Coggeshall (p. 144) describes its result, the embassy to France, as taking place “after Mid-Lent,” *i.e.* after April 1. The only date about this time when John was in London was March 22–29; *Itin.* a. 5.

[438] Cf. R. Coggeshall, pp. 144, 145; Gerv. Cant. vol. ii. pp. 95, 96, and *Hist. de G. le Mar.* vv. 12854–68.

[439] *Hist. de G. le Mar.* vv. 12869–98. Cf. the Marshal’s charter to Philip (dated May 1204) in *Cal. Doc. France*, vol. i. p. 475.

[440] *Hist. de G. le Mar.* vv. 12934–66.

[441] *Ib.* vv. 12905–20.

[442] R. Wendover, vol. iii. pp. 173, 175.

[443] *Hist. de G. le Mar.* vv. 12921–6. John was at Portsmouth on May 5, and at Porchester on May 5–7, 1204. The story may, however, be a mere confusion with what happened in June 1205.

[444] R. Coggeshall, p. 145, dates Philip’s siege of Falaise Easter (April 25); but Rigord, a better authority on the point, places it in the May campaign (c. 142).

[445] Cf. R. Coggeshall, p. 145; Rigord, c. 142; W. Armor. *Gesta P. A.* c. 131, and *Philipp.* l. viii. vv. 9–39.

[446] W. Armor. *Gesta P. A.* c. 131.

[447] Duchesne, *Hist. Norm. Scriptt.* pp. 1057–9.

[448] R. Wendover, vol. iii. p. 181. That John was penniless may be inferred from the desertion of his mercenaries.

[449] Rigord, c. 142. Cf. R. Coggeshall, p. 146, and *Hist. des Ducs de Normandie*, p. 98.

[450] R. Coggeshall, p. 146.

[451] *Ann. Waverley*, a. 1204.

[452] R. Coggeshall, p. 146.

[453] *Ib.*; R. Wendover, vol. iii. p. 181.

[454] R. Coggeshall, p. 147.

[455] John was in London January 16–21, 1205 (*Itin.* a. 6). This is evidently the date of the council.

[456] Gerv. Cant. vol. ii. pp. 96, 97.

[457] *Rot. Pat.* vol. i. p. 50.

[458] *Ib.* pp. 51, 52.

[459] Gerv. Cant. vol. ii. pp. 97, 98. For date see *Itin.* a. 6.

[460] *Rot. Pat.* vol. i. p. 55.

[461] Chinon, Loches, Thouars, Niort and La Rochelle.

[462] *Hist. de G. le Mar.* vv. 12934–66.

[463] Gerv. Cant. vol. ii. p. 96.

[464] As a reason for Anet being chosen by Philip as the place of meeting, the Marshal's biographer says:

“Quer s’ost out semonse por veir
Por aler Caem aseir” (vv. 12977–8).

But this is an anachronism: Caen had been surrendered to Philip in May or June 1204 (see above, [p. 102](#)), and we are now in spring 1205.

[465] *Hist. de G. le Mar.* vv. 12967–13087. See the Marshal's charter to Philip in *Cal. Doc. France*, vol. i. p. 475.

[466] R. Wendover, vol. iii. p. 182.

[467] *Rot. Pat.* vol. i. p. 54.

[468] *Itin.* a. 7.

[469] R. Coggeshall, p. 148.

[470] Gerv. Cant. vol. ii. pp. 96, 97; *Rot. Pat.* vol. i. p. 55.

[471] *Hist. de G. le Mar.* vv. 13103–270.

[472] R. Coggeshall, p. 154. Gerv. Cant. vol. ii. p. 98, says that the ships were said to number nearly fifteen hundred, and R. Coggeshall, p. 153, that the shipmen were said to be fourteen thousand.

[473] R. Coggeshall, pp. 152, 153.

[474] Cf. R. Coggeshall, p. 154; Gerv. Cant. vol. ii. p. 98; and R. Wendover, vol. iii. p. 182, with *Itin.* a. 7.

[475] R. Wendover, *l.c.*

[476] R. Coggeshall, p. 154.

[477] M. Paris, *Hist. Angl.* vol. ii. p. 104. R. Wendover, vol. iii. p. 183, and R. Coggeshall, p. 156, date Hubert's death July 13; Gerv. Cant., vol. ii. p. 98, dates it July 12. They all mean the same; from R. Coggeshall, p. 158, we learn that the archbishop died shortly after midnight.

[478] R. Wendover, vol. iii. p. 186; exact date from a writ (dated April 29, 1206) ordering the seizure of ships for transport; they are to be at Portsmouth on Whitsun Eve, or before. *Rot. Pat.* vol. i. pp. 62 b, 63. A summons to the men of the Cinque Ports, for the same date, was issued on May 12; *ib.* p. 64.

[479] Rigord, c. 144; W. Armor. *Gesta P. A.* c. 134; R. Coggeshall, p. 152.

[480] R. Coggeshall, p. 154; R. Wendover, vol. iii. pp. 182, 183.

[481] W. Armor. *Gesta P. A.* c. 135.

[482] Niort had been taken by, or had surrendered to, Philip, but was regained in 1205 for John by a stratagem of Savaric de Mauléon, whom John had taken prisoner at Mirebeau and released on a promise of fealty—a promise which was immediately fulfilled and faithfully kept. See *Hist. des Ducs de Normandie*, pp. 100–4; and cf. (as to Savaric) R. Coggeshall, p. 146.

[483] R. Coggeshall, p. 154.

[484] John crossed from Stoke to Yarmouth, Isle of Wight, on May 28, and thence to La Rochelle on June 7. Cf. R. Wendover, vol. iii. p. 186, where *Julii* is, of course, in both places a mistake for *Junii*; and *Itin.* a. 8.

[485] *Itin.* a. 8.

[486] R. Wendover, vol. iii. p. 187. The legend of the building of Montauban by the “Four Sons of Aymon,” and its siege by Charles, is told in the romance of *Renaus de Montauban*.

[487] Cf. R. Wendover, *l.c.*, and *Itin.* a. 8.

[488] R. Wendover, [l.c.](#) Unluckily the letter does not seem to be extant.

[489] *Itin.* a. 8.

[490] Rigord, c. 147; W. Armor. *Gesta P. A.* c. 138.

[491] August 30, *Itin.* a. 8.

[492] Cf. *Chron. S. Albini*, a. 1206; Rigord, c. 147; W. Armor. *Gesta P. A.* c. 138, and *Itin.* a. 8. This last shows John on September 6 at Chalonnaes, and on the 8th at Angers. “Portus Alaschert,” therefore, must stand for Chalonnaes or some place very near it.

[493] *Itin.* a. 8. The *Chron. S. Albini*, a. 1206, says that before he left the city he set fire to “the bridge”; which of the two bridges then existing, we are not told, nor what was his object in destroying it.

[494] W. Armor. [l.c.](#)

[495] The next stage of his Itinerary is “Saint Alemand” (September 23–26), and the next after that (September 30, October 1) a place whose name is recorded only in a contracted form (“Bercher’,” *Rot. Pat.* vol. i. p. 167 b; “Berc’,” *Rot. Claus.* vol. i. p. 74 b) which can hardly represent anything else than “Berchères” or “Bercières” (Sir T. D. Hardy made it *Bercy*, but this is surely impossible). Saint Alemand is probably one of two places now called Saint-Amand, in the Angoumois. “Tiebauts de Biaumont qui sires estoit de Bierchières [var. *Bercières*]” figures among the Aquitanian barons who besieged Savaric de Mauléon at Niort in 1205; *Hist. des Ducs de Normandie*, p. 102. I have failed to identify the place, but it was clearly in Aquitaine.

[496] *Itin.* a. 8.

[497] Rigord, c. 147; W. Armor. *Gesta P. A.* c. 139.

[498] *Itin.* a. 8.

[499] Ralf (of Lusignan), count of Eu, and Hugh, viscount of Châtelheraut, for Philip; Savaric de Mauléon and William of Chantemerle for John.

[500] William des Roches, Maurice of Craon, William of Guerches, and Geoffrey of Ancenis. This promise seems to have been made by Philip in person.

[501] See the truce in Duchesne, *Hist. Norm. Scriptt.* pp. 1061–2, and *Foedera*, vol. i. pt. i. p. 95.

CHAPTER IV

KING JOHN

1206–1210

Sed processu temporis mollities illa in tantam crudelitatem versa est, ut nulli praedecessorum suorum coaequari valeret, ut in sequentibus patebit.

GERV. CANT. ii. 93.

The first business wherein John had an opportunity of exercising the free kingship which he had, as he said, acquired by the death of Hubert Walter, was the appointment of Hubert's successor. Immediately after Hubert's funeral the king spent six days at Canterbury.^[502] He "talked much and graciously with the monks" of Christ Church about the choice of a new archbishop, and even hinted that one might be found in their own ranks. At the same time, however, he took possession of a valuable set of church plate bequeathed by Hubert to his cathedral;^[503] and before leaving Canterbury he issued orders that the election of the primate should be made on November 30 by the monks and the bishops of the province conjointly.^[504] A party in the chapter at once resolved to vindicate its independence both against the bishops, whose claim to share in the choice of their metropolitan was always opposed by the monks, and against the king, whose prerogative of designating the candidate to be chosen was in theory regarded by monks and bishops alike as uncanonical, though in practice they had been compelled to submit to it at every vacancy for a hundred years past at the least. The younger and more hot-headed members of the chapter privately elected their sub-prior Reginald, enthroned him at dead of night, and hurried him off to seek confirmation from the Pope, pledging him to secrecy till the confirmation

1205

should be secured.^[505] The older and more prudent brethren evidently connived at these proceedings without taking part in them. Their policy was to consent to Reginald's election after the fact, if the Pope's sanction of it could be obtained; but if this were refused, they could repudiate the election as a matter in which they had had no share. The convent was, however, unlucky in its choice of a champion. Reginald was no sooner across the sea than he began to announce himself publicly as "the elect of Canterbury," and even to show the credentials which he had received from his brethren for the Pope. Of course this news soon reached England, and caused a great commotion in high places there. The bishops, indignant at being tricked out of their share in the election, despatched an appeal to Rome. The monks sent a counter-appeal;^[506] but to them the wrath of the king was far more terrible than the wrath of the bishops, or even the possible wrath of the Pope. Long before the appeals could be decided, they sent to John a deputation charged with a communication containing no allusion whatever to Reginald, but simply requesting that the convent might be permitted to choose for itself a pastor. John received the deputies graciously and assented to their request; then, taking them aside, he "pointed out to them that the bishop of Norwich" (John de Grey) "was attached to him by a great intimacy, and the only one among the prelates of England who knew his private affairs," wherefore it would be greatly for the advantage of king and kingdom if he became archbishop—a consummation which the king begged the deputies would do their utmost to secure. He sent back with them some confidential clerks of his own to assist them in this task, and dismissed them with a promise of bestowing great honour on their convent if it were accommodating in this matter. The result was an unanimous election of John de Grey by the chapter of Christ Church.^[507]

On December 6 the king obtained from both bishops and monks a withdrawal of their respective appeals.^[508] On December 11 John de Grey was enthroned at Canterbury in the king's presence, and invested by him with the temporalities of the See; and on the 18th the king despatched a messenger to ask for the papal confirmation of the new primate's appointment.^[509] The Pope, however, at the end of March 1206, decided that the election of John de Grey was uncanonical; on the validity of Reginald's election he suspended his judgement, ordering the Canterbury chapter to send sixteen of their number to him by October 1,

with full powers to act on behalf of all, and if necessary to hold a new election in his court. The suffragans of the province were desired to send proctors, and the king was invited to do the like.^[510] The king sent three proctors;^[511] the bishops seem to have contented themselves with writing a joint letter, of whose contents we know nothing, except that they had the royal approval.^[512] Of the sixteen monks who went as representatives of the chapter, twelve, before they sailed, secretly exchanged a promise with the king. He pledged himself to ratify whatever they should do at Rome; they pledged themselves to do nothing there except re-elect John de Grey.^[513] The assembly at Rome, originally appointed for October 1, was postponed till the last week of Advent (December 17 to 24). Then, in full consistory, the Pope, after examination, set aside the claim of the bishops to a voice in the election, and declared the monks to be the sole rightful electors; but he also set aside, as informal and void, their election of their sub-prior, Reginald; and he bade them elect, then and there, “whomsoever they would, so he were but an earnest and capable man, and above all, an Englishman.” All eyes must have turned instinctively upon the English-born Cardinal-priest of S. Chrysogonus, the most illustrious teacher of theology in his day, “than whom there was no man greater in the Roman court, nor was there any equal to him in character and learning”—Stephen Langton. Innocent was but speaking the thought of the whole assembly when he added that the monks could not do better than choose Stephen. The unlucky twelve were as willing to do so as the other four, but felt tied by their compact with the king. After some shuffling, they confessed their difficulty to the Pope. He scornfully absolved them from their shameful promise, and the sixteen monks unanimously elected Stephen Langton. The king’s proctors, however, refused to ratify the election in John’s name; so Innocent at once wrote to request a formal ratification of it from John himself.^[514]

These things were done in the week following John’s return from La Rochelle to England, which took place on December 12.^[515] His recent experiences had shown him that the recovery of his lost territories was by no means impossible, but that it could not, under existing political and social conditions, be achieved by means of the only forces which the military organization of his own realm could supply. Those forces must be supplemented, if not superseded, in any attempt at the reconquest of the Norman and Angevin dominions, by the employment of mercenaries on a

large scale, and by an elaborate system of diplomacy, the gradual knitting together of a complicated scheme of foreign alliances. For both these purposes the first need was money; and the difficulties with which the king had to contend in his efforts to raise money were as much greater in John's case than in that of any of his predecessors, as his need was greater than theirs had ever been.

The financial difficulties of the Crown had been accumulating ever since Richard's captivity. At John's accession the arrears of taxes were enormous. At Michaelmas 1201 arrears of all the three "scutages of Normandy" imposed under Richard—in 1194, 1195 and 1196—were due from almost every shire; hidage "for the king's ransom" was still owing from Dorset and Somerset, and there were many arrears even of the "scutage of Wales," which dated from 1190.^[516] Some of these debts ran on as late as 1207, and some much later still. The king's claim to these unpaid taxes, as well as to all other debts owed to his predecessor, was, of course, never withdrawn. A grotesque instance of the way in which the principle of inheritance might sometimes work in such matters occurs in the treasury roll of 1201, where two men in Devon are set down as owing a fine "because they had been with Count John"^[517]—that is, because they had supported, in his rebellion against Richard in 1193, the very man for whom, as king, the fine was now claimed. The Crown had, however, no direct means of enforcing payment of either fines or taxes, at any rate in the case of the barons. Its one remedy was to seize the lands or castles of an obstinate and wilful defaulter; and this remedy was fraught with danger to the crown itself. Neither law nor custom defined the circumstances or fixed the limits of time within which a defaulter was not, and beyond which he was, liable to be treated as obstinate and wilful; in every case where the king exercised his right of seizure on this ground, therefore, the defaulter and his friends could always find a plea for denouncing its exercise as arbitrary and unjust. It seems probable that at the close of Richard's reign his ministers may have thus seized the castles or lands of certain barons in pledge for the arrears of their dues to the crown, and that this may have been one of the grievances referred to in the demand of the barons that Richard's successor "should restore to each of them his rights." John's demand for the castles of some of the barons in 1201 was in all likelihood a proceeding of the same kind, based on the same ground,

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and, as it seems, equally ineffectual in compelling payment; all that the king obtained was the surrender not indeed of the castles, but of some of the barons' sons as hostages. The deadlock was probably inevitable; but every year of its continuance aggravated both the financial difficulties of the government, and the unfriendliness of the relations between the barons and the king; and this latter evil was yet further aggravated by the measures which had necessarily to be taken in order to meet the former one. Plunged as he was from the very moment of his accession in a costly struggle with France, John had been forced to lay continually fresh burdens upon that very class among his subjects who already were, or considered themselves to be, overburdened by the demands of his predecessor. The "first scutage of King John" seems to have been assessed immediately after his coronation; it appears in the Pipe Roll made up at Michaelmas 1199. In the financial year ending at Michaelmas 1201, and in every one of the five following years, there was another new scutage;^[518] and these scutages were independent of the fines paid by the barons who did not accompany the king on his first return to Normandy in 1199, of the money taken from the host as a substitute for its service in 1201, of the equipment and payment of the "decimated" knights in 1205, and the fines claimed from all the tenants-in-chivalry after the dismissal of the host in the same year, as well as of the actual services which many of those who had paid the scutage rendered in the campaigns of 1202–1204 and 1206.

The other taxes levied during these years were a carucage in 1200^[519] and a seventh of moveables in 1204.^[520] But all the while arrears went on accumulating, and year after year a budget had to be made up by devices of the most miscellaneous character. The accession of a new king could, of course, easily be made a pretext for selling confirmations of existing rights and privileges, and John availed himself of this pretext to the uttermost of his power at the earliest opportunity—that is, on his visit to England in 1201. During that time nobody in England seems to have felt secure of anything that he possessed till he had bought it of the king. Individuals of various ranks bought the sovereign's "peace" or his "goodwill";^[521] the cities of Winchester and Southampton and the county of Hants each gave him money "that they might be lovingly treated";^[522] Wiltshire gave him twenty pounds "that it might be well treated."^[523] The citizens of York offended him by omitting to welcome him with a procession when he

visited their city, and to provide quarters for his cross-bowmen; he demanded hostages for their future good behaviour, but afterwards changed his demand to a fine of a hundred pounds.^[524] The sale of offices went on as of old;^[525] while the sale of charters to towns, which under Richard was already becoming a remarkable item in the royal accounts, was a transaction of yet greater frequency and importance under his successor.^[526] On the other hand, John's treasury rolls contain many notices of persons who owe the king money "which he has lent them." These loans from the king to his barons and other subjects were probably made chiefly in the hope of securing the fidelity of the borrowers. In one way or another the speculation must have been in most cases a paying one for John. The privilege of claiming interest in hard cash for a loan was indeed reserved exclusively for the Jews, and not shared even by the king; but he could take from his debtors ample security on their lands or castles, or by means of hostages who were usually their sons or other young members of their families, and whom it was of the greater importance for him to hold in his power as his relations with the barons grew more strained year by year.

In 1206 the tension had reached such a point that John did not venture to impose a scutage of the full amount—two marks on the knight's fee—which had been usual since his father's time, but contented himself with twenty shillings.^[527] In 1207 he evidently dared not attempt to levy any fresh scutage at all. Nor was a carucage likely to prove either less unpopular or more productive; for the agricultural interest of the country was in a state of extreme depression, owing to a long succession of bad seasons; while the taxation of moveables was an expedient which seems to have found, as yet, but little favour with either the people or the government. John now put forth a suggestion which was, so far as we can see, a novelty in English finance. He "held a council in London on January 8, and there requested the bishops and abbots that they would allow parsons and others holding ecclesiastical benefices to give to the king a fixed sum from their revenues."^[528] Neither in equity nor in policy was the idea a bad one. While the military tenants and the socage tenants had each their own peculiar burden—scutage in the one case, carucage in the other—the beneficed clergy, as such, had never yet been subjected to taxation. The king might well argue that it was time for them to take their turn in making a special contribution to the financial needs of the

State; and the argument was sure to meet with the approval of the laity. The prelates, however, were unwilling; and the question was adjourned to another council, in which “an infinite multitude” of ecclesiastical and temporal magnates came together at Oxford on February 9.

At this second meeting the bishops of both provinces gave it as their final answer that “the English Church could by no means submit to a demand which had never been heard of in all previous ages.”^[529] The only approach to a precedent for it, indeed, had occurred in 1194, when Archbishop Geoffrey of York, eager to collect money for Richard’s ransom, had asked the canons of his cathedral chapter to give for that purpose a fourth part of their revenues for the year, with the result that they accused him of “wanting to overthrow the liberties of their church,” and shut its doors in his face.^[530] Between the council in London and that at Oxford, Geoffrey and John, who had been more or less at variance ever since the latter’s accession, were formally reconciled;^[531] John therefore probably counted upon Geoffrey’s support of his scheme, and he may have hoped that the suffragans of Canterbury, having no metropolitan of their own to lead them, would not venture to stand out against the northern primate and the king with the barons, for once, at his back. But what Geoffrey had himself asked of his own chapter as a special favour to Richard in a wholly exceptional emergency, he had no mind to give leave for John to claim from all the beneficed clergy of his province as a matter of right, and under entirely different circumstances. The king was prudent enough not to press his demand; but it may be doubted whether the lay barons agreed with the Waverley annalist in deeming its withdrawal a proof that he “had taken wiser counsel,” since he substituted for it a demand for a thirteenth of the moveable goods of every layman throughout the realm.^[532] This they had no excuse for refusing. “All murmured, but no man dared contradict,”^[533] except Geoffrey of York. He, it seems, claimed exemption for laymen holding lands of the Church, or at least of his cathedral church. His protest, however, was disregarded; whereupon he excommunicated all spoilers of the Church in general, and of the province of York in particular, and then withdrew over sea,^[534] to spend the rest of his life in exile.

Thus for the next eight years the vast diocese of York was practically without a chief pastor and the province

without a metropolitan, while the temporalities of the see were in the hand of the king. As for Canterbury, John had answered the Pope's request that he would ratify the election of Stephen Langton by a flat refusal to accept as primate a man of whom he declared that he "knew nothing, save that he had dwelt much among his enemies";^[535] and when on June 17 Stephen was consecrated by Innocent,^[536] the king seized the estates of the Canterbury chapter, drove the monks into exile,^[537] and proclaimed that any one who acknowledged Stephen as archbishop should be accounted a public enemy.^[538] In August Innocent bade the bishops of London, Ely and Worcester threaten the king, if he continued obstinate, with an interdict upon his realm, and hinted that this might be followed by a papal excommunication of John himself.^[539] Negotiations went on throughout the winter, but without result,^[540] and on Passion Sunday, March 23, or Monday, March 24, 1208, the interdict was proclaimed.^[541] It seems that notice of the intended date of its publication was given about a week before, and that the king at first answered this notice by ordering all the property of the clergy, secular or monastic, to be confiscated on Monday, March 24; but that he immediately afterwards decided to anticipate, instead of returning, the blow, and caused the confiscation to be begun at once.^[542] For him the opportunity was a golden one. The interdict enabled him to put the whole body of the clergy in a dilemma from which there was no escape. They held their property—thus he evidently argued—on condition of performing certain functions: if they ceased from those functions, their property was forfeit, just as that of a layman was forfeit if he withheld the service with which it was charged. The logical consequence in either case—from John's point of view—was confiscation; difficult and dangerous to enforce on a wide scale against laymen, but easy and safe when the victims were clergy. The barons made no objection to a proceeding which would fill the king's coffers without drawing a single penny from their own; the chief justiciar himself, Geoffrey Fitz-Peter, earl of Essex, had no scruple in acting as *custos* for the Crown of all the Church property on his own estates, which were scattered through thirty-one counties, and also of the revenues and goods of the Templars throughout all England.^[543] The spoliation was indeed effected with a brutal violence which would have been impossible had there been any strong feeling against it among the influential classes of the laity,^[544] and which so far outran the intentions of the king that on April

11 he issued a proclamation ordering that any man caught doing or even speaking evil to a monk or a clerk, “contrary to our peace,” should be hanged upon the nearest oak.^[545] The clergy, like the Jews, were to be ill-treated by no one save the king himself. Many of them made a compromise with their spoiler; within a very few weeks five bishops, three cathedral chapters, the prior of the Hospitallers, and the heads of fourteen important monasteries, besides sundry individual priests, undertook to farm their own benefices and other property for the king.^[546] The Cistercians, asserting that the privileges of their order exempted them from interdict, ceased from performing the offices of religion for a few days only, and then resumed them as usual;^[547] whereupon their possessions, which had been seized like those of the other orders, were restored to them on April 4.^[548]

At the same time John despatched an envoy to Rome proposing terms on which he professed himself willing to let Stephen take possession of his see; and he contrived to spin out the negotiations for six months before Innocent discovered that the terms offered were merely a device for wasting time, and that the king had never intended to fulfil them.^[549] On January 12, 1209, the Pope informed the bishops of London, Ely and Worcester that he had written to John a letter of which he sent them a copy, and bade them excommunicate the king if he did not repent within three months after its receipt.^[550] John upon this began a fresh series of negotiations, which kept the three bishops—who had apparently gone over sea immediately after publishing the interdict—flitting to and fro between the continent and England, without any result, for nine more months. In October they finally withdrew, but without publishing the excommunication; and by the end of the year all possibility of its publication in England had vanished, for every English bishop had fled save two, Peter des Roches, bishop of Winchester, and John de Grey, bishop of Norwich, both of whom were creatures of the king; John de Grey, moreover, was now justiciar in Ireland, and the Poitevin Peter des Roches was thus left sole representative of the episcopal order in England.^[551]

It was John’s hour of triumph, not over the clergy alone, but over all his subjects and vassals within the four seas of Britain. The action of the Pope and the inaction of the barons had opened a way for him to make himself “King of England” in his own sense

1209

1208–09

of the words. To all outward seeming his whole time, since his return from the continent, had been devoted to mere amusement and self-indulgence. He “haunted woods and streams, and greatly did he delight in the pleasure of them.”^[552] When he was not thus chasing the beasts of the forest, his yet more relentless pursuit of other prey was making havoc of the domestic peace, and rousing against him the deadly hatred, of some of the greatest of his barons.^[553] But their hatred was futile; they were paralyzed partly by their own mutual jealousies, which the king was continually stirring up,^[554] partly by the consequence of their selfish shortsightedness with regard to his persecution of the clergy. The interdict had placed one whole estate of the realm at John’s mercy; and the laity, having failed at the critical moment to make common cause with their clerical brethren, now found themselves in their turn without a support against his tyranny. His consciousness of power broke out in the strangest freaks of wantonness; in causing the Michaelmas session of the Exchequer to be held at Northampton instead of London, “out of hatred to the Londoners”;^[555] in forbidding the capture of birds all over England;^[556] in ordering that throughout the Forest districts the hedges should be fired and the ditches made by the people to protect their fields should be levelled, “so that, while men starved, the beasts might fatten upon the crops and fruits.”^[557] It showed itself too in acts of graver political significance. A series of orders to the bailiffs of the coast towns for the equipment and mustering of their ships and the seizure of foreign vessels, issued in the spring and summer of 1208, indicates that John was then either meditating another expedition over sea, or, more probably, expecting an attack from thence. The muster, originally fixed for Trinity Sunday, was postponed to S. Matthew’s day,^[558] and the end of the matter was that John, finding he had no immediate need for the services of the fleet, “took occasion”—no doubt on pretext of some deficiency in the contingent due from them—“to oppress the mariners of the Cinque Ports with great and heavy affliction. Some he hanged; some he killed with the sword; many were imprisoned and loaded with irons”; the rest fled into exile, and it was only by giving him fines and hostages that they appeased his wrath and bought his leave to return to their homes.^[559] The barons were again required to renew their homage; the demand was made literally at the sword’s point—for John’s lavish hospitality and largesse^[560] filled his court with mercenaries who were quite ready to enforce his will in such a

matter—and they were compelled either to submit to it, or to give their sons and kinsmen as hostages for their fidelity.^[561] The king seemed indeed, as Matthew Paris says, to be courting the hatred of every class of his subjects.^[562] But hate him as much as they might, they feared him yet more than they hated him; and “burdensome” as he was “to both rich and poor,”^[563] when he summoned all the free tenants throughout the realm, of whatever condition, who were above the age of twelve years, to swear fealty in person to him and his infant heir in the autumn of 1209, rich and poor alike durst not do otherwise than obey him.^[564]

This ceremony took place at Marlborough in September,^[565] just before the final rupture of the negotiations with Langton and the bishops. A few weeks earlier John had received the submission of the king of Scots. Twice or thrice in the last two years a visit of William the Lion to the English court had been projected.^[566] It took place at length in the middle of April 1209 at Bolton, whence John and William proceeded together to Norham for a conference.^[567] The shelter given in Scotland to some of the bishops and other persons who fled from John’s persecution in connection with the interdict^[568] supplied the English king with a pretext for demanding, once for all, security for William’s loyalty. He bade him surrender either three castles on the border or his only son as a hostage. William refused to do either.^[569] John, on returning to the south, summoned his host, and in July set out to take the three castles by force. The papal excommunication was hanging over his head, and its publication was hourly expected; his troops shrank alike from his leadership and from an encounter with the Scot king, who was considered “eminent for his piety,” the champion of the Church and the favourite of Heaven, while they, being under interdict, were virtually outcasts from the Christian fold. A dexterous renewal of negotiations with Innocent and Stephen, however, staved off the excommunication and prevented the threatened desertion of the English troops;^[570] and on August 4 John was at Norham^[571] at the head of a great host ready to do battle with the Scots. On hearing this, William “greatly feared his attack, knowing him to be given to every kind of cruelty; so he came to meet him and offered to treat for peace; but the king of the English flew into a rage and insulted him bitterly, reproaching him with having received his (John’s) fugitives and

public enemies into his realm, and lent them countenance and help against him.” At last some “friends of both realms” arranged terms which pacified John and which William dared not refuse. He sent his son

Aug. 7

, not indeed as a hostage, but to do homage to the English king “for the aforesaid castles and other lands which he held”;^[572] he undertook to pay John by instalments within the next two years fifteen thousand marks “to have his goodwill”; he gave hostages for the fulfilment of this undertaking; and he surrendered his two daughters to be kept in John’s custody as his wards and married at his pleasure.^[573] According to Gervase of Canterbury, one of these ladies was to be married to John’s son;^[574] one of his many illegitimate sons must be meant, for though John had now two sons by his queen, the elder of them was not yet two years old, while the younger of William’s daughters was thirteen at the least.^[575] All that William obtained in return for these concessions was the freedom of the port of Berwick, and leave to pull down a castle which the bishop of Durham had built over against it.^[576] Of his claim upon Cumberland and Westmorland nothing further was ever heard.

Two months later, Wales followed Scotland’s example.

1199–1209

Over Wales, indeed, John’s triumph was won without the trouble even of a military demonstration on his part. The anarchy of Wales had been growing worse and worse ever since the death of Henry II. Its danger for England lay mainly in the opportunities which it afforded to any of the English barons of the border who might be treasonably inclined, for making alliances with one or other of the warring Welsh princes, and thus securing for themselves a support which might enable them to set at defiance the authority of the English crown. John himself had held the position of a border baron for ten years, as earl of Gloucester and lord of Glamorgan, and had used it for his own private ends as unscrupulously as any of his neighbours.^[577] The familiarity with Welsh politics which he had thus acquired stood him in good stead when he became king. At his accession, a struggle which had been going on for two years between three rival claimants to the succession in South Wales, Griffith and Maelgwyn, sons of the late prince Rees ap Griffith, and Gwenwynwyn, son of Owen Cyveiliog, prince of Powys, had just ended in the triumph of Griffith, who, by the help of a force supplied to him by the English government, overcame both his rivals at the close of 1198. On Griffith’s death in 1200

Gwenwynwyn for a moment regained the ascendancy in South Wales; but he found a new and formidable rival in the prince of North Wales, Llywelyn ap Iorwerth, who in a few years succeeded in reducing most of the South Welsh princes to dependence on himself.^[578] Throughout these years John, amid all his political and military occupations on the continent, watched every vicissitude of the struggle in Wales, kept up constant relations with both parties, and balanced the one against the other^[579] with a mingled unscrupulousness and dexterity for which even the Welshmen were scarcely a match, and which at last brought them all alike to his feet. In July 1202 Llywelyn promised to do homage to the English king as soon as the latter should return from over sea;^[580] before October 15, 1204, he was betrothed to John's illegitimate daughter Joan,^[581] and in 1206 she became his wife.^[582] In 1208 his rival Gwenwynwyn was in an English prison, whence he obtained his release by doing homage to John at Shrewsbury on October 8.^[583] Llywelyn's promised visit to the English court seems to have not yet taken place; but a year later, on the king's return from the north, there befell, say the chroniclers, "what had never been heard of in times past: all the Welsh nobles"—that is, evidently, the princes of both North and South Wales—"came to him and did him homage," not on the border, but in the heart of his own realm, at Woodstock,^[584] on October 18 or 19, 1209.^[585]

The king's triumph was complete. The last date which had been fixed for the publication of the papal sentence was October 6;^[586] the sentence was still unpublished, and the bishops who should have published it had fled. They proclaimed it indeed in France in November;^[587] but John took care that no official notification of the fact should reach England, and the sentence remained a dead letter. Its existence was known and talked of all over the country, but it was talked of with bated breath. The excommunicate king held his Christmas feast at Windsor surrounded by "all the great men of England," who sat at his table and held intercourse with him as usual, simply because they dared not do otherwise.^[588] Of the fate in store for those who stood aloof, one terrible example sufficed. The archdeacon of Norwich quitted his place at the Exchequer table at Westminster, after warning his fellow-officers that they were perilling their souls by serving an excommunicate king. He was seized by a band of soldiers, loaded with chains, flung into prison, and there crushed to

death beneath a cope of lead.^[589] The whole body of the clergy, already stripped of their possessions, were now in peril of their lives. As the king was passing through one of the border counties he met some of the sheriff's officers in charge of a prisoner with his hands tied behind him. They said the man was a robber, and had robbed and slain a priest on the highway: what, they asked, should be done with him? "Loose him and let him go" answered John, "he has slain one of my enemies!" Nor was his persecution limited to the clergy; the lay relatives and friends of Langton and of the other exiled bishops were hunted down and flung into prison, and their property seized for the king.^[590] When he could plunder his Christian subjects no more, he turned upon the Jews. At the opening of 1210 all the Jews in England, of both sexes, were by his order arrested, imprisoned, and tortured to make them give up their wealth. It was said that the king wrung ten thousand marks from one Jew at Bristol by causing seven of his teeth to be torn out, one every day for a week,^[591] and that the total sum transferred from the coffers of the Jews to the royal treasury amounted to sixty-six thousand marks.^[592] Never before—not even in the worst days of William the Red—had England fallen so low as she now lay at the feet of John. "It was as if he alone were mighty upon earth, and he neither feared God nor regarded man."^[593] John seems in fact to have been one of the very few men of whom this latter assertion can be made with literal truth; and in this utter recklessness and ruthlessness lay the secret of his terrible strength. "There was not a man in the land who could resist his will in anything."^[594] The very few barons who had dared openly to resist it since his return from Poitou in 1206 were now all in Ireland; and it was Ireland that he set himself to subdue in 1210.

John de Courcy had apparently ceased to be governor of the Irish March in 1191. The succession of governors there during the next few years is obscure; but we know that, as John's chief ministers, they bore the same title which was borne by the chief minister of the king in England, that of justiciar.^[595] Owing to the paucity and obscurity of the records it is difficult to gain any real understanding of the vicissitudes of the English dominion in Ireland during the twenty-five years which elapsed between John's two visits to that country, and especially during the fourteen years between his first visit there and his accession to the English crown. He granted a new and important charter to the city of

1191–1200

Dublin in 1192.^[596] In 1195 the intruders—neither for the first nor for the last time—fell out among themselves: “John de Courcy and the son of Hugh de Lacy marched with an army to conquer the English of Leinster and Munster.”^[597] They certainly did not succeed in wresting Leinster from William the Marshal. As for Munster, Richard de Cogan was apparently still holding his ground in Desmond; Raymond the Fat probably died in 1184 or 1185,^[598] and as he had no direct heirs,^[599] the share of that kingdom which had been originally allotted to Fitz-Stephen lapsed to John as overlord.^[600] From the city of Cork the “English” are said to have been driven out in 1196,^[601] but their expulsion was only momentary. Meanwhile they had at last begun to gain a footing in Thomond. By 1196 they had got possession of the city of Limerick; in that year or the next they lost it, but it was speedily recovered by Meiler Fitz-Henry,^[602] who in 1199 or early in 1200 became chief justiciar in Ireland.^[603] Limerick was put under the charge of William de Burgh, who apparently had won for himself some lands within the kingdom of Thomond, among them Ardpatrik, of which he received a grant from John in September 1199.^[604]

The last Irish Ard-Righ, Roderic O’Conor, died in 1198;^[605] he had been dethroned sixteen years before, but his death was the signal for renewed strife between his sons for the possession of his kingdom of Connaught. The foreign settlers in Ireland took sides for their own interest in the struggle between the native princes; John de Courcy and the “English of Ulidia,” with the De Lacys of Meath and their followers, supported Cathal Crovderg O’Conor, while his rival, Cathal Carrach, was helped by “William Burke, with the English of Limerick.” For a moment Cathal Carrach’s party was victorious; but next year (1200) he was attacked by “Meiler and the English of Leinster,” while De Burgh changed sides and joined Cathal Crovderg. In 1201 or 1202 the united forces of Cathal Crovderg and De Burgh won a battle in which Cathal Carrach was slain. Cathal Crovderg being thus master of Connaught, De Burgh at once began to plot against his life; but the men of Connaught slaughtered the followers of the double-dyed traitor, and he himself escaped as best he could back to Limerick.^[606]

The “honour of Limerick”—exclusive of the city and the Ostmen’s cantred, which the king retained in his own

1198–1202

1179–1201

hands, and the service due from the lands held within that honour by William de Burgh, which was also reserved to the Crown—had meanwhile been granted by John, on January 12, 1201, to William de Braose, “as King Henry gave it to his uncle, Philip de Braose.”^[607] These last words define the extent of the “honour,” as corresponding (with the exceptions specified) to the “kingdom of Limerick” (Thomond) named in Henry’s grant of 1177. Philip de Braose was probably now dead. William was the son of Philip’s elder brother, another William who to the family estates of Bramber in Sussex and Barnstaple and Totnes in Devon had added, by his marriage with an heiress, the lordships of Radnor, Brecon, and Abergavenny in Wales.^[608] The younger William probably succeeded to all these possessions soon after 1179.^[609] Before 1189 his sister Maud was married to Griffith Ap Rees, who from 1198 to 1201 was Prince of South Wales; and throughout the last ten years of the twelfth century William was constantly concerned in the quarrels of the South Welsh princes and people.^[610] His daughter Margaret had before November 19, 1200 become the wife of Walter de Lacy,^[611] the lord of Meath, who was already her father’s neighbour on the Welsh border, where Ludlow formed part of the Lacy heritage; a younger daughter was married before 1210 to a son of another baron of the Welsh March, Roger Mortimer.^[612] Count John of Mortain, as earl of Gloucester and lord of Glamorgan, was also for ten years a neighbour of William de Braose, and evidently made a friend of him, for in 1199 William was at the head of the party which most vigorously urged John’s claim to the crown.^[613] In June 1200 he received a royal grant of “all the lands which he had acquired or might at any future time acquire from our Welsh enemies, to the increase of his barony of Radnor.”^[614] As the king was at the same time in diplomatic relations with several of the “enemies” whom William was thus authorized to despoil, this grant was of doubtful value. The same may be said of the grant of Thomond; this, however, was a speculation on both sides; William covenanted to pay the king five thousand marks for it at the rate of five hundred marks a year.^[615]

De Braose immediately went to Ireland,^[616] and in process of time he succeeded in obtaining possession of the greater part of his new fief, though the difficulties with which he had to contend were many and great. The other persons who had previously

received from John grants of land in Thomond^[617] no doubt resented and resisted the change in their position from tenants-in-chief of the king to under-tenants of William de Braose. It seems that they were upheld in their resistance by the justiciar, Meiler Fitz-Henry, and that John in consequence summoned Meiler to his court, suspended him from his office, and put it into commission in December 1201. In August 1202 John issued further orders for enforcing the claims of De Braose in Thomond; in September he forgave him all the debts which he owed to King Henry and King Richard; in October he granted the entire custody of the lands and castles of Glamorgan, Gwentllwg and Gower to “William de Braose, whose service we greatly approve.”^[618] In the winter William was with the king in Normandy, and had the custody of the captive Arthur. This he resigned, seemingly at the end of the year,^[619] and in January 1203 he was in charge of some matters connected with the fleet.^[620]

Meanwhile the governor of Limerick city, William de Burgh, had escaped from the vengeance of the Irish allies whom he had betrayed, only to fall under that of the English justiciar whom he had set at defiance. Meiler Fitz-Henry had been restored to his post; in 1203 he and Walter de Lacy joined with the Irish of Connaught in expelling De Burgh from Limerick,^[621] and on July 8 William de Braose was appointed by the king to succeed De Burgh as constable of the city.^[622] Meiler and De Burgh had already appealed against each other to the king; ^[623] in March 1204 a commission was appointed to hear their reciprocal complaints,^[624] in September all De Burgh’s Irish estates except those in Connaught were restored to him on his promise of “standing to right in the King’s Court of Ireland.”^[625] There is no record of the trial, which may have been prevented by his death, for at the end of the year or in 1205 he died;^[626] and on April 3, 1206 the justiciar was ordered to take all his Munster estates into the king’s hand.^[627]

The reservation of De Burgh’s Connaught lands in 1204 may have been made in consequence of some negotiations which were at that moment going on between Meiler, as John’s representative, and the King of Connaught, Cathal Crovderg. Cathal, it seems, offered to cede two-thirds of Connaught to John, on condition that the remaining third should be secured to himself and his heirs for a yearly payment of one hundred marks. John

1204–1206

was willing to accept this offer, but he insisted that the portion of land to be ceded to him should be chosen by Meiler, and bade Meiler take care that it was “the best part, and that which contained the best towns, ports, and sites for castles.”^[628] Possibly this claim of John’s to choose the land for himself was refused by Cathal; the negotiations certainly came to nothing, for in December 1206 Cathal made another proposition. He would hold one-third of Connaught of King John for a hundred marks a year; out of the other two-thirds he would cede to John two cantreds, and for the remainder he would pay him a tribute of three hundred marks. John authorized Meiler to accept these terms, if he could get no better.^[629] Whether the agreement was ever actually made, there is nothing to show; it was not likely to have any practical result. The invaders had evidently already gained some slight and precarious footing in eastern Connaught; but they had too much to do within their own March—as the dominions of the English crown in Ireland were called in those days^[630]—to make any real progress westward for some years to come.

The turbulence and lawlessness which prevailed in the Irish March reflected that of the Welsh March whence most of its original settlers had come. William de Braose and William de Burgh were far from being the only barons at feud with Meiler Fitz-Henry, either simply as a fellow-baron, or in his official capacity of representative of the king. In September 1199 John de Courcy and Walter de Lacy are mentioned in a royal writ as having acted together “for the destruction of our realm of Ireland.”^[631] The reference probably is to their joint attack upon Leinster in 1195, which had been followed by the forfeiture of Lacy’s English and Welsh lands; these, however, he had regained in 1198.^[632] In 1203, as has been seen, he helped Meiler to expel William de Burgh from Limerick; and in February 1204 he was appointed one of four commissioners to assist Meiler in dealing with escheats.^[633] His former ally, John de Courcy, had a safe-conduct to and from the king’s court in July 1202,^[634] but he evidently did not come to terms with the king; and next year the Lacys turned against him; Hugh de Lacy, Walter’s younger brother, defeated him in a battle near Down and drove him out of Ulidia.^[635] In September he had another safe-conduct to go to the king and return “if he does not make peace with us.”^[636] This time it seems that he did “make peace,” but failed to fulfil its conditions. On August 31, 1204, he was

1199–1205

summoned, on pain of forfeiture, to come to the king's service "as he swore to come"; and Meiler was instructed, if the forfeiture should take place, to give to the two De Lacys the eight cantreds of De Courcy's land which lay nearest to Meath.^[637] De Courcy incurred the forfeiture; Meiler seemingly committed its execution to the De Lacys; they again attacked De Courcy, and drove him to take refuge in Tyrone;^[638] and on May 2, 1205, King John granted Ulster to Hugh de Lacy, to hold "as John de Courcy held it on the day when Hugh defeated him."^[639] A few weeks later Hugh was belted earl of Ulster;^[640] and at the end of June the triumph of the Lacys was completed by a royal order forbidding the chief justiciar to "move war against any man of the March" without the consent of Earl Hugh and his brother Walter.^[641]

With the colleagues thus forced upon him Meiler was soon at strife. His strife with Walter de Lacy, indeed, had recommenced already. Walter's appointment as a commissioner of escheats in 1204 had been made in connexion with a demand which John—anxious to prepare for an attack upon France, as well as to guard against an expected French invasion of England, and scarcely daring to ask his English subjects for more money—addressed to all his vassals in Ireland, that they would furnish him with an aid.^[642] They undertook to do so; on September 1 the king thanked them for their services and their promises, and desired that the latter might be fulfilled.^[643] At the same time he was taking measures for the security of the March and of his own authority there; on August 31 he had ordered Meiler to build a castle at Dublin,^[644] and in September he bade the citizens do every man his part in helping to fortify the city.^[645] In November he decided upon taking back into his own hands the city of Limerick and its cantred, being, as he said, advised by his barons of England that this step was necessary for the security of his domains in Connaught and Cork. It appears that William de Braose had called in the help of his son-in-law, the lord of Meath, for the keeping of this important border-post; the king's orders for its surrender to the justiciar were addressed to Walter de Lacy and the bailiffs of William de Braose.^[646] Walter seemingly refused to obey the order; Meiler, however, succeeded in taking possession of the city, "on account of which there arose a great war" between him and De Lacy,^[647] with the result that John, to end their strife,

took away the custody of Limerick from both of them, and restored it in August 1205 to William de Braose.^[648] Nineteen months later Walter de Lacy's castle of Ludlow was seized for the Crown, and Walter was bidden to come and "stand to right" in the English court.^[649]

1207 March

1207 April

1207

By that time Meiler was at strife with William de Braose again, and also with another Marcher lord of very different character from any of those with whom he had as yet had to deal. Meiler Fitz-Henry, though loyal to the king, was evidently not quite the man for the post of chief justiciar in Ireland. He was one of the few survivors of the first band of Norman-Welsh adventurers who had taken part in the invasion under Robert Fitz-Stephen. The royal blood of England and of Wales was mingled in his veins; he was in fact, though not in law, first cousin to Henry II.^[650] The two young Lacys, now so often opposed to him, were cousins of his wife, a niece of the elder Hugh de Lacy.^[651] He was, however, not one of the great barons of the March; he seems to have held in chief of the Crown nothing except three cantreds in Desmond granted to him by John in October 1200;^[652] his principal possession was the barony of Leix in Ossory,^[653] for which he owed homage to William the Marshal as lord of Leinster. In the spring of 1207 William the Marshal asked leave of John to visit his Irish lands, which he had never yet seen. The leave was given, though unwillingly; but as William was on the point of setting out from Striguil, he was overtaken by a message from the king, bidding him either remain in England, or give his second son as a hostage. William sent the boy back with the messenger, saying that the king might have all his children as hostages if he pleased,^[654] but as for himself, he was determined to go to Ireland; and next day he sailed. His coming was far from welcome to the justiciar, who till then had been without a superior in the country, and who resented alike the necessity of doing homage to the Marshal for the land which he held under him, and the probability of his own importance being overshadowed by the presence of a man whose territorial and personal weight was so much greater than his own. Meiler therefore wrote to the king urging him to recall the Marshal. John did so, but bade Meiler himself come over at the same time. The Marshal, though feeling that mischief was in prospect, obeyed the king's summons with his usual readiness, and returned to England at Michaelmas, leaving his wife

with a band of trusty followers to defend Leinster in his stead. Meiler also came, after secretly bidding his kinsmen and friends attack the Marshal's lands as soon as he was gone, which they did the very next week. The king gave Meiler a warm welcome, but treated the Marshal with coldness and displeasure,^[655] which Meiler soon found a way to increase.

At the beginning of the year the justiciar had seized for the Crown some of the lands, men and goods of William de Braose.^[656] His excuse for this proceeding was probably the fact that De Braose was in debt to the Crown for the ferm of the city of Limerick, and also for no less than four thousand two hundred and ninety-eight marks of the five thousand which he had in January 1201 covenanted to pay, by instalments of five hundred every year, for the grant of the honour of Limerick.^[657] Meiler, however, had acted without instructions from the king; and when De Braose complained of the treatment which he had received, John declared that he “found no fault in him,” and bade Meiler restore everything that had been taken from him, unless indeed the city of Limerick was included; if that had been seized for the Crown, Meiler was to retain it till further orders.^[658] The mingled feelings of the king are reflected in his letter. John had found in William de Braose a useful servant and friend; he knew that he might find in him a dangerous enemy; he was therefore reluctant to take any measures which might drive William into opposition. On the other hand, William's neglect of his pecuniary obligations to the Crown had reached such a pass that it could hardly be ignored much longer; and William was further suspected of being in secret alliance against the king, both with the Welsh and with the De Lacys.^[659] Of this suspicion the king seems to have known nothing till after the middle of July, when he reappointed “our beloved and faithful William de Braose” custodian of Ludlow Castle.^[660] It had, however, reached his ears by the time of Meiler's coming to England, and Meiler turned it to account for a double purpose of his own. One day, as the king and his chief counsellors sat talking together after dinner, something was said about William the Marshal and his friendly relations with William de Braose. Meiler wrought upon the king's jealousy of the one and his suspicions of the other, till he persuaded him to join in a plot for bringing them both to ruin.

1207 Feb. 12

At the justiciar's instigation John secretly despatched letters to all those of the Marshal's followers in Ireland who held lands in England, bidding them, on pain of forfeiting these, to be at his court within a fortnight. At the same time Meiler, with the king's licence, returned to Ireland. The Marshal asked permission to do the same; but this was refused. Meiler on his arrival found that hitherto his men had, on the whole, been worsted in their strife with those of Leinster. He now summoned the Marshal's men to a "parliament," at which the king's messenger read out the secret letters. The men to whom these letters were addressed saw but too plainly what would be the result of their obedience: the Marshal's lands would be left without defence against Meiler. They unanimously resolved to sacrifice their own English estates, disobey the king for their lord's sake, and resist Meiler to the uttermost; and with the help of two powerful neighbours whom they called to their aid, Ralph Fitz-Payne and Hugh de Lacy, they succeeded, as one of them says, in doing to Meiler as much mischief as he had thought to do to their lord.^[661] The Marshal, meanwhile, was compelled to remain at court, but so discountenanced by the king that hardly any one dared to speak to him. At last, one winter day, as they rode out from Guildford,^[662] John called to him: "Marshal, have you had any news from Ireland that pleases you?" "No, sire." "I can tell you some news," said the king, laughing; and he told him that his wife, the Countess Isabel, had been besieged in Kilkenny by Meiler, who had indeed been at length worsted and even captured by her people, but with very heavy losses on her side, three of the Marshal's chief friends being among the slain. The story was a sheer invention of John's; in reality he had received no news from Ireland at all. The Marshal, though perplexed and troubled, retained his outward composure; and early in the spring he himself received from Ireland a very different account of what had happened there. The justiciar had not only been captured, but had made submission to the countess and given his son as a hostage till he himself should stand to right in her husband's court for the wrong which he had done to him as his lord.

These tidings were sent at the same time to the king, who was by no means pleased with them, but characteristically changed his policy at once to meet the turn of the tide. He called the Marshal to his presence, greeted him with unusual courtesy, and asked him if he had heard anything from Ireland. "No, sire; I have no news

from thence.” “Then I will tell you some good news, of which I wish you joy”—and thereupon John related the truth, which William knew already, though he had not chosen to say so. From that time forth “the king made him as good cheer as he had made him evil cheer before”; and when the Marshal soon afterwards again asked leave to go to Ireland, it was granted at once.^[663] On March 7 Meiler was ordered to refrain from interfering with the lands of the Marshal, who had instructed his men to keep the peace towards Meiler in return;^[664] on March 20 John informed the justiciar that “the Marshal has done our will,” and despatched to Ireland four commissioners by whose instructions Meiler was to act, and who, if he failed to do so, were empowered to act in his stead.^[665] On the 28th, a new grant of Leinster, on the terms of the original grant to Richard de Clare, was made by the king to the Marshal.^[666] A month later Meath was in like manner granted afresh to Walter de Lacy;^[667] and at the end of the next year, 1209, Meiler was removed from his office of justiciar, and replaced by the bishop of Norwich, John de Grey.^[668]

On one point, however, Meiler was justified by the king. In the spring of 1208 John made up his mind to bear with William de Braose no longer, and ordered a distraint upon his Welsh lands. William’s wife, Maud of Saint-Valery,^[669] his nephew, Earl William of Ferrars, and his sister’s husband, Adam de Port, met the king at Gloucester and persuaded him to grant an interview to William himself at Hereford. William promised to pay his debts to the treasury within a certain time, pledged some of his castles for the payment, and gave three of his grandsons and four other persons as hostages.^[670] Roger of Wendover relates that when the king’s officers went to fetch the hostages, Maud refused to deliver up her grandchildren to the king, “because,” said she, “he has murdered his captive nephew”; that her husband reproved her, and declared himself willing to answer according to law for anything in which he had offended the king; and that John, on hearing what Maud had said, was “greatly perturbed,” and ordered the whole family of De Braose to be arrested.^[671] John himself, in a public statement attested by the chief justiciar of England and twelve other men of high position, among whom were De Braose’s own nephew and brother-in-law, asserted that shortly after the meeting at Hereford De Braose and his sons attempted to regain the pledged castles by force, and when they had failed in this attempt,

attacked and burned Leominster.^[672] Thereupon it seems that William was proclaimed a traitor; on September 21 John empowered Gerald of Athies to make an agreement with all who were or had been homagers of William de Braose, so that they should “come to the king’s service and not return to the service of William.”^[673]

V.



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De Braose was chased by the king's officers,^[674] till in the following year, 1209, he escaped, with his wife and two of their sons, from some Welsh seaport, intending to go to Ireland. A violent storm kept them tossing on the sea for three days and three nights; at last they landed at Wicklow. William the Marshal chanced to be there; he received them kindly and sheltered them for three weeks. Then their presence was discovered by the new justiciar, Bishop John de Grey, who at once taxed the Marshal with harbouring "the king's traitors," and bade him give them up to justice. The Marshal refused, saying he had only received "his lord,"^[675] as he was bound to do, and without knowing that De Braose had incurred the king's displeasure; and he added that he himself would not act like a traitor towards De Braose at the justiciar's bidding. Thereupon he sent the refugees safely on to their destination, the home of De Braose's son-in-law, Walter de Lacy. The justiciar complained to the king, who summoned his host for an expedition to Ireland;^[676] both the Marshal and the Lacys having positively refused to give up De Braose, though they offered to be answerable for his going to England to satisfy the king within a fixed time, and promised that, if he failed to do so, they would then harbour him no more. At last—seemingly in the spring of 1210—De Braose was allowed to go on these conditions back to Wales. John had apparently consented to meet him at Hereford; but when De Braose reached Hereford, "he," says the king, "regarded us not," but began to collect all the forces he could muster against the Crown. His nephew, the earl of Ferrars, however, managed to bring him to a meeting with the king at Pembroke. He offered a fine of forty thousand marks. "We," says John, "told him we knew well that he was not in his own power at all, but in that of his wife, who was in Ireland; and we proposed that he should go to Ireland with us, and the matter should be settled there; but he chose rather to remain in Wales,"^[677] and was suffered to do so—John being determined now to settle matters not only with Maud de Braose, but with all the barons of the Irish March, according to his own will and pleasure.

At some date between June 16 and 20 John crossed from Pembroke to Crook, near Waterford. Thence he proceeded by way of Newbridge and Thomastown to Kilkenny, where he and all his host were received and entertained for two days (June 23 and 24) by William the Marshal.^[678] On June 28 the king reached Dublin; thence he led his host into Meath.^[679]

Walter de Lacy and the De Braoses fled, evidently into Ulster; thither John marched in pursuit of them, but before he could overtake them they had escaped over sea into Galloway.^[680] Hugh de Lacy had retired into the stronghold of Carrickfergus; at the king's approach, however, he, too, slipped away in a little boat to Scotland.^[681] Carrickfergus was provisioned for a siege, but its garrison was soon frightened into surrender.^[682] While John was at Carrickfergus, his "friend and cousin," Duncan of Carrick, sent him word that he had captured Maud de Braose, one of her daughters, her eldest son, his wife and their two children; her younger son, Reginald, had escaped, and so had the Lacys. The king despatched John de Courcy (whom he had taken back into favour, and brought with him to Ireland, as likely to be a willing and useful helper against the De Lacys) to fetch the captives from Galloway. When they were brought before him, Maud offered the surrender of all her husband's lands and a fine of forty thousand marks, which John accepted; but three days later she repudiated her agreement.^[683] Taking his prisoners with him, the king turned southward again, and soon completed the subjugation of the Lacys' territories. Most of the lesser barons fled before him as their lords had done, "fearing to fall into his hands."^[684] A week's stay in Dublin (August 18 to 24) brought his expedition to a close.^[685]

It was probably during this second stay of John's at Dublin that, as Roger of Wendover says, "there came to him there more than twenty kinglets^[686] of that country, who all, terrified with a very great fear, did him homage and fealty; yet a few kinglets neglected to come, who scorned to do so, because they dwelt in impregnable places. Also he caused to be set up there English laws and customs, establishing sheriffs and other officers who should judge the people of that realm according to English laws."^[687] This latter statement of Roger's may have given rise to the later belief that it was John who organized the administration of the March in Ireland after the English model, by dividing the whole of the conquered territory into counties, each under its own sheriff.^[688] It appears, however, that there were sheriffs in Ireland in the days of Henry II.^[689] The earliest known mention of a sheriff's district there occurs in 1205, when we hear of the "county of Waterford."^[690] Ten years later the same county is mentioned again, and

also that of Cork;^[691] and before the end of the century ten counties, at least, were recognized by the English government in Ireland.^[692] The names of the earliest Irish counties thus known to us and the circumstances of John's visit to Ireland in 1210 may suggest a clue to the rise and growth of the shire-system in that country. The district which forms the present county of Waterford had never been enfeoffed either by Henry II. or by John, but remained directly in the hands of the supreme ruler of the March. Of the present county Cork, the eastern half, at least, escheated together with the rest of Raymond FitzGerald's share of the "kingdom of Cork" on his death about 1185. No notice of a new enfeoffment of any of the lands which had been his occurs till 1208, and then they were not granted as a whole; so far as we know, only a portion of them was enfeoffed, and that portion was distributed among several feoffees.^[693] It seems probable that the system of county administration may have been first established in Ireland in those districts which were under the direct rule of the English Crown (or, to speak more exactly, of the "English," or Angevin, "Lord of Ireland"), and of which the continuous extent was too great for them to be left, like the single cantreds attached to the other seaport towns, under the control of a mere military governor or constable, and that it was only by degrees introduced into the great fiefs. If this were so, the events of 1210 would furnish an excellent opportunity for its extension. Of the four great fiefs which, together with the royal domains and the lately redistributed honour of Cork, made up the "English" March in Ireland, Leinster was, when John sailed from Dublin for England at the end of August,^[694] practically the only one left. Meath, Ulster, and Limerick were all forfeit to the Crown; and the Crown kept the greater part of them for many years after. Meath was not restored to Walter de Lacy till 1215;^[695] Walter's brother, the earl of Ulster, did not return from exile till after John's death;^[696] and the honour of Limerick was never again bestowed as a whole upon a single grantee. Under these circumstances a system of administrative division into counties placed under sheriffs appointed by the king, or by the justiciar in his name, might be established without difficulty in territories where its introduction in earlier years, if ever attempted, would probably have been rendered ineffectual by the power of the great barons. The one great baron who in the autumn of 1210 still held his ground in the March—Earl William the Marshal, the lord of Leinster—had no hesitation in

withstanding the king to his face in the cause of honour and justice; but he was not a man to throw obstacles in the way of the royal authority when it was exercised within the sphere of its rights and in the interest of public order.

On the king's return to Dublin William the Marshal came to the court. John at once accused him of having "harboured a traitor" in the person of William de Braose. The Marshal answered the king as he had answered the justiciar, and added that if any other man dared to utter such a charge against him, he was ready to disprove it there and then. As usual, no one would take up his challenge; nevertheless, John again required hostages and pledges for the Marshal's fidelity, and again they were given at once.^[697] Meanwhile, the sheriff of Hereford sent word that William de Braose was stirring up trouble in Wales, and urged that he should be outlawed; but the king ordered that the matter should await his own return to England. When he was about to sail, Maud de Braose offered to fine with him for forty thousand marks, and ten thousand in addition, as amends for having withdrawn from her former agreement. John accepted these terms; the fine was signed and sealed, and it was agreed that Maud, and also, it seems, the other members of her family who had been captured with her, should remain in custody till it was paid. John carried his prisoners back with him to England, put Maud in prison at Bristol, and at her request gave an audience to her husband, who ratified the fine which she had made, but fled secretly just before the day fixed for paying the first instalment. The king asked Maud what she now proposed to do, and she answered plainly that she had no intention, and no means, of paying. Then it was ordered that "the judgement of our realm should be carried out against William," and he was outlawed.^[698] Thus far the king tells his own story, and there is no reason to doubt its truth. What he does not tell is the end of the story. He sent Maud and her son to a dungeon at Windsor, and there starved them to death.^[699]

FOOTNOTES: [\[Skip footnotes\]](#)

^[502] July 15–20, 1205, *Itin.* a. 7.

^[503] Gerv. Cant. vol. ii. p. 98. Cf. *Rot. Pat.* vol. i. p. 60, 60 b.

[504] Cf. Innoc. III. *Epp.* l. viii. No. 161, and Gerv. Cant. [l.c.](#)

[505] R. Wendover, vol. iii. p. 183. Cf. Gerv. Cant. vol. ii. p. 99.

[506] Innoc. III. *Epp.* l. viii. No. 161.

[507] R. Wendover, vol. iii. pp. 184, 185.

[508] *Rot. Pat.* vol. i. p. 56 b.

[509] R. Wendover, vol. iii. p. 185; *Rot. Pat.* [l.c.](#)

[510] Innoc. III. *Epp.* l. ix. Nos. 34, 35, 36.

[511] *Rot. Pat.* vol. i. pp. 65 b, 67.

[512] *Ib.* p. 64.

[513] M. Paris, *Hist. Angl.* vol. ii. p. 111; *Chron. Maj.* vol. ii. p. 514. Cf. W. Coventry, vol. ii. pp. 197, 198.

[514] Cf. Innoc. III. *Epp.* l. ix. No. 206; R. Wendover, vol. iii. pp. 212, 213; M. Paris, *Hist. Angl.* vol. ii. pp. 111, 112; W. Coventry, vol. ii. p. 198; *Ann. Burton*, a. 1211.

[515] R. Wendover, vol. iii. p. 188; R. Coggeshall, p. 156.

[516] Chancellor's Roll, 3 John (1201), *passim*.

[517] *Ib.* p. 18.

[518] A summary of the scutages was drawn up, from the Pipe Rolls, by Alexander Swereford, in the time of Henry III., and is printed in the Rolls edition of the *Red Book of the Exchequer*. The marginal dates added in that edition are wrong throughout John's reign. The true dates are as follows:—

First scutage of John,	"in rotulo primo"	(1198–1199),	2 marks.
Second scutage,	"in rotulo tertio"	(1200–1201),	2 marks.
Third scutage,	"in rotulo quarto"	(1201–1202),	2 marks.
Fourth scutage,	"in rotulo quinto"	(1202–1203),	2 marks.
Fifth scutage,	"in rotulo sexto"	(1203–1204),	2 marks.
Sixth scutage,	"in rotulo septimo"	(1204–1205),	2 marks.
Seventh scutage,	"in rotulo octavo"	(1205–1206),	20 s.
Eighth scutage,	"in rotulo duodecimo"	(1209–1210),	2 marks.
Ninth scutage (for Wales),	"in rotulo decimo tertio"	(1210–1211),	2 marks.
Tenth scutage (for Scotland),	"in rotulo decimo tertio"	(1210–1211),	20 s.
Eleventh scutage,	"in rotulo decimo sexto"	(1213–1214),	3 marks.

Red Book of the Exchequer, vol. i. pp. 11, 12.

[519] R. Coggeshall, p. 100. See above, [p. 73](#).

[520] R. Wendover, vol. iii. p. 173. See above, [p. 101](#).

[521] Chancellor's Roll, 3 John, *passim*.

[522] *Ib.* p. 249.

[523] *Ib.* p. 228.

[524] *Ib.* p. 300.

[525] *E.g.* in 1201 William de Stuteville gave £1000 to be sheriff of Yorkshire; *ib.* p. 299.

[526] See the printed *Rotuli Cartarum*.

[527] *Red Book*, vol. i. p. 11.

[528] *Ann. Waverley*, a. 1207.

[529] *Ann. Waverley*, a. 1207.

[530] R. Howden, vol. iii. pp. 222, 223.

[531] On January 25, at Worcester. *Rot. Pat.* vol. i. p. 58 b.

[532] *Ann. Waverl.* a. 1207. R. Wendover (iii. 210) represents the thirteenth as exacted from both laity and clergy; the Waverley Annals say merely "omnis homo de cujusunque feodo." But the writ for the assessment, issued from Oxford on February 17, says "concessum est quod quilibet *laicus* homo totius Angliae, de cujusque feodo sit," etc. (*Rot. Pat.* vol. i. p. 72 b). This would, of course, include laymen holding lands of ecclesiastical superiors (cf. *Rot. Claus.* vol. i. p. 84 b). Geoffrey's protest must therefore be interpreted accordingly. John, it seems, had not yet abandoned all hope of getting something from the beneficed clergy; on May 26 he asked those of the southern province for something very like a "benevolence." *Rot. Pat.* vol. i. p. 72.

[533] R. Wendover, vol. iii. p. 210.

[534] *Ib.* Cf. *Ann. Waverl.* a 1207.

[535] Innoc. III. *Epp.* l. x. No. 219; R. Wendover, vol. iii. pp. 215–217.

[536] R. Wendover, vol. iii. p. 213.

[537] W. Coventry, vol. ii. p. 199; R. Wendover, vol. iii. p. 214. The writ for seizure of the estates was issued July 11, *Rot. Pat.* vol. i. p. 74; and executed July 15, Gerv. Cant. vol. ii. p. 100.

[538] W. Coventry, vol. ii. p. 199.

[539] Innoc. III. *Epp.* l. x. No. 113.

[540] *Ib.* Nos. 159, 160; *Rot. Pat.* vol. i. pp. 78, 80; R. Wendover, vol. iii. pp. 220, 221.

[541] Gerv. Cant. vol. ii. p. 101, and the Annals of Waverley, Worcester, Bermondsey and Tewkesbury, a. 1207, date the publication of the interdict March the *Ann. Winton.* date it “Monday in Passion Week,” i.e. March 24 also. The Annals of Margan and of Dunstable make it Passion Sunday, i.e. March 23, which is the date given by R. Wendover (iii. 222), W. Coventry (ii. 199) and T. Wykes (a. 1207). Roger of Wendover, however, adds that it was the Monday in Passion Week, so his dates are self-contradictory.

[542] R. Coggeshall, p. 163, says the general confiscation of clerical property took place on March 24; and the king’s orders (issued March 17 and 18) for the seizure of the sees of Bath and Ely are to take effect from that day (*Rot. Pat.* vol. i. p. 80, 80 b), which looks as if the confiscation was meant to be an immediate retort to the interdict. But the see of Norwich—though its bishop was the king’s favourite John de Grey—was evidently seized before March 23 (*ib.* p. 81); while the sheriffs of Derbyshire and Warwickshire were already holding for the king “all the manors of the bishop of Chester within their bailiwicks, and everything in them, and all the lands and goods of abbots, priors, religious, and clerks, within their bailiwicks,” as early as March 21, for on that day they were ordered to hand them over to another custodian. *Rot. Claus.* vol. i. p. 107.

[543] *Rot. Claus.* vol. i. pp. 107, 110.

[544] R. Coggeshall, p. 163; R. Wendover, vol. iii. p. 223. The *Ann. Margan.*, a. 1207, give a curious and not very intelligible account of the state of public feeling on the question between John and the Pope: “Electus est Magister S. de Langetone ad archiepiscopatum Cantuariensem.... Pro cuius electione, quia facta fuit contra profanas illas consuetudines quas vocant avitas leges et regias libertates, orta est statim discordia inter Papam Innocentium et Johannem tyrannum Angliae, faventibus ei” (Stephen, Innocent, or John?) “et consentientibus omnibus laicis et clericis fere universis, sed et viris cuiuslibet professionis multis.”

[545] *Rot. Claus.* vol. i. p. 111.

[546] *Rot. Claus.* vol. i. pp. 108–13 b.

[547] R. Wendover, vol. iii. p. 226.

[548] *Rot. Claus.* vol. i. p. 108 b.

[549] John proposed, instead of himself giving Langton the regalia of the see, to place them in the Pope’s hands and let him confer them on the archbishop, inasmuch as John “could not yet bring himself to receive Stephen as a friend.” The Pope, though he did not like the scheme, yet authorized the bishops of London, Ely and Worcester to receive the regalia as his representatives and to confer them as the king desired; but whenever the bishops sought an interview with the king on the subject, he put them off. At last, in September (1208), he gave Langton himself a safe-conduct for a week’s visit to England, but addressed it to “S. de Langton, Cardinal,” thus showing that he did not yet intend to recognize him as archbishop. Langton of course declined to come on such terms. See Innoc. III. *Epp.* l. xi. Nos. 89, 90; *Rot. Pat.* vol. i. pp. 82, 85, 86; *Ann. Waverl.* a. 1208.

[550] Innoc. III. *Epp.* l. xi. No. 211.

[551] *Rot. Pat.* vol. i. pp. 89, 90; R. Wendover, vol. iii. pp. 222, 228, 229; Gerv. Cant. vol. ii. pp. 100, 103, 104; *Ann. Waverl.* and *Dunst.* a. 1208. All the chroniclers have

confused the dates, which have to be rectified by the help of the Pope's letters, the Patent and Close Rolls (both of which, however, unluckily fail in 1209), and Bishop Stubbs's notes to Gerv. Cant. vol. ii. pp. 103, 104, appendix to preface, [ib.](#) pp. xci.–cviii., and W. Coventry, vol. ii. preface, pp. lv., lvi. The sees of Chichester, Exeter, Lincoln and Durham were vacant; before June 21, 1209, Hugh of Wells was elected to Lincoln by desire of the king, who sent him to Normandy to be consecrated by the archbishop of Rouen, but he went to the archbishop of Canterbury instead, and was consecrated by him on December 20 (R. Wendover, vol. iii. p. 231; date from M. Paris, *Hist. Angl.* vol. ii. p. 120, note 4). Carlisle had been administered since 1203 by Bernard, the exiled archbishop of Ragusa. Coventry (or Chester) was vacated in October 1208 by the death of Geoffrey Muschamp, who is mentioned by Gervase among the bishops who went over sea.

[552] *Hist. des Ducs de Normandie*, p. 109.

[553] The two best known instances indeed are of doubtful authenticity; see [Note II.](#) at end. But the general charge against John rests upon authorities which there is no reason to question; *Hist. des Ducs*, pp. 105, 200, and R. Wendover, vol. iii. p. 240. The list of John's children given by Pauli, *Gesch. von England*, vol. iii. p. 475, is neither correct nor complete.

[554] *Hist. des Ducs*, p. 105.

[555] M. Paris records this twice, in 1208 (*Chron. Maj.* vol. ii. p. 524) and 1209 (*Hist. Angl.* vol. ii. p. 118). One of the two dates is probably wrong, but there is no means of deciding which.

[556] Christmas 1208, R. Wendover, vol. iii. p. 225.

[557] June 28, 1209; [ib.](#) p. 227; M. Paris, *Hist. Angl.* vol. ii. p. 119. Cf. *Hist. des Ducs*, p. 109.

[558] *Rot. Pat.* vol. i. pp. 80, 81 b, 83 b–86.

[559] Cf. Gerv. Cant. vol. ii. p. 102, and *Ann. Dunst.* a. 1208.

[560] *Hist. des Ducs*, p. 105.

[561] R. Wendover, vol. iii. p. 224.

[562] M. Paris, *Hist. Angl.* vol. ii. p. 118.

[563] R. Wendover, vol. iii. p. 227.

[564] Cf. [ib.](#), Gerv. Cant. vol. ii. p. 104 (who makes the age fifteen years), and W. Coventry, vol. ii. p. 200.

[565] Gerv. Cant. [l.c.](#) The day must have been either the 13th or the 30th, *Itin.* a. 11.

[566] *Rot. Claus.* vol. i. p. 90 (Aug. 1207); *Rot. Pat.* vol. i. p. 76 (Oct. 1207); [ib.](#) p. 91 (April 1209).

[567] *Chron. Mailros*, a. 1209.

[568] The *Ann. Dunst.*, a. 1208, say the bishops of Salisbury and Rochester went to Scotland “cum Regis Angliae gratia”; but cf. Gerv. Cant. vol. ii. p. 100, and R. Wendover, vol. iii. p. 226. Langton’s father had taken refuge at St. Andrews in 1207. Gerv. Cant. vol. ii., appendix to preface, pp. lxii., lxiii.

[569] Gerv. Cant. vol. ii. p. 102.

[570] *Ib.* pp. 102–3. Cf. appendix to preface, *ib.* pp. c–ciii.

[571] *Itin.* a. 11.

[572] Gerv. Cant. vol. ii. p. 103.

[573] *Foedera*, vol. i. pt. i. p. 103. The Scottish authorities, *Chron. Mailros* and *Chron. Lanercost*, a. 1209, make the sum thirteen thousand pounds. R. Wendover, vol. iii. p. 227, says twelve thousand marks, and M. Paris, *Chron. Maj.* vol. ii. p. 525, eleven thousand marks; the document in *Foedera* is the best authority, although its original is lost and it is obviously not altogether an accurate copy, its date, “*Northampton*, 7th August,” being of course a transcriber’s mistake for “*Norham*.”

[574] Gerv. Cant. vol. ii. p. 103.

[575] The first child of John and Isabel of Angoulême—the future Henry III.—was born October 1, 1207; R. Wendover, vol. iii. p. 219. The second, Richard, was born January 6, 1209; *Ann. Winton. ad ann.* Both the Scot king’s daughters were born before the end of 1195, when one of them was betrothed to Otto of Saxony, R. Howden, vol. iii. pp. 299, 308.

[576] *Chron. Mailros* and *Chron. Lanercost*, a. 1209.

[577] See above, pp. [26](#), [32](#), [45](#).

[578] *Ann. Cambriae* and *Brut y Tywysogion*, a. 1197–1209.

[579] *Rot. Chart.* vol. i. pp. 23, 44, 63, 100 b, 103, 103 b, 104; *Rot. Pat.* vol. i. pp. 39, 40, 44 b, 51 b, 88, 89 b, 91; *Rot. Claus.* vol. i. pp. 23 b, 24. *Brut*, a. 1207, 1209.

[580] *Rot. Pat.* vol. i. p. 8 b.

[581] *Rot. Claus.* vol. i. p. 12.

[582] *Ann. Wigorn.* a. 1206.

[583] *Foedera*, vol. i. pt. i. p. 101.

[584] R. Wendover, vol. iii. p. 227; M. Paris, *Hist. Angl.* vol. ii. p. 119. The event was not really so unprecedented as these writers imagined; the princes of both North and South Wales had done homage to Henry II. at Oxford in 1177. The chroniclers’ expressions about this Welsh homage to John, however, show the impression which it made and the importance which was attached to it.

[585] *Itin.* a. 11.

[586] Gerv. Cant. vol. ii. appendix to preface, p. cvi.

[587] *Ann. Dunst.* a. 1209.

[588] R. Wendover, vol. iii. p. 231.

[589] *Ib.* p. 229.

[590] R. Wendover, vol. ii. pp. 223, 224.

[591] *Ib.* p. 232.

[592] *Ann. Waverl.* a. 1210.

[593] Gerv. Cant. vol. ii. p. 100.

[594] *Ib.*

[595] Ware, *Antiq.* p. 102, makes William Petit and William the Marshal justiciars in 1191; but no authority is given. R. Diceto, vol. ii. p. 99, says that Roger de Planes was “in tota terra comitis [Johannis] justiciarius” when he was slain in October 1191; see above, [p. 29](#). Peter Pippard was justiciar in Ireland in 1194, according to Henry of Marlborough as quoted in Butler’s *History of Trim Castle*, p. 3; and Hamo de Valognes held the office c. 1196–1197; cf. Gir. Cambr. vol. v. p. 342, and Ware, [l.c.](#)

[596] *Foedera*, vol. i. pt. i. p. 55; Gilbert, *Hist. Documents of Ireland*, pp. 51–55. Other Irish Charters of John before his accession to the crown—all dateless—are in *Rot. Canc. Hibern. Cal.* vol. i. pt. i. pp. 2, 4, 5, and *Hist. MSS. Comm.* 4th Report, pp. 574, 581.

[597] Four Masters, a. 1195.

[598] He certainly was not killed in 1182 as the Four Masters say; but he disappears after 1183. See *Dic. Nat. Biogr.* “Fitz-Gerald (Raymond).”

[599] Gir. Cambr. vol. v. pp. 345, 409.

[600] In 1207 John confirmed to William de Barri a sub-enfeoffment made by Fitz-Stephen to Philip de Barri, William’s father and Fitz-Stephen’s nephew. *Rot. Chart.* p. 172.

[601] Four Masters, a. 1196, note.

[602] Cf. Gir. Cambr. vol. v. p. 342, and Four Masters, a. 1196.

[603] *Rot. Chart.* p. 98.

[604] *Ib.* p. 19 b. John made at the same time several other grants of land within the honour, or kingdom, of Limerick, [ib.](#) All these grants, however, except the grant to William de Burgh, seem to have been cancelled by the later one to William de Braose; see below, p. 139. Half a cantred of land at “Tilra’ct in Kelsela” had been granted by John to De Burgh before King Henry’s death, *Hist. MSS. Comm.*, 3rd Report, p. 231.

[605] Four Masters, a. 1198.

[606] Four Masters and *Ann. Loch Cé*, a. 1199–1202.

[607] *Rot. Chart.* p. 84 b.

[608] Dugdale, *Baronage*, pt. i. p. 414; who, however, has confused father and son. See *Genealogist*, vol. iv. pp. 133–141, and *Dic. Nat. Biog.* “Braose, William de.”

[609] His father was living in that year; *Monasticon*, vol. vi. pt. i. p. 457.

[610] *Ann. Camb.* a. 1189, 1192, 1195, 1196; *Brut y Tywysogion*, a. 1196, 1197. Maud died in 1209, *Brut*, *ad ann.*

[611] *Rot. Chart.* p. 80. Walter was the eldest son of Hugh de Lacy who was killed in 1186.

[612] *Foedera*, vol. i. pt. i. p. 107.

[613] *Ann. Margan.* a. 1199.

[614] *Rot. Chart.* p. 66 b.

[615] *Rot. Oblat.* p. 99, “ad quodlibet scaccarium quingentas marcas argenti.”

[616] *Rot. Chart.* p. 100 b.

[617] Carte’s *Life of Ormonde*, ed. 1851, vol. i. pp. xlv., xlv.; *Rot. Chart.* pp. 19 b, 28.

[618] *Rot. Pat.* vol. i. pp. 4, 7, 16 b, 18 b, 19 b.

[619] W. Armor. *Philipp.* l. vi. vv. 478–492. The poet asserts that William resigned his charge because he suspected John’s intentions towards his prisoner. This would be shortly before the attempt to blind Arthur, who was then in the custody of Hubert de Burgh.

[620] *Rot. Pat.* vol. i. p. 24 b.

[621] *Ann. Loch Cé*, a. 1203.

[622] *Rot. Chart.* p. 107 b.

[623] *Rot. Pat.* vol. i. p. 31 b.

[624] *Ib.* p. 39 b. On 29th April the commissioners are informed that De Burgh is respited, and Meiler is bidden to give him seisin of his lands again; *ib.* p. 41 b.

[625] *Rot. Pat.* vol. i. p. 46.

[626] *Ann. Loch Cé*, a. 1205; Four Masters, a. 1204.

[627] *Rot. Pat.* p. 60 b. They seem to have been restored to his son Richard before July 11, 1214; *ib.* pp. 118 b, 119.

[628] *Foedera*, vol. i. pt. i. p. 91. Cf. *Rot. Claus.* vol. i. p. 6 b.

[629] *Rot. Claus.* vol. i. p. 62.

[630] *Rot. Chart.* p. 68 b (a. 1200); *Rot. Claus.* vol. i. p. 40 (a. 1205). I am indebted to Mr. G. H. Orpen for the information that the districts held by the English crown in Ireland were not known as “the Pale” till after Poynings’s Act (1494), when the colonists were ordered to maintain a ditch “six feet high on the side which neared next to the Irishmen” (Joyce, *Hist. of Ireland*, p. 351).

[631] *Rot. Oblat.* p. 74.

[632] Eyton, *Hist. of Shropshire*, vol. v. pp. 257, 258.

[633] *Rot. Chart.* p. 133 b.

[634] *Rot. Pat.* p. 15.

[635] Four Masters, a. 1203.

[636] *Rot. Pat.* p. 34 b.

[637] *Ib.* pp. 45, 45 b.

[638] Four Masters, a. 1204.

[639] *Rot. Pat.* p. 54.

[640] *Rot. Chart.* p. 151—“de qua [*i.e.* Ultonia] ipsum cinximus in comitem.” Date, May 29, 1205.

[641] *Rot. Claus.* vol. i. p. 40.

[642] *Rot. Chart.* pp. 133 b, 134.

[643] *Rot. Pat.* p. 45 b.

[644] *Rot. Claus.* vol. i. p. 6 b.

[645] *Rot. Pat.* p. 45 b. John had granted another charter to Dublin on November 7, 1200; *Rot. Chart.* pp. 78 b, 79.

[646] *Rot. Pat.* p. 47.

[647] The Four Masters, a. 1205, describe the war as “between the English of Meath and the English of Meiler”; but the only “English of Meath” who took part in it seem to have been Walter de Lacy and his personal followers. See *Rot. Pat.* p. 69 (February 21, 1206), where John commends the barons of Meath and Leinster for not having supported Walter in his strife with Meiler about Limerick.

[648] *Rot. Claus.* vol. i. p. 47 b.

[649] *Rot. Pat.* pp. 69 b, 70 b.

[650] His father was son of Henry I. by Nest, daughter of Rees ap Griffith, prince of North Wales. *Gir. Cambr.* vol. i. p. 59.

[651] *Gir. Cambr.* vol. v. p. 356.

[652] Two cantreds in Kerry—"Akunkerry" and "Hyerba"—and one "in terra de Corch"—"Yogenacht Lokhelen quae est terra de Humurierdach"—to be holden by the service of fifteen knights. *Rot. Chart.* p. 77 b.

[653] *Gir. Cambr.* vol. v. pp. 355, 356.

[654] He had had the eldest son ever since July 1205; *Hist. G. le Mar.* vv. 13271–6.

[655] *Ib.* vv. 13311–20, 13350–584.

[656] *Rot. Claus.* vol. i. p. 77 b.

[657] See [Note I.](#) at end.

[658] *Rot. Claus.* p. 77 b.

[659] *W. Coventry*, vol. ii. p. 202.

[660] *Rot. Pat.* p. 74. Walter de Lacy, on his marriage with Margaret de Braose, had promised that he would never give, sell, or pledge any part of his land in England or Normandy without his father-in-law's consent; and this engagement had been embodied in a charter and confirmed by the king. *Rot. Obl.* (a. 2 Joh.), p. 81. One of its results seems to have been that De Braose took charge of Ludlow Castle; it was he who on March 5, 1206, was summoned to deliver it up to Philip d'Aubigné for the king; *Rot. Pat.* p. 69 b. On July 13, 1207, John transferred its custody from D'Aubigné back to De Braose.

[661] *Hist. de G. le Mar.* vv. 13589–786.

[662] John was at Guildford December 27 to 28, 1207, and January 25 to 27, 1208; *Itin.* a. 9.

[663] *Hist. de G. le Mar.* vv. 13787–936.

[664] *Rot. Claus.* vol. i. p. 105.

[665] *Ib.* p. 106 b.

[666] *Rot. Chart.* p. 176.

[667] *Ib.* p. 178. Cf. *Rot. Claus.* vol. i. p. 106.

[668] The bishop of Norwich was in Ireland before January 2, 1210 (*Rot. Misæ*, p. 144); Meiler had ceased to be justiciar before February 16 of the same year (*ib.* p. 149); and the bishop was in office as justiciar when the De Braoses arrived in Ireland towards the end of 1209, as appears from *Hist. de G. le Mar.* vv. 14119–172. The Four Masters' account of Bishop John's appointment and its consequences is too amusing to be omitted. They say under the year 1208: "John, bishop of Norwich, was sent by the king of England into

Ireland as lord justice; and the English were excommunicated by the successor of S. Peter for sending the bishop to carry on war in Ireland.”

[669] The king speaks of her as Maud de la Haye, *Foedera*, vol. i. pt. i. p. 107. But she witnesses a charter of her husband by the title of “domina Matiltis de Sancto Walerico,” Round, *Cal. Doc. France*, vol. i. p. 461. See the curious account of her—“fille fu Bernard de Saint Waleri,” etc.—in *Hist. des Ducs de Normandie*, pp. 111, 112.

[670] *Foedera*, vol. i. pt. i. p. 107. John was at Gloucester in 1208 April 22 and 23, and at Hereford April 24 to 28; *Itin.* a. 9.

[671] R. Wendover, vol. iii. p. 225. He brings in this story in connexion with the general demand for hostages from the barons in 1208; but his own account of the words used by William de Braose shows that he was aware there was a special ground for the demand in De Braose’s case.

[672] *Foedera*, vol. i. pt. i. p. 108.

[673] *Rot. Pat.* p. 86 b.

[674] *Foedera*, [l.c.](#)

[675] “Mès j’ai herbergié mon seignor, Si comme faire le deveie,” *Hist. de G. le Mar.* vv. 14214–15. How De Braose was “lord” of the Marshal, I can find nothing to show.

[676] *Ib.* vv. 14137–52.

[677] *Foedera*, vol. i. pt. i. p. 108. John was at Cross-by-the-Sea, close to Pembroke, from June 3 to June 16 inclusive, and at Crook on June 20. *Itin.* a. 12.

[678] Cf. *Itin.* a. 12 and *Hist. de G. le Mar.* vv. 14259–66.

[679] June 30, Greenoge; July 2 and 3, Trim; July 4 and 5, Kells. *Itin.* a. 12.

[680] *Foedera*, vol. i. pt. i. p. 108.

[681] *Ann. Cambr.* a. 1210, Rolls edition, pp. 66, 67, note.

[682] *Hist. de G. le Mar.* vv. 14270–78. John was at Carrickfergus July 19 to 28; *Itin.* a. 12.

[683] *Foedera*, [l.c.](#)

[684] R. Wendover, vol. iii. p. 234.

[685] His itinerary from Carrickfergus is: July 29, Holywood; July 31, Ballymore; August 2, 3, Down; 4, Banbridge; 5, Carlingford; 8, 9, Drogheda; 9, 10, Duleek; 10, 11, Kells; 11, Fowre; 12, Granard; 14, Rathwire; 16, Castle Bret; 18–24, Dublin. *Itin.* a. 12.

[686] “*Reguli.*” The *Hist. des Ducs de Normandie*, pp. 112, 113, tells how the king of Connaught came to John’s “service” at Dublin, and how John while at Carrickfergus tried to catch the king of “Kenelyon” in a trap, but was outwitted by the Irishman.

[687] R. Wendover, vol. iii. pp. 233, 234.

[688] This assertion, adopted by many modern writers, seems to have been first definitely made by Sir John Davies, in his *Discoverie of the true causes why Ireland was never entirely subdued*, etc. (1612), p. 121: "King John made xii. shires in Leinster and Mounster; namely, Dublin, Kildare, Meth, Uriel, Catherlogh, Kilkenny, Wexford, Waterford, Corke, Limeric, Kerrie, and Tipperary."

[689] Ware, *Antiq.* c. v. p. 33.

[690] Patent granted by John to the citizens of Waterford, July 3, a. r. 7 (1205), according to Ware, [L.c.](#)

[691] *Rot. Claus.* vol. i. p. 218.

[692] Writs for a parliament held at some date between 1293 and 1298 were addressed to the *sheriffs* of Dublin, Louth, Kildare, Waterford, Tipperary, Cork, Limerick, Kerry, "Connaught," and Roscommon, and to the seneschals of the liberties of Meath, Wexford, Carlow, Kilkenny and Ulster. *Irish Archaeological Society's Miscellany*, p. 15.

[693] *Rot. Chart.* pp. 171 b, 172, 172 b. Cf. an inquisition ordered April 3, 1206 (*Rot. Pat.* p. 60 b), which clearly implies that the eastern half of the "kingdom of Cork" was then in the king's hands.

[694] He is last mentioned as being in Dublin on August 24, and he was at Fishguard on August 26; *Itin.* a. 12.

[695] *Rot. Pat.* pp. 131, 132 b, 151, 181.

[696] *Dict. Nat. Biog.* "Lacy, Hugh de (d. 1242)."

[697] *Hist. de G. le Mar.* vv. 14286–372.

[698] *Foedera*, vol. i. pt. i. p. 108.

[699] See [Note I.](#) at end.

CHAPTER V

JOHN AND THE POPE

1210–1214

[Rex] prudenter sane sibi et suis providens in hoc facto, licet id multis ignominiosum videretur, et enorme servitutis jugum. Cum enim res in arto esset, et undique timor vehemens, nulla erat via compendiosior imminens evadendi periculum, nec forsitan alia; quoniam ex quo se in protectione posuit apostolica, et regna sua beati Petri patrimonium fecit, non erat in orbe Romano princeps qui in sedis apostolicae injuriam vel illum infestare, vel illa invadere praesumeret.

W. COVENTRY, ii. 210.

During John's absence in Ireland, England had been disquieted by rumours of a threatened Welsh invasion. His ministers, however, faced the peril boldly; the justiciar, the treasurer (Bishop Peter of Winchester), and the earl of Chester marched into Wales with "a great host" and built three castles on Welsh soil,^[700] and on the king's return the Welsh "vanished," as a chronicler says, into their mountains, "and the land kept silence before him."^[701] John, however, was in no mood, now that England, Scotland and Ireland were all at his feet, to be content with mere silence on the part of the Welsh princes, and especially of his own son-in-law, Llywelyn, who, having secured the hand of the king's daughter and the mastery over the greater part of Wales, was now openly turning against the power by whose help he had risen. The case is frankly stated by a Welsh chronicler: "Llywelyn, son of Jorwerth, made cruel attacks upon the English; and on that account King John became enraged, and formed a design of entirely divesting Llywelyn of his dominion."^[702] The native rivals whom Llywelyn had forced into submission were always on the watch for a chance of flinging off the North-Welsh yoke; and when John assembled his host at Chester, seemingly in the

1210–10

third week of May 1211,^[703] he was joined by most of the chieftains of the south.^[704] At the tidings of his approach, “Llywelyn,” says the same chronicler, “moved with his forces into the middle of the country, and his property to the mountain of Eryri (Snowdon); and the forces of Mona, with their property, in the same manner. Then the king, with his army, came to the castle of Dyganwy. And there the army was in so great a want of provisions that an egg was sold for a penny halfpenny, and it was a delicious feast to them to get horseflesh; and on that account the king returned to England, after disgracefully losing many of his men and much property.”^[705]

Whatever military “disgrace” there may have been was speedily wiped out; John had only gone home to collect fresh supplies and larger forces.^[706] Setting forth again from Whitchurch in July,^[707] “the king”—again it is a Welsh chronicler who tells the story—“returned to Wales, his mind being more cruel and his army larger; and he built many^[708] castles in Gwynedd. And he proceeded over the river Conway towards the mountain of Eryri, and incited some of his troops to burn Bangor. And there Robert, bishop of Bangor, was seized in his church, and was afterwards ransomed for two hundred hawks.” Llywelyn sent his wife to make terms for him with her father, and was received into the king’s peace on delivering up to him a large number of hostages, paying a heavy indemnity in cattle and horses, “and consigning also the midland district to the king for ever. And thereupon all the Welsh princes, except Rhys and Owain, the sons of Gruffydd, son of Rhys, made peace with the king; and the king returned victoriously, and with extreme joy, to England.”^[709] Of course the peace was a hollow one, like every other peace with the Welsh; but for the moment John’s success was complete. “In Ireland, Scotland, and Wales there was no man who did not obey the nod of the king of England—a thing which, it is well known, had never happened to any of his forefathers; and he would have appeared happy indeed, and successful to the utmost of his desires, had he not been despoiled of his territories beyond the sea, and under the ban of the Church.”^[710]

To neither of these drawbacks was John altogether indifferent. He was only biding his time to make a great effort for the removal of the first; and although the second appeared, as yet,

to have made no difference to his political position, he was not insensible to the dangers which it might involve. He was still playing with both primate and Pope. In the spring of 1210 he had made another feint of renewing negotiations with Stephen Langton, had sent him a safe-conduct for a conference to be held at Dover, and had actually gone thither (May 4), ostensibly for the purpose of meeting him. But the safe-conduct was irregular in form; and this circumstance, coupled with a warning from some English barons, made Stephen refuse to trust himself in John's power.^[711] The king vented his wrath by cutting down the woods on all the archbishop's manors.^[712] On his return from Ireland he dealt a heavy blow at the religious orders. Towards the end of October he called together in London the heads of all the religious houses in England, and compelled them to give him sums of money, of which the total is said to have amounted to one hundred thousand pounds.^[713] The Cistercians, whom he had spared in the earlier days of the Interdict, had to bear the brunt of his exactions now; they "were forced to find him chariots with horses and men,"^[714] or, as another writer explains it, their privileges were quashed, and they had to give the king forty thousand pounds;^[715] moreover, their abbots were forbidden to attend the triennial chapter of the order at Cîteaux, "lest their piteous complaints should exasperate the whole world against such an oppressor."^[716]

In June or July 1211^[717] the cardinal subdeacon Pandulf, who was much in the Pope's confidence, and a Templar named Durand came to England "that they might restore peace between the Crown and the clergy."^[718] They seem to have been sent at the king's request. The terms of the commission which they had received from the Pope are known from a reissue of it two years later. They were to exhort John to make satisfaction "according to a form subscribed between ourself" (the Pope) "and his envoys." If he would publicly take an oath of absolute obedience to the Pope's mandates on all matters for which he was under excommunication, they were to give him absolution; and when they had obtained from him security for the reinstatement of the archbishop of Canterbury, they were to withdraw the interdict.^[719] John met them on his return from Wales, at Northampton, on August 30,^[720] and received them publicly in a great assembly of the barons. The details of the conference rest

only upon the authority of two comparatively late monastic chronicles; but there is no reason for doubting the correctness of the main outlines of their story. The envoys called upon John to make satisfaction to the Church, restore the property which he had taken from her ministers, and receive Archbishop Stephen, the exiled bishops, their kinsfolk and their friends “fairly and in peace.” The king answered that they might make him swear to restore everything, and he would do whatever else they liked, “but if that fellow Stephen sets foot in my land, I will have him hanged.” A discussion followed as to the circumstances of Stephen’s election and the respective rights of Pope and King in such matters. John ended by offering to receive as archbishop any one whom the Pope might choose except Stephen, and to give Stephen another see if he would resign all claims upon Canterbury. Pandulf scornfully rejected this proposal. At last, in presence of the whole council, he pronounced to John’s face the papal sentence of excommunication, of which, he said, the publication had only been delayed till his own arrival in England and that of his colleagues; he absolved all John’s subjects from their allegiance, bade them be ready to join the ranks and obey the leader of any host which the Pope might send to England, and denounced not only John himself, but also all his posterity, as for ever incapacitated for the office of king. It is said that on this John bade the sheriffs and foresters who were present bring in whatever prisoners they had in their charge, and gave orders for the hanging of some and the blinding or mutilation of others, to show the papal envoys his own absolute power and his ruthlessness in the exercise of it; that among the prisoners was a clerk charged with forgery, whom he ordered to be hanged; that Pandulf wanted to excommunicate at once any one who should lay hands on this man, and went out of the hall to fetch a candle for the purpose, but that the king followed him and gave up the accused clerk “to his judgement”—which of course meant, to be set at liberty.^[721] Whether or not the mock tragedy enacted between king and cardinal really ended in this strange fashion, the result of the conference was clearly the same as that of all previous diplomacy between Innocent III. and John: the Pope gained nothing and the king lost nothing. Pandulf and Durand went back to Rome accompanied by envoys from John;^[722] an order was issued for the recall of the exiles, but it seems to have taken the form of a writ bidding all bishops and beneficed clergy return before next mid-summer, “on pain of losing their property.”^[723] The excommunicate sovereign kept his Christmas feast

at Windsor,^[724] and found a new triumph awaiting him at the opening of the new year.

King William of Scotland, stricken in years and with no male heir save one young son, the child of his old age, was hard pressed by a party in his realm who rallied round a certain Cuthred MacWilliam, a descendant of the older line of Scottish kings which the house of Malcolm and Margaret had ousted from the succession. In despair of overcoming these rebels, William turned to England for succour, and early in 1212 “committed himself, his kingdom and his son to the care” of his English overlord.^[725] Before Ash Wednesday (February 7) he had formally granted to John the right to dispose of young Alexander in marriage, “as his liegeman,” within six years from that date.^[726] On Mid-Lent Sunday, March 4, the boy was knighted by John, “as the king held a festival in the Hospital of S. Bridget at Clerkenwell.”^[727] Later in the year an English army marched to William’s aid. John himself probably led his troops as far as Hexham, where he was on June 27,^[728] and then sent them on to Scotland with instructions which proved sufficient to secure the object of their expedition. They scoured the country till Cuthred fell into their power; and the struggle of the old Scottish royal house against the “modern kings” ended, for a time at least, with the hanging of its champion by English hands.^[729]

Meanwhile, John had never lost sight of his plans for a renewal of the war with France. The first need of course was money. It was probably in the hope of finding some additional sources of revenue which could be claimed for the Crown that on his return from Ireland he ordered an inquiry into all assizes of novel disseisin which had been held during his absence, and also into the right of presentation to, and actual tenancy of, all ecclesiastical benefices throughout the country.^[730] An inquest into the services due from the knights and other tenants-in-chief in every shire was ordered in the same year or early in the next;^[731] and an inquest concerning escheated honours and the services due from them was set on foot shortly afterwards.^[732] In 1211 “the king of France seized all the English ships that touched his shores, and therefore”—says the Dunstable annalist—“the king of England seized many men of the Cinque Ports”;^[733] a statement which we can only suppose to mean one of two things: either

that John suspected some of the ships to have been willing prizes, or that he was dissatisfied with the way in which his sailors had executed, or failed to execute, some order which he had given for retaliation. In either case, however, it is clear that he made his displeasure a ground for further exactions from the leading men of the southern coast towns.

Of far greater moment than the desultory skirmishes between the sailors of England and France was the scheme of European coalition against Philip which John had been gradually building up during the past ten years. One of the most important elements in his political calculations throughout those years was the course of events in Germany. The death of the Emperor Henry VI. in September 1197 had been followed by a disputed election to the imperial crown, the late Emperor's brother, Philip of Suabia, claiming it for himself against the candidate chosen by the majority of the electors, Otto of Saxony, a son of Duke Henry the Lion and Maud, daughter of Henry II. of England.^[734] The Suabian prince was backed by his powerful family connexions, including the duke of Austria, son and successor of Richard Cœur-de-Lion's old enemy Leopold. Otto's youth had been passed in exile at the court of his Angevin grandfather, and he was a special favourite of his uncle Richard, who granted him first the earldom of York and afterwards the county of Poitou, and whose influence with some of the princes of the empire had had a share in procuring him their votes. It was, therefore, obvious policy for his rival and the king of France to make common cause against him and his kinsman of England. A treaty of alliance between the two Philips was signed on June 29, 1198.^[735] In 1200 Otto sent his two brothers to demand from John a renewal of the investiture of York and of Poitou, and also—if we may believe Roger of Howden—two-thirds of Richard's treasure and all his jewels, which he said Richard had bequeathed to him. His assertion was correct with regard to the jewels, but the other claims are so unreasonable that it is difficult to believe that they can have had any justification.^[736] John, however, had an answer ready for all these demands. The envoys did not reach him till after the treaty of Gouletton (May 1200) was signed, and by that treaty he was pledged to give no help of any kind to Otto without the consent of the French king.^[737] This excuse, indeed, was only temporary; in June 1201 the Pope recognized Otto as lawful emperor-elect;^[738] and though John was at that very moment renewing his treaty with

France, the uncle and nephew speedily drew together. Throughout the vicissitudes of the next six years John never lost sight of the community of their interests; he constantly showed his sense of it by letters and presents, by loans and gifts of money, and by grants of trading and other privileges in England to the German and Flemish cities which supported Otto,^[739] as well as by undertaking the custody of at least one prisoner of importance who belonged to the party of Otto's rival.^[740] Otto, whose fortunes were gradually rising throughout these years, was so fully alive to the value of the English alliance that in May 1207 he came to London for a personal interview with John. It is said that on this occasion Otto promised to conquer the realm of France and make it over to his uncle, all except three cities, Paris, Etampes and Orléans, which Philip Augustus had once jestingly said he would bestow upon Otto himself if ever the latter became emperor. John gave his nephew six thousand marks,^[741] and received from him the symbolical gift of a great golden crown.^[742] As yet, indeed, Otto was only emperor-elect, and had the conquest of his own realms to complete ere he could attempt that of France. But his fortunes were steadily rising; his rival, Philip of Suabia, was slain in the following summer;^[743] and on October 4, 1209, just at the moment of his uncle's triumph over the English Church, he was crowned by the Pope at Rome.^[744]

Within a year, however, Pope and Emperor had quarrelled, and Otto was excommunicated.^[745] This was, of course, an additional bond of union between him and John. At the same time, a kinsman of both princes was setting the Pope and the French king alike at defiance. Count Raymond of Toulouse, the husband of John's sister Joan, had from the outset favoured the heretics who for the last two years had kept southern Gaul in turmoil; in 1211 he openly allowed them to concentrate in his capital city, and headed their resistance to the forces which Innocent and Philip had sent against them under Simon de Montfort. Toulouse was besieged, but John and Otto kept their kinsman so well supplied with the means of defence and sustenance that the "crusaders" at last grew hopeless of taking it and raised the siege. Otto had answered the Pope's excommunication by conquering Tuscia, Apulia and Calabria; whereupon Innocent published another sentence, deposing him from his imperial office and his German kingdom, and bidding the princes of the empire elect a new sovereign in his stead.

1210-1211

John, “with such a comrade,” grew bolder than ever.

1211–1212

[746] The common interest of the three excommunicate kinsmen obviously lay in crushing France, the ally of the Pope; and the moment seemed at hand for the fulfilment of John’s highest hopes. John and Raymond in the south, John and Otto in the north and east, might hem in Philip Augustus completely, if the princes of the border-land of France and Germany—Boulogne, Flanders, the Netherlands, Lorraine—could be so won over as to insure their co-operation in the plans of the uncle and nephew for the conquest and dismemberment of the French kingdom. To this end John’s utmost powers of diplomacy had been devoted for many years past; and in the case of most of these princes the end was now gained. In the autumn of 1211 Reginald of Boulogne, whose policy had long been wavering, quarrelled openly with Philip and took refuge with his kinsman the count of Bar; [747] in May 1212 he was in England, pledging his homage and his service to John. By the middle of August the counts of Bar, Limburg, Flanders and Louvain were all pledged to John’s side. [748] John himself was meanwhile preparing for an expedition to Gascony; on June 15 thirty-nine English towns were ordered to furnish contingents of men “ready to cross the sea with the king in his service when he should require them.” [749]

A month later, however, the destination of his armament was changed. Just as his plans were ripe for an attack upon France, they were checked once more by the necessity of guarding his realm against the Welsh. Before the close of 1211 Llywelyn—provoked, as he declared, by “the many insults done to him by the men of the king”—had leagued himself with his former rivals in South Wales and taken “all the castles which John had made in Gwynedd, except Dyganwy and Rhuddlan.” [750] And this time the league was more likely to hold together than was usually the case with alliances formed by the Welsh princes either with their neighbours or with each other; for a new hope had dawned upon the Welsh people. The tidings of John’s excommunication and deposition by the Pope had penetrated into Wales; and in this matter the Welsh, although of all Christian nations probably the least amenable to ecclesiastical discipline and the least submissive to ecclesiastical authority, became full of zeal to do the utmost that in them lay towards carrying out the Papal sentence against their overlord and conqueror. “They with one

1212

consent,” says their own chronicler, “rose against the king, and bravely wrested from him the midland district which he had previously taken from Llywelyn.”^[751] The version of the English chroniclers is that the Welsh invaded the English border, took some castles and beheaded their garrisons, carried off a mass of plunder, and then burned everything and slew every man that they could lay their hands on.^[752]

It was clear that an end must be made of this Welsh trouble before John could venture across the Channel. He changed his plans with his usual promptitude. In July the king’s escheators throughout England were ordered to see that the escheats in their custody should furnish each a certain number of carpenters and other labourers provided with proper tools, and with money enough to carry them to Chester. Writs were also issued to Alan of Galloway bidding him send a thousand of his “best and bravest men,” to William the Marshal, Bishop John of Norwich, and others of the king’s liegemen in Ireland, and to the tenants by serjeanty throughout England, requiring their personal attendance; the place of muster for all alike being Chester, and the appointed date Sunday, August 19.^[753] On August 16, however, the king sent out from Nottingham a notice that he was unable to be at Chester on the day fixed, and that the muster would not take place.^[754] The orders which he issued next day indicate that he was contemplating a diversion by sea, part of the fleet being ordered to sail from Chester, coast along North Wales, and “do as much harm to the enemy as possible,” while another part was to assemble at Bristol.^[755] He probably meant to await the result of these movements, as well as of some negotiations which he was carrying on with the South Welsh chieftains,^[756] before deciding whether his main advance should be made by way of North or South Wales.

The host finally mustered at Nottingham in the second week of September.^[757] The chivalry of England gathered round the king “in such array and in such numbers,” says a contemporary, “that no man of our day remembers the like.”^[758] John’s first act on reaching the muster-place, “before he tasted food,” was to hang twenty-eight of the hostages whom he had taken from the Welsh in the previous year.^[759] But “suddenly God brought his counsel to nought.”^[760] As he sat at table there came to him a breathless messenger from the king of Scots, followed by one from the Princess Joan of Wales, John’s daughter

Sept. 9–15

and Llywelyn's wife. Both messengers brought letters whose contents, they said, were weighty and secret. When the two letters were read, their purport proved to be almost identical. William and Joan alike warned the king that his barons were preparing to act upon the papal sentence which absolved them from their allegiance, and, if he persisted in leading them to war, either to turn and slay him themselves, or deliver him up to death at the hands of his Welsh enemies.^[761] Such a warning, coming at the same instant from two such different quarters, was not to be lightly put aside. It was emphasized by the sudden disappearance of two barons, Eustace de Vesci and Robert FitzWalter, who at once secretly withdrew from the host.^[762] John could hardly doubt the significance of their departure at such a moment. He dismissed his army and moved by slow stages back to London.^[763]

The month which had elapsed between John's order countermanding the muster at Chester and his return to Nottingham had been spent by him in a progress through the north;^[764] and it was probably during this time that there came to his ears a prediction concerning him spoken by one Peter, variously described as "of Pontefract" or "of Wakefield." This Peter was "a simple countryman," who lived on bread and water, and was counted among the people for a prophet. He foretold that on the next Ascension Day John should cease to be king. Whether John was to die, or to be driven from the land, or to abdicate, Peter could not say; he only knew that it had been revealed to him in a vision that after the king had reigned prosperously for fourteen years, neither he nor his heirs should rule any more, "but one who is pleasing to God."^[765] John, on hearing of this prophecy, laughed it to scorn; but when Peter was found to be wandering all over the north country publishing his supposed vision wherever he went, some of the king's friends deemed it prudent to take the prophet into custody.^[766] He was brought before John himself, who asked for more explicit information as to his own impending fate. Peter only replied, "Know thou of a surety that on the day which I have named, thou shalt be king no more; and if I be proved a liar, do with me as thou wilt." "According to thy word, so be it," answered John; and he sent the man to be imprisoned at Corfe.^[767] This precaution, however, defeated its own end; Peter's captivity in a royal dungeon gave to him and his prophecy a new importance in popular estimation; his words were repeated far and wide, and believed "as if they had been spoken by a

voice from Heaven.”^[768] The dread which they are said to have inspired in the king himself^[769] proves nothing as to whether, or how far, he shared the superstitious credulity of his people. Apart from all such questions, he had obviously a sufficient reason for alarm in the fact that the general acceptance of a political prophecy naturally tends to work its fulfilment.

Other influences were working in the same direction. Even without the special warnings which he had received at Nottingham, John must have been well aware that he had, as Roger of Wendover says, “almost as many enemies as he had barons.”^[770] The question was only how soon their silent hate would break out in open defiance, and whether he could once more terrify or beguile them into submission before the smouldering embers of their discontent were kindled into a general conflagration by Innocent’s anathema and Peter’s prophecy. On reaching London he addressed to all those whose fidelity he suspected a new demand for hostages, “that he might prove who would and who would not obey his orders.” The response showed that he was even yet stronger than he himself had dared to believe. From many of these men he had already had hostages in his keeping for years; several of them had suffered in their family relations a far deeper injury at his hands; yet once again, at his bidding, they gave up to him sons, nephews, kinsmen, “as many as he would, not daring to resist his commands.”^[771] Eustace de Vesci and Robert Fitz-Walter alone refused all purgation, and fled, the one to Scotland, the other to France; their castles were seized, their lands confiscated, and themselves outlawed.^[772] With his own servants and clerks the king dealt in yet more summary fashion; those among them whom he suspected were arrested and cast into prison.^[773] Fresh humiliations were heaped upon the clergy. The Cistercians are said to have been mulcted of twenty-two thousand pounds in punishment for the help which they were supposed to have given to the enemies of Raymond of Toulouse;^[774] and all the English clergy, both regular and secular, were forced to set their hands to a deed whereby they renounced all pecuniary claims against the king, and declared that all the money which he had had from them since his accession was a free and voluntary gift.^[775] On the other hand, John was taking some pains to conciliate the people. He checked the severity of the Forest administration. He forbade the extortions practised by his officers on merchants and pilgrims. “Moreover, he is said to have showed mercy on widows, and done what in him lay to promote

peace in temporal affairs.” Sternness and conciliation alike did their work. Again “the land kept silence”;^[776] and it seems that the first sound which broke the silence was a declaration of the barons in favour of the king.

Some time between the summer of 1212 and the spring of 1213 two remarkable letters were written by John, the one to his chief justiciar in Ireland, Bishop John of Norwich, the other to Earl William the Marshal.^[777] Both letters deal with the same subjects, and they were evidently despatched both at once. The king greatly commends the bishop’s discretion in the matter of “the oath of fealty lately sworn to us by our barons of Ireland, for the greater safety of ourself and our realm,” for which, he says, he is sending letters of thanks to them all. He expresses the warmest gratitude to William the Marshal, “as their spokesman in this matter, and also as the one from whose suggestion and sole desire we doubt not this thing took its rise, and to whom we are indebted for the ready disposition and devotion of all the rest.” He states further that he is sending to the bishop, the earl, and the other barons of the March “copies of the letters patent which our magnates of England have drawn up for us,” and he requests that the barons of Ireland will “set their seals to letters of similar tenour, and send them to us.” Lastly, he alludes to some advice which the Marshal and the other lay barons in Ireland “have sent to us about making peace with the Church,” and desires that they will “provide, by the common counsel of our faithful subjects in those parts, a form whereby peace may be made sure without injury to our liberties and rights,” and transmit it to him. “See you to it,” he adds to the justiciar, “that this be done.”^[778]

We can hardly doubt that there is some connexion between these letters and another yet more remarkable document, whose date must lie between Pandulf’s visit in August 1211 and the spring of 1213. This is a manifesto addressed “to all faithful Christians” by “the whole of the magnates of Ireland,” with William the Marshal and Meiler Fitz-Henry at their head, expressing their “grief and astonishment” that the Pope should propose to absolve the subjects of the king of England from their allegiance, and declaring their approval of John’s political conduct and their determination to “live and die with their king.”^[779] This manifesto may have been drawn up when the barons of the Irish March, at the Marshal’s suggestion, renewed their fealty to John; or it may have been their answer to John’s request that they would set their hands to and transmit to him letters patent

similar to those which, he says, had been “made for him” by the magnates of England. There is, indeed, another possible alternative. On more than one occasion, and by more than one chronicler, John is charged with forging letters and other like documents. The letter ascribed to the magnates of Ireland and the letters—of which nothing is now known—sent to them by John as having been issued by the magnates of England may therefore have been both alike forgeries. There is, however, nothing to indicate that such was the case. If it was not, then it seems that the barons of England, who in the autumn of 1212 were believed to be on the verge of rebellion or something worse, were yet so weak, as well as so false, that John could force from them a collective declaration in writing which, whatever its precise import may have been, was evidently a declaration in his interest and for his advantage; and that in the same crisis the barons of the Irish March, acting under the guidance of the noblest and wisest man in their whole order, ranged themselves boldly on the side of John against all his enemies. The king, to whom for a moment ruin had seemed so near that he himself gave way to despair, was within a few months, perhaps even a few weeks, outwardly more than ever supreme.

On the other hand, those same loyal barons in Ireland who seem to have so emphatically declared their resolve to stand by the king in resistance to the papal sentence of deposition had yet urged upon him the importance of procuring a withdrawal of that sentence by endeavouring to make peace with the Church. Whether they did, according to John’s request, draft a form of proposals to be laid before the Pope, there is nothing to show; but it is certain that in November John despatched to Rome four envoys charged to offer his acceptance of the terms which Pandulf and Durand had proposed fifteen months before. [\[780\]](#)

John, in fact, knew well how unsubstantial his apparent supremacy was, and how hollow were the foundations on which it rested. He knew that if he wished to prevent the fulfilment of Peter’s prophecy, he must now disarm once for all, and secure permanently for his own interest, some one at least of the various enemies, or groups of enemies, against whom he had been struggling for six years at such overwhelming odds. By the end of 1212 the signs of the times were beginning to point out who this one must be; by the early spring of 1213 there could no longer be any doubt on the point. The fortunes of war in

Germany and in southern Gaul had shattered John's hopes of crushing Innocent and Philip Augustus both at once. In Aquitaine Simon de Montfort and his "crusaders" were gradually winning their way against the Albigenses, and Raymond of Toulouse was practically ruined. In Germany the young King Frederic of Sicily had at the Pope's instigation been elected to the empire in Otto's stead. Otto sought to regain his footing in the country by marrying the daughter of his former rival, Duke Philip of Suabia; but the bride died a few days after

August

her marriage;^[781] and in November (1212) the political league which Innocent was building up against Otto and John was completed by a treaty of alliance between Frederic and Philip Augustus.^[782] Triumphant everywhere on the continent, Innocent resolved to make an end of matters with John. In the winter of 1212 Stephen Langton and the bishops of Ely and London carried to Rome in person their complaints against their sovereign, and their entreaties that such a state of things should be suffered to continue no longer. In January 1213 they returned to the French court accompanied by Pandulf, and bringing with them a letter from the Pope to the French king.^[783] Innocent in this letter solemnly laid upon Philip, for his soul's health, the task of expelling the English king from his realm, and bade him assume in John's stead the sovereignty of England for himself and his heirs for ever.^[784] It is said that the Pope wrote at the same time to the other sovereigns and princes of Europe, bidding them join under Philip's leadership in a sort of crusade against John, and granting to all who should take part in this expedition the same privileges, temporal and spiritual, which were conferred on pilgrims to the Holy Sepulchre.^[785]

These letters and the papal decree for John's deposition were publicly read to the French bishops, clergy and people in a council assembled for that purpose at Soissons on the Monday in Holy Week, April 8.^[786] It was no new idea that the papal mandate suggested to Philip Augustus. For a whole year at least he had been contemplating the conquest of England and the establishment of his eldest son, Louis, upon its throne; in April 1212 Louis had already arranged the terms on which he would receive the homage of the English barons and the political relation in which he was to stand towards his father after his own coronation in England.^[787] To Philip and Louis the Pope's commission was merely the signal that their longed-for hour had come. "Then the king of the French, hearing and receiving the

thing which he had long desired, girded himself up for the fight,” and bade all his men, on pain of “culvertage,” be ready to meet him at Rouen on April 21, the first Sunday after Easter;^[788] and ships, victuals, arms and men were rapidly gathered together in answer to his call.^[789]

Still more prompt and vigorous were John's preparations for defence. He seems to have begun by ordering that all English ships should return to the ports to which they severally belonged not later than the first Sunday in Lent, March 3. On that day he despatched writs to the bailiffs of the seaport towns, bidding them make out a list of the vessels which they found in their respective ports capable of carrying six horses or more, and direct the captains and owners of all such vessels, in his name, to bring them to Portsmouth at Mid-Lent (March 21), “well manned with good and brave mariners, well armed, who shall go on our service at our expense.”^[790] He next bade the sheriffs summon all earls, barons, knights, freemen and sergeants, whosoever they were and of whomsoever they held, who ought to have arms or could get them, and who had done him homage and fealty, to the intent that, “as they love us and themselves and all that is theirs, they be at Dover at the close of Easter next, well prepared with horses and arms and with all their might to defend our head, and their own heads, and the land of England. And let no man who can bear arms stay behind, on pain of culvertage and perpetual servitude; and let each man follow his own lord; and let those who have no land and can carry arms come thither to take our pay.” Each sheriff was to see that all sales of victuals and all markets within his sherifffdom “followed the host,” and that none were held elsewhere within his jurisdiction. He himself was to come to the muster “in force, with horses and arms,” and to bring his roll, whereby the king might be certified who had obeyed his summons and who had stayed behind.^[791]

1213

England responded as quickly and readily as France to the call of her king; the threat of “culvertage” seems to have acted upon the Englishmen of John's day as the threat of being accounted “nithing” had acted upon their forefathers in the days of William Rufus and Henry I.; they came together at the appointed places—Dover, Faversham and Ipswich—in such crowds that in a few days, despite John's precautions, the supply of food became insufficient, and the marshals of the host found it needful to dismiss the greater part of the light-armed troops, retaining only the knights, sergeants

and better-armed freemen, with the cross-bowmen and archers. The picked body thus left, which was finally reviewed by the king on Barham Down, near Canterbury, was still so numerous that a patriotic chronicler declares, “If they had been all of one heart and mind for king and country, there was no prince under heaven against whom they could not have defended the realm of England.”^[792] How many of the barons in the host had come to it with the intention of going over to Philip as soon as he landed, it is useless to inquire; perhaps the only one whom we can with full confidence acquit of any such suspicion is William the Marshal.^[793] The king’s plan, however, was that his fleet should intercept the invaders and “drown them in the sea before ever they could set foot on the land”; and as his ships were more numerous than Philip’s, the plan had a good chance of success.^[794]

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But the first check to Philip’s enterprise was to come from another quarter. Even if we could perceive no outward indication of the Pope’s motives in giving his commission to the French king, we should still find it hard to believe that so far-seeing a statesman as Innocent III. seriously contemplated with approval the prospect of a French conquest of England. At the moment, indeed, France was the most efficient political instrument of the Papacy; but it could scarcely be a part of the papal policy to give her such an overwhelming predominance as she would have acquired by the annexation of England to her crown. England, no less than France, had her place in the European political system, of which Innocent looked upon himself as the director and the guardian; and the extinction of England as an independent state would have destroyed the balance of powers which it was a special function of the Papacy to maintain with the utmost care, and whose preservation was of great importance to Innocent for carrying into effect his own political designs. There can hardly be a reasonable doubt that he made use of Philip’s ambition for a purpose of his own, a purpose which was really the direct opposite of that which Philip had in view—the purpose, not of crushing England, but of winning her back to the Roman alliance, and thus securing her as a counterpoise, in case of need, to the power of Philip himself.^[795] In a word, Innocent and John had simultaneously recognized the fact that, in the interest of both alike, the time for their reconciliation had come.

John, as we have seen, had paved the way by offering, at the close of 1212, his acceptance of the terms proposed by the Pope in 1211. Innocent's reply to this offer was written on February 27, 1213. Although, he said, he considered himself no longer bound by his own terms, since the king had rejected them, yet for the sake of peace he was willing to abide by the form of agreement thus again proposed, if before June 1 the king would, by an oath sworn in his presence by four barons, and by letters patent addressed to the archbishop of Canterbury and the other exiled bishops, promise to keep it faithfully and fulfil it effectually, "according to the expositions and explanations which we have thought good to be set forth for the removal of all scruple and doubt." In May, when all England was expecting the attack of Philip Augustus, three of John's messengers brought back from Rome this letter, together with a copy of the form originally committed to Pandulf and Durand, and the "expositions and explanations" of the arrangements now required on both sides to insure its execution.^[796] All these documents seem to have been communicated to Pandulf in a private interview which he had with the Pope on the eve of his departure from Rome in January;^[797] at any rate he was well aware of their contents and fully instructed how to act in consequence. Just as the French fleet was ready to sail, he in the Pope's name forbade all further proceedings against England till he should have once more appealed to John and learned whether he would yet repent.^[798] Close upon the return of the English envoys from Rome followed two Templars, who landed at Dover with a message from Pandulf to the king, requesting an interview. It took place at Dover on May 13. In presence of king and legate, the earls of Salisbury, Warren, and Ferrars and the count of Boulogne swore in John's behalf the oath of security required by Innocent; and on the same day John published by letters patent the agreement concluded between himself and Pandulf in the form which the Pope had prescribed.^[799]

Two days later—on Wednesday, May 15—king and legate met again, "with the great men of the realm," in the house of the Knights Templars at Ewell, near Dover. There, by a charter attested by himself, the archbishop of Dublin, the chief justiciars of England and Ireland, seven earls (of whom the Marshal was one), and three barons, the king "granted and freely surrendered to God and His holy Apostles Peter and Paul, and to the Holy Mother Church of Rome, and to Pope Innocent and his Catholic

successors,” the whole realm of England and “the whole realm of Ireland,” with all rights thereunto appertaining, to receive them back and hold them thenceforth as a feudatary of God and the Roman Church. He swore fealty to the Pope for both realms in Pandulf’s presence, promised to perform liege homage to the Pope in person if he should ever have an opportunity of so doing, and pledged all his successors to a like engagement, besides undertaking to furnish the Roman see with a yearly sum of one thousand marks—seven hundred for England and three hundred for Ireland.^[800]

One English chronicler says that John, in performing this homage, acted “according to what had been decreed at Rome.”^[801] Another, not less generally accurate and well informed, says that John “added it of his own accord” to the agreement already completed.^[802] On the whole, it is probable that this latter account of the matter is the correct one, at least thus far, that the scheme originated not at Rome, but in England. Not much weight can indeed be attached to the king’s own assertion, made in the charter of homage itself, that the act was a voluntary one, which he had done by way of penance and humiliation for his offences, “not urged by force nor compelled by fear, but of our own good free will and by the common counsel of our barons”,^[803] nor is the accuracy of this version of the transaction proved by the fact that Innocent accepted it without remark in his reply to John’s letters on the subject,^[804] and that no extant document emanating from the court of Rome contains the slightest indication that the Pope had ever demanded or suggested any proceeding of the kind. There is, however, no perceptible reason why Innocent should have required of John a penance of so extraordinary a character, nor why, if he did require it, either he or his royal penitent should make a secret of his having done so. On the other hand, John had a very cogent reason for “adding something of his own” to the agreement between himself and Innocent. If he was to give up all for which he had been fighting—and fighting successfully—against the Pope and the Church for the last six years, he must make quite sure of gaining such an advantage as would be worth the sacrifice. Mere release from excommunication and interdict was certainly, in his eyes, not worth any sacrifice at all. To change the Pope from an enemy into a political friend was worth it, but—from John’s point of view—only if the friendship could be made something much more close and indissoluble than the ordinary official relation between the Pope and every Christian sovereign.

He must bind the Pope to his personal interest by some special tie of such a nature that the interest of the Papacy itself would prevent Innocent from casting it off or breaking it. For a sovereign of John's character no additional sacrifice would be involved in the device which he actually employed for this purpose. To outward personal humiliation of any kind John was absolutely indifferent, when there was any advantage to be gained by undergoing it. To any humiliation which the Crown or the nation might suffer in his person, he was indifferent under all circumstances. His plighted faith he had never had a moment's hesitation in breaking, whether it were sworn to his father, his brother, his allies, or his people, and which he would break with equal facility when sworn to the supreme Pontiff; moreover, he took the precaution of inserting in his charter a saving clause which he could easily have interpreted, had occasion ever arisen, so as to reduce the whole transaction to a mere empty form.^[805] There seems, in short, to be good reason for believing that John's homage to the Pope was offered without any pressure from Rome, and on grounds of deliberate policy.^[806]

How far the credit or discredit—whichever it be—of that policy belongs to John is, however, a question not easily solved. Two years later, the English barons seem to have claimed the credit for themselves. We are told that they besought the Pope, "as he was lord of England," to take their part against John, "since he well knew that they had at his command boldly opposed the king in behalf of the Church's liberty, and that the king had granted an annual revenue to Rome, and bestowed other honours on the Pope and the Roman Church, not of his own accord, but only out of fear and under compulsion from them."^[807]

This, if correctly reported, is a distinct assertion by the malcontent barons that they had deliberately chosen to set up the Pope as temporal overlord of their country, and that it was pressure from them which had compelled John to do him homage as such. The truth probably lies half-way between this version and that of the king. Whether the "common counsel of the barons" was given spontaneously to John and accepted by him, or whether it was merely a response to a proposal which he had laid before them, there can be little doubt that each party adopted the scheme in the hope of turning it to account against the other party. That on the side of the barons this hope proved utterly delusive, while on the side of John it was completely

realized, simply shows once more how far less than a match was the collective sagacity of the barons for the single-handed dexterity of the king.

It was not till many years later that a great historian, who was also a vehement partisan, denounced John's homage to the Pope as "a thing to be detested for all time."^[808] The Barnwell annalist, writing at the time of the event, tells us indeed that "to many it seemed ignominious, and a heavy yoke of servitude." But the action of all parties at the moment was a practical acknowledgement of their consciousness that, as the same annalist says, John "by this act provided prudently both for himself and for his people; for matters were in such a strait, and so great was the fear on all sides, that there was no more ready way of evading the imminent peril—perhaps no other way at all. For when once he had put himself under Apostolical protection, and made his realms a part of the patrimony of S. Peter, there was not in the Roman world a sovereign who durst attack him, or invade them; inasmuch as Pope Innocent was universally held in awe above all his predecessors for many years past."^[809]

John had, in fact, at one stroke cut the ground from under the feet of all his enemies both at home and abroad. The people resumed their ordinary attitude of loyalty on Pandulf's assurance that it was once more, and more than ever, sanctioned by the Church. The traitor barons found themselves without a cloak for their treason, and were reduced to send out letters patent repudiating all connexion with the French king.^[810] Philip found himself without an ally, and without an excuse for his enterprise. The believers in Peter of Wakefield, indeed, still looked forward with a vague expectation to Ascension Day. But the king himself could meet its dawn

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without fear. He had ordered his royal tent to be set up in a large open field, and caused his heralds to proclaim a general invitation to all who were within reach, to come and spend the festival day in stately festivities with him. "And a right joyous day it was, the king taking his pleasure and making merry with the bishops and nobles who had come together at his call."^[811] Still Peter's disciples were not convinced; some of them took up the idea that the prediction might refer not to the ecclesiastical but to the civil anniversary of John's coronation, May 27, which in 1213 was four days after Ascension Day. This anniversary, however, passed over likewise without any mishap. Then the wise and the foolish alike began to see that John had prevented a literal fulfilment of the prophecy by lending

himself to a figurative one. He had “ceased to be king” by laying his crown at the feet of Pandulf, to take it back again on conditions which unquestionably helped to fix it, for the time at least, more securely than ever on his brow. The scapegoat of all parties was the unlucky prophet himself. Next day he and his son, who had been imprisoned with him, were tied each to a horse’s tail, dragged thus from Corfe to Wareham, and there hanged.
[\[812\]](#)

Pandulf meanwhile had returned to France, and commanded Philip, on pain of the Pope’s displeasure, to lay aside all thoughts of invading England and go home in peace. Philip at first indignantly refused to abandon a scheme which, he said, he had planned at the Pope’s instigation, and for which he had already spent more than sixty thousand pounds.[\[813\]](#) But he dared not go on in the teeth of the papal prohibition; so he turned his wrath upon the one great feudatary of his realm who had refused to take part in the projected invasion, Count Ferrand of Flanders. Ordering his fleet to sail round as quickly as possible to Swine, the king dashed into Flanders at the head of all his forces. Ferrand besought help of John, with whom he was already in alliance; and John at once despatched five hundred ships, carrying a large body of horse and foot under the command of his half-brother Earl William of Salisbury and the counts of Holland and Boulogne.
[\[814\]](#) They sailed on Tuesday, May 28, intending to land at Swine and march across the country to join Ferrand; but a contrary wind delayed them so that they did not reach Swine till Thursday, the 30th; and then, to their amazement, they found the harbour occupied by the French fleet, which, however, they soon discovered to be unguarded save by a few seamen, all the troops having gone ashore to ravage the neighbourhood. Salisbury at once ordered an attack; the French sailors were speedily overcome; three hundred ships laden with provisions were set drifting towards England, a hundred more were rifled of their contents and then set on fire. “Never came so much wealth into England since King Arthur went to conquer it,” says a contemporary poet.[\[815\]](#) Next day Count Ferrand came to meet his allies, and renewed his league with John.[\[816\]](#) On the Saturday—Whitsun Eve—the earls disembarked their troops and advanced to attack the French at Dam. The overwhelming numbers of the enemy, who were headed by King Philip himself, compelled them to retreat. Salisbury, however, not only escaped to his ships, but brought all his prizes safe to England;[\[817\]](#)

while Philip was so mad with rage at the disaster to his fleet that he ordered the remnant of it to be burnt.^[818] So far as England was concerned, his expedition was at an end.

John at once resolved that the fleet and the host which had been gathered for the defence of England should be used for an attack upon France. His plan was, while strengthening Ferrand's hands so as to keep Philip busy in Flanders, himself to land with an army in Poitou, and thus place the French kingdom between two fires. At the end of June he reassembled his forces at Porchester, and again despatched William of Salisbury to Flanders with further reinforcements and large sums of money. The magnates, however, refused to accompany the king over sea till he was absolved from excommunication.^[819] Their excuse was transparently false; his public absolution was indeed committed to Archbishop Stephen, and therefore deferred till Stephen's arrival in England; but Pandulf had, in the Pope's name, declared him reconciled to the Church. It could only be from political motives that men who had without protest marched with the excommunicate king against Scotland, Ireland and Wales, and gathered year after year at his festival banquets, now suddenly became more punctilious about a matter of ecclesiastical discipline than Innocent III. himself. It was, however, no moment for quarrelling with them openly; and their excuse, such as it was, soon ceased to exist.

King and legate had been rapidly pushing on the arrangements for the return of the exiles,^[820] and in June or July Archbishop Stephen and four of the bishops landed at Dover.^[821] On S. Margaret's Day, Saturday, July 20, they were received by the king at Winchester.^[822] He seems to have gone forth to meet them on the crest of the hill which lies to the east of the city.^[823] He threw himself at the primate's feet, bidding him welcome, and with tears imploring his mercy; "and the prelates and all the rest, when they saw this, could not refrain from weeping." The procession made its way to the Old Minster and entered the chapter-house; the king swore on the Gospels "that he would cherish, defend and maintain the holy Church and her ordained ministers; that he would restore the good laws of his forefathers, especially S. Edward's, rendering to all men their rights; and that before the next Easter he would make full restitution of all property which had been taken away in connexion with the Interdict." This oath he seems to have

repeated publicly at the door of the church; Stephen then formally absolved him, led him into the church, and celebrated mass in his presence, accepting his offering and giving him the kiss of peace; “and there was great joy among the people.”^[824]

Having at last made up his mind to a formal reconciliation with both Pope and primate, John showed no signs of a wish to evade any part of its terms. During the past three months order after order had been issued in his name for carrying into effect the provisions of his agreement with Pandulf. The outlawry of the clergy had been revoked at once, on May 15, and this revocation was repeated on June 13.^[825] Two laymen—Eustace de Vesci and Robert Fitz-Walter—who had gone into exile, not in company with any of the bishops nor for their sake, but on independent grounds, in the autumn of 1212, had been specially mentioned by name in John’s agreement with the Pope, and promised reinstatement in their lands and in the king’s favour. Safe-conducts were issued to these two barons on May 27, and orders for the restitution of their property on July 17, 19, and 21.^[826] For the bishops something more than mere restitution was required; they, or the Pope and Pandulf for them, claimed indemnification as well; and the terms of the indemnity were difficult to decide. John seems to have proposed that they should be decided by a kind of general inquest; on the day after his absolution he bade all the sheriffs in England cause a July 21 deputation of four men and the reeve from each township to be at S. Albans on August 4, “that through them and his other ministers he might ascertain the truth concerning the damages suffered by the several bishops, and what had been taken from them, and how much was due to each.” Whether such an inquisition was actually held does not appear; but early in August the justiciar and the bishop of Winchester met the primate, the other bishops and the magnates in a great council at S. Albans; there, in the king’s name, peace was proclaimed to all; the observance of King Henry’s laws and the disuse of evil customs were strictly enjoined; and the sheriffs, foresters, and other officers of the Crown were warned, “as they valued their limbs and their lives,” to commit no more extortions and wrongs, “as they had been wont to do.”^[827]

John meanwhile had returned to the coast of Dorset, where the host had apparently been ordered to reassemble, with the intention of sailing for Poitou. In view of his own expected absence from England, he is said to

have committed the government to the justiciar and the bishop of Winchester, bidding them “order all its affairs with the advice of the archbishop of Canterbury.”^[828] The king’s departure, however, now met with a new series of checks. First the knights came to him in a body and protested that the months which had elapsed since they assembled for defence against the French had consumed all their money, so that they could not possibly follow him any farther unless he would pay their expenses. This he refused to do.^[829] The barons of the north were the next recalcitrants; when called upon to accompany him over sea, they “with one mind and determination refused, asserting that according to the tenure of their lands they were not bound to him in this; besides that they were already too much worn out and impoverished by expeditions within the realm.”^[830] The angry king embarked with his household on August 5 or 6, and sailed to Jersey; but finding that no one followed him thither he soon came back,^[831] in a mighty rage, “cursing the day and hour when he had consented to the peace, and declaring that he had been deceived, and made a gazing-stock for nothing.”^[832] His mercenaries and foreign auxiliaries were still a formidable host; and with these he set out for the north, “to bring back the rebels to their obedience.”^[833] He seems to have landed at Corfe on August 9; he began his northward march from Winchester on the 16th, reached Wallingford on the 25th, and Northampton on the 28th.^[834] On the 25th Archbishop Stephen was in London, presiding over a great council in S. Paul’s Cathedral.^[835] Thence he hurried away in pursuit of the king; he overtook him at Northampton, and remonstrated vigorously against John’s plans of vengeance upon the northern barons, telling him he would bring contempt upon the oath which he had sworn before his absolution if he made war upon any man without a legal sentence. John “with a great clamour” declared that he would not put off the business of his realm for the archbishop, who had no concern with matters of lay jurisdiction; and early next morning he set out, “in a furious temper,” for Nottingham. The archbishop followed him, and threatened that unless the project were at once given up he would excommunicate every man, save the king himself, who should take part in any military expedition so long as the interdict continued in force; nor could John shake him off till he had appointed a day for the accused barons to come and stand their trial in his court.^[836]

Characteristically, John behaved as if unconscious of defeat. He carried out his progress through the north in peaceable instead of warlike guise, and did not return to London till the end of September.^[837] His arrival there was timed to coincide with that of the papal legate who came as the specially appointed minister of England's restoration to the communion of the Church, and whose authority would for the time supersede that of the primate. On September 27 Cardinal Nicolas of Tusculum landed in England.^[838] On the 30th he met the king, bishops and barons at a council in London, to discuss plans for a pecuniary settlement between the Crown and the clergy. John offered the bishops one hundred thousand marks down, with security for the payment before next Easter of any damages in excess of that sum which might be discovered on further investigation. The legate urged the bishops to accept this offer; but they preferred to accept nothing till they had prepared their own estimate and could demand the sum total at once; and the king readily consented to the delay. Three days had been spent in the discussion. On the fourth day, October 3, the council reassembled in S. Paul's. At the foot of the high altar, in the sight of clergy and people, the ceremony which John and Pandulf had gone through at Ewell was repeated by John and Nicolas. John resigned his crown into the legate's hands, received it back from him, and swore fealty to him as the Pope's representative; and the charter of homage and tribute, which had been temporarily sealed with wax and delivered to Pandulf, was sealed with gold and finally made over to Nicolas, "for the benefit of the Pope and the Roman Church."^[839]

Still the interdict could not be raised till the settlement between the Crown and the bishops was completed; and another meeting for this purpose was appointed to take place at Reading on November 3. To this meeting all the interested parties came, except the king,^[840] who was at Wallingford, where it seems he had appointed the northern barons to appear before his court on All Saints' Day. The legate was there too, and through his mediation the barons were reconciled to the king and admitted to the kiss of peace.^[841] As John did not show himself at Reading, the bishops went to Wallingford in their turn. By that time John had moved on to Woodstock; but he seems to have returned to Wallingford to meet them for a few hours on November 5,^[842] and repeated his former proposals. These, however, "seemed little to those who had had their castles razed, their

houses levelled with the ground, and their woods cut down”; so that it was decided to refer the matter to the arbitration of four barons. But this arbitration never took place. “All the parties concerned in the matter of the interdict” came together again at Reading on December 6,^[843] and each of the injured persons brought forth a schedule of the amount of his losses and damages; the legate, however, supported the king in his refusal to pay the whole sum at once; and after three days’ deliberation no one received anything at all, except the archbishop and the five bishops who had been in exile beyond the sea, to whom John on December 12 ordered the payment of fifteen thousand marks.^[844] At last it seems to have been agreed that the damages should be investigated by two sets of commissioners acting together, one set appointed by the king, the other by the primate, and that the sum to be paid by the Crown should be fixed—doubtless on the report of these commissioners—by the Pope; and this scheme was carried out in the following year.^[845]

Other questions had arisen in connexion with the settlement between Church and king. There were no less than six vacant sees and thirteen vacant abbeys,^[846] all, of course, in the king’s hands. In July 1213 John issued orders for filling these vacancies in the manner which had been customary under Henry II.; the several chapters were bidden to send delegates, by whom an election was to be made in the king’s presence, wherever he might chance to be.^[847] This arrangement implied a tacit understanding that the delegates were to elect a candidate designated by the king. The bishops seized their opportunity to protest against this practice and claim for the churches their canonical right of free election, subject only to the royal assent, signified by the grant of the regalia. The legate seems to have been, passively at least, on the side of the Crown; but John was anxious to avoid any fresh quarrel with the primate, and he therefore allowed the elections to be left in abeyance till Nicolas should receive instructions about the matter from the Pope. These came at last in a somewhat ambiguous form. Innocent bade Nicolas cause the vacant sees and abbeys to be filled with men “not only distinguished for their good life and learning, but also faithful to the king and useful as helpers and advisers for the welfare of the realm, and appointed by means of canonical election or postulation, the king’s assent being sought thereunto.”^[848] It was obviously possible to interpret this letter as sanctioning, by implication at

least, the claims of the Crown; and Nicolas was quite willing thus to interpret it in John's favour. John, however, knew that no such interpretation would ever be accepted by Langton; and with Langton he had no mind to quarrel at that moment, even though he might have the legate on his own side. He did indeed issue on January 2, 1214, orders for the election of a bishop to Worcester and an abbot to Eynsham, "according to the customs of the realm";^[849] but he seems to have immediately afterwards made an arrangement with the archbishop which satisfied the latter for the time being. On the 12th John signified to Stephen his acceptance of "the form known to us concerning the making of elections, saving our right in all things"; he abandoned his claim to have the elections held only in his own presence, and delegated the power of giving them the royal assent to the ministers who were to have the charge of the realm during his absence beyond the sea; and he closed his letter to the archbishop with the words: "Be assured that there is no controversy between us."^[850] On the 26th he wrote again to Stephen, requesting him to confirm the election of the vice-chancellor, Walter de Gray, to the see of Worcester, and issued orders for elections to five bishoprics and three great abbeys.^[851]

What made both John and Stephen anxious for an agreement on this point was the king's approaching departure for the Continent. Soon after Stephen's arrival in England John had made up his mind that his expedition to Poitou must be postponed till the spring,^[852] and in August (1213) he fixed February 2, 1214, as its approximate date.^[853] Throughout the autumn and winter the fleet was preparing at Portsmouth under the superintendence of William de Wrotham, archdeacon of Taunton.^[854] Arrangements were also in progress for securing the tranquillity of the realm during the king's absence. On June 3 John—according to his own account at Pandulf's desire—had made a truce with the Welsh to last till August 1.^[855] By August 25 he had enlisted the aid of the newly arrived primate as a peacemaker between the English realm and these troublesome neighbours; the wardens of the Marches were authorized to agree to a prolongation of the truce till November 1, on the understanding that at its expiration the archbishop of Canterbury would negotiate with the Welsh on the king's behalf.^[856] Of these negotiations there is no further record; but they seem to have resulted in keeping the Welsh in check for some months at least.

In Ireland and in England John had to provide himself with new vicegerents. In July Bishop John of Norwich resigned the justiciarship of the Irish March to go to Rome on a mission for the king; the archbishop of Dublin was appointed justiciar in his stead.^[857] On October 14 the office of chief justiciar of England was vacated by the death of Geoffrey Fitz-Peter,^[858] who had held it ever since 1198, when he was appointed to it by Richard on the resignation of Hubert Walter. It is impossible to regard Geoffrey as a patriot; had he been one, he could scarcely have held the reins of government under John for fourteen years without coming into open conflict with his master. He was, however, a man of much weight in the land by reason of his noble birth, his great wealth, and his knowledge of law, and also because he was connected by kindred, affinity or friendship with all the great baronial houses. Such a man was necessarily somewhat of a check upon the self-will of John. The king's personal feeling towards his minister found a characteristic expression when he heard of Geoffrey's death: "When he gets to hell," laughed John, "he may greet Archbishop Hubert, whom he is sure to meet there!"^[859] So long as the king was himself in England he could do without any justiciar at all; and accordingly no successor was appointed to Geoffrey for more than three months. John was, however, too cautious to venture upon any glaring abuse of his newly acquired freedom of action^[860] at a moment when it was of the utmost importance for him to conciliate all parties and all classes by every means in his power. The one recorded incident of this period of John's personal government, indeed, looks almost like a dim foreshadowing of one of the most weighty innovations which were to be made by the constitutional reformers of the latter part of the century.

It seems that at the end of October or early in November the tenants by knight-service were ordered to meet the king at Oxford on November 15. On November 7 John sent letters to the sheriffs bidding each one of them cause the knights within his shire to appear as previously directed, with their arms, the barons also in person but without arms, "and"—so ran the writ—"that thou cause to come thither at the same time four discreet men of the shire, to speak with us concerning the affairs of our realm."^[861] This writ is the earliest known instance of an attempt to call into council on "the affairs of the realm" representatives of the freemen of the shire, as distinguished from the tenants-in-chivalry. Representatives in the strict

sense of the word, indeed, they were not; the writ says nothing of how they were to be chosen, and there can be little doubt that they would be selected by the sheriff. Still, the fact remains that—so far as extant evidence goes—John Lackland seems to have been the first English statesman who proposed to give some place, however subordinate, in the great council of the realm to laymen who were neither barons nor knights, but simple freemen. His motive is plain; he was seeking to win the support of the yeomen as a counterpoise to the hostility of the barons. Unluckily we know nothing of the results of his experiment, and cannot even be sure that it was actually tried; for though the king was certainly at Oxford in that year on November 15 and the two following days,^[862] no mention occurs, in either chronicle or record, of any council holden there at that date.

At Christmas John held his court at Windsor, “where he distributed robes of state to a multitude of his nobles.”^[863] Immediately afterwards Count Ferrand of Flanders came over to cement his alliance with the English king by performing his homage to him in person, at Canterbury, in the second week of January 1214.^[864] Raymond of Toulouse had been over shortly before; the fortunes of war had gone utterly against him, and nothing but prompt succour from John, in some shape or other, could enable him to hold out any longer in his capital city, the sole refuge now left to him. He is said to have gone back, after doing homage to John, with a subsidy of ten thousand marks.^[865] Early in January the king announced to the primate and the bishops that he himself was about to depart over sea, and begged that they would lend their support to Bishop Peter of Winchester and the other persons in whose charge he intended to leave the kingdom during his absence.^[866] At the end of the month he put in train a scheme for conciliating the eldest son of the late justiciar by marrying him to the greatest heiress in England—that same Countess Isabel of Gloucester who had once been married to John himself.^[867] On February 1 John by letters patent appointed Peter des Roches, the bishop of Winchester, to the office of justiciar of England, and committed his realm to the custody and protection of the Holy Roman Church, the Pope and the Legate, leaving Peter as keeper of the peace in his stead.^[868] Next day he embarked at Portsmouth with his queen, his son Richard,^[869] his niece Eleanor of Brittany, and a quantity of treasure; he spent a few days at Yarmouth in the Isle of Wight, and thence sailed to Poitou.^[870]

It was evidently of set purpose that the appointment of a new chief justiciar had been delayed till the very eve of the king's departure. When it came to the knowledge of the barons, they all grumbled at having a foreigner set over them;^[871] but they did not know it till the expedition had sailed, and their discontent could vent itself only in useless words.

Over sea the king's partisans were ready to welcome him. At La Rochelle the barons of Aquitaine came crowding to offer him their allegiance.^[872] Leaving La Rochelle on February 20, he moved northward to Mervant, in the middle of Lower Poitou. Mervant belonged to Geoffrey de Lusignan; and the king's visit to this place may have been connected with some negotiations between him and the Lusignan family which were certainly begun soon after his landing in Aquitaine. He next proceeded southward, to the abbey of La Grâce-Dieu on the border of Saintonge; on February 25 he was at Niort.^[873] Meanwhile he had opened communications with the men of Périgord and the viscounts of Limoges and Turenne.^[874] On March 6 he was back at La Rochelle, whence he sent on the 8th, in letters patent addressed to the "good men" of all the chief cities of England, the following account of his expedition: "Know ye that we and our faithful followers whom we brought with us to Poitou are safe and well, and by God's grace we have already begun to expedite our affairs to the joy and gladness of our friends and the confusion of our foes. For on the Sunday before Mid-Lent we laid siege to the castle of Milécu, which Portecelin de Mausé had fortified against us, and on the following Tuesday we took it."^[875] Moving across Saintonge and up the Charente, he reached Angoulême on the 13th, stayed there two days, then advanced eastward to Saint-Junien and Aixe in the Limousin;^[876] at Aixe, on March 22, he granted the seneschalship of Limoges to Emeric de Roche, and that of Périgord to Geoffrey Teyson.^[877] On Palm Sunday, March 23, he left Aixe, and thence he struck right across the county of La Marche to Saint-Vaury and La Souterraine, on the southern border of Berry; he spent Good Friday and Easter at La Souterraine,^[878] and there, on Easter Day (March 30), he received the homage of the count of Périgord.^[879] He then re-crossed La Marche and the Limousin—stopping this time for two days at Grandmont, where the monks evidently still had a ready welcome for the son of their old friend King Henry—back to

March 2

March 4

Limoges and Angoulême, Cognac and Saintes; thence, turning southward, he proceeded through Périgord as far as La Réole in the county of Agen. On April 20 he was back at Mausé in Saintonge, and for the next fortnight he was never far from either La Rochelle or Niort; but on May 6 he was at Saint-Léger in Anjou, and it was there that he spent Ascension Day, May 8. Two days later he was again at Niort. [\[880\]](#)

The panegyrist of Philip Augustus asserts that John's sudden dash into the lands south of Périgord was prompted by dread of Philip, who, "being desirous to meet him" in the field, had hurried to the Poitevin border, and was preparing to cut him off from his fleet. The same writer, however, owns almost in the same breath that "no one knows, ever has known, or ever will know, the way of a serpent, of a ship on the deep, of a feather in the wind, or of a deceiver" such as John; and that Philip dared neither attempt to follow him nor await his return, but hurried back—after burning the rural districts of Poitou—to protect his own interests in Flanders. [\[881\]](#) John's erratic movements had probably a double purpose: to baffle Philip, and to ascertain the extent of his own resources in the south. Of more real importance than these tentative excursions was a negotiation which he had set on foot with the house of Lusignan, whose alliance and allegiance he proposed to regain by giving the infant Joan, his eldest daughter by Isabel of Angoulême, in marriage to young Hugh of La Marche, as compensation for the loss of Isabel herself. The first preliminary was a truce with the counts of La Marche and Eu; and it was probably this truce which enabled John to pass unmolested through La Marche on his way to and from La Souterraine. The third Lusignan brother, Geoffrey, seems not to have been included in the truce; and when it expired no terms of peace had been agreed upon. "We therefore"—so wrote John to his representatives in England—"on the Friday next before Pentecost transported ourself and our army to Geoffrey's castle of Mervant; and although many believed it impregnable by assault, yet on Whitsun Eve, by one assault lasting from daybreak to the hour of prime, we took it by force. On Whitsunday we laid siege to another of Geoffrey's castles, Vouvant, in which was he himself with his two sons; and when we had plied our slings against it continually for three days, so that its fall was imminent, the count of La Marche

May 16

May 17

May 18

May 20

came to us and caused the said Geoffrey to surrender himself to our mercy, with his two sons, his castle, and all that was in it.” Another of Geoffrey’s castles, Montcontour, which lay farther east, close to the Angevin border, was at the same time besieged by Louis of France. The French king seems to have discovered the negotiations of the Lusignans with his rival, and to have been so much alarmed at the prospect of a reconciliation which would deprive him of his best helpers in Aquitaine that he tried to prevent it by offering a son of his own as bridegroom for little Joan; but Joan’s father was too wary to take the French bait. On learning that Louis was at Montcontour, “we,” says John, “at once turned thitherward to meet him; so that on Trinity Sunday we were at Parthenay, where the count of La Marche and the count of Eu came to us with the said Geoffrey of Lusignan and did us homage and fealty. And as it had been under discussion between ourself and the count of La Marche that we should give our daughter Joan in marriage to his son, we did so grant it to him, although the king of France asked for her for his own son; but that demand was a trick; for we remembered how our niece was given to the French king’s son Louis, and what was the consequence of that; but may God grant us more profit from this marriage than we have had from that one! And now,” ends the king with a burst of eager anticipation, “by God’s grace there is given us an opportunity to carry our attack upon our chief enemy, the king of France, beyond the limits of Poitou.”^[882]

May 25

He made good use of his opportunity. Louis had apparently retired from Montcontour at his approach, for we hear nothing of any encounter between them, and within twenty-four hours of his departure from Parthenay John was at Cissé, only a few miles from Poitiers. On Poitiers he made no attempt, but passed on into Berry, into which he penetrated as far north as Chezelles (June 7). Four days later he was at Ancenis, on the border of Anjou and Brittany. The next week was spent in feeling his way towards Angers. From Ancenis, on June 12, he moved up the Loire to St. Florent and Rochefort,^[883] thus securing the approach to the city from the west and south. Then, by a master stroke of audacity, he seems to have suddenly made a rapid march westward again, to draw up his forces on June 13^[884] within sight of Nantes. The citizens and the French garrison came forth to meet him at the bridge outside the city; in the fight which ensued John’s troops were completely victorious, and twenty French knights were taken

prisoners, among them a cousin of the French king, the eldest son of Count Robert of Dreux whose second son, Peter, was now recognized by the French as “count of Brittany” in right of his wife Alice, the half-sister of Arthur and Eleanor.^[885] Whether this victory struck terror into the men of Angers, and whether they opened their gates to the victor in consequence, we cannot tell; we only know that on June 17 and 18 John was once more in the original capital of his forefathers.^[886] But once more he was compelled by the untrustworthiness of his followers to turn his back upon it, and this time for ever.

The castles in the immediate neighbourhood of Angers were mostly in the hands of John or his friends; there was, however, one important exception—La Roche-au-Moine,^[887] where William des Roches, now seneschal of Anjou for Philip Augustus, had lately built a fortress to protect the road between Angers and Nantes against the garrison of Rochefort, whose commandant was a partisan of John.^[888] To La Roche-au-Moine John laid siege with all his forces on June 19. The siege had lasted a fortnight^[889] when Louis advanced from Chinon to relieve the place, then on the verge of surrender. At the tidings of his approach John sent out scouts to ascertain the strength of the enemy; they returned with the assurance that the English king had an overwhelming advantage in numbers, and was certain to be victorious if he engaged the French in a pitched battle. John was eager for the fight;^[890] so, according to the French historiographer-royal, was Louis, who sent to his rival a public challenge, which John as publicly accepted.^[891] But the “wonted treachery”—as an exasperated English writer calls it—of the Poitevins overthrew his hopes. According to one account, “the barons of Poitou, disdaining to follow the king, said that they were not ready for a fight in the open field.”^[892] According to the French version of the story, the immediate author of John’s discomfiture was the veteran turncoat Almeric of Thouars, who, it seems, addressed John in a most insulting manner, mocking at his eagerness for battle, insinuating that it was mere boastfulness which the king would never carry out in act, and then made it impossible for him to do so, by withdrawing himself and all his followers from the host.^[893] Whichever version be the correct one, the consequences were inevitable; John could not risk an encounter with Louis after such a revelation of treason in his

own ranks. In rage and grief he broke up the siege, and hurried away to the south side of the Loire.^[894]

July 2

His retreat, however, implied no abandonment of the design which had brought him across the sea. His expedition was only a part of the great combination whereby he hoped to bring Philip Augustus to ruin. Through long years of diplomacy he had knit together a league which included all the powers on the northern and eastern borders of France, and, now that it was at last ready for united action, threatened the very existence of the French monarchy. While John was scouring the country between the Loire and the Dordogne, a formidable host was gathering in Flanders. Earl William of Salisbury was there with a picked band of Englishmen; the Flemish troops under Hugh de Boves who had been serving John as mercenaries in England had been recalled to swell the muster in their native land; Count Reginald of Boulogne and Count William of Holland had joined their forces to those of Ferrand; all alike were soldiers of the king of England, receiving his pay through William of Salisbury, who as John's representative was Marshal of the whole host. While that host ravaged Ponthieu, the dukes of Brabant and Louvain "with all their might" attacked the north-eastern extremity of the French border, in concert with a certain German count "whom the French called *Pelu*." The Emperor Otto was in full sympathy with the allies, helping them indirectly by his "counsel and favour"; at last, when the eastern and western divisions of the composite host had effected a junction, he himself came with a small body of knights to join their ranks.^[895]

So skilfully and secretly had the combination been planned that Philip was quite unprepared to meet it. He had sent the greater part of his available forces southward under Louis to check the progress of John. For the moment this had been achieved, not so much by Louis as by the Poitevin traitors. But the check was only momentary; Louis made no attempt to follow John across the Loire; and John was already taking steps to fill the places of the Poitevin deserters with more trustworthy troops. On July 9 he wrote from La Rochelle to "all his faithful men" in England, telling them that he was safe and prosperous, thanking them for the support which they had given him hitherto, and desiring that all those who had not accompanied him over sea would come to his aid now, unless their presence at home was specially required by his representatives in the government.

“And if,” he added, “any one of you should think that we have been displeased with him, his surest way to set that matter right is by coming at our call.”^[896] France was caught between two fires. The most imminent danger was from the allies who were ready to pour into the realm from the north and east; but Philip, though conscious that the troops which he had at hand were insufficient to cope with this danger, dared not recall Louis while John was still threatening attack from the south. Gathering courage from the extremity of the peril, the French king hastily collected what forces he could—counts, barons, knights, men-at-arms, horse and foot, with the communes of the towns and villages—bade the bishops and clergy, monks and nuns, offer up masses, prayers and alms for the safety of the realm, and marched boldly against the invaders. He met them at the bridge of Bouvines on Sunday, July 27, and routed them completely. Hugh de Boves fled; Otto fled likewise, or was driven from the field; the earl of Salisbury, the counts of Flanders and Boulogne and the German count were made prisoners, together with Otto’s seneschal and a crowd of other knights. The great coalition which had cost John so many years of diplomacy and such vast sums of money to build up was shattered into fragments at a single blow.^[897]

Philip re-entered Paris in triumph with his captives,^[898] and then marched southward to unite his victorious army with that of his son.^[899] Against the whole military forces of France, thus concentrated and in their present mood of exalted patriotism and enthusiastic loyalty, John was still eager to continue the war; in the middle of August Peter des Roches was trying to secure the fulfilment of an order from the king for three hundred Welshmen to join him over sea before the end of the month.^[900] But another power stepped in to check the hostilities between the kings. Innocent III. was planning a new crusade, and the first necessity for his purpose was the restoration of peace in Europe. As early as April 22 he had urged both the kings, on pain of ecclesiastical censures, to cease from the strife which was hindering the work to be done in the Holy Land and imperilling the safety of Christendom, and to make at least a truce till after the meeting of a general council,^[901] the date of which he had already fixed for All Saints’ Day 1215.^[902] The English-born cardinal who was now legate in France, Robert Curson, seems to have urged the barons who were with John to persuade him to agree to a truce for nine days, with a view to

arranging a personal interview between John and Philip.^[903] The French king had advanced as far as Loudun, where he received the submission of Almeric of Thouars and several other Poitevin barons. John was some seventeen miles off, at Parthenay, “having,” says Philip’s biographer, “no place to flee unto, and not daring either to stay where he was, or to offer battle.”^[904] To offer battle at that moment, with the legate and the barons all urgent for peace, would indeed have been madness; so on August 30 John signified his assent to a cessation of hostilities for a fortnight from the next day, if the legate would ensure its observance on the French side.^[905] On September 3 John withdrew to Saint-Maixent; thence he went on the 9th to Niort; on the 12th he returned to Parthenay,^[906] and there, on the 13th, he, by letters patent, pledged himself to ratify whatever terms nine envoys, whom he named, should agree upon with Philip.^[907]

These envoys were supported by the legate in person; “and,” says William the Breton, “although the high-souled King Philip, having in his army two thousand knights and more, besides a multitude of other troops, could easily have seized the whole land and the person of the king of England, yet with his wonted benignity he granted a truce.”^[908] In England Philip was reported to have yielded either to the authority of the Pope, or to the attraction of sixty thousand marks offered to him by John.^[909] We may doubt whether either of these motives, or all of them united, would have proved effectual, if the complete overthrow and capture of his rival had really been as easy as the Breton court-historian imagined. The truce was dated from September 18, and was to last for five years from the next Easter, 1215. The conditions were that each party should retain its prisoners; that the oath sworn to Philip by the towns of Flanders and Hainaut should be recognized as valid; that Philip, his men, and his adherents should hold throughout the time of the truce whatever they held on the day of its commencement; and that any disputes which might arise should be settled at certain appointed places by the sworn arbitrators of the truce, who were eight in number, each of the kings being represented by two laymen, an abbot and a secular priest. The *maltôte* or tax levied by each king on the adherents of his rival was to be given up if John, its originator, consented to renounce it; if not, Philip claimed the right to continue it likewise. Frederic of Sicily was to be included in the truce as an ally of Philip, and Otto as a friend of John, if they chose to be so included; if

otherwise, then Philip was to be at liberty to assist Frederic and John to assist Otto, within the boundaries of the empire, without violating the peace between themselves.

Philip's proclamation of the truce was issued on September 18 from Chinon.^[910] John seems to have been then still at Parthenay. The terms secured to him the very utmost that he could possibly hope to attain, now that he was deprived of the co-operation of his allies in the north. He had in fact, as an English writer says, "completed what he had to do over sea,"^[911] as well as his share of the work could be completed when that work as a whole was ruined by the disaster of Bouvines. On September 21 he was again at Niort, on the 30th at Saintes, and at some date between October 2 and 13 he sailed from La Rochelle to England.^[912]

1214

To all outward seeming England was at peace. The Pope's letter containing his decision as to the conditions on which the interdict was to be withdrawn had reached John on March 4, at the siege of Milécu, and he had at once sent it on to Peter des Roches for delivery to the legate Nicolas,^[913] whom he had, before leaving England, empowered to settle the matter in conjunction with William the Marshal. A council was summoned at S. Paul's; the Pope's decision was communicated to the assembled prelates and barons, and the legate asked for an account of the sums already paid by the Crown in connexion with the interdict, that he might know how much was still wanting to complete the forty thousand marks which the Pope had fixed as the total of the indemnity. When this was ascertained, it was agreed that the remainder—thirteen thousand marks—should stand over on the security of the bishops of Winchester and Norwich and of the king himself.^[914] This last John gave by letters patent issued from Angers on June 17^[915]; and as soon as these letters reached England, Nicolas solemnly withdrew the interdict.^[916]

June–July

Serious grievances connected with it, however, still remained. A special tax seems to have been levied throughout the realm, under the title of "aid for the relaxation of the interdict"^[917]—either to pay the remainder of the indemnity to the bishops or to furnish the tribute due to Rome. No indemnification was provided for the losses of any one except the bishops; the multitude of lower clergy, the monks, nuns and lay people of both sexes

whose property had been seized or damaged “on occasion of the interdict” were ignored in the settlement. When they applied to the legate for redress, he told them that he had no instructions to deal with their case, but that they might appeal to the Pope.^[918] For the great majority of individual victims, ruined as they were, such an appeal was impracticable. The greater religious houses might have been able to attempt it; but regulars and seculars alike were apparently in too much dread of the king to attempt anything at all. Within two months after his return to England John put forth a demand to the clergy of at least one diocese, and to several religious houses, in the shape of a courteous request that they would waive all claim to the return of “those things which you gave to us in the time of the interdict, and which are now described as having been taken from you.” A form of renunciation or quit-claim was issued, evidently intended for distribution throughout the country, to be signed by the parties concerned.^[919] John in fact seems to have again asked all the English clergy, as he had asked them two years before, for a quit-claim on the plea that their contributions had been voluntary; and though we have no statement of the result, there seems no reason to doubt that in 1214, as in 1212, the audacious demand was complied with.

The weakness of the clergy was partly owing to the fact that they were disappointed in their hopes of finding a champion in the legate. At his coming he had been hailed as a reformer both in Church and State^[920]; but the year 1214 had scarcely begun when Archbishop Stephen, after consultation with his suffragans,^[921] addressed to him a solemn protest, threatening to appeal against him to the Pope unless he desisted from instituting prelates to vacant churches, contrary to the rights of the metropolitan. Nicolas disregarded the protest, and commissioned Pandulf—who had just gone back to Rome—to defend him against the appeal.^[922] For nine months Nicolas continued to exercise his influence as he chose, without remonstrance from the Pope. He was an instrument which could not be dispensed with until its special work—the removal of the interdict—was done; moreover, the king was on the Continent, and in the doubtful state of political affairs it would scarcely have been prudent, during his absence, for Innocent to withdraw his own representative from England. No sooner, however, had John returned than Nicolas was summoned back to Rome.^[923] It is clear that Stephen’s protest and appeal had been really directed not

merely against legatine intrusion into his own metropolitan rights, but also, and chiefly, against the legate's interpretation of the papal letter concerning elections to churches, and his action in making himself the medium of royal interference in this matter.^[924] Stephen indeed seems to have looked upon Nicolas as the chief obstacle to a settlement, between himself and the king, of this question of elections; and a formal settlement, wholly in the Church's favour, was in fact made as soon as king and archbishop were once more face to face. On November 21 John published a grant of free and canonical election to all the churches in his realm.^[925] This grant, like every other acknowledgement made by the Crown, before or since, of the Church's right on this point, was of course destined never to be anything but a dead letter. But it served John's purpose. It saved him from a fresh quarrel with the Church at a moment when the struggle with the barons in which he had been engaged almost ever since his accession to the Crown had entered upon a new phase and assumed a new character which made it, alike for them and for him, a matter of life and death.

FOOTNOTES: [\[Skip footnotes\]](#)

^[700] *Ann. Dunst.* a. 1210.

^[701] *W. Coventry*, vol. ii. p. 202.

^[702] *Brut y Tywysogion*, a. 1210.

^[703] The *Brut* (a. 1210) says that the host assembled at "Caerleon," and returned to England "about Whitsuntide." It places the campaign in 1210, but this is obviously a year too early. Cf. *Ann. Cambr.* a. 1211, and *W. Coventry*, vol. ii. p. 203. John was at Chester (i.e. "Caerleon") on May 16 and 17, 1211, the Tuesday and Wednesday before Whitsunday; *Itin.* a. 13. The Itinerary shows that the expedition had not taken place earlier than this; and from May 17 to August 29 there is a blank.

^[704] *Ann. Cambr.* a. 1211. Cf. *Brut*, a. 1210.

^[705] *Brut*, a. 1210.

^[706] *W. Coventry*, vol. ii. p. 203.

^[707] July 8, *R. Wendover*, vol. iii. p. 235. The *Brut*, [l.c.](#), says he "returned to Wales about the calends of August."

^[708] Fourteen "or more," according to *Ann. Cambr.* a. 1211.

[709] *Brut*, a. 1210. Cf. *Ann. Cambr., Margan., Tewkesb., Winton., Waverl.* a. 1211; *W. Coventry*, vol. ii. p. 203, and *R. Wendover*, vol. iii. p. 235. Roger says John was back at Whitchurch on August 15.

[710] *W. Coventry*, vol. ii. p. 203.

[711] Cf. *Canterbury Chronicle*, in Stubbs's *Gerv. Cant.* vol. ii. pp. cvi., cvii., cxi., cxii.; *Gerv. Cant.* vol. ii. p. 106; *R. Coggeshall*, p. 164; *Ann. Winton., Waverl.*, and *Dunst.* a. 1210. The date comes from *Itin.* a. 11.

[712] *Ann. Waverl.* a. 1211.

[713] *R. Wendover*, vol. iii. pp. 234, 235. He gives no date; but John was in London, seemingly for the only time in 1210, at the end of October; he dates from the Tower on October 27. *Itin.* a. 12.

[714] *Ann. Dunst.* a. 1210. Cf. *R. Coggeshall*, p. 164, and *Ann. Waverl.* a. 1210.

[715] *R. Wendover*, vol. iii. p. 235.

[716] *M. Paris, Hist. Angl.* vol. ii. p. 12. Cf. *W. Coventry*, vol. ii. p. 201, and *R. Coggeshall*, p. 163.

[717] Cf. *Ann. Winton.* and *Waverl.* a. 1211.

[718] *R. Wendover*, vol. iii. pp. 235, 236.

[719] The second appendix to *Innoc. III. Epp.* l. xv. No. 234—"Forma quidem est talis" (printed also, under the heading "Instructiones legato traditae," in *Foedera*, vol. i. pt. i. p. 109)—is obviously a copy, enclosed in a letter of 1213, of the original commission issued to Pandulf and Durand in 1211. See below, [p. 179](#).

[720] The day comes from *Ann. Burton.* a. 1211, and we know from the *Itinerary*, a. 13, that John was at Northampton on August 29. The *Ann. Waverl.* date this conference a year too late, viz. 1212. Cf. *W. Coventry*, vol. ii. p. 204; *R. Wendover*, vol. iii. p. 235, and *Ann. Margan., Tewkesb., Winton., Oseney, and Worcester*, a. 1211.

[721] *Ann. Burton*, a. 1211. Cf. *Ann. Waverl.* a. 1212.

[722] *Ann. Burton*, a. 1211.

[723] *Ann. Waverl.* a. 1211. Cf. *R. Coggeshall*, p. 164.

[724] *R. Wendover*, vol. iii. p. 238.

[725] *W. Coventry*, vol. ii. p. 206.

[726] *Foedera*, vol. i. pt. i. p. 104.

[727] *R. Wendover*, vol. iii. p. 238. Cf. *Chronn. Mailros and Lanercost*, a. 1212.

[728] *Itin.* a. 14.

[729] W. Coventry, vol. ii. p. 206.

[730] *Ann. Dunst.* a. 1210.

[731] This inquest was taken *a. r.* 12 and 13 (*i.e.* May 1210–May 1212); *Red Book*, vol. ii. pp. 469–574.

[732] A. 13 John (May 1211–May 1212); *Red Book*, vol. ii. pp. 575–621.

[733] *Ann. Dunst.* a. 1211.

[734] R. Howden, vol. iv. pp. 31, 37–9; R. Diceto, vol. ii. p. 163.

[735] *Foedera*, vol. i. pt. i. p. 70.

[736] Cf. R. Howden, vol. iv. pp. 83 and 116. The account of Richard's testamentary dispositions in the former place is open to two interpretations. Richard, says Roger, "divisit Johanni fratri suo regnum Angliae ... et praecepit ut traderentur ei castella sua, et tres partes" [in p. 116 Otto claims only "duas partes"] "thesauri sui, et omnia baubella sua divisit Othoni nepoti suo regi Alamannorum; et quartam partem thesauri sui praecepit servientibus suis et pauperibus distribui." Grammatically, there is nothing to show whether "tres partes thesauri sui" is meant to be connected with "praecepit ut traderentur ei [Johanni]" or with "divisit Othoni," but common sense strongly supports the former interpretation; however anxious Richard may have been to help his nephew, he could not possibly mean deliberately to leave his own chosen successor literally without a penny. The actual wording of Richard's will may, indeed, have been as ambiguous as Roger's summary of it, and Otto may have tried to take advantage of its ambiguity. His claim to the earldoms seems somewhat unreasonable; he had never really held the earldom of York, and it was for that very reason that Richard had granted him Poitou; but it was clearly preposterous to expect John to renew this latter grant after Otto had accepted the German Crown.

[737] R. Howden, vol. iv. p. 116; *Foedera*, vol. i. pt. i. p. 80.

[738] Leibnitz and Scheidt, *Origines Guelficae*, vol. iii. pp. 281, 282.

[739] *Rot. Chart.* p. 133 (1204); *Rot. Pat.* vol. i. pp. 11 b (1202), 40, 44 (1204), 48 (1205).

[740] The young countess of Holland, Ada, daughter and heiress of Count Theodoric who died in 1203; see *Art de Vérifier les Dates*, vol. xiv. pp. 261, 430. Her mother at once married her to Louis, count of Los; her father's brother, William, claimed Holland against the young couple; he and Louis took opposite sides on the Imperial question, William holding for Otto, Louis for Philip of Suabia; and eighteen days after the wedding William drove Ada's mother and husband out of Holland, captured Ada herself, and sent her to England to be kept in prison by John. She was still there in 1207, and was only released when her husband had done homage to both John and Otto, *Rot. Pat.* vol. i. p. 82, 82 b.

[741] Cf. M. Paris, *Hist. Angl.* vol. iii. p. 109, and *Rot. Claus.* vol. i. p. 82 b.

[742] *Rot. Pat.* vol. i. p. 77.

[743] W. Coventry, vol. ii. p. 200.

[744] R. Wendover, vol. iii. p. 227.

[745] W. Coventry, vol. ii. p. 202; R. Wendover, vol. iii. pp. 232, 233.

[746] W. Coventry, vol. ii. pp. 202, 203.

[747] W. Armor. *Gesta P. A.* c. 162. The date there given is a year too late, as the English Rolls show.

[748] Boulogne, *Foedera*, vol. i. pt. i. p. 104; *Rot. Claus.* vol. i. pp. 116, 117; *Chart.* p. 186; *Pat.* p. 93; Bar and Limburg, *Pat.* p. 92 b; *Foedera*, p. 106; Flanders, *Pat.* pp. 93, 94; Louvain, *Foedera*, pp. 106, 107.

[749] *Rot. Claus.* vol. i. p. 130 b.

[750] *Brut y Tywysogion*, a. 1211. Cf. *Ann. Cambr.* a. 1213.

[751] *Brut*, a. 1212.

[752] R. Wendover, vol. iii. p. 238; R. Coggeshall, p. 164.

[753] *Rot. Claus.* vol. i. p. 131, 131 b.

[754] *Rot. Pat.* vol. i. p. 94.

[755] *Rot. Claus.* vol. i. pp. 121 b, 122.

[756] *Rot. Claus.* vol. i. p. 123 b.

[757] Cf. R. Wendover, vol. iii. p. 239, and *Itin.* a. 14.

[758] W. Coventry, vol. ii. p. 207.

[759] Cf. *ib.* and R. Wendover, [as above](#).

[760] W. Coventry, [l.c.](#)

[761] R. Wendover, [l.c.](#)

[762] *Ann. Waverl.* a. 1212. See [Note II.](#) at end.

[763] R. Wendover, vol. iii. p. 239; W. Coventry, vol. ii. p. 207. John was at Nottingham September 9–15, and reached London on the 20th, after passing through “Salvata,” Geddington, Northampton, and St. Albans, *Itin.* a. 14. The assertion of the *Ann. Margan.* (a. 1211 for 1212) that in his terror at the discovery of the meditated treason he “shut himself up for fifteen days in Nottingham castle” is thus shown to be false.

[764] *Itin.* a. 14.

[765] W. Coventry, vol. ii. p. 208. Cf. R. Wendover, vol. iii. p. 240; *Hist. des Ducs*, pp. 122, 123; *Ann. Tewkesbury*, a. 1212, and *Chron. Lanercost*, a. 1213.

[766] W. Coventry, [L.c.](#)

[767] R. Wendover, vol. iii. p. 240.

[768] [Ib.](#) Cf. W. Coventry, vol. ii. p. 208.

[769] R. Wendover, vol. iii. p. 248.

[770] R. Wendover, vol. iii. p. 241.

[771] [Ib.](#) pp. 238, 239.

[772] [Ib.](#) p. 240; R. Coggeshall, p. 165; W. Coventry, vol. ii. p. 207. The entry in *Ann. Dunst.* a. 1211 about the razing of Fitz-Walter's castles and the cutting down of his woods is probably misplaced, and should be referred to 1212. See [Note II.](#) at end.

[773] W. Coventry, [L.c.](#) R. Coggeshall, [L.c.](#), and *Ann. Dunst.* a. 1211 (for 1212) name as one of these victims a clerk called Geoffrey of Norwich, whom M. Paris, *Hist. Angl.* vol. ii. p. 126 and *Chron. Maj.* vol. ii. p. 527, confuses with the archdeacon whose fate is related by Roger of Wendover, vol. iii. p. 229. See above, [p. 136.](#)

[774] R. Coggeshall, p. 164.

[775] Cf. *Rot. Chart.* pp. 191 b, 192; *Ann. Waverl.* a. 1212; W. Coventry, vol. ii. p. 207; R. Coggeshall, p. 165, and M. Paris, *Hist. Angl.* vol. ii. p. 132, and *Chron. Maj.* vol. ii. p. 537.

[776] W. Coventry, [L.c.](#)

[777] From the tenour of these letters it is clear that neither of the persons addressed had been in England recently. We must therefore suppose that an order countermanding the muster at Chester had reached the barons in Ireland before they set out to obey the royal summons, and that for the muster at Nottingham their presence had not been required.

[778] *Rot. Claus.* vol. i. p. 132 b (*a. r.* 14).

[779] Hunter, *Three Catalogues*, pp. 42, 43; Sweetman, *Cal. Doc. Ireland*, vol. i. pp. 73, 74 (No. 448).

[780] Cf. *Rot. Claus.* vol. i. p. 126; Innoc. III. *Epp.* l. xv. No. 234, and *Ann. Burton*, a. 1211, 1214.

[781] *Orig. Guelficae*, vol. iii. pp. 340, 341; W. Coventry, vol. ii. pp. 204, 205.

[782] Martène, *Ampliss. Collectio*, vol. i. col. 1111. Cf. W. Armor. *Gesta P. A.* cc. 158, 159.

[783] Cf. R. Wendover, vol. iii. pp. 241, 242, and R. Coggeshall, p. 165.

[784] R. Wendover, [L.c.](#)

[785] R. Wendover, vol. iii. pp. 241, 242.

[786] W. Armor. *Gesta P. A.* c. 165.

[787] *Foedera*, vol. i. pt. i. p. 104.

[788] R. Wendover, vol. iii. p. 243. Cf. W. Coventry, vol. ii. p. 209. W. Armor. *Philipp.* l. ix. v. 235, makes the day April 22. “Culvertage” was the penalty for treason—forfeiture and perpetual servitude.

[789] W. Coventry, *l.c.*

[790] Writ given by R. Wendover, vol. iii. p. 244.

[791] Writ in R. Wendover, vol. iii. p. 245.

[792] R. Wendover, vol. iii. pp. 245, 246. Cf. *Ann. Dunst.* a. 1212 (evidently meant for 1213). John was at Canterbury May 4–6, 1213; *Itin.* a. 14.

[793] John, who in his prosperous days made almost a parade of disbelief in William’s loyalty, and delighted in straining it to the uttermost by saying and doing everything he could think of to insult and provoke William, nevertheless knew well that in moments of peril William was the one counsellor to whose disinterestedness he could safely trust, the one follower on whom he could count unreservedly, the one friend whom he could not do without. So at the close of 1212 or early in 1213 he had recalled the Marshal to his side, and proved his confidence in him by giving him back his two sons who were in England as hostages (*Hist. de G. le Mar.* vv. 14492–598). The bishop of Norwich had also come over from Ireland with five hundred knights and other horsemen to join the muster (R. Wendover, vol. iii. p. 245). It tells something of the success of John’s measures for the settlement of the Irish March that the simultaneous absence of the justiciar and the Marshal, at such a crisis in the king’s fortunes, appears to have been followed by no disturbance in the country which they thus left without a ruler.

[794] R. Wendover, vol. iii. p. 246.

[795] See Petit-Dutaillis, *Hist. de Louis VIII.* pp. 37, 38.

[796] The Pope’s letter, the “Forma,” and the “Expositiones” are given in Innoc. III. *Epp.* l. xv. No. 234. The two former are also in *Ann. Burton*, a. 1214. I think there can be no doubt that the three documents together constitute the “quasi peremptorium mandatum” brought by the three envoys mentioned in W. Coventry, vol. ii. p. 209. Cf. above, [p. 160](#).

[797] R. Wendover, vol. iii. p. 242.

[798] R. Coggeshall, p. 166.

[799] Cf. W. Coventry, vol. ii. p. 210, and the letter patent in R. Wendover, vol. iii. pp. 248–52, Innoc. III. *Epp.* l. xvi. No. 76, and *Foedera*, vol. i. pt. i. p. 111.

[800] Innoc. III. *Epp.* l. xvi. No. 77; R. Wendover, vol. iii. pp. 252–4; *Foedera*, vol. i. pt. i. pp. 111, 112. The oath of fealty is given by R. Wendover, p. 255, and in *Foedera*, p. 112. Roger makes the date Ascension Eve, but it was really the Wednesday in the week before Rogation Sunday.

[801] R. Wendover, vol. iii. p. 252.

[802] “Addidit autem hoc ex suo,” W. Coventry, vol. ii. p. 210.

[803] In a private letter which he wrote to the Pope on the same day, John says he did it “inspirante gratia Sancti Spiritus, ad perpetuam Ecclesiae pacem et exaltationem,” Innoc. III. *Epp.* l. xvi. No. 78.

[804] Innoc. III. *Epp.* l. xvi. No. 79.

[805] “Salvis nobis et haeredibus nostris justitiis, libertatibus et regalibus nostris,” R. Wendover, vol. iii. p. 254.

[806] If we may believe Matthew Paris, the Pope was not the only potentate to whom John about this time offered homage and tribute. In Matthew’s *Gesta Abbatum S. Albani*, vol. i. pp. 236–40, and in his *Chronica Majora*, vol. ii. pp. 559–62, is a long account of an embassy which John is said to have sent to the emir of Morocco, Al Moumenim (Mohammed al Nassir), “significans eidem quod se et regnum suum libenter redderet eidem et dederet, et deditum teneret ab ipso, si placeret ei, sub tributum. Necnon et legem Christianam, quam vanam censuit, relinquens, legi Machomet fideliter adhaereret.” Matthew proceeds to give a lively account of the ambassadors’ adventures, and of the rebuke which the emir administered, through them, to the sovereign who had sent them on so shameful an errand; all of which Matthew professes to have heard from one of the envoys themselves. Unluckily for him, he has given two contradictory dates for the embassy. In the *Gesta Abbatum* he represents it as taking place during the Interdict; and Dr. Lingard has shown, by evidence drawn from Matthew himself, that if it was sent at all, it must have been sent in 1212 (Lingard, *Hist. England*, vol. ii. p. 325; cf. M. Paris, *Chron. Maj.* vol. ii. p. 566). But in *Chron. Maj.* Matthew puts it after the reconciliation with Rome, representing it as despatched by John in his disappointment at finding that transaction profit him less than he had expected. The story of the interview between the envoys and the emir, as Matthew tells it, has therefore a very strong appearance of having been invented by that writer, as a kind of satire on John’s submission to the Pope; though the mere fact of some overture on John’s part for an alliance with the emir is neither impossible nor unlikely.

[807] In March 1215 William Mauclerc, John’s agent at Rome, writes to John that there have come thither some envoys sent by the barons to complain to the Pope, “cum ipse sit Dominus Angliae,” that John refuses them their rights, etc., and he continues: “Supplicant autem Domino Papae quod super his eis provideret, cum satis constet ei quod ipsi audacter pro libertate Ecclesiae ad mandatum suum se vobis opponerent, et quod vos annum redditum Domino Papae et Ecclesiae Romanae concessistis, et alios honores quos ei et Romanae Ecclesiae exhibuistis, non sponte nec ex devotione, imo ex timore et per eos coactus fecistis.” *Foedera*, vol. i. pt. i. p. 120. See Lingard, *Hist. Eng.* vol. i. p. 333.

[808] M. Paris, *Hist. Angl.* vol. ii. p. 135.

[809] W. Coventry, vol. ii. p. 211.

[810] W. Coventry, vol. ii. p. 211.

[811] *Ib.* p. 212. Cf. R. Wendover, vol. iii. pp. 255, 256.

[812] W. Coventry and R. Wendover, [ll.cc.](#) Cf. *Hist. des Ducs*, pp. 125, 126; and R. Coggeshall, p. 167. The date, May 28, is given in *Ann. Waverl.* a. 1213.

[813] R. Wendover, vol. iii. p. 256; *Foedera*, vol. i. pt. i. p. 112.

[814] R. Wendover, vol. iii. p. 257. Cf. W. Armor. *Gesta P. A.* cc. 169, 170; and *Rot. Pat.* vol. i. p. 99.

[815] *Hist. de G. le Mar.* vv. 14612–40; *Hist. des Ducs*, p. 130 (the dates are from this writer); R. Wendover, vol. iii. p. 258; and W. Coventry, vol. ii. p. 211.

[816] *Hist. des Ducs*, p. 131. Cf. *Rot. Pat.* vol. i. p. 100.

[817] *Hist. des Ducs*, pp. 131–3; W. Coventry, vol. ii. p. 211; R. Wendover, vol. iii. p. 258. Salisbury was wrecked on the Northumberland coast on his return, but nothing was lost, *Hist. de G. le Mar.* vv. 14649–58.

[818] W. Coventry, [l.c.](#); *Hist. de G. le Mar.* vv. 14641–6.

[819] Cf. R. Wendover, vol. iii. p. 259, and W. Coventry, vol. ii. p. 212. John was at Porchester June 16, and at Bishopstoke June 17–20 and June 29–July 1; *Itin.* a. 15. For Salisbury's mission, see *Rot. Pat.* vol. i. pp. 100 b, 101 (June 22 and 26).

[820] R. Wendover, vol. iii. pp. 259, 260; W. Coventry, vol. ii. p. 211; *Rot. Pat.* vol. i. pp. 98 b, 99, 99 b, 100, 100 b; *Rot. Chart.* pp. 193 b, 194.

[821] W. Coventry, vol. ii. p. 213, says “mense Junio”; R. Wendover, vol. iii. p. 260, July 16; *Gerv. Cant.* vol. ii. p. 108, and *Ann. Worc.* a. 1213, say July 9.

[822] R. Wendover, [l.c.](#) Cf. *Ann. Tewkesb.* and *Worc.* a. 1213, and *Itin.* a. 15.

[823] The *Ann. Dunst.*, which place the return of the exiles under a wrong year, 1212, say the king met them “in monte juxta Porecestre.” This is surely an error for Winchester. Nothing is more likely than that John should have gone to meet them on S. Giles's Hill.

[824] Cf. R. Wendover, vol. iii. p. 261; *Ann. Dunst.* a. 1212; and W. Coventry, vol. ii. p. 213.

[825] *Rot. Pat.* vol. i. p. 100, 100 b.

[826] *Rot. Pat.* vol. i. pp. 99, 101 b; *Rot. Claus.* vol. i. p. 146.

[827] R. Wendover, vol. iii. pp. 261, 262.

[828] *Ib.* p. 261. Roger says John went to Portsmouth; but the *Itinerary* shows him hovering about between Studland, Corfe, Dorchester, Poorstock, and Gillingham.

[829] R. Wendover, vol. iii. pp. 261, 262.

[830] R. Coggeshall, p. 167.

[831] R. Wendover, vol. iii. p. 261; for dates see *Itin.* a. 15.

[832] M. Paris, *Hist. Angl.* vol. ii. p. 141.

[833] R. Wendover, vol. iii. p. 262.

[834] *Itin.* a. 15.

[835] R. Wendover, vol. iii. p. 263.

[836] R. Wendover, vol. iii. pp. 262, 263. John was at Northampton August 28–31, at “Salvata” September 2, and at Nottingham September 3; *Itin.* a. 15.

[837] *Itin.* a. 15.

[838] *Ann. Waverl.* a. 1213.

[839] R. Wendover, vol. iii. pp. 275, 276; *Foedera*, vol. i. pt. i. p. 115. Cf. W. Coventry, vol. ii. p. 214.

[840] R. Wendover, vol. iii. p. 276.

[841] *Ann. Dunst.* a. 1212 (*i.e.* 1213). “Quae pax non tenuit, quia promissa non fuerant hinc inde soluta,” adds the chronicler.

[842] Cf. R. Wendover, *L.C.*, and *Itin.* a. 15.

[843] R. Wendover, *L.C.*

[844] *Ib.* John’s order for this payment is in *Rot. Pat.* vol. i. p. 106.

[845] Such an investigation by joint commissions was going on in the diocese of Durham in January 1214, *Rot. Claus.* vol. i. p. 106 b.

[846] York, Durham, Chester, Worcester, Exeter, Chichester, Whitby, S. Edmund’s, S. Augustine’s at Canterbury, Reading, S. Benet’s at Hulme, Battle, Ramsey, Peterborough, Cirencester, Eynsham (W. Coventry, vol. ii. p. 213), Grimsby, Wherwell and Sherborne (*Rot. Claus.* vol. i. pp. 147, 148, 150).

[847] *Rot. Claus.* vol. i. pp. 146 b, 148, 150, 150 b.

[848] Date, November 1, 1213; R. Wendover, vol. iii. p. 277. Cf. W. Coventry, vol. ii. p. 216.

[849] *Rot. Pat.* vol. i. p. 107. The name of the abbey is there printed as Evesham; but cf. W. Coventry, vol. ii. p. 213.

[850] *Rot. Claus.* vol. i. p. 160.

[851] *Rot. Pat.* vol. i. p. 109, 109 b.

[852] *Foedera*, vol. i. pt. i. p. 114.

[853] *Rot. Pat.* vol. i. p. 103 b.

[854] *Ib.* p. 106 b: *Rot. Claus.* vol. i. pp. 156, 158.

[855] *Rot. Pat.* p. 100.

[856] *Rot. Pat.* vol. i. p. 103 b.

[857] *Ib.* p. 102.

[858] R. Wendover, vol. iii. p. 271.

[859] M. Paris, *Chron. Maj.* vol. ii. p. 558.

[860] M. Paris, *l.c.* p. 559, makes John repeat on the death of Geoffrey Fitz-Peter the remark which he has previously recorded as having been made by the king on the death of Hubert Walter. See above, [p. 113](#).

[861] *First Report on Dignity of a Peer* (1826), vol. ii. appendix i. p. 2, from Close Roll 15 John; see Hardy's edition of the Close Rolls, vol. i. p. 165. In *Foedera*, vol. i. pt. i. p. 117, the document is printed with an obviously wrong date.

[862] *Itin.* a. 15.

[863] R. Wendover, vol. iii. p. 278.

[864] Cf. R. Coggeshall, p. 168; *Hist. des Ducs*, pp. 139–41, and *Itin.* a. 15. The Flemish authority says “li cuens ... li fist hougage de la tierre ke il devoit avoir en Engleterre”; the English chronicler says the homage was for “all Flanders.” Unluckily there seems to be no charter extant to settle the point.

[865] R. Coggeshall, p. 168. Raymond seems to have been on his way home, and travelling at John's expense, in January 1214; *Rot. Pat.* vol. i. pp. 106 b, 108 b.

[866] *Rot. Claus.* vol. i. p. 160.

[867] *Rot. Pat.* vol. i. p. 109 b.

[868] *Ib.* p. 110, 110 b.

[869] It is a question whether this means the queen's child so named, or that elder son Richard who figures actively in his father's struggle with the barons a year or two later.

[870] Cf. R. Wendover, vol. iii. p. 280; R. Coggeshall, p. 163; and *Itin.* a. 15.

[871] R. Coggeshall, p. 168.

[872] R. Wendover, vol. iii. p. 280. John was at La Rochelle February 15–20, *Itin.* a. 15.

[873] *Itin.* a. 15.

[874] *Rot. Pat.* vol. i. p. 111.

[875] *Ib.* p. 111 b.

[876] *Itin.* a. 15.

[877] *Rot. Pat.* p. 112 b.

[878] *Itin.* a. 15.

[879] *Rot. Pat.* [*l.c.*](#)

[880] *Itin.* a. 15.

[881] W. Armor. *Philipp.* l. x. vv. 99–115. Cf. Peter of Blois’s complaint (*Ep.* xli.) of the impossibility of tracking the movements of Henry II.

[882] R. Wendover, vol. iii. pp. 280, 281. The treaty with the Lusignans is in *Rot. Chart.* p. 197 b; it has no date.

[883] *Itin.* a. 16.

[884] M. Petit-Dutaillis (*Hist. de Louis VIII.* p. 48) thinks this affair at Nantes occurred “dans les premiers jours de juin.” The only blank days in John’s itinerary during this month are June 2–4, 8, 9 and 13. From the relative positions of the places where he was on the other days, I cannot but think that the 13th is the most likely date.

[885] R. Wendover, vol. iii. pp. 285, 286. Cf. R. Coggeshall, p. 169; W. Armor. *Gesta P. A.* c. 172; and *Hist. des Ducs*, p. 143.

[886] *Itin.* a. 16.

[887] M. Petit-Dutaillis (*Louis VIII.* p. 49) remarks that the modern post-office spelling, “La Roche-aux-Moines,” is wrong, the Latin form being “Rupes Monachi,” not “Monachorum.”

[888] W. Armor. *Gesta P. A.* c. 178.

[889] Dates from *Itin.* a. 16.

[890] R. Wendover, vol. iii. p. 286.

[891] W. Armor. *Philipp.* l. x. vv. 202–18.

[892] R. Wendover, [*l.c.*](#)

[893] W. Armor. *Philipp.* l. x. vv. 243–65.

[894] W. Armor. *Gesta P. A.* c. 179. Cf. *Itin.* a. 16.

[895] Cf. R. Wendover, vol. iii. p. 287, and M. Paris, *Hist. Angl.* vol. ii. p. 150.

[896] *Rot. Pat.* p. 118 b.

[897] Cf. R. Wendover, vol. iii. pp. 288–91; M. Paris, *Hist. Angl.* vol. ii. p. 151; W. Armor. *Gesta P. A.* cc. 181–97; R. Coggeshall, p. 169 (wrong date), and W. Coventry, vol. ii. p. 216.

[898] M. Paris, *Hist. Angl.* vol. ii. p. 151.

[899] R. Coggeshall, p. 170; W. Coventry, vol. ii. p. 216.

[900] *Rot. Claus.* vol. i. p. 210 b.

[901] *Rot. Pat.* vol. i. p. 139.

[902] R. Coggeshall, p. 167. Cf. W. Coventry, vol. ii. p. 214.

[903] *Foedera*, vol. i. pt. i. p. 124.

[904] W. Armor. *Gesta P. A.* c. 204.

[905] *Foedera*, [l.c.](#)

[906] *Itin.* a. 16.

[907] *Rot. Pat.* p. 140 b.

[908] W. Armor. *Gesta P. A.* c. 204.

[909] R. Coggeshall, p. 170.

[910] *Foedera*, vol. i. pt. i. p. 125. There is a mutilated version of this document in R. Wendover, vol. iii. pp. 292, 293.

[911] “Expletis agendis suis in partibus transmarinis, rediit in Angliam,” R. Wendover, vol. iii. p. 293.

[912] *Itin.* a. 16; for the last date see *Memorials of S. Edmund’s*, vol. ii. p. 92.

[913] *Rot. Pat.* p. 111 b.

[914] R. Wendover, vol. iii. pp. 283, 284. The terms are stated in a very confused way, both in the Pope’s letter (given [l.c.](#); also in *Rot. Chart.* pp. 208, 209), in a letter of Earl William of Ferrars (*Rot. Pat.* p. 139; Ferrars was one of those who swore as sureties for the king), and in that of John himself (*Rot. Chart.* p. 199); but a comparison of the three documents with Roger’s own account of the matter makes it tolerably clear that Nicolas was authorized to raise the interdict as soon as he had obtained security for the payment of twelve thousand marks a year, in half-yearly instalments, till the total of forty thousand should be complete.

[915] *Rot. Chart.* p. 199.

[916] R. Wendover, vol. iii. p. 284, makes the date June 29; W. Coventry, vol. ii. p. 217, R. Coggeshall, p. 169, and *Ann. Waverl.* a. 1214, make it July 2.

[917] *Rot. Claus.* vol. i. pp. 208, 208 b, 209.

[918] R. Wendover, vol. iii. pp. 284, 285.

[919] *Rot. Pat.* pp. 124, 140 b, 141.

[920] W. Coventry, vol. ii. p. 215.

[921] At Dunstable, “after the octave of Epiphany,” R. Wendover, vol. iii. p. 278.

[922] R. Wendover, vol. iii. pp. 278, 279, says that Nicolas, with the king’s assent, sent Pandulf specially to plead for him at Rome against the archbishop; but Pandulf’s approaching departure over sea “in nuncium nostrum” was announced by John on January 4 (*Rot. Claus.* vol. i. p. 141), ten days at least before Stephen’s appeal was made or even threatened.

[923, 924] Cf. R. Wendover, vol. iii. pp. 278, 279, and R. Coggeshall, p. 170.

[925] *Statutes of the Realm*, Charters of Liberties, p. 5. A copy of this grant, with the date January 15, is printed in *Foedera*, vol. i. pt. i. pp. 126–7.

CHAPTER VI

JOHN AND THE BARONS

1214–1215

Ki ore vaurroit oïr l'ocoison de la guerre dont li rois Jehans moru deshiredés de la plus grant partie d'Engletierre, bien le poroit oïr en cest escrit.

Hist. des Ducs de Normandie, p. 145.

Intervientibus itaque archiepiscopo Cantuariensi cum pluribus coepiscopis et baronibus nonnullis, quasi pax inter regem et barones formata est.

R. COGGESHALL, p. 172.

On May 26, 1214, John had issued writs for the collection of a scutage of three marks per fee from all tenants-in-chief, royal demesnes, vacant bishoprics, lands in royal wardship, and escheats, except those fees which were personally represented in the army in Poitou; on these the scutage was, as usual, to be remitted by royal warrant.^[926] Those northern barons who had refused to serve now refused to pay. They adhered to their contention that they were by their tenure exempt from the obligation to foreign service, and they argued that, in consequence, they were also exempt from the obligation to payment in substitution for such service.^[927] Whether they claimed this double exemption as a privilege peculiar to themselves, or as common to the whole baronage, is not quite clear. In either case the claim would have been difficult, if not impossible, to prove. There is nothing to indicate that the fiefs in northern England had been originally granted on different conditions from those in the south. On the other hand, there are, indeed, some slight indications of the possible existence in some quarters, in the

1214

days of both Richard and Henry, of a theory that the obligation to foreign service—and therefore to payment of scutage for a foreign war—did not form part of the regular obligations of military tenure; in other words, that tenants-in-chivalry were not legally bound to serve in, or to pay for, any war save one of defence. But no general attempt had ever been made even to formulate such a theory, far less to carry it out to its logical consequences; and it is obvious that those consequences would have made it practically impossible for the kings of England to carry on any continental warfare at all. When John in reply to the northern recalcitrants insisted that “it always used to be so done”—that is, foreign service had been rendered or scutage paid in its stead—in his father’s and brother’s days,^[928] he was unquestionably right; and he might have added that it had also been so done, over and over again, in the early years of his own reign. The protest of the northern barons seems to have been made to him in a personal meeting very soon after his return to England; we are told that “the matter would have gone further, had it not been checked by the presence of the legate.” It seems indeed to have gone further notwithstanding that obstacle, for the same chronicler adds: “There was brought forth a certain charter of liberties given to the English by Henry I., which the said barons asked the king to confirm.”^[929]

If we may believe a report which was current a few years later, this demand had been first suggested to the barons, more than a year before, by Archbishop Stephen of Canterbury. On August 25, 1213; he had gathered the bishops, abbots and other ecclesiastical dignitaries, with some of the lay magnates, around him in S. Paul’s cathedral that they might receive his instructions concerning a partial relaxation of the interdict, which he was empowered to grant, pending the arrival of the legate. It was said^[930] that he had afterwards called aside the lay members of the assembly to a secret meeting in which he laid before them a yet weightier matter. “Ye have heard”—thus he was reported to have addressed them—“how, when I absolved the king at Winchester, I made him swear to put down bad laws and enforce throughout his realm the good laws of Edward. Now, there has been found also a certain charter of King Henry I. by which, if ye will, ye may recall to their former estate the liberties which ye have so long lost”:—and he caused the document in question—the coronation-charter of Henry I.—to be read aloud before

them. “And when this charter had been read through and interpreted to the barons, they rejoiced with very great joy, and all swore in the archbishop’s presence that when they saw a fitting time they would fight for those liberties, if it were needful, even unto death; the archbishop, too, promised them his most faithful help to the utmost of his power. And, a confederacy being thus made between them, the conference was dissolved.”^[931] This story is given by Roger of Wendover only as a rumour; but whether the rumour were literally true or not, it was at any rate founded upon a fact: the fact that the movement which was to result in the Great Charter owed its true impulse to the patriotism, as it owed its success to the statesmanship, not of any of the barons, but of Stephen Langton.

During eight months out of the fourteen which elapsed between the archbishop’s return and that of the king, the administration of government was in the hands of Peter des Roches, and he ruled the country with a rod of iron.^[932] But Peter’s vice-regal tyranny was only the final outcome of a state of things which had been growing worse from year to year for more than a quarter of a century. England in the sixteenth year of King John was suffering under an accumulation of grievances consisting, as Ralph of Coggeshall truly says, of all “the evil customs which the king’s father and brother had raised up for the oppression of the Church and realm, together with the abuses which the king himself had added thereto.”^[933] No doubt these last formed the worst part of the evil, and it was the addition of them that gave such an increase of bitterness to all the rest. The obligation laid upon all men to attend the Forest courts, when summoned, whether subject to their jurisdiction or not, had been a hardship ever since it was imposed by Henry II. in 1184; the working of the Forest laws had been a source of suffering from a period much earlier still; but the area of the hardship and the suffering was rendered more extensive by the new afforestations made by John.^[934] The inconvenience caused by the old practice of making common pleas “follow the king”—that is, of holding trials of civil causes only before the justices who accompanied the king, wheresoever he might be—had been felt in Henry’s time, and Henry had tried to remedy it by setting up a permanent bench of justices in a fixed place to deal with such causes. But the right retained by the sovereign of calling up suits from this tribunal to his own presence was exercised by John to a degree which his restless and erratic

movements—almost more restless and erratic than those of his father—seem to have rendered extremely vexatious to litigants.^[935] The precise limits of the king's rights over his tenants-in-chief as to military service, scutage, control over their castles, and such-like matters, had been more or less in dispute throughout the two preceding reigns; but the bitterness of such disputes was intensified by John's personal dealings with his barons, his subtle contrivances for stealing from them their rights over their own tenants and their own lands, his interference with their domestic life by his continual demands for hostages, and, above all, in many cases, by a desecration of their homes which blood alone could expiate.

Again, the corrupt administration of the sheriffs had been matter of complaint under Henry; but it was far worse under John; for whereas Henry, and after him Hubert Walter acting for Richard, had endeavoured by various means to check the independent action and curtail the powers of the sheriffs, now the king himself was almost openly in league with those officers, and their usurpations and extortions were not merely condoned, but encouraged, if not even directly instigated, by him for his own interest. Owing to the rise in the value of land and a variety of other causes, the sheriffs' annual receipts had for many years past been generally in considerable excess of the sum—fixed under the Norman kings on the basis of the Domesday Survey—for which they were accountable to the royal treasury as ferm of the shire. Whatever they received beyond this fixed sum seems to have been originally, in theory at least, their own profit. But a share of it was naturally soon claimed by the Crown; and this was done, not by putting the ferm at a higher figure, but by charging the sheriff with an additional lump sum under the title of *crementum*, or, in John's time, *proficuum*.^[936] Whatever proportion the increment thus paid to the Crown may have borne to the actual receipts of the sheriffs, it is clear that under a sovereign of John's character an arrangement which made king and sheriff partners in gain would make them also partners in extortion. The partnership began when the sheriff entered upon his office; he was appointed to it by the king alone, he held it during the king's pleasure; John had no trouble in finding sheriffs after his own heart. As the improvement of the royal demesnes and the legitimate proceeds of royal jurisdiction were inadequate to produce increment on a scale such as is shown in some of the Pipe Rolls of the reign, these men fleeced the people of their shire by every

means they could devise, for the joint profit of the king and themselves; and the king connived at and abetted every possible usurpation of the sheriffs, that they might wring out of the shire a larger amount of money for him. They set at nought the restrictions which John's predecessors had placed upon their action. They took upon themselves to keep the pleas of the Crown, without reference to the coroners to whom that duty had been specially intrusted under Richard.^[937] They accused men of offences and sent them to the ordeal without more ado, in defiance of Henry's ordinance limiting the employment of that mode of trial to cases in which the charge was made on the presentment of a sworn jury.^[938] The corrupt and extortionate rule of the sheriffs had been strongly condemned by the bishops and magnates in the king's name at the council at S. Albans in August 1213, and it is said that after the coming of the legate some attempt was made to check these abuses by removing the most glaring offenders from office;^[939] but a mere change of officers was of little avail; the fault lay not only in the persons who worked the system, but also in the system itself; and the evil extended far beyond the sphere of the sheriffs' activity.

The whole judicial administration of the realm was corrupt. There was very distinctly one law for the rich and another for the poor.^[940] Justice was sold, delayed, or refused altogether, at the king's will.^[941] Proceedings for which the presence of only the parties concerned in the suit, and a certain number of jurors, was legally necessary, were made a pretext for summoning other persons,^[942] evidently for the sake of exacting fines from them if they failed to attend, and were protracted^[943] so as to make attendance as vexatious as possible, that there might be the more defaulters and the more fines. The course of justice was subjected to constant interference through the summary evocation of causes from the lower courts to that of the king, at the instance of any suitor who could afford to pay for the writ of "*praecipe*" whereby the sheriff was authorized to effect the transfer.^[944] Fines were imposed without regard either to the scale of the offence or the offender's means of paying, so that men of all classes were reduced by them to ruin, being unable to make up the required sum except by selling their sole means of livelihood—the free yeoman his tenement, the villein his cart, the merchant his stock in trade;^[945] clerks were amerced to the full value not only of any lay tenement which they possessed, but also

of their ecclesiastical benefices.^[946] Henry's Assize had given to the Crown only the chattels of a convicted felon; but now the Crown took his land also, without compensation to the mesne lord to whom it ought to have reverted.^[947]

The exactions and usurpations of the Crown were of the most various kinds, and affected every class of society. Reliefs of arbitrary and unreasonable amount were again, as in the Red King's days, exacted from tenants-in-chief on succession to their estates.^[948] Sub-tenants holding land which formed part of an escheated honour were made to pay relief not as other sub-tenants paid to their immediate lord, but as if they held in chief of the Crown.^[949] The widows of tenants-in-chief could not obtain the dowry to which they were legally entitled without payment to the king for its assignment,^[950] and were forced into second marriages against their will.^[951] The wardship and marriage of minor heirs was given, or sold, by the king to his friends without regard to the honesty or dishonesty of the guardian and the interests of the minor and his family.^[952] By an ingenious piece of intentional confusion the Crown arrogated to itself the right of wardship in cases where it had no such right. If a man held land of the Crown by a non-feudal tenure, and also held other land under another lord by knight-service, the distinction between his holding in chief and his holding in chivalry was ignored for the king's benefit, and the custody of all the man's lands was appropriated to the Crown.^[953] Distraints for debt to the Crown were made in the most arbitrary way; the king's bailiffs would, if it so pleased them or their master, seize a debtor's land instead of his chattels, though the value of these latter sufficed to discharge his debt; or they would distrain a debtor's sureties, although he himself was able to pay.^[954] When a freeman died, they assumed as matter of course that he was in debt to the king, and without inquiring to what amount, they seized his chattels, to be restored to his executors or next-of-kin only when the royal claim was satisfied, and not always then.^[955] John, like William Rufus, "would be every man's heir." If a man died in debt to the Jews, and leaving an heir under age, those usurers were suffered to exact interest upon their debt during the minority of the heir, so that if through the death of the Jewish creditor the debt should fall into the king's hand (the Crown being the legal heir of all Jews), there should be as much for the king as possible;

and in such cases he claimed payment of the uttermost farthing that was set down in the Jew's account-book, although he might thereby leave the Christian debtor's widow and children to starve.^[956] Exorbitant tolls were exacted from merchants.^[957] Fines were laid upon towns for the making of bridges, in places where no such obligation had existed in times past.^[958] Weirs were placed in the rivers that the king might keep to himself the profits of fishing.^[959] Monasteries not of royal foundation were taken into the king's custody during vacancy, in defiance of the rights of their founders' representatives.^[960] The king's bailiffs compelled men to give their corn and other goods for the use of the king or his servants, their horses and carts for the carriage of burdens in his service, their wood for the construction of his buildings, whether the owners were willing or not, and seemingly without payment.^[961] Free men were arrested, imprisoned, ejected from their lands, even exiled or outlawed, without legal warrant or fair trial.^[962] Individuals were forbidden to enter or quit the realm at the mere will of the king.^[963] Some barons whom he specially favoured, or wanted to propitiate, received licences to impose arbitrary taxes on their sub-tenants, without regard to the limits of feudal custom,^[964] just as the king himself imposed taxes on his subjects according to his will and pleasure. In a word, the entire system of government and administration set up under the Norman kings and developed under Henry and Richard had been converted by the ingenuity of John into a most subtle and effective engine of royal extortion, oppression and tyranny over all classes of the nation, from earl to villein.

The only class which was as yet capable of making any corporate opposition or protest was the baronage; and hitherto the discontent of the barons had shown itself only in the resistance of some of their number to the king's demands on certain special occasions and in reference to certain special points which affected them personally as tenants-in-chief. But there was now one man in England who looked at the questions at issue between them and the king from a higher standpoint than theirs, and in whose eyes those questions were only small parts of a much wider and deeper question, on the solution of which he had set his mind from the very hour of his landing in the realm. One chronicler relates that John's first impulse on hearing of Archbishop Stephen's arrival in England had been to withdraw himself to some remote place and put off their meeting as long as possible,

and that he had only been induced to abandon this intention by the remonstrances of some of the barons.^[965] Whether this particular story be true or not, it seems plain that John's conduct throughout his quarrel with the Church was to a great extent dictated by personal dislike to the archbishop. This feeling must have been mainly instinctive; for the two men had never seen each other till they met at Winchester on July 20, 1213. The instinct, however, was a true one: it was Stephen Langton who was to give the first impulse to the work which was destined—though not till long after he had passed away—to make the rule of such a king as John impossible in England for evermore.

The archbishop was determined to be satisfied with nothing short of a literal fulfilment of the promise on which he had insisted as a condition of the king's absolution, the promise that to "*all* men" their rights should be restored. He saw that this end could be gained only by the instrumentality of the barons; he also saw that it could be gained only by a policy based on clearer and firmer, as well as broader and nobler, lines than any of them were capable of designing. They, indeed, had no definite scheme of policy; nor had they any leader able to furnish them with such a scheme. The men of highest standing among the magnates, such as the earls of Salisbury, Chester, Albemarle, Warren, Cornwall and William the Marshal,—the men of highest standing among the official class, such as the heads of the houses of Aubigny, Vipont, De Lucy, Basset, Cantelupe, Neville, Brewer^[966]—had either gone to the war or paid their scutage for it without a murmur, and stood utterly aloof from the group of "Northerners," among whom the most conspicuous were two barons of secondary rank, Eustace de Vesci and Robert Fitz-Walter. Both Eustace and Robert are said to have had just grounds for bitter personal resentment against John; but Robert Fitz-Walter had twice already shown himself to be both a traitor and a coward; and on the second occasion, in 1212, Eustace de Vesci had done the like. The pardon and restoration of both these men in the following year was a matter of policy, but was not due to any merits of their own.^[967] It was not under the inspiration and guidance of such men as these that the liberties of the English people could be won, nor even that the barons could succeed in their struggle for the privileges, pretended or real, of their own order. Another guide offered himself to them in the person of Stephen Langton, and offered to them at the same time a definite basis of action in the charter

of Henry I. Whether the offer was made at the meeting in S. Paul's in August 1213, or at some later date and in some other way, is of little consequence; it is enough that antecedent probability and after-history alike justify the general belief of which Roger of Wendover is the spokesman:—that it was Langton who brought to light the charter of which the very existence seems to have been forgotten, and it was from him that the barons adopted it as the basis of their demands.

The next step which they took in so doing was weightier than, probably, they themselves had any idea of. At first glance the charter seems to have little or no bearing upon the immediate subject of dispute between them and the king; it contains no mention whatever of either scutage or military service beyond sea. But it does contain a series of clauses regulating the relations between the tenants-in-chief and the Crown; and thus it furnished them with a substantial ground for insisting that all violations of its provisions on the part of the Crown must be redressed before any further burdens could be binding upon them. It was even possible for them to argue that any demands on the king's part other than those expressly sanctioned in the charter were an encroachment on their privileges as therein defined. For the greater purpose which Langton had in view, the value of the charter lay in its opening of the way to wider reforms by the incidental clauses which bound the tenants-in-chief to extend to their sub-tenants the same benefits which they themselves received from the king, and in the comprehensive sentence which declared the abolition of "all evil customs whereby the realm was unjustly oppressed."^[968] The more thoughtful among the confederate barons may perhaps by this time have begun to see that, even from a selfish point of view, they had nothing to lose, and might have something to gain, by identifying their cause with that of the nation as a whole. Many of the grievances which touched the lower classes touched the higher also, though not always in the same way. Moreover, although the people were as yet powerless to initiate any corporate action in their own behalf, their support had saved more than one earlier sovereign in a struggle against the barons; it might prove no less useful to the barons in a struggle against the king. But whatever the barons may have thought about these matters, the king was statesman enough to see as clearly as the primate how weighty and far-reaching might be the consequences involved in the

demand for a renewal of the charter. He therefore postponed its discussion till after Christmas.^[969]

Such is the brief statement of the Barnwell annalist. In its stead, Roger of Wendover gives us a dramatic scene in S. Edmund's abbey. "The earls and barons of England," he tells us, came together in that sanctuary, "as if for prayer; but there was something else in the matter, for after they had held much secret discourse, there was brought forth in their midst the charter of King Henry I., which the same barons had received in London, as hath been before said, from Archbishop Stephen of Canterbury. Then they went all together to the church of S. Edmund the King and Martyr, and beginning with the eldest, they swore on the high altar that if the king sought to evade their demand for the laws and liberties which that charter contained, they would make war upon him and withdraw from fealty to him till he should, by a charter furnished with his seal, confirm to them all that they demanded. They also agreed that after Christmas they would go all together to the king, and ask him for a confirmation of the aforesaid liberties; and that meanwhile they would so provide themselves with horses and arms that if the king should seek to break his oath, they might by seizing his castles compel him to make satisfaction. And when these things were done they returned every man to his own home."^[970]

1214

John was at S. Edmund's on November 4;^[971] it is possible therefore that his meeting with the barons may have been held there, and that the scene described by Roger may have taken place after the king's departure. He kept Christmas at Worcester, and returned to London at the opening of the new year.^[972] There, at Epiphany, the confederate barons came to him in a body, "in somewhat showy military array," and prayed him "that certain laws and liberties of King Edward, with other liberties granted to them and to the English Church and realm, might be confirmed, as they were written in the charter of King Henry I. and the laws aforesaid; moreover they declared that at the time of his absolution at Winchester, he had promised those ancient laws and liberties, and thus he was bound by his own oath to the observance of the same." John cautiously answered that "the matter which they sought was great and difficult, wherefore he asked for a delay till the close of Easter, that he might consider how to satisfy both their demands and the dignity of his

1215

crown.”^[973] He then seems to have tried to persuade them—no doubt each man singly—into giving him a written promise “never again to demand such liberties from him or his successors”; but to this no one would consent except the bishop of Winchester, the earl of Chester, and William Brewer.^[974] At last the proposed adjournment till the close of Easter was agreed upon, but not till the king had, “against his will,” pledged himself by three sureties to fulfill his promise by giving reasonable satisfaction to all parties at the date thus appointed.^[975]

The king’s sureties were the archbishop of Canterbury, the bishop of Ely, and William the Marshal. The choice of the archbishop as one of them was good policy on John’s part; and Langton’s acceptance of the office implies no wavering or double-dealing on his side. In so far as it was his inspiration that gave a new force to the enterprise of the barons, by raising it from a struggle for their own privileges into a struggle for the liberties of the English nation, he was in truth, as Roger of Wendover says, their “chief ally”;^[976] and for the achievement of its end as he himself conceived it, he did indeed “give them his most faithful help to the utmost of his power.” But the help which he gave them was not that of a partisan; Stephen Langton was at once too true a churchman and too great a statesman, and held too lofty a conception of his proper constitutional functions as primate of all England, to identify himself with any party. The right and the duty of the archbishop of Canterbury was to be the partisan of neither king nor people, but the guide and monitor of both, so far as they would accept his guidance and listen to his admonitions, and the mediator between them whenever mediation was needed. He was by virtue of his office the first adviser of the Crown as well as the guardian of the nation’s rights; and it was only by standing firmly at his post by the king’s side in the former capacity that he could be truly efficient in the latter. Langton’s attitude was evidently understood by both parties at the time. From the moment when the northern barons first asked the king to confirm his great-grandfather’s charter, if not before, John must have known that the hand of the primate was with them in the matter. But he was quite as much alive as they were to the value of such a helper; moreover, he seems to have had the somewhat rare gift of being able to recognize in another man qualities which were conspicuously absent from his own character. Much as he hated Langton, he evidently trusted to his honour and loyalty as implicitly as he trusted to that

of William the Marshal. He therefore continued to the end the policy which he had pursued ever since the archbishop's coming to England. He treated Langton with every mark of confidence and respect; he carefully avoided any step which might have forced him into opposition on ecclesiastical grounds; and in his diplomatic dealings with the barons it was Langton whom he employed as his chief commissioner and representative.

The king, however, was even more prompt than the barons in preparing to back diplomacy by force. Immediately after the Epiphany meeting he ordered a renewal of the oath of allegiance throughout the country; and this time it was to be taken in the form of an oath of liege homage, binding his subjects to "stand by him against all men." This, it is said, was an unwonted addition, which was generally opposed as being "contrary to the charter"—the standard by which all things were now tried.^[977] It may have been in connexion with this matter that the king sent to the men of sixteen southern and midland shires commissioners "to explain his business" to them;^[978] but he ended by withdrawing his demand, "not deeming the time opportune for exciting a tumult among the people."^[979] That tumults would nevertheless arise before long he knew full well; and to meet this danger he had already called to his aid the loyal "barons and bachelors" of Poitou.^[980] The summons must have been issued immediately after, if not even in anticipation of, his meeting with the English malcontents at Epiphany, and the response must have been as prompt as the summons, for on February 8 he had already heard of the arrival in Ireland of some troops sent to him by Savaric de Mauléon, and was issuing orders to the archbishop of Dublin for the payment of their passage to England.^[981] On February 19 the king gave a safe-conduct to "the barons of the North" that they might come to Oxford to speak with the primate, the other bishops and the Earl Marshal on Sunday the 22nd.^[982] Whether this conference took place, or what came of it, we are not told; but on March 13 John wrote to the barons and bachelors of Poitou that the matter for which he had summoned them was now settled, and he therefore, thanking them for their readiness to obey his call, bade those of them who had not yet set out remain at home, and those who had started go home again, with the assurance that he would indemnify them for their expenses.^[983]

Feb. 10

It is possible that the barons may have asked for the conference at Oxford in order to remonstrate against the warlike preparations of the king, and that it may have resulted in some temporary arrangement which compelled him to dismiss the Poitevins. It is also possible that this dismissal may have been prompted by tidings from Rome. The prospect of some such crisis as the present one had almost certainly been in the minds of king and barons alike when John performed his homage to the Pope; and both alike now sought to make their profit out of that transaction, each side appealing to the Pope, as the common overlord of both, to use his authority in compelling the other to yield. An envoy from John, William Mauclerc, had reached Rome on February 17. Eleven days later Eustace de Vesci and two other representatives of the malcontent party arrived with letters for the Pope. In these letters—so Mauclerc reported to his master—the confederate barons besought Innocent, “since he was lord of England,” to urge and, if needful, compel the king to restore the ancient liberties granted by his predecessors and confirmed by his own oath. They recited how at the meeting in London at Epiphany John had not only refused to grant these liberties, but had endeavoured to make the petitioners promise never to ask for them again. They begged that the Pope would take measures to help them in this matter, “forasmuch as he well knew that they had at his command boldly opposed the king in behalf of the Church’s liberty, and that the king’s grant of an annual revenue and other honours to the Pope and the Roman Church had been made not of free will and devotion, but from fear and under compulsion from them.”^[984] Of what John wrote, or charged his envoy to say, to Innocent in his behalf, no record remains; but Innocent’s letters show what the tenour of John’s argument must have been. With his usual dexterity the king made capital out of the secret meetings held, or said to have been held, by the malcontents; and he also brought into special prominence the one point of discussion which was quite clearly defined, and in which he unmistakeably had precedent on his side—the question of the scutage. On March 19 Innocent wrote to the archbishop of Canterbury and the other English bishops, expressing his surprise that they had not checked the quarrel between the king and “certain magnates and barons,” and reproving them for their failure to do so; he strongly condemned the “conspiracies and conjurations” which the barons were reported to have made, and ordered the bishops to quash all such conspiracies and urge the barons to proceed only by fair and lawful means. On the other hand, he

besought the king “to treat the aforesaid nobles graciously, and mercifully to grant their just petitions.” On the same day he wrote to the barons, informing them of the contents of his letter to the bishops.^[985] On April 1 he wrote to the barons again, avowedly in consequence of the king’s complaint of their refusal to pay the scutage for the Poitevin war; he reproved them for their contumacy in this matter, and “warned and exhorted” them to satisfy the king’s claims without further delay.^[986]

By the middle of April the two former of these letters must have reached England, the second being probably brought back by Eustace de Vesci and his companions. The third letter was scarcely needed to show the barons that their cause was lost at Rome. John, moreover, had secured its ruin in that quarter by taking the Cross^[987]—partly, no doubt, as a protection against personal violence, but still more as a means of enlisting the Pope’s strongest sympathies in his behalf, and holding up his enemies to execration as hinderers of the crusade. They grew desperate; they held another council among themselves, at which they determined, without waiting for their promised interview with the king, that they “would deal civilly with him no longer”;^[988] and in Easter week they assembled at Stamford in arms.

April 19–26

Five earls and forty barons are mentioned by name as present at the muster, “with many others”; they all came with horses and arms, and brought with them “a countless host,” estimated to comprise about two thousand knights, besides other horsemen, sergeants-at-arms, and foot soldiers.^[989] “And because for the most part they came from the north, they were all called Northerners.” From Stamford they marched to Northampton, but without doing any act of violence.^[990] John, who had spent Easter in London,^[991] sent the primate and some other bishops and magnates to parley with them.^[992] Several meetings appear to have taken place. The deliberations evidently turned chiefly on the Pope’s letters. No allusion is made by the chroniclers to the letter about the scutage, which perhaps had not yet arrived; but, on the one hand, Innocent’s condemnation of secret conspiracies could not be ignored; and on the other, the barons urged his injunction to the king to hearken to their “just petitions.”^[993] At length John—secure in the consciousness that he could refuse every petition on the plea that it was not just—authorized his commissioners to demand of the barons,

in his name, a categorical statement of the laws and liberties which they desired.

This message was delivered to the insurgents by the primate and the Marshal, at Brackley, on Monday April 27—the day after that originally fixed for the meeting of the barons and the king. “Then they [the barons] presented to the envoys a certain schedule, which consisted for the most part of ancient laws and customs of the realm, declaring that if the king did not at once grant these things and confirm them with his seal, they would compel him by force.”^[994] This “schedule” was no doubt a kind of first draft, prepared under the direction of Langton himself in his conferences with the insurgents during the previous week, of those “Articles of the Barons” from which we chiefly learn the grievances of the time, and most of which were ultimately embodied in the Great Charter. Langton and the Marshal carried it back to the king, who was now in Wiltshire.^[995] One by one the articles were read out to him by the primate. John listened with a scornful smile: “Why do these barons not ask for my kingdom at once?” he said. “Their demands are idle dreams, without a shadow of reason.” Then he burst into a fury, and swore that he would never grant to them liberties which would make himself a slave. In vain the archbishop and the Marshal endeavoured to persuade him to yield; he only bade them go back to the barons and repeat every word that he had said. They performed their errand;^[996] and the barons immediately sent to the king a formal renunciation of their homage and fealty,^[997] and chose for themselves a captain-general in the person of Robert Fitz-Walter, to whom they gave the title of “Marshal of the army of God and Holy Church.”^[998] They then marched back to Northampton, occupied the town and laid siege to the castle.^[999]

The king was not behindhand in his preparations for war. His friends were already mustering at Gloucester; on April 30 he requested them to proceed thence on the following Monday (May 3), well furnished with horses and arms, and with “all the men they could get,” to Cirencester, there to await his further commands.^[1000] Orders were issued for strengthening the fortifications of London, Oxford, Norwich, Bristol and Salisbury.^[1001] The earls of Salisbury, Warren, Pembroke and others perambulated the country to see that the royal castles were properly fortified and manned;^[1002] help was summoned from Flanders^[1003] and from Poitou.^[1004] Early

in May the king returned for a couple of days to London;^[1005] and as fourteen years before he had won the support of its citizens in his struggle with Richard's chancellor by granting to them the "commune" which they desired, so now he endeavoured to secure their adhesion by confirming their liberties and adding to them the crowning privilege of a fully constituted municipality, the right to elect their own mayor every year.^[1006] Meanwhile the "northern" barons had found Northampton castle too strong to be taken without military engines which they did not possess; so at the end of a fortnight they had raised the siege and moved on to Bedford. Here the castle was given up to them by its commandant, William de Beauchamp.^[1007] Their forces were rapidly increasing in number; the younger men especially, sons and nephews of the greater barons, joined them readily, "wishing to make for themselves a name in war"; the elder magnates, for the most part, clave to the king "as their lord."^[1008]

On May 9 the king—now at Windsor—proposed that the quarrel should be decided by eight arbitrators, four to be chosen by himself and four by "the barons who are against us," with the Pope as "superior" over them; he offered the earl of Warren and four bishops as sureties for his own acceptance of the award, and promised that until it was delivered he would take no forcible measures against the insurgents, "save according to the law of the realm and the judgement of their peers in his court."^[1009] This proposal seems to have been rejected at once, for two days later John ordered the sheriffs to seize the lands, goods and chattels of "his enemies" in their several shires and apply them to his benefit.^[1010] Almost immediately afterwards he seems to have commissioned the archbishop of Canterbury to negotiate a truce for a few days. On the 16th he appointed his brother, Earl William of Salisbury, to act as his representative in London.^[1011] The object of William's mission evidently was to secure, if possible, the loyalty of the "mayor, aldermen and other barons of London," which John suspected to be wavering. His suspicion was correct; a plot for the betrayal of the city was already ripe, and on the very next morning—Sunday, May 17—the insurgents were masters of the capital.^[1012] The first use they made of this success was to fill their pockets with plunder taken from the king's partisans in the city, and from the Jews; the next was to pull down the Jews' houses and use the stones for repairing the city walls. They then sent letters to all the earls, barons and knights who still adhered to the

king, “bidding them, if they cared to retain their property and goods, forsake a king who was perjured and in rebellion against his barons, and join with them in standing firmly and fighting strongly for the peace and liberty of the realm; threatening that if they neglected so to do, they, the writers, would direct their banners and their arms against them as against public enemies, and do their utmost to overthrow their castles, burn their dwellings, and destroy their fishponds, orchards and parks.” These invitations and threats brought over to the winning side all who had been waiting to see which way the tide would turn, and they, of course, made a right goodly company.^[1013]

Still the king did not lose heart. He had gone from Berkshire into Wiltshire,^[1014] and was at his hunting seat of Fremantle—“a house which stands on a height, and in the heart of a forest”—when, on May 18 or 19, a party of Flemish knights under Robert de Béthune found their way to him and offered themselves for his service. He gave them a joyous welcome, and hearing that a sudden rising had taken place in Devon, despatched them under the command of the earl of Salisbury to deal with it. The insurgents were reported to be besieging Exeter, whence the earl was bidden to dislodge them; but they had, in fact, already taken it; and when Earl William reached Sherborne, he was told that they were lying hidden in a wood through which his road lay, in such numbers that he and his followers had no chance of escape if they fell into the ambush; whereupon he went back to the king at Winchester.^[1015] “You are not good at taking fortresses!” said John scornfully when he heard the tale. A few days later he again bade the same party go and drive the “Northerners” out of Exeter. Again they were met at Sherborne by alarming accounts of the increased numbers of the enemy; but this time the Flemings, stung by the king’s taunt, insisted upon going forward to “conquer or die”; and the “Northerners,” though they are said by the contemporary Flemish chronicler to have been ten to one, evacuated Exeter at the mere tidings of their approach.^[1016]

This second expedition to Exeter probably started from Winchester on the same day (May 24) on which John issued a notice that any persons who came to his service from over sea were to place themselves under the orders of his chamberlain, Hubert de Burgh.^[1017] He had summoned a part of his forces to muster on May 26 at Marlborough; but on the 25th they were bidden to proceed to “the parts of Odiham and Farnham,” there to receive

his commands; while others, who were to have come to Reading, were to await his orders sent through Jordan de Sackville. On the same day John wrote to the archbishop of Canterbury, urgently, but very courteously, entreating that he would temporarily waive his right to the custody of Rochester castle and allow the king to garrison it with men of his own.^[1018] To this request Langton acceded.^[1019] By this time he had negotiated another truce, and two days later John gave him a safe-conduct for himself and for whatever persons he might bring with him to Staines “to treat of peace between ourself and our barons.”^[1020]

May 27

The object of all these changes of front on the king’s part was to gain time for assembling new forces and devising a new policy. On the same day on which he gave the safe-conduct to the archbishop, he despatched an urgent appeal to all “his knights, men-at-arms, and friends who were coming to join him” from over sea, entreating them to come as speedily as possible, and promising that they should be well rewarded for so doing.^[1021] On May 29 he again wrote to the Pope, complaining of the rebellious attitude of the barons, which made it impossible for him to fulfil his vow of crusade.^[1022] On Whitsun Eve, June 6, he bade his favourite captain of mercenaries, Falkes de Bréauté, send four hundred Welshmen to Salisbury to meet its earl by the following Tuesday,^[1023] seemingly to be ready for action on the Thursday, when the truce would expire.

John knew, however, that the game was lost. Four bodies of insurgents were now in the field, and none of them seem to have paid any regard to the truce. The townsfolk of Northampton had risen against the royal garrison of the castle and slain several of them. The force which occupied London was besieging the Tower; and now, in this Whitsun week, another body seized Lincoln.^[1024] The king was almost deserted; at one moment he is said to have had only seven knights left in his suite; the sessions of the Exchequer and of the sheriffs’ courts throughout the country had ceased, because no one would pay him anything or obey him in any matter.^[1025] He had come up on May 31 from Odiham to Windsor, doubtless to meet the archbishop at Staines; on June 4 he went back into Hampshire.^[1026] On Whit-Monday, June 8, he issued from Merton a safe-conduct for envoys from the barons to proceed to and from Staines from Tuesday the 9th till Thursday the 11th.

On Wednesday the 10th he returned to Windsor, and the truce was prolonged from Thursday to the following Monday, the 15th.^[1027] Finally, he despatched William the Marshal and some other trusty envoys to tell the barons in London “that for the sake of peace and for the welfare and honour of his realm, he would freely concede to them the laws and liberties which they asked; and that they might appoint a place and day for him and them to meet, for the settlement of all these things.” The messengers “guilelessly performed the errand which had been guilefully imposed on them”; and the barons, “buoyed up with immense joy,” fixed the meeting to take place on June 15 in a meadow between Staines and Windsor,^[1028] called Runnimead.^[1029]

There, on the appointed morning, the two parties pitched their tents at a little distance from each other on the long reach of level grass-land which stretched along the river-bank. The barons came “with a multitude of most illustrious knights, all thoroughly well armed.”^[1030] “It is useless,” says another chronicler, “to enumerate those who were present on the side of the barons, for they comprised well-nigh all the nobility of England.” With the king were the archbishops of Canterbury and Dublin, seven bishops, Pandulf—who had been sent back to England as the Pope’s representative instead of Nicolas—the Master of the English Templars, the earls of Pembroke, Salisbury, Warren and Arundel, and about a dozen barons of lesser degree, including Hubert de Burgh.^[1031] It was to these chosen few, and above all to the first of them, that John really capitulated. His declaration that he granted the Great Charter by their counsel may well have been true of them all; his most devoted adherents could, if they had any political sagacity, advise him nothing else for his own interest. The terms of capitulation, however, imply more than this. Nominally, the treaty—for it was nothing less^[1032]—was based upon a set of forty-nine articles “which the barons demanded and the lord king granted.”^[1033] But those articles are obviously not the composition of “the barons” mustered under Robert Fitz-Walter. Every step of the proceedings of these insurgents up to that moment, every step of their proceedings afterwards, as well as everything that is known of the character of their leaders, goes to show that they were no more capable of rising to the lofty conception embodied in the Charter—the conception of a contract between king and people which should secure equal rights to every class and every

June 15

individual in the nation—than they were capable of formulating it in the minute detail and the carefully chosen phraseology of the Charter or even of the Articles. The true history of the treaty of Runnimead is told in one brief sentence by Ralph of Coggeshall: “By the intervention of the archbishop of Canterbury, with several of his fellow-bishops and some barons, a sort of peace was made.”^[1034] In other words, the terms were drawn up by Stephen Langton with the concurrence of the other bishops who were at hand, and of the few lay barons, on either side, who were statesmen enough to look at the crisis from a higher standpoint than that of personal interest; they were adopted—for the moment—by the mass of the insurgents as being a weapon, far more effective than any that they could have forged for themselves, for bringing the struggle with the king (so at least they hoped) to an easy and a speedy end; and they were accepted—also for the moment—by John, as his readiest and surest way of escape from a position of extreme difficulty and peril. Thus before nightfall the Great Charter was sealed; and in return John received anew the homage of the barons who had defied him.^[1035]

It was, however, one thing to make the treaty, and quite another to carry it into effect. The framers of the Articles and of the Charter had done what they could towards that end by a carefully planned “form of security for the observance of the peace and liberties between the king and the kingdom.”^[1036] Out of the whole baronage of England the barons present at Runnimead were to choose twenty-five, who should “observe, keep, and cause to be observed, with all their might,” the provisions of the Charter. If the king failed to do his part, these twenty-five were to compel him thereto by force if necessary. For this purpose they were authorized to claim assistance from “the community of the whole country,” and they were therefore to receive an oath of obedience from every man in the realm.^[1037] King and barons alike swore that they would keep all the provisions of the Charter “in good faith and without deceit.”^[1038] The king was made to promise that he would not procure “from any one” anything whereby his concessions might be revoked or diminished, and that if such revocation should be obtained it should be accounted void and never used.^[1039] That John’s promises were worthless every one knew; it was not likely that all the pressure which could be brought to bear upon him by “five-and-twenty over-kings”—as his foreign mercenaries sarcastically called the elected

barons^[1040]—would more than suffice, if even it should suffice, to compel him to keep his word. Still the check thus set over him was a very strong one. It was in fact the strongest that could be devised; and it was made of indisputable authority by its incorporation in the Charter.^[1041]

On the other hand, the Charter contained no provision for compelling the barons in general to fulfil their part of its obligations, either towards their sub-tenants^[1042] or towards the Crown, except what might be implied in the authority given to the twenty-five; while for securing the loyalty and good faith of the twenty-five themselves it contained no provision at all. If we look at the text of the Charter alone, we can but endorse the verdict of its foreign soldier-critics: England was exchanging one king for five-and-twenty. This defect in the treaty seems to have been noticed as soon as it was passed, and a remedy was sought in the appointment of another body of barons, thirty-eight in number, chosen from both parties,^[1043] and including the Earl Marshal and the other chief adherents of the king; these, after swearing obedience to the twenty-five, took another oath which bound them to compel both the king and the twenty-five to deal justly with one another.^[1044] This precaution may perhaps have been suggested by Langton and the other bishops when a significant incident had shown them that the promise of the insurgent barons was worth no more than that of the king. This incident rests upon the authority of a joint statement purporting to be issued, evidently by way of protest and warning and for the clearing of their own consciences, by ten eye-witnesses—the archbishops of Canterbury and Dublin, seven English bishops, and Pandulf. In a letter-patent addressed to “all Christian people,” these ten persons (if the document be genuine) recite how in their sight and hearing the barons had made to the king—seemingly before the Charter was sealed—a verbal promise that they would give him, for their observance of the agreement between him and themselves, any security which he might choose, except castles or hostages. “Afterwards” John called upon them to fulfil this promise by giving him in their turn a charter, whereby they should acknowledge themselves bound to him by oath and homage as his liegemen, and for the preservation of his rights and those of his heirs and the defence of his realm. “But,” say the witnesses, “this they would not do.”^[1045] Such, it seems, was the earnest of the loyalty to their plighted word which England, as well as John, had to expect from the men who posed as the champions of justice and right.

For ten days the nominally reconciled enemies sat watching each other, the king at Windsor, the barons still encamped in the surrounding meadows. In private, John's feelings broke out in wild paroxysms of fury characteristic of his race; he "gnashed his teeth, rolled his eyes, caught up sticks and straws and gnawed them like a madman, or tore them into shreds with his fingers."^[1046] But to the outside world he wore a calm and smiling face, chatting familiarly and gaily with every one whom he met, and declaring himself perfectly satisfied with the settlement of affairs.^[1047] Within the next seven days he despatched copies of the Charter to the sheriffs, foresters and other royal bailiffs in every shire, with letters patent ordering them to make the men under their jurisdiction swear obedience to the twenty-five barons in whatever form these latter might prescribe, and cause twelve sworn knights to be elected in the next county court for the purpose of inquiring into evil customs with a view to their extirpation as promised in the Charter.^[1048] He also sent to his mercenary captains orders to desist from hostilities and amend any damage which they might have done to the barons since the peace was made.^[1049] On the following Tuesday, June 23, he ordered the foreign soldiers at Dover to be sent home at once.^[1050] On the 25th a number of sheriffs were removed from office and replaced by new ones.^[1051] Before that date the king had appointed a new chief justiciar, Hubert de Burgh,^[1052] a faithful adherent of his own, who was also an honourable man, respected by all parties, and a member of the committee of thirty-eight. On the 27th the sheriffs and the knights elected in every shire to inquire into evil customs were ordered to punish summarily all persons who refused the oath of obedience to the twenty-five.^[1053]

June 19–22

June 18

The king was then at Winchester; he had left Windsor on the night of the 25th.^[1054] Illness—seemingly a severe attack of gout—had made him unable to move sooner, and the barons had taken advantage of his physical helplessness to heap upon him every insult in their power. One day the twenty-five required his presence to confirm a judgement in the Curia Regis; he was in bed, unable to set a foot to the ground, so he sent them word that they must come and deliver the judgement in his chamber, as he could not go to them. They "answered that they would not go, for it would be against their right; but if he could not walk, he must cause himself to be carried." He did so, and when he was brought into their presence "they did

not rise to meet him, for it was their saying that if they had risen, they should have done contrary to their right.”^[1055] This scene probably occurred in connexion with one of the cases dealt with in the fifty-second article of the Charter, the cases of persons who were, or asserted that they were, deprived of their lands, castles, privileges or rights by an arbitrary act of John or of his predecessors, without judgement of their peers. Some of these cases, in which there was no doubt about the circumstances of the deprivation, were settled without delay, and immediate restitution was made to the claimants by the Crown.^[1056] But there were others which required investigation. Such was the claim of the earl of Essex to the custody of the Tower of London.^[1057] The chief justiciar of England had been recognized as entitled by virtue of his office to the custody of the Tower ever since the accession of Henry II.; but Henry’s mother, the Empress Maud, had granted it by charter to Geoffrey de Mandeville and his heirs;^[1058] and it was now claimed as an hereditary right by the earl of Essex, as eldest son of the late justiciar Geoffrey Fitz-Peter by his marriage with Beatrice de Say, on whom the representation of the Mandeville family had devolved.^[1059] This matter was too delicate and too important to be decided in haste; pending its decision, the Tower was temporarily placed in neutral hands, the hands of the archbishop of Canterbury,^[1060] to whom Rochester castle was at the same time restored.^[1061] Finally, John proposed that the other questions in dispute between himself and individual barons should all be determined at Westminster on July 16. This being agreed, the barons withdrew to London^[1062] and the king to Winchester, whence at the beginning of July he proceeded into Wiltshire.^[1063]

King and barons alike knew that the “peace” had been made only to be broken. The barons were the first to break it. Some of those “Northerners” from beyond the Humber by whom the strife had been originally begun had actually left Runnimead in the middle of the conference, and were now openly preparing for war, on the pretext that they “had not been present” at the settlement.^[1064] Their southern allies were really doing the same; only they veiled their preparations under the guise of a tournament to be held, ostensibly in celebration of the peace, at Stamford on July 6. Robert Fitz-Walter and his companions, however, quickly discovered that if they wished to keep their hold upon London they must not venture far away from the

city; they therefore postponed the tournament for a week, and transferred it from Stamford to Staines. The victor's prize was to be "a bear, which a lady was going to send."^[1065] Meanwhile the new sheriffs—appointed since the peace, and specially charged to enforce its provisions—were meeting with a very rough reception in every shire where the "Northern" influence predominated. All over the country the barons were fortifying their castles; some were even building new ones.^[1066] A more scrupulous king than John might well have deemed himself justified, under such circumstances, in doing what John did—following their example in preparing to fling the treaty to the winds and renew the war.

The meeting which had been appointed for July 15 was postponed till the 16th, and the place for it changed from Westminster to Oxford. On the 15th the king came up from Clarendon into Berkshire, and on his way from Newbury to Abingdon despatched a letter to the barons stating that he "could not" meet them in person at Oxford on the morrow, but that the archbishop of Dublin, the bishop of Winchester, Pandulf, the earls Marshal, Warren, and Arundel, and the justiciar, would be there in his stead, "to do to you what we ought to do to you, and to receive from you what you ought to do to us."^[1067] The archbishop of Dublin was no longer justiciar in Ireland; Geoffrey Marsh had been, on July 6, appointed to succeed him in that office.^[1068] On the same day Walter de Lacy had been reinstated in all his Irish lands.^[1069] Throughout the summer of this year John, busy as he was with English affairs, had found time to pay even more attention than usual to those of his Irish dominion. From May to July the Close and Charter Rolls are full of letters and writs relating to the Irish March; charters to towns, to religious houses, to individual barons, orders concerning military arrangements and other matters of local administration,^[1070] all show such constant intervention and such personal interest on the king's part as to convey an impression that he was specially endeavouring to win for himself the support of the nobles, clergy and people of the Irish March as a counterpoise to the hostility and disaffection which surrounded him in his English realm. It was, however, to the Continent that he mainly looked for aid. "After much reflection," says Roger of Wendover, "he chose, like the Apostle Peter, to seek vengeance upon his enemies by means of two swords, that is, by a spiritual sword and a material one, so that if he could

not triumph by the one, he might safely count upon doing so by the other.”^[1071]

The spiritual weapon was the first to be actually drawn; but even before its first stroke fell, swords of the other kind were making ready for the king’s service. Emissaries from him were soon busy in “all the neighbouring lands beyond the sea,” gathering troops by promises of rich pay and ample endowments in English land, to be confirmed by charters if the recipients desired it.^[1072] The chancellor, Richard Marsh, was thus raising troops in Aquitaine;^[1073] Hugh de Boves was August doing the like in Flanders. Those whom they enlisted were to be ready to come to the king at Dover by Michaelmas Day.^[1074] John was also seeking allies in France. On August 12 he wrote to Count Peter of Brittany, offering him a grant of the honour of Richmond if he would come “with all speed, and with all the knights he could bring,” ready for service against the insurgents in England.^[1075] He is even said to have tried hard, “by enormous promises,” to gain help from Philip Augustus; but in this quarter “others had been beforehand with him,” says the chronicler significantly.^[1076] It was not without a cause that the barons at Runnymede had refused to write themselves John’s liegemen.

Within the realm, the royal castles were being revictualled and made ready to stand a siege at any moment.^[1077] As yet no further attempt had been made upon any of them; but in the north the barons, or their followers and partizans, had begun to lay waste the royal manors and overrun the forests, cutting down and selling the timber, and killing the deer. Again the archbishop and bishops came forward as peacemakers, and it was arranged that the king should meet them on August 16 at Oxford, while the barons should assemble at Brackley, there to await the result of the churchmen’s mediation. When the day arrived, however, the king was still in Wiltshire, and excused his absence on the ground that he had been so ill-treated since the conclusion of the peace, and moreover at the last conference the barons had come together in such menacing array, that he deemed it neither safe nor prudent to risk himself in their midst; an excuse which was practically justified by the action of the barons themselves, who, instead of waiting at Brackley as they had agreed to do, came “with a numerous following” to meet the bishops at Oxford.^[1078]

The bishops had now received from Rome a communication which made their position, or at least that of the Primate, an exceedingly anxious and painful one. In consequence, it seems, of John's letter of May 29 Innocent had issued a commission to the bishop of Winchester, the abbot of Reading and Pandulf, whereby he declared excommunicate all "disturbers of the king and kingdom of England, with their accomplices and abettors," laid their lands under interdict, and ordered the archbishop and his episcopal brethren, on pain of suspension from their office, to cause this excommunication to be published throughout the realm every Sunday and holiday till the offenders should have made satisfaction to the king and returned to their obedience.^[1079] Ill-fitted as the barons had proved to be for the great work in which Langton had sought to enlist them, the cause of England's freedom was yet too closely bound up with theirs for him to be willing to launch at them such a sentence as this, and he had sympathized too keenly with his country's misery under a former interdict not to recoil from the prospect of another. The barons, on the other hand, had been heedless of interdict and excommunication so long as their material interests coincided with those of the king against the Church; but the matter would wear a different aspect in their eyes now that the situation was reversed and their one hope was in the aid of the Church against the king. The Pope's mandate was shown to them and the bishops in conference at Oxford; after three days' deliberation the bishops agreed to delay the publication of the sentence till they had seen the king again and made one more effort to bring him to a colloquy in London or at Staines. It was rumoured that he had gone to the coast with the intention of quitting England altogether; and the bishops are said to have followed him to Portsmouth, and there found that he was actually on shipboard. He came ashore again, however, to speak with them; but he absolutely refused to hold any more personal conferences with the barons. The bishops returned to meet the barons at Staines on August 26, accompanied by envoys from the king, who were charged with a protest, to be delivered in his name in the hearing of the whole assembly, that "it was not his fault if the peace was not carried out according to the agreement." After long deliberation the papal sentence was proclaimed, but with a tacit understanding that it was to be, for the present at least, a dead letter, on the ground that as no names were mentioned in it, the phrase "disturbers of the king and kingdom" need not

Aug. 16–18

Aug. 23–24?

be applied to any person or group of persons in particular, but might be interpreted by every man as he pleased. The more violent partizans immediately applied it to the king himself, since in their eyes he was the chief troubler of the land, and therefore also his own worst enemy.^[1080]

After placing his queen and his eldest son in safety in Corfe castle,^[1081] John had taken ship, seemingly about August 24, at Southampton or Portsmouth, and sailed round the coast to Sandwich, where he appears to have landed on the 28th.^[1082] The barons in London, if we may believe the report of the chroniclers, were foolish enough to imagine that he would never land again at all.^[1083] They were now taking upon themselves, in all those counties where their power was strong enough, to supersede both the sheriffs and the justices and usurp their functions, parcelling out the country among members of their own body, each of whom was to act as the chief judicial and administrative authority in the district committed to him.^[1084] In their premature triumph they were even beginning to talk of choosing a new sovereign, and of calling the whole baronage of England to a council for that purpose, “since this ought to be done by the common consent of the whole realm.”^[1085] Early in September, however, the revolutionists awoke from their dreams to find that the king was safe in Dover castle, surrounded by a little band of foreign soldiers who had already joined him there, and awaiting the coming of the host which was gathering for him beyond the sea.^[1086] The three executors of the papal mandate were meanwhile insisting that now, at any rate, the barons had unquestionably fallen under its terms, by endeavouring to expel the king from his realm; and they excommunicated by name several of the revolutionary leaders, together with the citizens of London, whom they placed under interdict. These sentences, however, were disregarded, on the plea that they were barred by a previous appeal to the general council^[1087] which was to be held at Rome on All Saints’ Day, and which most of the English bishops were preparing to attend. Archbishop Stephen was about to set forth, in the middle of September, when two of the papal commissioners—Pandulf and Bishop Peter of Winchester—went to him in person and insisted that he should enforce the publication of the Pope’s sentence throughout his own diocese on all the appointed days, and order his suffragans to do the same. Stephen answered that he would take no further steps in the matter till he had spoken of it with the Pope himself, since he believed the sentence to be grounded

on a misunderstanding of the facts of the case. On this Pandulf and Peter denounced him as disobedient to the Pope's mandate, and, in accordance with its terms, suspended him from his office.^[1088]

Stephen accepted his suspension without protest. He was indeed so grievously disappointed at the turn which affairs in England had taken, and so hopeless of doing any further good there, that he had almost determined not only to resign his see, but to retire altogether from the world and bury himself in a hermitage or a Carthusian cell.^[1089] Several of the bishops visited the king before they went over sea;^[1090] we are not told whether Stephen did so; but he certainly had the king's permission for his journey to Rome, for on September 10 John by letters patent took under his protection all the archbishop's men, goods, lands and other possessions, and forbade his own men to do them any injury.^[1091] On the 13th the king wrote again to the Pope, asking for his counsel and aid, and complaining that "whereas before we subjected our land to you as overlord, our barons were obedient to us, now they have risen up violently against us, specially on account, as they publicly declare, of that very thing." This letter was carried by the archbishops of Bordeaux and Dublin and seven other envoys.^[1092] Pandulf—now bishop-elect of Norwich—seems to have gone to Rome about the same time, charged with another letter to the Pope.^[1093] But before any of these travellers had set out on their way the Pope had drawn his sword again; and this time the sword was a two-handed one. It was the sword of the temporal overlord of England, as well as of the spiritual head of Christendom.

The sixty-first article of the Charter enacted, as we have seen, that if the king should procure "from any one" a revocation or cassation of that document, such revocation should be accounted void. The only person, however, from whom such a thing could possibly be sought was of course the Pope; and in so far as the Pope was concerned, the clause was itself in feudal law null and void from the beginning, owing to the action of the barons before the Charter was drawn up or thought of. Whatever may have been their real share in the surrender of the kingdom to the Pope in May 1213, they had at any rate in February 1215, if we may believe William Mauclerc (and there is no reason for disbelieving him), put on record their full concurrence in that transaction after it was accomplished, and even

taken voluntarily upon themselves the whole responsibility both for its accomplishment and for its initiation.^[1094] Thereby they had deprived themselves of whatever legal pretexts they might otherwise have had for repudiating its consequences; and foremost of those consequences was the fact that the Pope was now legally the supreme arbiter of political affairs in England, by a right which had been given to him by the joint action of the king and the barons, and against which no later reservation made between those two parties themselves (such as the sixty-first article of the Charter) was of any force in feudal law. The framers of the Charter seem to have been conscious of this;^[1095] John, indeed, had pointedly reminded them of it before he consented to the Charter, telling the barons, in answer to their demands, that nothing in the government and constitution of England ought to be, or lawfully could be, altered without the knowledge and sanction of the Pope, now that he was overlord of the realm; and he had publicly appealed to the Pope, as overlord, against them and all their doings. As soon as the Charter was sealed, he had despatched envoys to Rome to prosecute his appeal, and to lay before Innocent a statement of his case, together with such extracts from the Charter as were most likely to influence the Pope in his favour. The result was that on August 24—two days before the papal denunciation of the “disturbers of the realm” was published by the English bishops at Staines—Innocent as temporal overlord of England quashed the Charter, and as Pope forbade its observance by either king or people, on pain of excommunication.^[1096]

FOOTNOTES: [\[Skip footnotes\]](#)

^[926] *Rot. Claus.* vol. i. p. 166 b.

^[927] *W. Coventry*, vol. ii. p. 217.

^[928] *W. Coventry*, vol. ii. p. 217.

^[929] *Ib.* p. 218.

^[930] “Ut fama refert,” *R. Wendover*, vol. iii. p. 263.

^[931] *R. Wendover*, vol. iii. pp. 263–6.

[932] *Ann. Waverl.* a. 1214; “potestate sua non bene utens, iram baronum converti fecerat contra regem.”

[933] R. Coggeshall, p. 170.

[934] Articles of the Barons, 1215 cc. 39, 47.

[935] *Ib.* c. 8.

[936] Of the value to which these profits had risen some idea may be gathered from the fact that a *proficuum* of £336: 18: 8 was accounted for as due to the Treasury in 1205 by the sheriff of Staffordshire and Shropshire, of which two counties the united ferm was £413: 12: 4, *Salt Archaeol. Soc. Publications*, vol. ii. pp. 129, 133. It must, however, be added that this *proficuum* was reduced next year to £266: 13: 4, and went down further year by year, till in 1212 it was only about £155: 11s., *ib.* pp. 136, 138, 142, 145, 147, 151, 159. After that year the Pipe Rolls are in confusion till 1218.

[937] Art. Bar. c. 14.

[938] *Ib.* c. 28.

[939] W. Coventry, vol. ii. pp. 214, 215.

[940] Art. Bar. c. 26.

[941] *Ib.* c. 30.

[942] *Ib.* c. 8.

[943] *Ib.* c. 13.

[944] *Ib.* c. 24.

[945] Art. Bar. c. 9.

[946] *Ib.* c. 10.

[947] *Ib.* c. 22.

[948] *Ib.* c. 1.

[949] *Ib.* c. 36.

[950] *Ib.* c. 4.

[951] *Ib.* c. 17.

[952] *Ib.* c. 3.

[953] *Ib.* c. 27.

[954] *Ib.* c. 5.

[955] Art. Bar. c. 15.

[956] *Ib.* cc. 34, 35.

[957] *Ib.* c. 31.

[958] *Ib.* c. 11.

[959] *Ib.* c. 23.

[960] *Ib.* c. 43.

[961] *Ib.* cc. 18, 20.

[962] *Ib.* c. 29.

[963] *Ib.* c. 33.

[964] *Ib.* c. 6.

[965] *Ann. Waverl.* a. 1213.

[966] R. Wendover, vol. iii. pp. 300, 301.

[967] See [Note II.](#) at end.

[968] Charter of Henry I. cc. 2, 4, 1.

[969] W. Coventry, vol. ii. p. 218.

[970] R. Wendover, vol. iii. pp. 293, 294. Cf. R. Coggeshall, p. 170.

[971] *Itin.* a. 16.

[972] He was at Worcester December 25–27; Tewkesbury, 27, 28; Geddington, December 31, 1214; and at the New Temple in London January 7–15, 1215. *Itin.* a. 16.

[973] R. Wendover, vol. iii. p. 296. Cf. W. Coventry, vol. ii. p. 218.

[974] *Foedera*, vol. i. pt. i. p. 120.

[975] R. Wendover, [l.c.](#)

[976] “Isti omnes conjurati Stephanum Cantuariensem archiepiscopum capitalem consentaneum habuerunt,” *ib.* p. 298.

[977] W. Coventry, vol. ii. p. 218. It need scarcely be remarked that the charter contains not a word on the subject. The argument evidently was “whatever is not in the charter is contrary to it”; in other words, “omission is prohibition.” The fact that such an argument might be used on both sides was of course conveniently ignored.

[978] *Rot. Pat.* vol. i. p. 128.

[979] W. Coventry, vol. ii. p. 218.

[980] *Rot. Pat.* p. 130.

[981] *Rot. Claus.* vol. i. p. 187 b.

[982] *Rot. Pat.* p. 129.

[983] *Ib.* p. 130.

[984] *Foedera*, vol. i. pt. i. p. 120. See above, [p. 182](#).

[985] *Foedera*, vol. i. pt. i. p. 127.

[986] *Ib.* p. 128.

[987] On February 2, according to R. Wendover, vol. iii. p. 296; on Ash Wednesday (March 4), according to W. Coventry, vol. ii. p. 219, and *Ann. Winton.* a. 1215. This latter is the likelier date; if the fact had been known at Rome before the Pope's letters were written, they would almost certainly have contained some reference to it.

[988] W. Coventry, [l.c.](#)

[989] R. Wendover, vol. iii. pp. 297, 298; M. Paris, *Chron. Maj.* vol. ii. p. 585. W. Coventry, vol. ii. p. 219, adds a bishop, Giles of Hereford. Giles, however, was there not as bishop, but as the avenger of his father, mother and brother—William, Maud, and the younger William de Braose.

[990] W. Coventry, vol. ii. p. 219.

[991] *Itin.* a. 16.

[992] W. Coventry, [l.c.](#)

[993] *Ib.*

[994] R. Wendover, vol. iii. p. 298.

[995] Roger of Wendover, Walter of Coventry, and several other annalists absurdly say that in Easter week (April 19–26) John was at, or near, Oxford, where he was to have met the barons. John had not been at Oxford since the Tuesday before Easter, April 13; from the 16th to the 23rd he was in London; on the 23rd he went to Kingston, Reading and Alton, and thence on the 26th to Clarendon; *Itin.* a. 16. On the day he left London he granted a general safe-conduct to all persons who should come to him in the suite of or with letters patent from the archbishop (*Rot. Pat.* p. 134); none of the barons, however, seem to have availed themselves of this offer.

[996] R. Wendover, vol. iii. p. 299.

[997] W. Coventry, vol. ii. p. 219.

[998] R. Wendover, [l.c.](#)

- [999] Cf. R. Wendover, *l.c.*, and R. Coggeshall, p. 171.
- [1000] *Rot. Pat.* p. 134 b.
- [1001] *Rot. Claus.* vol. i. p. 198, 198 b; *Rot. Pat.* p. 135.
- [1002] *Rot. Pat.* p. 135, 135 b.
- [1003] On May 8 John announces that some horse and foot are coming over under Gerard of Gravelines; *Rot. Pat.* p. 141.
- [1004] *Ib.* p. 135 (May 11).
- [1005] May 7–9; *Itin.* a. 16.
- [1006] *Rot. Chart.* p. 207.
- [1007] R. Wendover, vol. iii. p. 299.
- [1008] W. Coventry, vol. ii. p. 220.
- [1009] *Rot. Pat.* p. 141.
- [1010] *Rot. Chart.* p. 209; *Rot. Claus.* vol. i. p. 204.
- [1011] *Rot. Pat.* p. 136 b.
- [1012] R. Wendover, vol. iii. pp. 299, 300; W. Coventry, vol. ii. p. 220; R. Coggeshall, p. 171; for date see *Rot. Pat.* vol. i. p. 137 b.
- [1013] R. Wendover, vol. iii. pp. 300, 301.
- [1014] *Itin.* a. 16, May 10–17.
- [1015] *Hist. des Ducs*, pp. 147, 148. John was at Fremantle May 17–19; thence he went to Silchester, May 19; Winchester, 19, 20; Odiham, 21, 22; Windsor, 22, 23; Winchester again, 23; *Itin.* a. 16.
- [1016] *Hist. des Ducs*, pp. 148, 149.
- [1017] *Rot. Pat.* p. 138.
- [1018] *Ib.* p. 138 b.
- [1019] Rochester castle was restored to the archbishop after the “peace” in June. R. Wendover, vol. iii. p. 319.
- [1020] *Rot. Pat.* p. 142.
- [1021] *Rot. Pat.* p. 141 b.
- [1022] *Foedera*, vol. i. pt. i. p. 129.

[1023] *Rot. Claus.* vol. i. p. 214.

[1024] *W. Coventry*, vol. ii. pp. 220, 221. Cf. *R. Coggeshall*, p. 171.

[1025] *R. Wendover*, vol. iii. p. 301.

[1026] *Itin.* a. 17. The authentic details of John's movements at this time are of some importance in view of Ralph of Coggeshall's assertion (p. 172) that he was just then so overcome with terror "ut jam extra Windleshoram nusquam progredi auderet."

[1027] *Rot. Pat.* pp. 142 b, 143.

[1028] *R. Wendover*, vol. iii. p. 301.

[1029] "In prato qui vocatur Runemad," *R. Coggeshall*, p. 172.

[1030] *Ib.*

[1031] *R. Wendover*, vol. iii. p. 302.

[1032] *Stubbs, Const. Hist.* vol. i. p. 530.

[1033] Heading of Articles of the Barons: "Ista sunt capitula quae Barones petunt et Dominus Rex concedit."

[1034] *R. Coggeshall*, p. 172. Cf. *Gerv. Cant.* vol. ii. p. 96.

[1035] *Rot. Pat.* p. 143. The "die Veneris" which occurs three times in this writ is in each case an unquestionable, though unaccountable, error for "die Lunae."

[1036] *Art. Bar.* c. 49.

[1037] *Art. Bar.* c. 49; *Magna Charta*, c. 61.

[1038] *M. Charta*, c. 63.

[1039] *Ib.* c. 61.

[1040] *M. Paris, Chron. Maj.* vol. ii. p. 611, "Ecce vigesimus quintus" [it should have been "sextus"] "rex in Anglia; ecce jam non rex, nec etiam regulus, sed regum opprobrium," etc.

[1041] *M. Charta*, c. 61.

[1042] *Ib.* cc. 15, 16, 60.

[1043] The twenty-five were of course all "Northerners" in the political sense; see the list in *M. Paris, Chron. Maj.* vol. ii. p. 604.

[1044] The list of these thirty-eight is headed "Obsecutores et Observatores," and ends thus: "Isti omnes juraverunt quod obsequerentur mandato viginti quinque baronum." Another MS. adds: "Omnes isti juraverunt cogere si opus esset ipsos XXV barones ut rectificarent regem. Et etiam cogere ipsum si mutato animo forte recalcitraret," *M. Paris*,

Chron. Maj. vol. ii. pp. 605, 606. Considering the whole context, I think there can be little doubt that “rectificare regem”—though an odd way of expressing it—really means here “to do right to the king.”

[1045] *Rot. Pat.* p. 181.

[1046] M. Paris, *Chron. Maj.* vol. ii. p. 611.

[1047] M. Paris, *Hist. Angl.* vol. ii. p. 159.

[1048] *Rot. Pat.* p. 180 b.

[1049] *Ib.* p. 143 b.

[1050] *Ib.* p. 144.

[1051] *Ib.* pp. 144 b, 145.

[1052] *Ib.* p. 144 b.

[1053] *Ib.* p. 145 b.

[1054] *Itin.* a. 17.

[1055] *Hist. des Ducs*, p. 151.

[1056] W. Coventry, vol. ii. p. 221; *Rot. Claus.* vol. i. pp. 215–18.

[1057] W. Coventry, *l.c.*

[1058] Round, *Geoffrey de Mandeville*, pp. 89, 166.

[1059] W. Coventry, vol. ii. p. 225, sums up the earl’s position and character very suggestively: “In parte adversa erat Gaufridus de Maundevilla comes Essexæ, quem rex cingulo militari donaverat, quique regi in XIX millibus marcarum obligatus erat pro comitissa Gloucestriae quondam uxore sua, quam iste nuper acceperat.” See above, [p. 196](#). Geoffrey’s first wife had been a daughter of Robert Fitz-Walter; see [Note I](#) at end.

[1060] W. Coventry, vol. ii. p. 221; *Ann. Dunst.* a. 1215. Cf. R. Wendover, vol. iii. p. 319.

[1061] R. Wendover, *l.c.*

[1062] *Ib.*; R. Coggeshall, p. 172.

[1063] *Itin.* a. 17.

[1064] W. Coventry, vol. ii. p. 222.

[1065] R. Wendover, vol. iii. pp. 321, 322.

[1066] W. Coventry, *l.c.*

[1067] *Rot. Pat.* p. 149.

[1068] *Ib.* p. 148.

[1069] *Ib.* p. 148 b.

[1070] *Rot. Claus.* vol. i. pp. 218, 218 b, 219, 219 b; *Rot. Chart.* pp. 210–13.

[1071] R. Wendover, vol. iii. p. 319.

[1072] R. Wendover, vol. iii. p. 320; where, however, the list of emissaries is obviously incorrect.

[1073] *Rot. Pat.* p. 153, 153 b.

[1074] R. Wendover, *l.c.*

[1075] *Rot. Pat.* vol. i. p. 152 b.

[1076] W. Coventry, vol. ii. p. 222.

[1077] R. Wendover, *l.c.*

[1078] W. Coventry, vol. ii. p. 222.

[1079] R. Wendover, vol. iii. pp. 336–8; misplaced, as may be seen by comparing W. Coventry, vol. ii. p. 223.

[1080] W. Coventry, vol. ii. p. 224. Cf. R. Wendover, vol. iii. p. 341.

[1081] *Hist. des Ducs*, p. 152.

[1082] John's Itinerary, a. 17, is blank from August 22, when he was at Wareham, to August 28, when he appears at Sandwich. The *Hist. des Ducs*, p. 153, accounts for this blank by stating that he went by sea from Southampton to Dover (whither he did proceed on August 31 or September 1; *Itin.* *l.c.*). W. Coventry (vol. ii. p. 224) says the bishops who left Oxford on August 19 to seek him found him just embarked at Portsmouth, which comes to the same thing.

[1083] The absurdity of the reports given in R. Wendover (vol. iii. pp. 320, 321) and M. Paris (*Hist. Angl.* vol. ii. pp. 160, 161) about John's movements at this time was pointed out long ago by Dr. Lingard, *Hist. England*, vol. ii. p. 362.

[1084] Earl Geoffrey de Mandeville took Essex; Robert Fitz-Walter, Northamptonshire; Roger de Cresci, Norfolk and Suffolk; the earl of Winchester, Cambridgeshire and Huntingdonshire; William of Aubigny, Lincolnshire; John de Lacy, Yorkshire and Nottinghamshire; Robert de Ros, Northumberland. W. Coventry, vol. ii. p. 224.

[1085] *Ib.*

[1086] *Ib.* Cf. *Hist. des Ducs*, p. 153.

[1087] W. Coventry, *l.c.*

[1088] R. Wendover, vol. iii. p. 340. Cf. R. Coggeshall, p. 174, and W. Coventry, vol. ii. p. 225.

[1089] Gir. Cambr. vol. i. p. 401.

[1090] W. Coventry, vol. ii. pp. 224, 225.

[1091] *Rot. Pat.* p. 154 b. This disposes of R. Coggeshall's assertion (p. 174) that Stephen went "rege invito et ei minas intentante."

[1092] *Rot. Pat.* p. 182.

[1093] *Ib.* p. 182 b(dateless).

[1094] See above, pp. [182](#) and [225](#).

[1095] In the "Articles of the Barons," c. 49, this reservation-clause ran: "Rex faciet eos securos per cartas archiepiscopi et episcoporum et magistri Pandulfi quod nihil impetrabit *a domino Papa*," etc. In the Charter, c. 61, "*ab aliquo*" was substituted for "a domino Papa," and the security to be given by letters patent of Pandulf and the bishops was made to refer to the keeping of the Charter in general (*ib.* c. 62), instead of to that one particular point.

[1096] R. Wendover, vol. iii. pp. 322–7.

CHAPTER VII

JOHN LACKLAND

1215–1216

Dicitur ... “Sine Terra,” quia moriturus nil terrae in pace possedit.

M. Paris, *Hist. Angl.* vol. ii. p. 191.

The Pope’s letters evidently did not reach England till after the primate and the bishops had set out for Rome, so that there was no one left to publish the new sentence; and it seems, in fact, never to have been published in England at all. But its existence soon became known there; and when once the barons knew of it, they knew, too, that they must make their choice between unconditional surrender and war to the uttermost with both king and Pope; for there was no one left to act as their mediator with either. They chose war; but they were not ready for war, and the king was. Poitevins, Gascons, Brabantines, Flemings, were flocking to him from over sea.^[1097] On October 2 he ordered his brother, Earl William of Salisbury, to visit ten royal castles and select from their garrisons troops for service in the field. On the 4th he committed the superintendence of military affairs in mid-England and the west to Falkes de Bréauté, and issued a general safe-conduct to “all who may wish to return to our fealty and service” through the medium of Falkes or the earl.^[1098] He himself had, towards the end of September, advanced as far inland as Malling;^[1099] but this seems to have been merely a sort of reconnoitring expedition; his plan evidently was to wait till all his expected reinforcements had arrived from over sea, and then march with them upon London, while William and Falkes did the same with the troops which they could bring up from the west, so as to place the capital between two fires.

1215

While his forces were concentrating, those of the barons were scattering; they had no scheme of united action; one party had renewed the siege of Northampton castle, another was engaged in that of Oxford.^[1100] At last the leaders in London decided that something must be done to bar John's way to the capital; and they advanced into Kent as far as Ospring. When they reached it John was at Canterbury; having only a small escort he, on hearing of his enemies' approach, hurriedly fell back to Dover; they, however, were so scared by a report that he had set out from Canterbury to offer them battle that they beat an equally hasty retreat towards Rochester.^[1101] Their great fear was lest he should gain possession of Rochester castle, which he had vainly tried to induce the archbishop to give up to him two months before.^[1102] On October 11 Reginald of Cornhill, in whose charge Stephen had left it, suffered it to be occupied by a band of picked knights under William of Aubigny. But the triumph of the intruders was shortlived; two days later the king was at the gates of Rochester.^[1103]

"Certes, sire," said one of John's Flemish allies as the royal host set out for Rochester, "you make little account of your enemies if you go to fight them with so small a force!" "I know them too well," answered John; "they are to be nothing accounted of or feared. With fewer men than we have we might safely fight them. Certes, one thing I may tell you truly, I grieve not so much for the evil which the men of my land are doing to me, as that their wickedness should be seen by strangers."^[1104] The king knew what the stranger did not know, that so long as he could keep the Medway between himself and the main body of the barons he was safe. He therefore began his operations by an attempt to destroy the bridge, and thus to cut off the communications between Rochester and London. It seems that he sent a party up the river in boats to fire the bridge from beneath, and that they succeeded in so doing, but that Robert Fitz-Walter, with a picked body of knights and men-at-arms, was guarding the bridge at the time and managed to extinguish the flames and drive off the assailants.^[1105] Fitz-Walter, however, appears to have immediately returned to London;^[1106] and in a second attack on the bridge John was completely successful; the bridge was destroyed, and the king proceeded to invest the castle^[1107] and assault the town.

On his first approach the citizens had manned their walls and “made a great show of defending themselves”; but “when they saw he was preparing to assault them they broke into a rout, left the battlements, and fled on all sides. Then his men entered through the gates, and began to chase them through the town to the bridge so vigorously that they drove all the knights by force into the castle; of whom”—sarcastically adds the Flemish soldier of fortune who tells the tale—“many would gladly have fled to London if they could.”^[1108] But they could not, the bridge being now gone. The whole party thus gathered in the castle numbered about ninety-five knights and forty-five men-at-arms.^[1109] The castle when given to William of Aubigny and his followers was destitute of provisions; they had had no time to procure any, save what little they could get in the town;^[1110] and they saw before them an imminent prospect of starvation. John pressed the siege vigorously; on the day after its commencement he ordered “all the smiths in Canterbury” to devote their whole time, “day and night,” to making pickaxes, which were to be sent to him at Rochester as fast as they were made.^[1111] His forces increased daily till they became “such a multitude that they struck fear and horror into all who beheld them.”^[1112] They ravaged all over Kent, and wrought havoc in Rochester, stabling their horses in the cathedral and committing every kind of sacrilege in the holy places.^[1113]

At all this the barons in London looked on in helpless consternation. They had plighted a solemn oath to William of Aubigny, when he undertook the expedition to Rochester, that if the king besieged him there they would succour him without fail.^[1114] A fortnight passed before they made any movement to redeem their promise; then, on October 26, some seven hundred knights^[1115] set out under the command of Robert Fitz-Walter; but they got no farther than Dartford. One chronicler says they “retreated before the breath of a very soft south wind as if beaten back by swords”;^[1116] another, that they turned back in dismay on hearing how numerous were the forces of the king;^[1117] a third, that they were misled on this point by an exaggerated account given them by a Templar sent to meet them for that purpose by John himself.^[1118] In any case, they returned to London, and having taken care to provide themselves with ample stores, they sat down to “play at the fatal dice and drink the best wine, according to each man’s

taste, and do it is needless to say what besides,”^[1119] till S. Andrew’s Day. By that time they expected important reinforcements; and they reckoned that the besieged could hold out till then.^[1120]

William of Aubigny and his comrades did hold out, but at desperate odds. Every possible mode of attack—mining, battery, assault—was tried in turn upon the fortress. Five great slinging engines were plied incessantly, day and night, against its walls. The garrison, already short of food, and expecting no mercy from the king if they surrendered, were minded to sell their lives dearly; they fought like heroes; “nor,” says the Barnwell annalist, “does living memory recall any siege so urgently carried on and so manfully resisted.”^[1121] A strange contrivance at last shattered the mighty keep. On November 25 John ordered the justiciar to send him with all possible speed “forty bacon-pigs of the fattest, and of those which are least good for eating, to be put to set fire to the stuff that we have got together under the tower.”^[1122] Of the results of the blaze thus kindled a token remains to this day, in the round tower which at the south-west angle of the keep contrasts so markedly with the square towers at the other corners, and which replaces the original square one thus destroyed by John. Even after its fall the garrison fought on until their last morsel of food was gone; then at last they surrendered on S. Andrew’s Day.^[1123] The king set up a gallows in front of the army and declared he would hang them all; but he yielded to Savaric de Mauléon’s warning that if he hanged brave knights such as these, the barons would surely do the like to any friends of his who might fall into their hands, and that in view of such a prospect no man would remain in his service.^[1124] On this he contented himself with sending the knights to prison, leaving the men-at-arms to ransom themselves as best they could, and hanging only a few cross-bowmen.^[1125]

Three times since the siege began the barons in London, or some of them, had opened negotiations with the king. On October 17 Richard of Argentan and others had a safe-conduct “to treat with us for peace between ourself and our barons”;^[1126] on October 22 Roger de Jarpeville and Robert de Coleville had a safe-conduct till the 27th to treat with the king concerning peace between him and “the barons who may come with the Master of the Temple and the Prior of the Hospital”;^[1127] and on November 9 a safe-conduct till the 12th was given to Earl Richard of Clare, Robert Fitz-Walter,

Geoffrey de Say, and the mayor and two, three or four citizens of London, that they might go and speak with the bishop of Winchester, the earls of Warenne and Arundel, and Hubert de Burgh, “to treat of peace between ourself and our barons.”^[1128] On the side of the barons these overtures were nothing but a cloak for the cowardice and incapacity which kept them from taking any active steps for the relief of their besieged comrades. They were all the while pushing on negotiations for bringing in a foreign power to aid them in their selfish scheme of revolution.

One chronicler asserts that as long ago as the year 1210 some of the barons had contemplated driving John from his throne and setting up as king in his stead a man who, though born on foreign soil and engaged throughout his whole life in the service of foreign powers, had yet a claim to rank as one of themselves, and certainly not as the least distinguished among them—Simon, count of Montfort and titular earl of Leicester.^[1129] To modern eyes the cruelties of the war against the Albigenses, in which Simon was the leader of the “crusading” host, have somewhat obscured the nobler aspects of a character which was not without a heroic side. It was indeed by a strange instinct that—if the Dunstable annalist’s tale be true—the chiefs of the English revolutionary party fixed their hopes for a moment on the father of that other Simon de Montfort, at that time still but a boy, who was one day to seal with his blood the work of England’s deliverance which they professed to have at heart, but which in their narrow and short-sighted selfishness they were alike unworthy and incapable of achieving. The instinct was at any rate a loftier one than that which guided them in their choice of a rival to John five years later. The scheme put forth by the group of barons in London in the summer of 1215 for electing a new king “by the common consent of the whole realm” of course came to nothing; the magnates would have none of it, and the northern barons who had separated from the other malcontents before the sealing of the Charter had, as will be seen later, made an independent choice of their own. The mad little faction in London, headed now by Earl Geoffrey de Mandeville, acted by themselves and for themselves alone when they “chose for their lord” the eldest son of the king of France, “begging and praying him that he would come with a mighty arm to pluck them out of the hand of this tyrant.”^[1130]

Only one English chronicler gives or even pretends to give any hint of the grounds on which this choice was, either really or nominally, based. In no English writer of the time do we find any indication that the connexion of Louis of France with the reigning royal house of England, through his marriage with John's sister's daughter, had, or was supposed to have, anything to do with it. The claim to the English crown which Louis afterwards put forth on this ground seems to have been an idea of purely French origin, which not only had never suggested itself to any English mind, but, when it was suggested, failed to meet with general recognition even among Louis's partizans in England. The intricate rules of succession, and especially of female succession, which it pre-supposed were as yet, when applied to the Crown at least, completely strange to English statesmen. Moreover, it is by no means clear that the barons who offered the Crown to Louis had any real intention of transferring it to him and his heirs for ever. Roger of Wendover tells us that "after hesitating for some time whom they should choose, they at length agreed upon this, that they would set over themselves Louis, the son of King Philip of France, and raise him up to be king of England. Their reason was that if through the agency of Louis and his father King John could be deprived of the host of foreign soldiers who surrounded him, most of whom were subjects of Louis^[1131] or Philip, he, being without support from either side of the sea, would be left alone and unable to fight."^[1132] In other words, they wanted Louis as a tool wherewith to crush John; and to gain him for their tool they offered him the bribe of the crown, thinking that when their immediate purpose should be accomplished it would be time enough to consider whether the annexation of England to France would or would not really profit them better than to break faith with their new lord as they had broken it with their old one.

The first direct overtures of the barons to Louis seem to have been made before the outbreak of hostilities, in September or October 1215;^[1133] and these overtures were renewed at some time after the commencement of the siege of Rochester, when the earls of Winchester and Hereford went over with a message from their comrades in London to Louis, that "if he would pack up his clothes and come, they would give him the kingdom and make him their lord."^[1134] These envoys were at once confronted by Philip with a letter which he had just received, purporting to come from the same barons and informing him that his son's intervention was no longer needed, as

peace had been made between them and their own sovereign. The earl of Winchester offered to pledge his head that the letter was forged by John.^[1135] The French king accepted this assurance; but he was too wary to commit himself hastily to a scheme so full of perils and difficulties as that which the earls so lightly proposed, and he merely gave it a negative countenance by standing altogether aloof from their negotiations with his son. Louis promised that he would at once send to England as many knights as he could get, and would himself follow them at Easter. He then called his own vassals together at Hesdin, and at the end of November some hundred and forty of his knights with their followers—in all about seven thousand men—landed at the mouth of the Orwell^[1136] and made their way to London, “where they were very well received and led a sumptuous life; only they were there in great discomfort because they ran short of wine and had only beer to drink, to which they were not accustomed. Thus they remained all the winter.”^[1137]

John spent the winter in other fashion. On November 28—two days before the surrender of Rochester—Tonbridge castle, which belonged to the rebel earl of Clare, had surrendered to Robert de Béthune, one of John’s Flemish allies, and on the same day the castle of Bedford yielded to Falkes de Bréauté. In each case the garrison had sent to their lord for help, and in each case no help had been given them.^[1138] John left Rochester on December 6, marched through Essex and Surrey into Hampshire, and thence proceeded to Windsor.^[1139] On the 20th he held a council at S. Albans.^[1140] Two of his envoys had recently come back from Rome with a papal confirmation of the suspension of Archbishop Stephen.^[1141] This was read to the convent assembled in the chapter-house, and committed to them for transmission to all cathedral and conventual churches throughout England. The king then retired with his counsellors into the cloister “to arrange how he might confound the magnates of England who were his enemies, and how he might find pay for the foreigners who were fighting under him.” He decided upon dividing his host into two bodies; one was placed under the command of Earl William of Salisbury, assisted by Falkes de Bréauté, Savaric de Mauléon, William Brewer, and a Brabantine captain known as Walter Buck, with orders to check the irruptions of the barons who were in London; of the other the king himself took the command,

“intending to go through the northern provinces of England, and destroy with fire and sword everything that came in his way.”^[1142]

That same night John, with his division, moved on to Dunstable; before daybreak on the morrow he set out for Northampton, and by Christmas he was at Nottingham.^[1143] All along his route he sent out parties in every direction to burn the houses of the hostile barons and seize their cattle and their goods; every obstacle that stood in his path was destroyed; and as if the day were not long enough to satiate his love of destruction, he would send men out at night to fire the hedges and the villages along his line of march, that he might rejoice his eyes with the damage done to his enemies; while the other question which had occupied his deliberations at S. Albans, the remuneration of his followers, was solved with the produce of the rapine in which they were not merely indulged but encouraged. Every human being, of whatever rank, sex or age, who crossed the path of this terrible host was seized, tortured, and put to heavy ransom. The constables of the baronial castles dared not trust to the protection of their walls; at the report of the king’s approach they fled, leaving their fortresses to be occupied by him and his troops.^[1144] Thus, “not in the usual manner, but as one on the war-path,” he kept Christmas at Nottingham.^[1145] On the following day he moved on to Langar, and thence, next morning, despatched a notice to the garrison of William of Aubigny’s castle of Belvoir that if they did not surrender at once, their lord should be starved to death. To this threat they yielded.^[1146]

Dec. 20

Dec. 26

Dec. 27

Meanwhile, the barons in London had made no use of the reinforcements sent to them by Louis. They seem to have despaired of overcoming John by any means short of an invasion headed by Louis in person with the whole forces of the French kingdom at his back. Towards the close of the year Saher de Quincy and Robert Fitz-Walter went on another embassy to Philip and Louis, “urgently imploring the father that he would send his son to reign in England, and the son that he would come thither to be crowned.” How or by whom he was to be crowned, when the only prelate competent to perform the rite was in exile and under suspension, and the rival sovereign was under the direct protection of the Pope, they did not explain. Philip refused to entertain their proposals without further security, and demanded “twenty-four hostages at

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least, of the noblest of the whole land.” The hostages were sent under the charge of the earls of Gloucester and Hereford. When they arrived, Louis began to prepare eagerly for his expedition; but there were still weighty reasons why, as an English chronicler says, “he himself could not hastily set out to undertake so arduous a matter.” So, “to raise the hopes of the barons and try their fidelity,”^[1147] he sent his marshal and some others of his vassals with a second contingent, some three hundred knights and cross-bowmen and a proportionate number of foot soldiers, all of whom, together with the English earls, sailed up the Thames and arrived in London just after Epiphany 1216; he himself promising on oath that he would be at the coast, ready to cross, “with a great multitude of people,” at latest on the octave of S. Hilary, January 20.^[1148]

c. Jan. 8

So, while John was pursuing his northward march, the barons sat still and waited. The southern division of John’s host meanwhile was far from idle. Between Christmas and the middle of January detachments of it overran the whole of Essex, Hertfordshire, Middlesex, Cambridgeshire and Huntingdonshire, while the main body marched to S. Edmund’s, drove the insurgents who had taken refuge there to seek another shelter in the Isle of Ely, followed them thither, and sacked, burned and ravaged the patrimony of S. Etheldreda as they did every other place to which they came.^[1149] Their leaders, before setting out, had charged the constables of Windsor, Hertford and Berkhamsted to keep a watch upon all who went into and out of London, and if possible to stop the supplies of the barons there. This latter charge either proved impossible to execute, or the constables deemed its execution impolitic, and deliberately preferred to let the king’s enemies in London ruin themselves by “lying there like delicate women, anxiously considering what variety of food and drink could be set before them to renew their wearied appetites.”^[1150] The advance of Savaric de Mauléon on Colchester, on January 29, perhaps roused them at last, for a report reached him that they were hastening to relieve it, and caused him to retire towards S. Edmunds,^[1151] probably to rejoin the other royalist leaders who had been doing the work of destruction at Ely. But the barons, still vainly waiting for their foreign ally who came not, made no further movement; and even when the royalists fired a suburb of London itself, and carried off “plunder of inestimable value,”^[1152] no retaliation seems to have been attempted.

While the barons slumbered—as a chronicler says—the king was not asleep;^[1153] he was wreaking his long-delayed vengeance on the north. The malcontents in the land beyond the Humber had been quicker than their southern comrades to recognize their need of foreign help in their struggle against John, and they had taken a short and easy way of obtaining it for themselves. No sooner had civil war broken out in England in the autumn of 1215 than the young Scottish king, Alexander, who owed his throne and almost his life to the timely help which John had given to his father four years before, marched into Northumberland and laid siege, on October 19, to Norham castle.

1215

Three days later the Northumbrian barons did homage to him at Felton. No immediate results, indeed, followed from this new league; the garrison of Norham seem to have been as loyal as their castle was strong; at the end of forty days Alexander raised the siege and returned home,^[1154] just as John was on the point of receiving the surrender of Rochester; and for more than a month no further movement took place in the north except an obscure rising at York.^[1155] When at the opening of 1216 John entered Yorkshire, the terror of his march to Nottingham had gone before him and all thought of resistance was abandoned. He reached Pontefract on January 2; its constable “came there to his mercy.”^[1156] He went on to “his city of York,” and “wrought all his will with it.”^[1157] On January 7 and 8 he was at Darlington.^[1158] The horrors wrought by his troops seem to have equalled, if not surpassed, those which the Scots had been wont to perpetrate in their raids upon Northumbria in their days of savage heathenism before the conversion of Malcolm Canmore.^[1159] A few barons “submitted themselves to the mercy of the merciless one”; the rest “fled before his face.”^[1160] From Darlington he seems to have advanced on the 8th to Durham; thence he was about to turn southward again, when he learned that Alexander had set fire to Newcastle-on-Tyne. Swearing “by God’s teeth” that he would “run the little sandy fox-cub to his earth,”^[1161] John dashed forward to Newcastle; the place was indeed burnt, but Alexander had withdrawn into his own territory,^[1162] and on the 11th the English refugees gathered round him in the chapter-house at Melrose and renewed their oath to him on the relics of the saints. John was on their track, burning and ravaging what little

1215–16

Nov. 28

there was left to ravage—little enough, for the fugitives had set fire to their own fields and villages that he might get no benefit from them.^[1163] On the day of the homage at Melrose John reached Alnwick.^[1164] On the 14th he assaulted Berwick; town and castle were taken next day,^[1165] and the population butchered, after horrible tortures, by his mercenaries. From Berwick he made, in the following week, a series of raids across the Tweed, and swept the country as far as Dunbar and Haddington, both of which he burned. At last, seeing that the “fox-cub” was not worth a longer chase and that there was more important work to be done elsewhere, he ordered Berwick to be burnt, fired with his own hand—so the Scottish story runs—the house in which he had himself been lodging,^[1166] and on January 23 or 24 began to move southward. After stopping two days at Newcastle^[1167] and granting a new charter to its citizens,^[1168] he made his way slowly back through Yorkshire. When at the end of February he reached Fotheringay,^[1169] all the castles in the shire save two were in his power and garrisoned by followers of his own, who were charged to hold the country and continue the work of destruction on the lands of the rebels wherever there was anything left to destroy.^[1170] Alexander’s dreams of conquest, the Northumbrian barons’ dream of independence—if subjection to their country’s hereditary foe could be called independence—were alike at an end. Alexander, indeed, made a raid upon Carlisle as soon as John’s back was turned;^[1171] but it was a mere raid which led to nothing. Far more significant is the string of safe-conducts which shows how throughout the winter and the spring the terror-stricken English rebels came crowding in to make their peace with John.^[1172]

John had now regained the mastery over the whole eastern side of England, from the south coast to the Scottish border,^[1173] except a few castles in Norfolk, Suffolk and Essex. After spending a week in Bedfordshire,^[1174] probably to concert measures with Falkes de Bréauté, he marched into East Anglia. On March 12 he was at the gates of Roger Bigod’s castle of Framlingham; it surrendered at once.^[1175] Next day he moved on to Ipswich; on the 14th he laid siege to Colchester.^[1176] Here the garrison had been reinforced by a detachment of Louis’s Frenchmen, who agreed to surrender on condition that they should be suffered to march out free and their English comrades held to ransom.

John, however, broke his promise to the Englishmen and put them in chains. The Frenchmen on reaching London were accused by the barons of having betrayed their comrades by making separate terms for themselves; they were arrested and even threatened with death, but it was finally determined to keep them in custody till Louis should arrive.^[1177] On the 25th John proceeded to Hedingham, which belonged to the earl of Oxford, Robert de Vere; three days later it surrendered, and the earl himself “came there to the king’s mercy, and swore that he would thenceforth serve him loyally.” Robert’s oath was soon broken;^[1178] but his submission, insincere though it was, indicates that the barons were losing heart. So, too, does an application made at the same time by the earl of Clare and his son for a safe-conduct to and from the king’s court.^[1179] A yet more important result of John’s recent campaign was the supply of money which he had acquired by the plunder of his enemies. This enabled him during his stay at Hedingham to satisfy his mercenaries by a general distribution of pay and gifts. Thus secured against the risk of their desertion, he prepared to march upon London.^[1180]

A third body of troops sent by Louis had arrived in London at the end of February,^[1181] and a letter had been received from Louis himself, announcing that “by God’s grace” he would “most certainly” be at Calais ready to cross on Easter Day, April 10.^[1182] Encouraged on the one hand by this assurance, on the other the Londoners had been stirred into a mood of dangerous defiance by tidings from Rome. On December 16, 1215, the Pope renewed his condemnation of the barons in such a manner that it could no longer remain what circumstances had made it hitherto, a dead letter. He excommunicated the rebels, this time not merely in general terms, but mentioning thirty-one of them by name; he also placed the city of London under interdict, and he appointed the abbot of Abingdon and two other commissioners to execute this mandate.^[1183] It seems to have reached England about the end of February 1216.^[1184] The commissioners sent it to all the cathedral and conventual churches for immediate publication, and it was soon published everywhere except in London. There the clergy of S. Paul’s, the barons and the citizens all alike rejected it and appealed against it, declaring that it had been obtained by “false suggestions, and was therefore of no account, more especially as the ordering of lay affairs pertained not to the Pope.”^[1185] This last assertion

seems ridiculous in the mouths of the barons, who scarce twelve months before had professed pride in having compelled the king to surrender to the Pope the temporal overlordship of England. It was in a spirit of mingled rage at the downfall of the expectations which they had once founded upon that surrender, and revived hope of speedy help from France, that the revolutionists who held the capital met the king's threat of attack. The citizens opened their gates and arrayed themselves "ready to go forth and fight with him if he should approach within ten leagues of the city."^[1186] Advancing slowly and cautiously, he reached Enfield on the last day of March;^[1187] on the following night he seems to have slept at Waltham Abbey, "seven little English leagues from London."^[1188] But he came no nearer. Savaric de Mauléon, venturing on a closer approach, was caught at unawares and barely escaped with heavy loss of men and with a wound of which he all but died; a band of "pirates" who attempted to block the Thames were all either slain, drowned or captured by the Londoners; and evil tidings came from the north how the rebels there had risen anew, laid siege to York, and pressed it so hard that the citizens had been compelled to purchase for a thousand marks a truce till Trinity Sunday.^[1189] From Enfield the king passed round by Berkhamsted to Windsor and Reading, and thence went south into Hampshire.^[1190]

Of the northern rising we hear no more, but it seems to have proved a failure, for before April 12 three of the chief northern barons, Eustace de Vesci, Robert de Ros and Peter de Brus, offered to return to the king's service on one condition—that he would allow them to do so without a fine. John's answer was as politic as it was dignified. "What we desire to have from our barons," he wrote, "is not so much money as their good and faithful service"; and he sent the three petitioners a safe-conduct to come and speak with him on their own terms.^[1191] On the previous day he had given orders that the mayor of York should be "competently provided" out of the lands of the king's enemies "for his good and faithful service which he did to the king,"^[1192] no doubt in the defence of the city during the recent siege. The mayor's loyalty and the king's promptitude in rewarding it illustrate a feature of John's home policy which is traceable through all the vicissitudes of his career: his interest in the towns and the trading classes, and his constant endeavours to cultivate their friendship. All the while that he was harrying the open country, burning villages and plundering castles,

he was making careful provision for the furtherance of trade, the security of travelling merchants^[1193] and the preservation of foreign commerce from disturbance or interruption. With a French invasion close at hand, he was still issuing safe-conducts to French merchants in London and elsewhere.^[1194] For this, indeed, there may have been a political reason; John was anxious to keep on good terms with France in order to counterwork the schemes of the barons in that quarter. He had lately sent an embassy to try whether Philip Augustus could by any means be induced to forbid his son's proposed expedition.^[1195] One of the envoys at least, William the Marshal, was back by Easter,^[1196] the day which Louis had fixed for his own departure. That day passed and Louis came not—hindered, it seems, by contrary winds.^[1197] About this time John sent a letter to Louis himself, signifying his willingness to amend any injury which Louis might have received at his hands;^[1198] and on April 28 he wrote to the guardians of the truce in France proposing that they should hold a meeting with his proctors for the settlement of all disputes which had arisen from infractions of the truce.^[1199]

By that time the projected expedition of Louis had assumed an aspect very different from that which it had worn when first suggested by the English barons in the previous autumn. Philip as well as Louis was naturally tempted by what looked like a golden opportunity for annexing England to France; but he was held back by the dread of offending the Pope, who had no sooner heard of the scheme than he despatched a legate, Gualo, with instructions to proceed to France and England for the express purpose of forbidding it. Philip saw that to make his son's project tolerable in the Pope's eyes, and therefore safe in those of his own feudatories, he must invent for it some more plausible excuse than the flimsy pretence of election by the excommunicate English barons. He had made out an elaborate case in behalf of Louis and planned his own course of action with characteristic wariness and skill, by the time that Gualo arrived in the spring of 1216. On April 25 the legate was publicly received at Melun^[1200] by the French king, to whom he presented the Pope's letters desiring that Philip would not permit his son to invade England or to molest the English king in any way, but rather that he would protect and assist John as a vassal of the Roman Church. Philip answered at once: "The realm of England never was S. Peter's patrimony; it is not so

now, and never shall be. John was convicted long ago of treason against his brother Richard, and condemned by the judgement of Richard's court; therefore John was never rightfully king, and had no power to surrender the kingdom. Moreover, if he ever was rightfully king, he afterwards forfeited his right to the crown by the murder of Arthur, for which he was condemned in our court. And in any case no king or prince can give away his realm without the consent of his barons, who are bound to defend it." This last proposition was loudly applauded by the French magnates. Next day a second meeting took place. Louis, according to a previous arrangement with his father, came in after the rest of the assembly and seated himself by his father's side, scowling at the legate. Gualo, without appearing to notice his discourtesy, besought him "not to go to England to invade or seize the patrimony of the Roman Church," and again begged Philip to forbid his doing so. "I have always been devoted and faithful," answered Philip, "to the Pope and the Roman Church, and by my counsel and help my son will not now attempt aught against them; yet if Louis claims to have any rights in the realm of England, let him be heard, and let justice be done." On this a knight whom Louis had appointed as his proctor rose and set forth the case thus: "My Lord King, it is well known that John, who is called king of England, was in your court by sentence of his peers condemned to death for treason against his nephew Arthur, whom he had slain with his own hands, and that he was afterwards rejected by the barons of England from reigning over them by reason of the many murders and other enormities which he had committed there; wherefore they began war against him, that they might drive him from the throne without hope of restoration. Moreover, the said king, without the consent of his magnates, made over the realm of England to the Pope and the Roman Church, to receive it back from them for an annual tribute of a thousand marks. Although he could not give the crown of England to any one without consent of the barons, yet he could resign it; and when he resigned it he ceased to be king, and the throne was vacant. Now a vacant throne ought not to be filled save by consent of the barons; wherefore the barons elected the Lord Louis on account of his wife, whose mother, the queen of Castille, was the sole survivor of all the brothers and sisters of the English king."

With this ingeniously-woven tissue of perverted truths and dressed-up lies it was obviously impossible for Gualo to deal on the spur of the moment. He evaded the point at issue by pointing out that John had taken

the cross, and was therefore entitled to be left unmolested till his vow of crusade was fulfilled. Louis's proctor retorted that John had made war upon Louis both before and after taking the cross, and that Louis was therefore justified in retaliating. Gualo, without further argument, again forbade Louis to invade England, and his father to suffer him to do so, under pain of excommunication. Louis turned to his father: "Sire, although I am your liegeman for the fief which you have given me on this side of the sea, yet concerning the realm of England it appertaineth not to you to decree anything; wherefore I submit me to the judgement of my peers whether you ought to forbid me to prosecute my right, and especially a right concerning which you cannot yourself do me justice. I beseech you therefore not to hinder me, since for my wife's heritage I will fight, if need be, even unto death." With these words he left the assembly. Gualo made no remark, but simply asked the king for a safe-conduct to the sea, that he might proceed on his mission to England. "I will gladly give you a safe-conduct through my own domains," answered Philip; "but should you chance to fall into the hands of any of my son's men who are guarding the coast, blame me not if evil befall you." The legate departed in a rage. As soon as he was gone, Louis returned, asked and received his father's blessing on his enterprize, despatched messengers to Rome to lay his case before the Pope, and himself went to collect his forces at Calais.^[1201]

On April 14 John had ordered twenty-one coast towns to send all their ships to the mouth of the Thames.^[1202] On the 17th he bade the sheriffs throughout England make a proclamation calling upon all persons who had been in arms against the king to join him within a month after the close of Easter (April 24), on pain of forfeiture for ever.^[1203] On the 20th he returned to Windsor; thence he went through Surrey back to Rochester;^[1204] on the 25th—the day of the council at Melun—he issued from Canterbury orders to the soldiers then at Rochester to follow him immediately "wheresoever he might be."^[1205] He reached Canterbury that night, Dover on the morrow, and spent the next three weeks flitting up and down along the coast of Kent,^[1206] watching for the arrival of both Gualo and Louis, and superintending the gathering of the fleet and the preparation of the coast towns for defence. The Cinque Ports were again pledged, by oaths and hostages, to his service. Yarmouth, Lynn, Dunwich and other sea-ports sent their ships to the muster^[1207] at Dover. As soon as it was complete, the king

intended to sail with his whole fleet to Calais and block up Louis in the harbour, “for he well knew,” says a contemporary, “that the little vessels which Louis had could not defend themselves against his ships, which were so large; one of his ships was well worth four of those of Louis.” But towards evening on May 18 a storm arose and swept over the fleet as it lay off Dover, and by the morning the ships were so broken and scattered that all hope of bringing them together again was lost.^[1208] On the night of the 20th Louis set sail from Calais. Next morning the watchmen on the shore of Thanet saw some of his ships in the distance; they sent word to the king, who was at Canterbury, on the point of setting out to meet the legate, of whose arrival at Romney he had just been apprised. He told the messengers from Thanet that what had been seen were not the enemy’s ships, but some of his own which the storm had driven out to sea. But his words were only spoken to encourage his followers; in his heart he knew that the watchmen were not mistaken. He seems to have ridden only a few miles towards Romney when he met Gualo, clad in his scarlet robes as cardinal, and mounted on a white palfrey, as beseemed the representative of the Pope. King and legate dismounted and embraced. John at once told Gualo that Louis had arrived; Gualo pronounced the invader excommunicate, and rode with John into Canterbury.^[1209]

Louis meanwhile had landed at Stonor almost alone; the greater part of his fleet did not even come in sight till the next day, Sunday, May 22. John had now hurried to Sandwich; thence he saw with his own eyes the approach of the hostile fleet as it sailed past the mouth of Pegwell Bay. To prevent its reaching the shore was impossible; the only question was whether he should encounter the French host as soon as it had disembarked and stake everything upon a pitched battle. The trumpets were sounded, the troops arrayed; but as he rode up and down along the shore surveying their ranks his heart sank within him.^[1210] They were, almost to a man, mercenaries and foreigners, most of them born subjects of the French king; what if, when the fight was at the hottest, they should go over in a body to their fellow-countrymen and their own king’s son? The risk was too grave to be faced; it was better to withdraw than to court an encounter so likely to prove fatal.^[1211] Such was the counsel given to John by one of the few Englishmen still at his side, the wisest and truest of them all, William the Marshal.^[1212] For a while John hesitated; then, as was his wont in moments

of disappointment and distress, he stole away in silence, and had galloped a league on the road to Dover before the greater part of his men knew that he was gone.^[1213] Leaving Dover under the charge of Hubert de Burgh, with a strong garrison and ample provisions,^[1214] and appointing the earl of Warren warden of the Cinque Ports,^[1215] he made his way through Sussex to Winchester, where he remained watching the course of events during the next ten days.^[1216]

The first act of Louis after landing his troops was to issue a manifesto to the English clergy, setting forth, in somewhat more blunt terms than he had ventured to use in presence of the legate at Melun, his pretensions to the English Crown, and exhorting those whom he addressed not to be persuaded into thwarting his endeavours “for the good of the English Church and realm” by anything that they might hear from Gualo, whom he represented as having no just grounds for opposition to him, and as having been brought to England “by the suggestions and bribes” of John.^[1217] He then, after seizing a few English ships which had put in at Sandwich after the storm, and plundering the town, marched upon Canterbury. The citizens admitted him without resistance;^[1218] Gualo fled from his lodgings in S. Augustine’s abbey; the abbot, who was John’s foster-brother, alone refused all submission to the invader.^[1219] From Canterbury Louis proceeded to Rochester, where he was joined by his men from London.^[1220] The mighty fortress which had cost John a siege of nearly two months surrendered to Louis in less than a week, on Whit Monday, May 30.^[1221] Already the forebodings of the king and the Marshal were more than justified; John’s mercenaries were deserting, and not only those barons who had been recently preparing, or pretending to prepare, to return to their allegiance, but even many of those who had hitherto seemed loyal to him, now joined the leaders of the revolution in doing homage to the invader.^[1222] On Whitsun Eve (May 28) Gualo had rejoined the king at Winchester,^[1223] after issuing a citation to the English bishops and clergy to meet him there “in aid of the king and the kingdom.” On Whit Sunday, in their presence, he excommunicated Louis by name, together with all his followers and adherents, whose lands, as well as the city of London, he laid under interdict.^[1224] The sentence was disregarded; on June 2 Louis entered London;^[1225] the citizens welcomed him joyously, and the canons of S.

Paul's received him with a procession in their cathedral church.^[1226] Next day he received the homage of the barons and citizens, headed respectively by Robert Fitz-Walter and the mayor, William Hardel.^[1227] He then swore on the Gospels "that he would restore to all of them their good laws and their lost heritages," and wrote to the king of Scots and all the English magnates who had not yet joined him "bidding them either come and do him homage, or quit the realm of England without delay."^[1228]

On June 6 Louis started from London^[1229] to seek out his rival at Winchester,^[1230] but he was already too late; John had quitted Winchester the day before,^[1231] leaving it, with its two castles, under the command of Savaric de Mauléon.^[1232] Louis's first day's march from London brought him to Reigate, which he entered without opposition, the earl of Warren having withdrawn his garrison from the castle. The royal castle of Guildford surrendered on the 8th, Farnham, which belonged to the see of Canterbury, on the 10th.^[1233] On the 14th Louis reached Winchester.^[1234] Savaric de Mauléon was, it seems, under orders to rejoin the king when he saw the enemy approaching the city and had completed his preparations for its defence. With the idea, doubtless, of checking the entrance of the foe, he, or some of his followers, set fire to the suburb before he left it. Unluckily the flames spread into the city and laid half of it in ashes. Defence became impossible, and the French marched in to take undisputed possession.^[1235] John and Savaric had, however, left a strong garrison in the "chief castle"^[1236] at the west end of the city; the bishop's stronghold of Wolvesey too, at the eastern end, was well provided with defenders, among whom was one of the king's sons, a young squire named Oliver.^[1237] For ten days Louis plied his engines against the "chief castle"; then on June 24 Savaric returned with a licence from the king to negotiate for its surrender and that of Wolvesey. The garrisons were suffered to withdraw, and Louis gave the city into the custody of the count of Nevers.^[1238]

In the ten days of the siege Louis had gained something besides Winchester. Before the castles surrendered "there came thither to his will" four of "the greatest and most powerful men in England of those who stood by the king"—the earls of Warren, Arundel, Albemarle and Salisbury.^[1239] Albemarle was a turncoat whose adhesion was too uncertain to be of much value to either party;^[1240] but the other three had hitherto been steadfast in

their loyalty, and Salisbury, moreover, was half-brother to the king.^[1241] Still the invader did not seem much nearer to the attainment of the crown which he coveted. From Winchester he went to Porchester,^[1242] and thence to Odiham; both places surrendered to him, but the latter cost him a week's siege, though its garrison consisted only of three knights and ten men-at-arms, who of course marched out with the honours of war, "amid the great admiration of the French."^[1243] The

July 9

The conflicting claims and mutual jealousies of his French and English followers were already a source of trouble. The office of marshal of the host, held by Adam de Beaumont, who was marshal to Louis in France, was claimed as an hereditary right by Earl William of Pembroke's eldest son; Louis transferred it to him "as one who durst not do otherwise, for if he gave it him not, he deemed he should lose the hearts of the English." Young William the Marshal further claimed the castle of Marlborough, which had been voluntarily surrendered to Louis by Hugh de Neville. Louis, however, bestowed it on his own cousin, Robert of Dreux; whereat the young Marshal "was very angry." The French followers and continental allies of Louis were already weary of an expedition which they doubtless saw would bring them little honour and less gain. The count of Holland had taken the cross and hurried home to prepare for his crusade. Soon afterwards a number of the men of Artois departed to London and thence took ship for their own land; and before they could reach it they had to beat off "the English in their boats" who attacked them at the mouth of the Thames. Louis himself, after an unsuccessful attempt to make terms with the legate, returned to London,^[1244] seemingly about the middle of July.

While Louis was in Hampshire, the barons whom he had left in London, with some of his French troops, overran the eastern counties; they sacked some of the towns, ravaged the country, exacted "tenseries" everywhere, and returned "laden with countless booty and spoils."^[1245] Another party, under Gilbert de Gant and Robert de Ropesley, had been charged by Louis to check the excursions whereby the baronial castles in the neighbourhood of Nottingham and Newark were being reduced to ashes, and the baronial lands around them to subjection, by the garrisons of those two royal fortresses. Gilbert and Robert took the city of Lincoln and laid a tax on the whole of Lindsey; but Lincoln castle was too strong for them, so they went on to invade Holland, which they ravaged and likewise placed under tribute.

A third body of troops under Robert de Ros, Peter de Brus and Richard de Percy was meanwhile conquering Yorkshire for Louis;^[1246] and Alexander of Scotland had again set out “with all his host, except the Scots from whom he took money,” to renew the siege of Carlisle.^[1247] This, like all other sieges of that famous fortress, proved a long and wearisome business; Alexander, however, relieved its tediousness by expeditions into the counties of Northumberland and Durham. He had no purpose now of conquering them for himself; his aim was simply to join hands with the other invader. The Scot king was the natural ally of the English king’s adversary.

Thus by the end of July the power of Louis extended from the Channel to the Scottish border, but not without some important breaks. The castles of the bishopric of Durham were still held for John by Hugh de Balliol and Philip de Ulecotes.^[1248] The stranger’s hold upon the south coast was precarious in the extreme so long as Dover, the “key of England,” defied him under Hubert de Burgh; and Windsor at once threatened his hold upon London, and barred his way to the Midlands and the West. These were the districts in which John counted upon making good his defence. Throughout June, while Louis was in Hampshire, John was perambulating Wiltshire and Dorset, personally seeing to the fortification and replenishing of the fortresses in those two shires, planning schemes and giving orders for the security of the royal castles in all parts of his realm, and issuing instructions to their custodians how to act in every possible contingency.^[1249] Diplomacy went hand in hand with military precautions. Overtures were made to Reginald de Braose, the deadliest of John’s personal foes, and one of those who had most influence on the western border, for his return to allegiance at the price of the restoration of his heritage.^[1250] Safe-conducts were offered to “all who might choose to return to the king’s service” through the intervention of certain appointed persons.^[1251] A temporary submission to the invader’s demand of “tenserie” was formally sanctioned in special cases where it was clear that resistance would be ineffectual at the moment.^[1252] Help was again sought from over sea; on June 2 the town of Bayonne was desired to send its galleys “for the annoyance and confusion of our enemies.”^[1253] John’s own movements indicate that he, very naturally, expected Louis to follow up his conquest of Hampshire by an attack on the western shires. It was obviously with this expectation, and

with the double purpose of putting the border in a state of defence and securing for himself a refuge at need, that soon after the middle of July he began to advance northward from Sherborne to Bristol, Berkeley, Gloucester, Tewkesbury and Hereford, reaching Leominster on the last day of the month.^[1254] He was at the same time negotiating with some of the Welsh chieftains for their aid and support;^[1255] and on August 2 he was actually on Welsh soil, at Radnor. That night, however, he was again in England, at Kingsmead; thence he moved on to Clun, Shrewsbury and Whitchurch. On the 11th he turned southward again; he reached Bridgenorth on the 14th, and stayed there till the 16th, when he went back to Worcester for one night; next day he was at Gloucester.^[1256] A letter written on the 19th from Berkeley shows that these movements were dictated by the belief that Louis was preparing an attack upon Worcester and Hereford.^[1257] This fact illustrates one of the greatest difficulties of medieval warfare, the difficulty of obtaining correct information as to the whereabouts and movements of the adversary. Louis, at the moment when John was thus anxiously looking out for him in the west, had been for nearly four weeks absorbed in the siege of Dover.

According to Matthew Paris, Philip Augustus had taunted his son with not understanding his business as a commander-in-chief, because he was attempting to conquer England without first securing its key.^[1258] At any rate Louis, soon after his return to London, perceived that his hold on the country would never be assured till Dover and Windsor were both in his hands. On July 25 he set out for Dover,^[1259] and a day or two later the counts of Dreux and Nevers, with some English barons, laid siege to Windsor.^[1260] Of this latter party the Flemish soldier-chronicler of the war says, "Long were they there, and little did they gain."^[1261] They in fact sat before the place for nearly two months in vain.^[1262] The siege of Dover proved longer still, and for many weeks bade fair to be equally unprofitable. Many of Louis's followers went back over sea to their homes, "so that the host dwindled marvellously."^[1263] On August 8, however, the town—not the castle—of Carlisle surrendered to Alexander;^[1264] and he at once began to move southward for the purpose of joining Louis. Still a whole month elapsed before the junction was effected. On his way the Scot king stopped to besiege Barnard castle, held by Hugh de Balliol for John. The siege

appears to have been unsuccessful, and it cost the life of one of the foremost leaders of the baronial party in the north, Eustace de Vesci.^[1265] Some of the other northerners were now helping Gilbert de Gant at the siege of Lincoln castle. This time its constable, Dame Nicola de Haye,^[1266] bought off her assailants, who thereupon united their forces to those of Alexander.^[1267] The combined host seems to have reached Kent about the second week in September.^[1268] Louis went to meet Alexander at Canterbury, brought him back to Dover,^[1269] and there received his homage for the lands which he held of the English crown.^[1270]

Meanwhile John had at last learned the truth as to his adversary's movements, and was acting on the information. Gathering a numerous host from the garrisons of the western castles, which he now saw to be out of danger, and from his old allies the Welsh,^[1271] he marched up on September 2 from Cirencester to Burford, spent the three following days at Oxford, then struck across the Thames to Wallingford, and on the 6th appeared at Reading. From the 8th to the 13th he fixed his quarters at Sonning.^[1272] His advance looked as if intended for the relief of Windsor; he did in fact approach so near that castle that its besiegers "thought they were going to have a battle." His Welshmen "came by night to shoot into the host, and gave them a great fright. They were a long time armed to await the battle, but they did not get it, for the king retired, I know not by what counsel," says the Flemish chronicler.^[1273] John had in truth never intended to attack them; his real "counsel" is given us by the English writers—his aim was the eastern counties, where he purposed to intercept the Scot king on his homeward journey, and to punish the local landholders and owners of castles for their submission to the invader.^[1274] The relief of Windsor he probably hoped to effect by other means, if there is any truth in the assertion of some English chroniclers that the count of Nevers was secretly in his pay.^[1275] It may have been for the purpose of communicating with Nevers, as well as for that of frightening Nevers's companions and reconnoitring the district, that the king lingered in Berkshire. On September 15 he suddenly struck northward from Walton-on-Thames to Aylesbury and Bedford; next day he went on to Cambridge.^[1276] The immediate consequence was the relief of Windsor; its besiegers were no sooner assured of his departure from their neighbourhood than they struck their tents, set

fire to their military engines, and hurried in pursuit of him. They hoped to overtake him at Cambridge; but, warned by his scouts, he escaped in time, on the night of September 17. A dexterous movement southward to Clare and Hedingham threw his pursuers off the track, and another rapid march brought him to Stamford before they reached Cambridge.^[1277] They avenged their disappointment by harrying Cambridgeshire—this was the second, if not the third, harrying which that unhappy county had suffered within four months—carried their spoils back to London, and then proceeded to join Louis at the siege of Dover.^[1278]

The count of Nevers was immediately sent off again to escort the Scot king safely homeward as far as Cambridge.^[1279] Thence Alexander made his way towards Lincoln, which Gilbert de Gant, with a few followers, had continued to occupy after the other barons had abandoned the siege of the castle.^[1280] John meanwhile had gone from Stamford to Rockingham; thence, on September 21,^[1281] he set out to begin the work for which he had come from the west. The story of that day and the next, as told by Matthew Paris—how the king went first to Oundle and thence to the other manors of the abbey of Peterborough, burning the houses and barns; how he passed on to Crowland and bade Savaric de Mauléon fire the abbey church and the village while he himself stood at a distance to watch the blaze; how Savaric yielded to the monks' prayer for mercy, and accepted from them, as the price of their escape, a sum of money which he brought back to John, and how the furious king, after overwhelming his too placable lieutenant with abuse, helped with his own hands to fire the harvest-fields, running up and down amid the smoke and the flames till the whole territory of S. Guthlac was a blackened desert^[1282]—whether its details be literally exact or not, pictures vividly the mood of the tyrant. It is little wonder that when the tidings of his advance reached Lincoln, Gilbert and his men “fled before his face, dreading his presence like lightning.”^[1283] They probably fled into the Isle of Axholme, for from Lincoln John went by way of Barton^[1284] and Scotter to Stowe, where he stayed three days, and whence he appears to have sent his mercenaries across the Trent to ravage the Isle with fire and sword. He returned to Lincoln on the 28th, to find that Alexander had spent two or three days there in his absence,^[1285] and had slipped past him into Yorkshire. John, however, was less eager for the capture of “the little

Sept. 22

Sept. 26–28

sandy fox” than for vengeance upon the English rebels. From Lincoln northward to Grimsby, and thence south again to Spalding, the Lincolnshire fields—now, at the beginning of October, all white to harvest^[1286]—were given to the flames, and the houses and farm-buildings sacked and destroyed by the terrible host with the king at its head.^[1287] On October 9 he appeared before Lynn;^[1288] here the townsfolk, like most of their class throughout England, were on his side, and they gave him not only a joyous welcome, but a substantial contribution in money.^[1289] He committed the custody of the town and the duty of fortifying it to Savaric de Mauléon,^[1290] whom on September 30 he had sent back to Crowland to “seek out and capture the knights and men-at-arms, enemies of the king, who were hiding in secret places” among the fens around the monastery. Savaric had “failed to find those whom he sought”; but he had dragged some fugitives out of sanctuary in the abbey, and brought back a valuable spoil of flocks and herds to his master at Lynn.^[1291]

Louis had now been besieging Dover for more than two months, and had made no progress at all. The strength of the castle, the skill and valour of Hubert de Burgh and the hundred and forty knights who, with the usual complement of men-at-arms, constituted its garrison, were more than a match for all his forces. He swore that he would not quit the place till he had hanged every man within its walls;^[1292] but even the fall of one of its towers seemed to have brought him no nearer to effecting an entrance.^[1293] He could only turn the siege into a blockade, and wait till starvation should accomplish the work in which battery and assault had failed. In the country at large he was distinctly losing ground. Throughout the summer he had been set at nought in Sussex by a young Flemish adventurer called William of Casinghem, who, “scorning to do him homage, gathered together a thousand bowmen, lodged in the wilderness and woods with which that country abounded, and gave the French great trouble all through the time of war, slaying many thousands of them.”^[1294] On September 2 John wrote a letter of encouragement to an association extending through Sussex, Kent, Surrey and Hampshire, composed of persons whom he describes as “sworn and confederate together for fealty and service to ourself,” although they had been compelled against their will to swear allegiance to his rival. The “barons”—that is, the citizens—of Hastings, Sandwich, Dover, Hythe, Romney, Winchelsea, Rye, Pevensey, Shoreham and Portsmouth, who had

also, under compulsion, taken the oath to Louis, had likewise assured John of their devotion to himself, and were in return assured of his favour; while the men of Seaford had resisted all the pressure put upon them by their lord, Gilbert de Laigle, to forsake their allegiance, and were on September 3 warmly thanked by John for their loyalty.^[1295] Soon after the beginning of the siege of Dover Louis was joined from over sea by the count of Perche, and in September or October by Peter of Brittany; the arrival of this last, however, brought no real gain, for as soon as Peter reached England, his brother, Robert of Dreux, returned to France. Louis's English partizans, too, were falling away. Earl William of Albemarle offered his repentance and his services to John, who of course "forgave him most kindly."^[1296] Of yet greater importance was the return to allegiance of William of Salisbury; it was he who, in conjunction with Falkes de Bréauté, captured or put to flight a body of Louis's adherents who were besieging Exeter.^[1297] At last, however, a gleam of light fell across the gloomy prospects of the French party. Towards the middle of October Hubert de Burgh and his lieutenant, Gerard de Sotingham, felt that they could not hold out much longer, and asked for a truce, that they might send to John either for succour, or for leave to surrender the castle. The truce was granted, and on the 14th the siege of Dover was suspended.^[1298]

The crisis had come; it had, however, really come not on the cliffs of Kent, but on the shores of the Wash. Sumptuously entertained by the burghers of Lynn, John, who—unlike most of his race—was a notorious glutton, feasted till his excesses brought on a violent attack of dysentery^[1299] which he himself seems to have recognized as the beginning of the end. One of the latest entries on the Patent Rolls of his reign is probably significant of the remorse awakened in him, for one at least of his many crimes, by the terror of approaching death; on October 10 he granted to Margaret, wife of Walter de Lacy, some land in the royal forest of Acornbury, that she might build thereon a religious house for the souls of her father, mother and brother^[1300]—William, Maud and the younger William de Braose. He could not rest; ill as he was, he moved next day from Lynn to Wisbeach; and early on the following morning he set out again. "Like a swiftly advancing storm," before which all men fled, he swept northward to the mouth of the Welland, and thence in his impatience

Oct. 11

Oct. 12

set out to cross the Wash without waiting either for the ebb of the tide or for any one who knew the way to guide him across the treacherous soil, covered as it was with brackish water. Suddenly the whole host, while struggling with the waves, felt the ground opening beneath its feet. The king himself and a part of his troops with difficulty reached the further shore; the rest of his followers and the whole of his baggage train, with all his treasure and his lately gathered spoils, men, horses, arms, tents, provisions, “everything in the world that he held most dear, short of his own life,” went down into the quicksand. ^[1301] When at night he reached Swineshead abbey, rage and grief threw him into a fever, which he aggravated by supping greedily on peaches and new cider. ^[1302] With great difficulty he made his way on the 14th to Sleaford. ^[1303] There he was found, probably on the 15th, by the messengers whom Hubert de Burgh had sent from Dover to seek him. Their tidings brought on a fresh access of fever, which bleeding failed to relieve. ^[1304] Nothing could check his restlessness; that night or next morning he set out for Newark, and in spite of grievous

Oct. 15–16

bodily suffering, he set out on horseback. He had, however, ridden only three or four miles, “panting and groaning,” when increasing sickness compelled him to dismount, and he bade his followers make him a litter in which he might travel more easily. There was no workman to make it, and nothing to make it of; all that his men could do was to cut down with their swords and knives the willows by the roadside, weave them together as best they might, and throw a horse-cloth over them. This litter, without cushions or even straw to relieve its hardness, had for want of carriage-horses to be either slung between some of the high-mettled destriers of the knights, or carried on the shoulders of the men. Its shaking and jolting soon proved intolerable: “This accursed litter has broken all my bones, and well-nigh killed me,” cried the king in an agony of pain and rage. Matthew Paris quotes a French rime concerning the sons of Henry II. which thus foretold their fate: “Henry, the fairest, shall die at Martel; Richard, the Poitevin, shall die in the Limousin; John shall die, a landless king, in a litter.” The prediction was all but fulfilled; John, however, gathered up strength and spirit enough to avoid a literal fulfilment of its closing words, and to ride “on an ambling nag” into Newark. ^[1305]

For three days, in the bishop of Lincoln’s castle whose ruins still look down upon the Trent, the king lay dying.

Oct. 16–18

The abbot of Croxton, who was skilled in medicine, attended him as his physician,^[1306] and also ministered to his soul, for he persuaded him to confess his sins and receive the Holy Communion.^[1307] Then the one natural affection traceable in John's character broke out in anxiety for his two little sons, especially for the elder of them, to whom the crown must devolve. He solemnly declared Henry his heir, made those around him take an oath of fealty to the boy, and sent letters to the sheriffs and the constables of the royal castles, bidding them look to him as their lord.^[1308] He had already, on October 15, before leaving Sleaford, dictated a letter entreating for Henry the special protection of the Pope.^[1309] He now appointed Peter de Mauley guardian of his younger son Richard, whom he had apparently left under Peter's charge in Corfe castle. There was but one man in England to whom he could confidently entrust the guardianship of the heir to the throne. "Before he died, he sent word to William the Marshal, the earl of Pembroke, that he placed his eldest son, Henry, in God's keeping and his, and besought him for God's sake that he would take thought for Henry's interest."^[1310]

The abbot of Croxton then asked the king where he wished to be buried. "I commend my body and my soul to God and to S. Wulfstan" was John's reply.^[1311] His last act seems to have been the dictation of the fragmentary document which has come down to us as his will. "Being overtaken," he says, "by grievous sickness, and thus incapable of making a detailed disposition of all my goods, I commit the ordering and disposing of my will to the fidelity and discretion of my faithful men whose names are written below, without whose counsel, were they at hand, I would not, even if in health, ordain anything; and I ratify and confirm whatsoever they shall faithfully ordain and determine concerning my goods, for the purposes of making satisfaction to God and Holy Church for the wrongs I have done them, sending help to the realm of Jerusalem, furnishing support to my sons for the recovery and defence of their heritage, rewarding those who have served us faithfully, and distributing alms to the poor and to religious houses for the salvation of my soul. And I pray that whosoever shall give them counsel and assistance herein may receive God's grace and favour; and may he who shall violate the settlement made by them incur the curse and wrath of God Almighty and the Blessed Mary and all the saints. First, then, I desire that my body be buried in the church of the Blessed Mary and

S. Wulfstan of Worcester. Now I appoint as ordainers and disposers of my will the following persons:—the lord Gualo, by God’s grace cardinal priest of the title of S. Martin, legate of the Apostolic See; Peter, lord bishop of Winchester; Richard, lord bishop of Chichester; Silvester, lord bishop of Worcester; Brother Aimeric of Ste. Maure; William the Marshal, earl of Pembroke; Ranulf, earl of Chester; William, earl of Ferrars; William Brewer; Walter de Lacy; John of Monmouth; Savaric de Mauléon; Falkes de Bréauté.”^[1312] Here, without date, signature or seal, the so-called will breaks off abruptly; evidently the testator had not time to complete it. At midnight a whirlwind swept over Newark with such violence that the townsfolk thought their houses would fall, and in that hour of elemental disturbance and human terror the king passed away.^[1313] A monk named John of Savigny, entering the town at daybreak, met the servants of the royal household hurrying out laden with everything of their master’s that they could carry. The corpse—for which they had not left even a decent covering^[1314]—had meanwhile been hastily embalmed by the abbot of Croxton; John having, it is said, made a grant of his heart, with ten pounds’ worth of land, to Croxton abbey.^[1315] The abbot, too, fled as soon as his work was done and his strange relic secured; it was John of Savigny who, at the request of the constable of Newark, kept the last watch beside the body and offered his mass that morning for the soul of the dead king.^[1316] The body was then dressed in such semblance of royal attire as could be procured, and the remnant of John’s soldiers—nearly all foreign mercenaries—formed themselves into a guard for its protection on the journey from Newark to Worcester. The grim funeral train, every man in full armour, passed unhindered across England, and John was buried by Bishop Silvester in Worcester cathedral according to his desire.^[1317]

Oct. 18–19

Oct. 19

Within this tomb lies buried a monarch’s outward form,
Whose inner man’s departure hath stilled war’s raging storm.

Thus may be roughly rendered the opening lines of an epitaph on King John preserved by Roger of Wendover.^[1318] The poet’s words are true; John’s death virtually ended the war. From his burial the Marshal, the Legate, and the bishops passed to the crowning of his heir and the publication, in the boy-king’s name, of the Great Charter in a revised form

to which Gualo had no hesitation in giving the papal sanction, and which, thus safeguarded, left the revolutionary party no excuse for continuing the struggle. Thenceforth it was idle for Louis and his adherents to pretend that they were fighting for England's deliverance from bondage; all men could see that they were fighting for her enslavement to a foreign conqueror. The majority of the barons had already become conscious of the blunder, or worse than blunder, which they had committed in calling the stranger to their aid, and were ready now to join in a national movement for his expulsion. His enterprise was doomed to fail when the kingdom ceased to be divided against itself; and the one insuperable obstacle to the healing of its divisions was removed in the person of John. It was John whose very existence had made peace impossible. "Forasmuch as when he came to die he possessed none of his land in peace," says Matthew Paris, "he is called Lackland."^[1319] John had indeed earned for himself in a new sense the name which his father had given him at his birth; and he had earned it not by blunders in statecraft or errors in strategy, not by weakness or cowardice or sloth, but by the almost superhuman wickedness of a life which, twenty years before its end, a historian of deeper insight than Matthew had characterized in one memorable phrase—"Nature's enemy, John."

FOOTNOTES: [\[Skip footnotes\]](#)

^[1097] R. Wendover, vol. iii. p. 331; W. Coventry, vol. ii. p. 226.

^[1098] *Rot. Pat.* vol. i. p. 156 b.

^[1099] *Itin.* a. 17.

^[1100] W. Coventry, vol. ii. p. 226.

^[1101] *Hist. des Ducs*, p. 157. The date seems to be either September 20 to 22 or October 5 to 6; see *Itin.* a. 17.

^[1102] *Rot. Pat.* vol. i. p. 181 b.

^[1103] R. Wendover, vol. iii. pp. 330, 331. The dates are not quite clear. Roger gives none, but says John laid siege to the castle "on the third day" after the barons entered it; Ralph of Coggeshall, p. 175, says John entered the city on Sunday October 11. But the *Itinerary* shows that John was on the 11th at Ospring and on the 12th at Gillingham, and he does not date from Rochester till the 13th. I have therefore ventured to suppose that Ralph has given the date of the barons' arrival by mistake for that of the king's.

[1104] *Hist. des Ducs*, pp. 158, 159.

[1105] R. Coggeshall, p. 175.

[1106] See below, [p. 250](#).

[1107] W. Coventry, vol. ii. p. 226.

[1108] *Hist. des Ducs*, p. 159.

[1109] Cf. *ib.* p. 157; W. Coventry, vol. ii. p. 226; R. Wendover, vol. iii. p. 330; and R. Coggeshall, p. 176.

[1110] R. Wendover, [l.c.](#)

[1111] *Rot. Claus.* vol. i. p. 231 b.

[1112] R. Wendover, vol. iii. p. 331. Cf. *Hist. des Ducs*, p. 160. One party under Hugh de Boves was wrecked in a storm on the Norfolk coast, September 26; their leader was drowned, so were many others, and a large quantity of money also went down; but the survivors made their way to the king in time to join him at Rochester and help in the siege, *Hist. des Ducs*, pp. 155, 156; *Chron. Mailros*, a. 1215; R. Coggeshall, pp. 174, 175; R. Wendover, vol. iii. p. 332.

[1113] R. Coggeshall, p. 176.

[1114] W. Coventry, vol. ii. p. 226; R. Wendover, vol. iii. p. 333.

[1115] W. Coventry, [l.c.](#)

[1116] R. Wendover, [l.c.](#)

[1117] W. Coventry, [l.c.](#)

[1118] M. Paris, *Hist. Angl.* vol. ii. p. 165. It is Matthew alone who gives the name of the leader of the party. His version of the expedition is important, as he—notwithstanding his strong anti-royalist feeling—shows up the cowardice of the barons, and especially of Fitz-Walter, on this occasion, quite as strongly, and is quite as sarcastic upon it, as the royalist Roger of Wendover.

[1119] R. Wendover, vol. iii. p. 333.

[1120] W. Coventry, vol. ii. p. 226. R. Coggeshall, p. 177, says that John had contrived to prevent some of the northern barons from joining them by means of forged letters purporting to come from Fitz-Walter and his comrades, telling the Northerners that their help was no longer needed.

[1121] W. Coventry, vol. ii. p. 227.

[1122] R. Wendover, vol. iii. pp. 334, 335.

[1123] *Hist. des Ducs*, p. 163; R. Wend. vol. iii. p. 335.

[1124] R. Wend. vol. iii. p. 336.

[1125] In W. Coventry, [l.c.](#), John is said to have hanged only one cross-bowman, whom he had had in his service from boyhood. See the names of the knights made prisoners, in R. Wend. vol. iii. pp. 335, 336, *Rot. Claus.* vol. i. p. 241 b, and *Rot. Pat.* p. 161.

[1126] *Rot. Pat.* p. 157.

[1127] *Ib.* p. 157 b.

[1128] *Ib.* p. 158.

[1129] *Ann. Dunst.* a. 1210.

[1130] W. Coventry, vol. ii. p. 225.

[1131] Louis had inherited the county of Artois from his mother.

[1132] R. Wendover, vol. iii. p. 359.

[1133] W. Coventry, vol. ii. pp. 225, 226.

[1134] “S’il voloit venir en Engleterre sa cape toursée, il li donroient le règne en boine pais et le feroient seigneur d’eus,” *Hist. des Ducs*, p. 160. Cf. W. Coventry, [l.c.](#)

[1135] R. Coggeshall, pp. 176, 177.

[1136] Cf. *Hist. des Ducs*, p. 160, and R. Coggeshall, p. 176.

[1137] *Hist. des Ducs*, pp. 160, 161.

[1138] R. Wendover, vol. iii. pp. 349, 350; *Hist. des Ducs*, pp. 161, 162. John had granted the earldom of Clare to Robert de Béthune; *Hist.*, [l.c.](#)

[1139] *Itin.* a. 17.

[1140] R. Wendover, vol. iii. p. 347.

[1141] *Ib.* pp. 344–6.

[1142] R. Wendover, vol. iii. p. 347. Cf. R. Coggeshall, p. 177. Ralf substitutes Gerard of Sotteghem for William Brewer; but in R. Wendover, p. 348, Gerard is named among those who accompanied the king.

[1143] R. Wendover, vol. iii. pp. 348, 350; confirmed by *Itin.* a. 17.

[1144] R. Wendover, vol. iii. p. 348.

[1145] W. Coventry, vol. ii. p. 228.

[1146] R. Wendover, vol. iii. p. 350.

[1147] R. Wendover, vol. iii. pp. 359, 360.

[1148] R. Howden, vol. iv. p. 189, note 4. Cf. R. Coggeshall, p. 178, and *Hist. des Ducs*, p. 162. R. Wendover, vol. iii. p. 360, has confused this second French contingent with the first, which had come in November 1215, and seemingly also with a third. See below, [pp. 261, 262](#).

[1149] Cf. R. Wendover, vol. iii. pp. 349, 358; W. Coventry, vol. ii. p. 229, and R. Coggeshall, pp. 177, 178.

[1150] R. Wendover, vol. iii. pp. 349, 352.

[1151] R. Coggeshall, p. 178.

[1152] R. Wendover, vol. iii. p. 349.

[1153] *Ib.* p. 352.

[1154] *Chron. Mailros*, a. 1216.

[1155] See [footnote 1157](#) below.

[1156] *Hist. des Ducs*, p. 163; date from *Itin.* a. 17.

[1157] “Puis s’en ala-il à Wrewic [*var.* Euerwic] sa cité, qui encontre lui s’iert revelée; si en fist toute sa volenté.” *Hist. des Ducs*, [l.c.](#) John was at York on January 4, *Itin.* a. 17.

[1158] *Itin.* a. 17.

[1159] R. Wendover, vol. iii. pp. 351, 352.

[1160] R. Coggeshall, pp. 178, 179.

[1161] *Hist. des Ducs*, pp. 163, 164. Cf. M. Paris, *Chron. Maj.* vol. ii. pp. 641, 642, and *Hist. Angl.* vol. ii. p. 172.

[1162] *Hist. des Ducs*, p. 164; for dates see *Itin.* a. 17.

[1163] *Chron. Mailros*, a. 1216.

[1164] *Itin.* a. 17.

[1165] Cf. [ll.cc.](#) and *Hist. des Ducs*, p. 164.

[1166] *Chron. Mailros* and *Hist. des Ducs*, [ll.cc.](#)

[1167] *Itin.* a. 17.

[1168] *Rot. Chart.* p. 219.

[1169] *Itin.* a. 17.

[1170] R. Wendover, vol. iii. pp. 352, 353.

[1171] February, *Chron. Mailros*, a. 1216.

[1172] *Rot. Pat.* pp. 162, 162 b, 168, 169.

[1173] R. Wendover, vol. iii. p. 352.

[1174] February 29–March 8, *Itin.* a. 17.

[1175] Cf. *Itin.* a. 17, and *Hist. des Ducs*, p. 165.

[1176] Cf. *ib.* and R. Coggeshall, p. 179.

[1177] R. Coggeshall, pp. 179, 180; for dates see *Itin.* a. 17. The king's safe-conduct to the French soldiers (names given) from Colchester to London is dated March 24, *Rot. Pat.* pp. 171 b, 172.

[1178] *Hist. des Ducs*, p. 165.

[1179] *Rot. Pat.* vol. i. p. 172 b.

[1180] R. Coggeshall, p. 180.

[1181] R. Wendover, vol. iii. p. 360, who, however, has confused this contingent with the former ones.

[1182] *Ib.* p. 363.

[1183] R. Wendover, vol. iii. pp. 354–6.

[1184] R. Coggeshall, p. 179, mentions its arrival just after the death of Geoffrey de Mandeville, which occurred on February 22.

[1185] R. Wendover, vol. iii. p. 357.

[1186] R. Coggeshall, p. 180.

[1187] *Itin.* a. 17.

[1188] Cf. *Hist. des Ducs*, p. 165, and *Itin.* a. 17.

[1189] R. Coggeshall, p. 180.

[1190] *Itin.* a. 17.

[1191] *Rot. Pat.* p. 176.

[1192] *Rot. Claus.* vol. i. p. 260.

[1193] *Rot. Pat.* pp. 170, 170 b, 171.

[1194] *Ib.* p. 172 b.

[1195] R. Coggeshall, pp. 180, 181.

[1196] *Rot. Pat.* vol. i. p. 175 b.

[1197] W. Coventry, vol. ii. p. 229.

[1198] *Rot. Pat.* p. 176.

[1199] *Ib.* p. 179.

[1200] See *Revue historique*, vol. xxxii. p. 49, note 2.

[1201] R. Wendover, vol. iii. pp. 364–7. The version of M. Paris, *Hist. Angl.* vol. ii. pp. 176, 177, is as M. Petit-Dutaillis says (*Louis VIII.* p. 95, note), obviously nothing but an oratorical amplification.

[1202] *Rot. Claus.* vol. i. p. 270.

[1203] *Ib.* p. 270 b.

[1204] *Itin.* a. 17.

[1205] *Rot. Pat.* p. 178 b.

[1206] *Itin.* a. 17.

[1207] R. Coggeshall, p. 181.

[1208] *Hist. des Ducs*, pp. 167, 168. Cf. R. Coggeshall, p. 181.

[1209] *Hist. des Ducs*, pp. 168, 169. Cf. R. Wendover, vol. iii. p. 368, and *Ann. Winton.* a. 1216, both of which give the same date for Louis's arrival. R. Coggeshall, p. 181, gives a date which, though self-contradictory, is, I think, meant for the same—"die sabbati post Ascensionem Domini, scilicet xiiii kalendas Junii." W. Coventry, p. 229, is quite wrong. John had gone on May 19 (Ascension Day) to Folkestone; on the 20th and 21st he was at Canterbury. *Itin.* a. 17, 18.

[1210] *Hist. des Ducs*, p. 169.

[1211] R. Wendover, vol. iii. p. 368; W. Coventry, vol. ii. pp. 229, 230.

[1212] *Ann. Dunst.* a. 1215.

[1213] *Hist. des Ducs*, p. 170. The assertion of William the Breton, *Gesta P. A.* c. 221, that John actually did await the attack of the French, and was driven away by their vigorous onset, certainly is, as M. Petit-Dutaillis says (*Louis VIII.* p. 100), an error. That error is grounded, like the sneering comments of Ralf of Coggeshall (p. 181), the *Ann. Winton.* (a. 1216), and some later writers, on the mistaken idea that John was on the spot when Louis first landed on the 21st.

[1214] *Hist. des Ducs*, p. 170.

[1215] *Rot. Pat.* p. 184.

[1216] *Itin.* a. 18.

[1217] Thorne, *Gesta Abb. S. Aug. Cant.* in Twysden, *X Scriptt.* cols. 1868–70. The letter as there given is addressed to the abbot and convent of S. Augustine’s, but it was evidently a manifesto of which copies were sent, or intended to be sent, to all the religious houses of note, probably also to the secular clergy, and perhaps to be distributed among the laity as well. The character of Louis’s “case” as set forth in this letter, and in the arguments of his envoys at Rome (R. Wendover, vol. iii. pp. 371–8), has been sufficiently exposed by M. Petit-Dutaillis, *Louis VIII.* pp. 75–87.

[1218] *Hist. des Ducs*, pp. 170, 171; cf. R. Coggeshall, p. 181, and *Ann. Dunst.* a. 1216.

[1219] Thorne, [L.c.](#) cols. 1864, 1870.

[1220] *Hist. des Ducs*, p. 171.

[1221] *Chron. Merton.* in Petit-Dutaillis, *Louis VIII.* p. 514.

[1222] W. Coventry, vol. ii. p. 230; R. Wendover, vol. iii. p. 370.

[1223] *Ann. Winton.* a. 1216.

[1224] W. Coventry, vol. ii. p. 230. Cf. R. Wendover, vol. iii. pp. 369, 370.

[1225] *Hist. des Ducs*, p. 171; W. Coventry, [L.c.](#); *Liber de Antiq. Legibus*, Appendix, p. 202.

[1226] *Hist. des Ducs*, [L.c.](#); *Liber de Antiq. Legibus*, [L.c.](#)

[1227] *Chron. Merton.* in Petit-Dutaillis, *Louis VIII.* p. 514. Cf. *Hist. des Ducs*, pp. 171, 172; R. Coggeshall, pp. 181, 182, and R. Wendover, vol. iii. pp. 368, 369.

[1228] R. Wendover, vol. iii. p. 369.

[1229] *Hist. des Ducs*, pp. 171, 172.

[1230] R. Coggeshall, p. 182.

[1231] *Itin.* a. 18. This disposes of R. Coggeshall’s story ([L.c.](#)) that John “cognito ejus adventu, draconem suum deposuit et aufugit.”

[1232] *Ann. Winton.* a. 1216.

[1233] *Ann. Waverl.* a. 1216.

[1234] *Ib.* a. 1216. The *Ann. Winton.* a. 1216 give a wrong date.

[1235] Cf. *Ann. Winton.* a. 1216, and *Hist. des Ducs*, p. 173. Whichever version be the correct one, both alike show that Ralf of Coggeshall ([L.c.](#)) is wrong in attributing the fire to John himself.

[1236] “Li grans castiaus le roi,” “le maistre castiel,” *Hist. des Ducs*, p. 173.

[1237] [L.c.](#)

[1238] Cf. *Hist. des Ducs*, p. 174; *Rot. Pat.* p. 188 b, and *Ann. Waverl.* a. 1216.

[1239] *Hist. des Ducs*, [l.c.](#) Cf. R. Coggeshall, p. 182, and W. Coventry, vol. ii. p. 231.

[1240] “Qui tamen cito rediit,” W. Coventry, vol. ii. p. 231.

[1241] William of Armorica, *Gesta Phil. Aug.* c. 222, says that Salisbury changed sides because “ei certo innotuit relatore” that during his own captivity in France his royal brother had made an attempt on the honour of his wife (the well-known Countess Ela). As, however, we shall see that Salisbury “went back” almost as promptly as Albemarle, and the story seems quite unknown to the English chroniclers, its truth may be doubted, though the mere fact that such a story could be told of John with reference to his own sister-in-law illustrates the character for reckless wickedness which he had earned for himself.

[1242] *Hist. des Ducs*, p. 174.

[1243] R. Wendover, vol. iii. p. 371. Odiham surrendered July 9, *Ann. Waverl.* a. 1216.

[1244] *Hist. des Ducs*, pp. 175–7.

[1245] Cf. R. Wendover, vol. iii. pp. 371, 378–81, *Hist. des Ducs*, p. 172, and M. Paris, *Hist. Angl.* vol. ii. p. 182.

[1246] R. Wendover, vol. iii. p. 379.

[1247] *Chron. Mailros*, a. 1216.

[1248] R. Wendover, vol. iii. p. 379.

[1249] *Rot. Pat.* pp. 184 b, 185 b, 186, 186 b, 187 b, 188, 193–5.

[1250] *Ib.* p. 184. Cf. *ib.* p. 192.

[1251] *Ib.* pp. 185, 187, 187 b, 188 b, 189, 189 b, etc.

[1252] *Ib.* pp. 187, 188.

[1253] *Ib.* p. 185 b.

[1254] *Itin.* a. 18.

[1255] *Rot. Pat.* p. 191 b; *Brut y Tywysogion*, p. 293.

[1256] *Itin.* a. 18.

[1257] *Rot. Pat.* p. 194. Worcester had been surrendered to the younger William Marshal, for Louis, early in July, but was retaken on the 17th by the earl of Chester and Falkes de Bréauté; *Ann. Wigorn.* a. 1215. The castle, according to *Ann. Dunst.* a. 1215, was taken by “the old Marshal” at some unspecified date. (In both the Worcester and the Dunstable Annals the history of 1216 is placed under the year 1215.)

[1258] M. Paris, *Chron. Maj.* vol. ii. p. 664.

[1259] *Liber de Antiq. Legibus*, appendix, p. 202; *Ann. Waverl.* a. 1216. R. Wendover, vol. iii. p. 380, gives a wrong date.

[1260] *Hist. des Ducs*, p. 177. Cf. R. Coggeshall, p. 182; R. Wendover, vol. iii. p. 381, and W. Coventry, vol. ii. p. 230.

[1261] *Hist. des Ducs*, [l.c.](#)

[1262] R. Coggeshall, [l.c.](#)

[1263] *Hist. des Ducs*, [l.c.](#)

[1264] *Chron. Mailros*, a. 1216.

[1265] *Ib.*; R. Wendover, vol. iii. pp. 382, 383.

[1266] Widow of John's old friend Gerard de Camville; see above, [p. 31](#).

[1267] W. Coventry, vol. ii. p. 230.

[1268] *Hist. des Ducs*, p. 179, relates John's advance to Reading, which took place on September 6 (*Itin.* a. 18), and then goes on "*Puis vint li rois d'Escoce*," etc.

[1269] *Ib.*

[1270] "Fecit [Alexander] ei [*i.e.* Ludovico] homagium de jure suo, quod de rege Anglorum tenere debuit," R. Wendover, vol. iii. p. 382. "Lendemain fist li rois son houpage à Looys de la tierre de Loonnois," *Hist. des Ducs*, p. 179. (M. Francisque-Michel and M. Petit-Dutaillis render the last word "Lennox"; does it not rather represent "Lothian"?) The Chronicle of Melrose, a. 1216, says cautiously, "Alexander rex ... humagium fecit dicto Laodowico, ut dicitur."

[1271] Cf. R. Wendover, vol. iii. p. 381, and *Hist. des Ducs*, pp. 178, 179.

[1272] *Itin.* a. 18.

[1273] *Hist. des Ducs*, p. 179.

[1274] Cf. W. Coventry, vol. ii. p. 231, and R. Coggeshall, p. 182.

[1275] Cf. R. Wendover, vol. iii. p. 382; M. Paris, *Hist. Angl.* vol. ii. p. 185; and *Ann. Dunst.* a. 1215.

[1276] *Itin.* a. 18.

[1277] Cf. R. Wendover, vol. iii. p. 382; R. Coggeshall, p. 183; W. Coventry, vol. ii. p. 231; *Itin.* a. 18; and *Rot. Pat.* p. 197 b.

[1278] R. Wendover, vol. iii. p. 382.

[1279] *Hist. des Ducs*, p. 179.

[1280] R. Wendover, [l.c.](#)

[1281] *Itin.* a. 18.

[1282] M. Paris, *Hist. Angl.* vol. ii. pp. 189–190. Cf. *Chron. Maj.* vol. ii. p. 667. Matthew gives no precise date; but he implies that it was before Michaelmas; and the *Itinerary* shows that the only possible date is September 21–22, on the way from Rockingham to Lincoln.

[1283] R. Wendover, vol. iii. p. 382; for date see *Itin.* a. 18.

[1284] *Rot. Claus.* vol. i. p. 289; probably one of several small places so called, on the eastern side of the Trent.

[1285] Cf. W. Coventry, vol. ii. p. 231, and *Itin.* a. 18.

[1286] R. Wendover, vol. iii. p. 381.

[1287] Cf. *ib.*, W. Coventry, vol. ii. p. 231, and *Itin.* a. 18.

[1288] *Itin.* a. 18.

[1289] R. Wendover, vol. iii. p. 384.

[1290] R. Coggeshall, p. 183.

[1291] W. Coventry, vol. ii. p. 232.

[1292] R. Wendover, vol. iii. p. 380.

[1293] *Hist. des Ducs*, p. 179.

[1294] R. Wendover, vol. iii. p. 370. The leader's name comes from *Hist. des Ducs*, p. 181; M. Paris, *Chron. Maj.* vol. ii. p. 655, has corrupted it into "Collingham." See also *Ann. Dunst.* a. 1215. On William de Casinghem's relations with John see *Rot. Pat.* pp. 185, 186. He figures frequently in the Rolls of the next reign.

[1295] *Rot. Pat.* p. 196.

[1296] *Hist. des Ducs*, p. 179.

[1297] *Ann. Dunst.* a. 1215.

[1298] R. Coggeshall, p. 182. Cf. *Hist. des Ducs*, p. 180, and W. Coventry, vol. ii. p. 232.

[1299] R. Coggeshall, p. 183. Cf. W. Coventry, vol. ii. p. 231.

[1300] *Rot. Pat.* p. 199.

[1301] Cf. R. Wendover, vol. iii. p. 384; M. Paris, *Hist. Angl.* vol. ii. p. 190; and R. Coggeshall, pp. 183, 184.

[1302] R. Wendover, vol. iii. p. 385; M. Paris, *Hist. Angl.* vol. ii. p. 191. The later legends about the cause of John's death are not worth notice.

[1303] R. Wendover, [*L.c.*](#), says John left Swineshead “summo diluculo.” The *Itinerary* shows him there on October 12 and 13, and at Sleaford on the 14th and 15th.

[1304] R. Coggeshall, p. 183. Louis had raised the siege of Dover only on the 14th, but the truce must have been arranged and the messengers despatched at least a day or two earlier, or the latter could not possibly have overtaken John at Sleaford. They must in any case have travelled with marvellous rapidity.

[1305] M. Paris, *Hist. Angl.* vol. ii. pp. 191, 192. He relates all this as having occurred on the road from Swineshead to Sleaford, where he makes John die; a characteristic piece of confusion, illustrative of Matthew’s careless way of reading the author on whose work his own is based. The itinerary given by Roger of Wendover, vol. iii. p. 385, is perfectly accurate and perfectly clear.

[1306] M. Paris, *Chron. Maj.* vol. ii. p. 668.

[1307] R. Wendover, vol. iii. p. 385. The long account inserted by Matthew Paris in his *Hist. Angl.* (vol. ii. p. 193)—*not*, it is to be observed, in his *Chron. Maj.*—of John’s forgiveness of the barons and good advice to his heir is evidently intended for the edification of Henry III. and of posterity, and if it has any foundation at all, it is inserted in a wrong place; for it is put after John’s last Communion, whereas the abbot obviously must have insisted upon John’s declaring himself to be in charity with all men (the barons, by implication at least, included) *before* he gave him the Sacrament.

[1308] R. Wendover, [*L.c.*](#)

[1309] Baronius, *Annales* (ed. Mansi), vol. xx. p. 397.

[1310] *Hist. des Ducs*, p. 180. Cf. *Hist. de G. le Mar.* vv. 15167–88.

[1311] R. Wendover, vol. iii. p. 385.

[1312] *Foedera*, vol. i. pt. i. p. 144.

[1313] R. Coggeshall, p. 184. Cf. W. Coventry, vol. ii. p. 231, and R. Wendover, vol. iii. p. 385.

[1314] R. Coggeshall, [*L.c.*](#)

[1315] Cf. W. Coventry, vol. ii. p. 232; M. Paris, *Chron. Maj.* vol. ii. p. 668; and *Hist. Angl.* vol. ii. p. 194.

[1316] R. Coggeshall, [*L.c.*](#)

[1317] R. Wendover, vol. iii. pp. 385, 386.

[1318]

“Hoc in sarcophago sepelitur regis imago,
Qui moriens multum sedavit in orbe tumultum.”

R. Wendover, vol. iii. p. 386.

[\[1319\]](#) M. Paris, *Hist. Angl.* vol. ii. p. 191.

NOTE I

JOHN AND THE DE BRAOSES

The fullest account of the quarrel of King John and William de Braose is contained in a document printed in *Foedera*, vol. i. pt. i. pp. 107, 108. This is a letter or manifesto addressed by John, after the fall of De Braose, “to all who may read it,” witnessed by the justiciar (Geoffrey Fitz-Peter), the earls of Salisbury, Winchester, Clare, Hertford, and Ferrars, Robert Fitz-Walter, William Brewer, Hugh de Neville, William d’Aubigny, Adam de Port, Hugh de Gournay, William de Mowbray “and others,” and evidently intended as a public defence of the king’s conduct towards William. Coming from John, and under such circumstances, its truthfulness is necessarily open to suspicion; but it is hardly conceivable that so many witnesses of such rank and character as those enumerated should have set their hands to it if it contained any gross misrepresentations of matters which must have been well known to most of them; one of these witnesses, indeed, the earl of Ferrars, is stated in the letter itself to have been De Braose’s own nephew, and another, Adam de Port, his brother-in-law. The only point on which the letter seems to be at variance with any other contemporary authority is the amount of the debt owed by De Braose to the king at the end of 1207 or beginning of 1208. John says ([L.c.](#) p. 107), that William then owed him the whole of the 5000 marks due for the honour of Limerick, and had only paid him one sum of 100 marks for the ferm of the city “which he had held for five years” (strictly speaking, it was, at the utmost, four years and a half). The Pipe Rolls of 1206, 1207, 1208, 1209, and 1210 (8–12 John), however, all state the sum still owed by William for the honour of Limerick as £2865: 6: 8 (= 4298 marks), thus implying that £468, or 702 marks, had been paid before Michaelmas 1206. In the Roll of that year the city of Limerick is not mentioned; but in each of the later Rolls William is said to owe £80 for its tallage, and 100 marks for its ferm for one year (Sweetman, *Calendar*, vol. i. pp. 46, 55, 58, 68). This does not necessarily imply that the ferm for the

other years had not been paid; for the original grant of the custody of the city of Limerick to De Braose in July 1203 and the writ ordering its restoration to him in August 1205 both specify that he is to pay its ferm “to our exchequer *in Dublin*” (*Rot. Chart.* p. 107 b; *Rot. Claus.* vol. i. p. 47). As there are no remaining records of the Dublin Exchequer of so early a date, we cannot certainly know what was or was not paid in there. The strange thing is not that the English Exchequer should claim only one year’s ferm for Limerick, but that it should have any claim at all in the matter. The restoration of the city to De Braose in August 1205 was ordered to be conditional on his finding security, within forty days, for the payment of the arrears of the ferm. That the restoration was actually made, and therefore that he gave the security, is plain; but there is nothing to show that he ever redeemed his pledge, or that he paid the ferm for the succeeding years.

The story of John’s vengeance on the family of De Braose appears, in slightly varied forms, in almost every chronicle of the period. Ralph of Coggeshall (p. 164), Roger of Wendover (vol. iii. p. 235) and the *Brut y Tywysogion* (a. 1209) say the victims were “slain in Windsor castle”; the Annals of Dunstable and of Oseney (a. 1210), that they “died in prison,” without specifying where or how. The Barnwell Annalist (W. Coventry, vol. ii. p. 202) and the Annals of Margan, Tewkesbury, Waverley, Winchester, and Worcester (a. 1210) say they were starved to death. The *Hist. des Ducs de Normandie* (pp. 114–115) says they were imprisoned “el castiel del Corf,” with no food save “une garbe d’avoine e i bacon cru,” and describes with gruesome minuteness the attitudes in which, on the eleventh day, they were found dead. Ralph of Coggeshall makes the victims William de Braose’s wife and “sons” (*fili*); Roger of Wendover, his wife, eldest son, and that son’s wife; the *Ann. Winton.*, wife and “younger” son; the *Ann. Tewkesb.*, wife and “children” (*liberi*); while the *Ann. Dunst.* say: “Cepit [rex] Willelmum de Lacy, et Willelmum de Brause juniorem, et sororem ejus, et Matildem matrem ejus; qui in carcere post modum perierunt.” All the other writers speak only of the wife and one son, whom the *Ann. Osen.* call “Willelmus primogenitus ejus,” and the *Ann. Wigorn.* “haeres.” This latter version is undoubtedly the correct one as to the last point; of De Braose’s three sons, the eldest, William, alone was in John’s power; Giles, the second, was bishop of Hereford and safe beyond the sea, while the third, Reginald, had escaped capture, and lived to recover the greater part of the family heritage. One of the daughters—the wife of Hugh Mortimer—had

been taken prisoner with her mother and eldest brother (*Foedera*, vol. i. pt. i. p. 107); but she did not share their fate, for she was set free in 1214 (*Rot. Pat.* vol. i. p. 122); and Roger of Wendover is certainly wrong about the younger William's wife, who was still living in July 1220 (*Royal Letters*, ed. Shirley, vol. i. p. 136). The elder William died, an exile in France, about a year after this tragedy (*R. Wend.* vol. iii. p. 237).

NOTE II

EUSTACE DE VESCI AND ROBERT FITZ-WALTER

Eustace de Vesci and Robert Fitz-Walter have long figured in history as typical examples of the way in which individual barons were goaded into hatred and vengeance against John by his invasions of their domestic peace, and also as foremost among the “patriots” to whom England is supposed to be indebted for her Great Charter. On both aspects of the lives of these two men—especially of the life of Fitz-Walter, whom Professor Tout has glorified as “the first champion of English liberty”—a few considerations may be offered here.

1. The earliest mention of John’s unsuccessful attempt to entrap the wife of Eustace de Vesci is in an addition made by a chronicler at Furness Abbey, writing c. 1270–1298, to the Stanley chronicler’s continuation of the history of William of Newburgh. This Furness writer (Howlett, *Chron. of Stephen*, etc., vol. ii. p. 521) merely states the bare fact, without any details, in the briefest and simplest way, and without any clue to the date. Walter of Hemingburgh, who was living in 1313, tells the story in an elaborate form which is certainly not impossible, perhaps not even very improbable, although it somewhat resembles a story in Procopius (see *Dic. Nat. Biogr.* “Vesci, Eustace de”). Walter gives it as an illustration of John’s character, of which he inserts a picture—painted in the most frightful colours—between the coming of the Franciscans in 1212 and the rising of the barons in 1215; but he connects the incident directly with the latter event, representing Eustace as inducing those of his fellow-barons whom the king had injured in a similar way to join him in a common effort for vengeance, which widens into the struggle for the Charter (Hemingburgh, vol. i. pp. 247–9). The affair would thus seem to have occurred some years after Eustace’s desertion from the king’s host and flight from England in 1212; a desertion for which, therefore, it cannot serve as an excuse.

2. The legend of Robert Fitz-Walter's daughter which became famous in prose and verse in the sixteenth and seventeenth centuries is based upon a passage in the Chronicle of Dunmow, printed in *Monasticon*, vol. vi. pt. i. p. 147. This chronicle, written in a monastery of which the Fitz-Walters were patrons, begins with the year 1054, but the MS. (Cott. Cleopatra C. iii.) is of the end of the fifteenth century; it ends at the year 1501. The story is placed in 1216, and is briefly this: John demands Robert's daughter, the fair maiden Matilda; her father refuses to give her up to him; the civil war breaks out, and the city of London joins the barons; afterwards they are worsted, whereupon the king destroys Robert's fortress in London—Castle Baynard—and causes Matilda to be poisoned at Robert's manor of Dunmow. Meanwhile Robert has fled to France. War continues on both sides of the Channel. Presently John goes to France, and has a conference with Philip Augustus; Robert Fitz-Walter displays his prowess in a single combat in presence of both the kings; John admires his valour, they are reconciled, and remain friends from that time forth.

On a tale so monstrous and so nonsensical as this, comment is needless. There is, however, a much earlier and more rational account of the quarrel between John and Fitz-Walter. According to the contemporary *Histoire des Ducs de Normandie*, Robert Fitz-Walter, “qui estoit uns des plus haus homes d'Engleterre et uns des plus poissans” (he was lord of Dunmow in Essex, of Baynard's Castle in London, and also, by his marriage with an heiress, of large estates in the north), had two daughters, of whom the elder was married to Geoffrey de Mandeville, eldest son of Geoffrey Fitz-Peter, chief justiciar of England. “Une fois” when the king was visiting Marlborough, a quarrel for lodgings arose between the servants of this young Geoffrey and those of William Brewer; they came to blows, and Brewer's chief “sergeant” was slain by the hand of Geoffrey himself. Geoffrey, fearing the wrath of the king, whom he knew to be jealous of his father's power and wealth, fled to his wife's father, who went to intercede for him with the king; John, however, “jura les dens Diu que non auroit (merchi), ains le feroit pendre, se il le pooit tenir.” Robert in return swore “Par *Corpus Domini*, non ferés! ains en verriés ii. m. hiaumes laciés en vostre terre, que chil fust pendus qui ma fille a.” At last John promised a “day” for agreement between himself and Geoffrey at Nottingham, intending to seize him at his coming; but Robert, “ki le roi connoissoit à moult gaignart,” came with his son-in-law, and with five hundred knights at

his back. The king then proposed another “day,” and the same thing happened a second time. Then John began to plot vengeance upon Robert; he sent secret orders to “ses bourgeois de Londres, qui se faisoient apeler baron,” to pull down Castle Baynard; and they, not daring to disobey him, did as they were bid. Robert, knowing very well that they had acted on an order from the king, fled over sea with his wife and children. On reaching the Continent “il fist à entendre par tout que li rois Jehans voloit sa fille aînée, qui feme estoit Joffroi de Mandeville, avoir à force à amie, et por chou que il ne le vaut souffrir, l’avoit il chacié de sa terre et tout le sien tolut.” This was the tale which he also told to King Philip of France, at whose court he—after staying some time at Arras—presented himself just as Philip was preparing to invade England. When the invasion had been checked by John’s submission to Pandulf and Pandulf’s prohibition to Philip, Robert went to “Pandoufle le clerc” and to him told another tale: “li dist que il s’estoit partis d’Engletierre por le roi qui escumeniiés estoit, car il ne voloit pas estre en la compaignie des escumeniiés; et por chou li avoit li rois toute sa terre tolue”; wherefore he begged Pandulf, now that the king was excommunicate no longer, to make peace for him and get him back his land, which Pandulf accordingly did (*Hist. des Ducs*, pp. 115–25).

Here, at any rate, it is clear that the date of the quarrel cannot have been later than the spring of 1213; perhaps, as we are not told how long Robert stayed in Flanders before going to France, it might be some months earlier. This agrees with the date assigned to Robert’s flight from England by the Barnwell annalist, Ralph of Coggeshall, and Roger of Wendover, all of whom place it in the latter part of 1212 (see below, [p. 292](#)). The cause of the flight, however, still remains doubtful. It will be observed that the writer of the *Histoire des Ducs*, speaking in his own person, makes the quarrel between John and Robert arise out of John’s enmity to Robert’s son-in-law, Geoffrey de Mandeville, and also makes that enmity originate in the king’s jealousy of Geoffrey’s father (the Justiciar), without a word about Geoffrey’s wife; but that he represents Robert Fitz-Walter as having given to different persons two different accounts of the matter, both of which are quite distinct not only from the account given by the writer himself, but also from each other. To the third of these three accounts—the assertion which Robert is said to have made to Pandulf, that he left England because he would not keep company with an excommunicate sovereign—it is hardly possible for any one who has read the story of the years of interdict to

attach any weight. Robert's appeal to Pandulf, moreover, is chronologically out of place; it is represented as having been made after John's agreement with Pandulf, whereas in reality the restoration of Robert Fitz-Walter, and also of Eustace de Vesci, was one of the conditions of that agreement. The statement which Robert is said to have made "everywhere," on the other hand, is only too likely to be true, and may well contain the true explanation of John's designs against the husband of Fitz-Walter's daughter; while none of the three versions is incompatible with either of the others. Still the fact remains that three different versions are thus given—two on the alleged authority of Robert Fitz-Walter, one on his own authority—by a writer who was strictly contemporary, and who ranks as one of the best, and certainly the most impartial, of our informants on the closing years of John's reign; and this fact leaves a somewhat sinister impression as to the opinion which that writer, at least, entertained of the truthfulness of the "first champion of English liberty."

The main facts which can be gathered from other sources as to Robert Fitz-Walter's relations with the king are these. In 1203 he and Saher de Quincy were jointly charged by John with the defence of the castle of Vaudreuil. They surrendered the place to Philip Augustus under circumstances so exceptionally disgraceful that Philip himself felt constrained to make an example of them as cowards and traitors of too deep a dye to be left unpunished, and flung them into prison at Compiègne, whence they were only released on payment of a heavy ransom (R. Wend. iii. 172; R. Coggeshall, pp. 143, 144). "Ex qua re," adds Ralf of Coggeshall, "facti sunt in derisum et in opprobrium omni populo utriusque regni, canticum eorum tota die, ac generositatis suae maculaverunt gloriam" (cf. *Hist. des Ducs*, p. 97). Alone, the sovereign whom they had betrayed sought to shield their reputation at the risk of his own. Of course he acted from a motive of self-interest. As neither Robert nor Saher held any lands in Normandy, their money was to Philip more useful than their personal adhesion could have been. But for John the friendship of two barons of such importance in England was worth buying back, and he endeavoured to secure it by treating them with an exaggerated generosity which was evidently designed to impress them by its contrast with Philip's severity; he issued (July 5, 1203) letters patent declaring that they had surrendered Vaudreuil under a warrant from himself, and ordering that neither they nor its garrison should be made to suffer for their act (*Rot. Pat.* vol. i. p. 31).

Fitz-Walter therefore came back in peace to his English possessions. Like Eustace de Vesci, he joined the host which John gathered for a Welsh war in 1212; like Eustace, too, he withdrew from it secretly on learning that John had received a warning of treason in its ranks (*Ann. Waverl.* a. 1212); and like Eustace, again, he did not come when summoned to make his “purgation” with the other barons, but, as has been already seen, fled the country instead (W. Coventry, ii. 207; R. Coggeshall, p. 165; R. Wendover, iii. 240). The Barnwell annalist (W. Coventry, [l.c.](#)) dates the demolition of Castle Baynard, and of Robert’s other castles, after his flight; the Annals of Dunstable place the destruction of Castle Baynard a year earlier, viz. in 1211.

There remains the question: What was the reason for the special mention of Eustace de Vesci and Robert Fitz-Walter in the terms of reconciliation between the Pope and John? At first glance it seems natural to infer that there must have been some peculiar injustice in John’s outlawry of these two men, to make their restoration a matter for intervention on the part of the Pope. But, as has been seen, all the ascertained facts of the case point the opposite way. If indeed Fitz-Walter’s alleged assertion to Pandulf, that he had fled on account of the king’s excommunication, were true, he would naturally be among the “laicis ad hoc negotium contingentibus” (R. Wendover, iii. 248), while the fact that the rest of these lay sufferers seem to have been all of lower rank might possibly account for his being specially mentioned by name. But it was not true; and with regard to De Vesci no such assertion is mentioned. Nevertheless, it is extremely probable that both Fitz-Walter and De Vesci may have contrived to represent to the Pope or his commissioner the cause of their exile in the way in which Fitz-Walter is described as representing his own case to Pandulf; and neither Pandulf nor Innocent could have at his command the means of knowing what all the evidence now available goes to show—that these two men had fled their country and left their property to fall into the king’s hand, not for conscience’s sake, but because their consciences accused them of treason.

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THE END

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Transcriber's Note

An errata slip was included in this book. It reads (footnote numbers have been added in square brackets):

P. 57, note 1 [238], for "the writer, John d'Erlée," read "John of Earley (*d'Erlée*), on whose relation to the *Histoire* in its present form see M. Meyer's introduction, vol. iii. pp. ii.–xiv."

P. 62, note 6 [256], for "John d'Erlée, the Marshal's biographer, asserts (*Hist. de G. le Mar.*, vv. 11909–16) that he himself," read "The writer of the *Hist. de G. le Mar.* asserts, vv. 11909–16, that John of Earley."

P. 70, note 6 [293], for "John d'Erlée, *Hist. de G. le Mar.*," read "The writer of the *Hist. de G. le Mar.*"

P. 77, ll. 7 and 8 from foot, for "on or about August 26" read "on August 24"; and same page, note 6 [330], for "*Itin.* a. 2, and *Rot. Chart.* p. 75," read "*Memorials of S. Edmund's*, vol. ii. p. 8."

P. 89, note 5 [396], ll. 11 and 13, and p. 106, note 3 [464], for "D'Erlée" read "the Marshal's biographer."

These corrections have been applied to this text.

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